



*2025*  
***USATF***<sup>TM</sup>  
***GOVERNANCE***  
***HANDBOOK***





2025



# ***Governance Handbook***





2025



## ***Mission Statement***

***USA Track & Field drives competitive excellence  
and popular engagement in our sport in a safe  
environment for all.***

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*An official publication of USA Track & Field, 342 Massachusetts Avenue, Suite 400, Indianapolis, IN 46204.  
USA Track & Field is the national governing body in the United States for track & field, para track & field, long distance running, cross country running, and race walking, and is the United States' member of World Athletics.*

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***USATF***<sup>™</sup>





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Member, United States  
Olympic & Paralympic Committee

## ***ABOUT USA TRACK & FIELD***

Prior to 1978, the Amateur Athletic Union (AAU) of the USA served as the national governing body for most major Olympic sports, including track & field, long distance running, cross country running, and race walking. In 1978, the Amateur Sports Act was enacted into federal law. It directed the United States Olympic and Paralympic Committee (USOPC) to recognize a separate non-profit organization as the national governing body for each Olympic sport.

Athletics (track & field, long distance running, cross country running, and race walking) became the first Olympic sport to have its own national governing body following the passage of the Amateur Sports Act of 1978. The first annual meeting of The Athletics Congress/USA (TAC/USA) was held in 1979. A constitutional convention followed in 1980, and the transition of responsibility for the sport from the AAU to TAC/USA was completed in that year. In 1992, TAC/USA changed its name to USA Track & Field, Inc. (USATF).

USATF follows three internal codes of authority:

- Bylaws
- Operating Regulations
- Competition Rules

The Bylaws and Operating Regulations are included in this annual Governance Handbook. The Competition Rules are published annually in a separate book.

The Bylaws set forth USATF's organizational structure and the basic nature of the entity. The Operating Regulations set forth the procedure USATF follows in the conduct of its administrative activities. The Competition Rules govern domestic competition on the track, on the field, and on the roads and trails of long distance running, cross country running, and race walking.

For details concerning the making of amending proposals, refer to Article 21 of the Bylaws in this document.





2025



# **ADMINISTRATION**

*Please note that some of the information in this section may be out-of-date.  
Check the online web directory for current information at [www.usatf.org](http://www.usatf.org).*



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**BOARD OF DIRECTORS OFFICERS****President and Board Chair***Curt Clausen*[President@usatf.org](mailto:President@usatf.org)**Vice Chair***Tonja Buford-Bailey***Secretary***Lauren Primerano (ex officio, non-voting)***Treasurer***Timothy Weaver (ex officio, non-voting)***Chief Executive Officer***Max Siegel (ex officio, non-voting)***BOARD OF DIRECTORS***Curt Clausen, President and Board Chair**Tonja Buford-Bailey, Coaches Advisory**Max Siegel, CEO (ex officio, non-voting)**Chris Pasko, General Competition**Willie Banks, World Athletics**Joel Brown, High Performance**Dalilah Muhammad, AC**Michael Armstrong, Officials**Bernard Lagat, AC**Norine Richardson, Youth**Michelle Carter, AC**Dena Evans, Long Distance Running**Kim Conley, AC**Matthew Stone, 5-C Organizations**Allen Johnson, AC**Dolf Berle, Independent Director**William Leer, AC**Jerry Canning, Independent Director**Kibwé Johnson, AC (Alternate)**Kristie Killough-Ali, Independent Director**Vernon Norwood, AC (Alternate)**Kathryn Busby, Independent Director**Jeré Summers-Hall, AC Chair**Rick Wade, Independent Director*

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## ADMINISTRATIVE COMMITTEE CHAIRS

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David Katz, Competition Commission  
Jasmine Todd, Athletes' Commission and Competition Committee  
Jill Pilgrim, Integrity Unit Board  
Sunil Sabharwal, Executive Board and Executive Board – Audit and Finance Committee  
Norman Wain, Governance Commission  
Renee Chube Washington, Executive Board – Remuneration Committee  
Tom Murray, Disciplinary Tribunal  
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 Jean Knaack, CEO (USATF Rep)

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 Minneapolis, MN 55437  
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## USATF CONSTITUENT ARTICLE 5-D MEMBER ORGANIZATIONS

### American Trail Running Association (ATRA)

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 Colorado Spring, CO 80932

### Amateur Athletic Union (AAU)

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 PO Box 22409  
 Lake Buena Vista, FL 32830

### American Ultrarunning Association (AUA)

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### Maccabi USA (MAC)

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### National Scholastic Athletics Foundation

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### National Senior Games Association (NSGA)

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### U.S. Armed Forces Sports (USAF)

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### United States Corporate Athletics Association (USCAA)

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### U.S. Meet Directors Association (USMDA)

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### YMCA of the USA (YMCA)

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2025



***USATF***<sup>TM</sup>

***BYLAWS***



**ARTICLE 1**  
**NAME**

*The name of this corporation shall be USA Track & Field, Inc., also referred to as “this national governing body,” “this corporation,” or “USATF.”*

**ARTICLE 2  
DEFINITIONS**

*As used in these Bylaws and the Operating Regulations:*

- A. Association** (when capitalized) means the local organization that administers a geographically defined area, and bears a name that shall include its geographic description.
- B. Athletes:**
- 1. Actively Engaged Athlete** means an athlete who qualifies as a Ten Year or Ten Year+ Athlete, as defined below, or who has been actively engaged in twenty-four (24) months prior to election/selection in a USATF-sanctioned competition, which may include events that categorize entrants in age-restricted classifications. USATF's Athletes' Commission and Nominating and Governance Panel will develop a process to jointly identify and vet candidates to serve as Actively Engaged Athletes.
  - 2. Ten Year Athlete** means an athlete who has represented the United States in the Olympic Games, the Pan American Games, World Athletics Outdoor Championships, World Athletics Indoor Championships, World Athletics Relay Championships, World Athletics Cross Country Championships, Senior NACAC Championships, Top-8 Finisher at the USA Outdoor Track and Field Championships, Top-8 Finisher at the USA Olympic Track and Field Trials, Top-12 Finisher at the USA Olympic Marathon Trials, or another event designated by the USOPC (together, with the USOPC's Athletes Advisory Council) and USATF (together, with USATF's Athletes' Commission) as an elite-level event for purposes of this definition, within the previous ten (10) years. Eligibility in the following events is restricted to the finishing spots noted above beginning in year 2000: World Athletics Indoor Championships, World Athletics Relay Championships, World Athletics Cross Country Championships, Senior NACAC Championships, Top-8 Finisher at the USA Outdoor Track and Field Championships, Top-8 Finisher at the USA Olympic Track and Field Trials, Top-12 Finisher at the USA Olympic Marathon Trials.
  - 3. Ten Year+ Athlete** means an athlete who has represented the United States in the Olympic Games, the Pan American Games, World Athletics Outdoor Championships, World Athletics Indoor Championships, World Athletics Relay Championships, World Athletics Cross Country Championships, Senior NACAC Championships, a Top-8 Finisher at the USA Outdoor Track and Field Championships, a Top-8 Finisher at the USA Olympic Track and Field Trials, a Top-12 Finisher at the USA Olympic Marathon Trials, or another event designated by the USOPC (together, with the USOPC's Athletes Advisory Council) and USATF (together, with USATF's Athletes' Commission) as an elite-level event for purposes of this definition, but not within the previous ten (10) years. Eligibility in the following events is restricted to the finishing spots noted above beginning in year 2000: World Athletics Indoor Championships, World Athletics Relay Championships, World Athletics Cross Country Championships, Senior NACAC Championships, Top-8 Finisher at the USA Outdoor Track and Field Championships, Top-8 Finisher at the USA Olympic Track and Field Trials, Top-12 Finisher at the USA Olympic Marathon Trials.
- C. Athletics** (when capitalized) means, inclusively, track & field, long distance running, cross country running, road running, race walking, and any other sport discipline recognized by the WA.
- D. Athletics competition** means a contest, game, meet, match, tournament, or other Athletics event in which Athletes compete.
- E. Board** (when capitalized) means USATF's Board of Directors.
- F. CEO** means USATF's chief executive officer, who shall function as executive director.
- G. Club** means an organization of athletes and others who participate in USATF programs as a team. There shall be various types of USATF clubs, based on the types of programs and purposes they serve. Clubs may have more than one purpose.
- H. Coach** means an individual who is currently a USATF-certified coach, or who was within the preceding ten (10) years, actively engaged in training athletes, coaching school/college community Athletics, coaching club athletes, or coaching Ten Year Athletes.
- I. Diversity** means differences among individuals, including, but not limited to: race, gender, age, ethnicity or national origin, gender identity, gender expression, sexual orientation, religious belief, physical ability or disability.



- J. International Athletics Competition** means any Athletics competition involving athletes representing two (2) or more countries.
- K. IOC** means the International Olympic Committee.
- L. NACAC** means the North American, Central American and Caribbean Athletics Association.
- M. National Office Management** means USATF's paid managerial staff.
- N. Past chair or past officer** means the person (other than the current holder of the position) who served immediately prior to the present holder.
- O. Sanction** means the document which evidences the authority granted by USATF to conduct a competition, and which also evidences that the recipient has complied with the requirements of Article 15 and Regulation 23.
- P. Sports Act** means the Olympic and Amateur Sports Act (see exhibits section of this handbook), as amended.
- Q. Sports organization** means a non-profit corporation, club, federation, union, association, or other group organized in the United States that sponsors or arranges any Athletics competition.
- R. USOPC** means the United States Olympic & Paralympic Committee.
- S. WA** means World Athletics.

### ARTICLE 3 PURPOSES AND DUTIES

*This non-profit corporation shall act as the national governing body for Athletics in the United States under the Sports Act, as authorized by the USOPC, and act as the WA member organization for the United States.*

**A. Purposes:** *This corporation shall have the following purposes:*

- 1. Development:** *Developing interest and participation in Athletics in the United States at all levels and developing the highest possible performance level for the United States in international competition;*
- 2. Management:** *Promoting Athletics and athletes by conducting competitions and other events, and cooperating with and encouraging other organizations that may do so;*
- 3. Performance:** *Fielding the most competent United States individuals and teams for international competition in Athletics and providing support and conditions that ensure optimal performance to Athletes at all levels;*
- 4. Marketing:** *Generating public awareness, appreciation, and support for Athletics and for USATF, creating opportunities for athletes and Athletics events, and generating sponsorships to help fulfill its purposes and duties; and*
- 5. Diversity:** *Promoting diversity of representation at all levels of participation in its activities.*

**B. Duties:** *This corporation shall have the following duties:*

- 1. Responsibility to constituency:** *Being responsible to persons and sports organizations active in Athletics;*
- 2. Coordination of scheduling:** *Minimizing, by coordinating with other sports organizations, conflicts in schedules for Athletics practices and competitions;*
- 3. Communication with Active Athletes:** *Keeping Athletes informed of policy matters and reasonably reflecting the views of Athletes in policy decisions;*
- 4. Sanctioning of events:** *Sanctioning Athletics competition under these Bylaws and the Operating Regulations;*
- 5. Participation in competition:** *Providing for participation by Athletes, coaches, trainers, managers, administrators, and officials in Athletics competition, under the provisions of these Bylaws and the Operating Regulations, and provide for protections guaranteed by the Sports Act, and in Article 16;*
- 6. Support of women in Athletics:** *Providing equitable support and encouragement for participation by Women in Athletics;*
- 7. Support of the disabled in Athletics:** *Encouraging and supporting sports programs in Athletics for disabled individuals;*
- 8. Coordination of technical information:** *Coordinating and providing technical information on physical training, equipment design, coaching, and performance analysis in Athletics;*
- 9. Research:** *Encouraging and supporting research, development, and dissemination of information in the areas of sports medicine and sports safety in Athletics;*
- 10. Coordination of certification and education:** *Providing the means to certify coaches and officials throughout the United States in all disciplines and at all levels of Athletics;*
- 11. Registration and certification of athletes:** *Registering athletes as members and certifying athletes as eligible for international competition;*
- 12. Maintaining athlete eligibility requirements:** *Establishing eligibility criteria for participating or competing in Athletics, or in the Olympic, Pan American, or Paralympic Games that are not more restrictive than the WA's criteria;*
- 13. Administration of Athletics:** *Performing all other duties necessary for administering Athletics in the United States and for achieving this corporation's purposes; and*
- 14. Compliance with WA Requirements:** *USATF is affiliated to the WA (and through the WA to the North American, Central American and Caribbean Athletic Association). USATF shall recognize, accept, apply, observe and abide by the Constitution, Rules and Regulations of the WA and the North American, Central American and Caribbean Athletic Association, as amended from time to time, unless any of these documents conflict with federal or state law, or USOPC requirements. This includes, but is not limited to, anti-doping rules, the handling of disputes, and relations with Athletes' Representatives. Any citizen of the United States of America elected to the WA Council shall be a voting member of the Board.*
- 15. Compliance with USOPC Requirements:** *USATF is a member national governing body (NGB) of the USOPC. USATF shall recognize, accept, apply, observe, and abide by the policies and procedures of the USOPC, as amended from time to time, including, but not limited to, its safe sport rules and regulations. Additionally, USATF shall abide by the policies and procedures of the independent safe sport organization designated by the USOPC to investigate and resolve safe sport violations. The USOPC has designated the U.S. Center for SafeSport as that organization.*

- 16. Promote Diversity in Associations:** *Providing support and establishing rules, regulations, and/or guidelines to ensure that each Association is promotion Diversity of representation at all levels of participation in its activities.*

**ARTICLE 4  
AUTHORITY**

*This corporation shall be the national governing body for Athletics in the United States, and shall exercise the following powers:*

- A. WA representation:** *Representing the United States in the WA, meeting the obligations of its membership, and having criteria relating to eligibility for competitions or to participate in the Olympic, Pan American, or Paralympic Games that are not more restrictive than those of the WA.*
- B. Establishment of national goals:** *Establishing national goals and encouraging the attainment of those goals in Athletics.*
- C. Coordination of Athletics:** *Serving as the coordinating body for activity in Athletics in the United States.*
- D. Jurisdiction:**
  - 1. Over Athletics competition:**
    - a. International:** *Exercising jurisdiction over international activities and sanctioning international competition held in the United States and sanctioning the sponsorship of international competition held outside the United States, under these Bylaws and the Operating Regulations; and*
    - b. Domestic:** *Conducting competition, including national championships and international competition in the United States, and establishing procedures for determining eligibility standards for participating in these competitions, except for restricted competition referred to in subparagraph 3, below.*
  - 2. Over USA Athletics teams:**
    - a. IOC events:** *Recommending to the USOPC individuals and teams to represent the United States in the Olympic Games and Pan American Games; and*
    - b. WA events:** *Designating individuals and teams to represent the United States in international competition (other than the Olympic and Pan American Games) and certifying, under WA rules, these individuals' and teams' eligibility.*
  - 3. Exception:** *Any sports organization that conducts Athletics competition, participation in which is restricted to a specific class of athletes (such as high school students, college students, members of the Armed Forces, or similar groups or categories), shall have exclusive jurisdiction over that competition. If such a sports organization wishes to conduct international Athletics competition to be held in the United States or sponsor international Athletics competition to be held outside the United States, it shall obtain a sanction from USATF.*
- E. Autonomy:** *USATF shall be autonomous in governing Athletics. It shall independently determine and control all matters central to governing; shall not delegate its decisions or control; and shall be free from outside restraint. This provision shall not prevent USATF from contracting with third parties for administrative assistance and support in connection with its purposes and authority, nor negate the USOPC's membership requirements for national governing bodies.*

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## ARTICLE 5 CONSTITUENCY

*Membership in USATF shall be open to any eligible individual, club, organization, national sports organization, and other constituencies defined in these bylaws and regulations. The process for applying for membership shall be stated in the regulations.*

- A. Individuals:** *Athletes, Elite Athletes, disabled athletes, coaches, officials, trainers, managers, administrators, or any other individual may join USATF, provided that s/he is not ineligible under applicable IOC, USOPC, WA, or USATF rules and regulations.*
- B. Clubs/organizations:** *Any club or organization may join USATF, provided that it is not ineligible under applicable IOC, USOPC, WA, or USATF rules and regulations, or is not prohibited by law from joining USATF.*
- C. National sports organizations:** *Sports organizations that conduct a national program or regular national competition in Athletics, on a level of proficiency appropriate for the selection of athletes to represent the United States in international Athletics competition, and have the managerial and financial capability of conducting a national championship. (See list in Exhibits.) Each of these sports organizations shall have the right and opportunity to attend and speak (at the discretion of the Board Chair) at Board meetings.*
- D. Other constituencies:** *The constituency of USATF shall also include the following organizations (See list in Exhibits):*
  - 1. National Athletics organizations:** *Other non-club sports organizations, which have purposes or activities involving or related to Athletics, and Athletics-oriented membership and programs national in scope;*
  - 2. National coaching organizations:** *Organizations whose membership consists of coaches in Athletics and which have membership national in scope;*
  - 3. Sports for the Disabled:** *Any organization under the "Sports for the Disabled" category defined by the USOPC, which directly conducts a national program in Athletics or regular national Athletics competition on a level of proficiency appropriate for the selection of athletes to represent the United States in international competition, which is designed for individuals possessing physical or mental limitations that preclude participation in unrestricted Athletics competition; and*
  - 4. Affiliated organizations:** *Other non-club sports organizations that have purposes or activities involving or related to Athletics, and a mission that is national in scope.*

**ARTICLE 6  
ASSOCIATIONS**

- A. Associations:** *The basic constituency of USATF shall be Associations, divided into mutually exclusive geographic areas of the United States. Two Associations may share jurisdiction over territory that is smaller in area and population than the exclusive territory of either. In these instances, one of the associations shall be designated as having primary jurisdiction and shall be allocated any members who do not indicate a preference. All Associations shall be separately incorporated entities, in good corporate standing, and must be recognized by the Internal Revenue Service (either by group or individual exemption) as 501(c)(3) non-profit entities that are not private foundations. (See Exhibits for Associations list and geographic descriptions.)*
- B. Association accreditation:** *All Associations shall be accredited annually by the Associations Committee under Regulation 7.*
- C. Association elections:** *Association election procedures for officers and any other elected positions shall be defined in their bylaws and comply with Regulation 7. The procedures shall include the notice of elections to be held, the process by which nominations are made, the voting constituency, the conduct of balloting, and election protests.*
- D. Association authority:** *Associations shall promote USATF's Purposes and Duties as detailed in Article 3 and shall not exceed the authority granted to them under these Bylaws and the Operating Regulations.*

## ARTICLE 7 DELEGATES AND THEIR SELECTION TO MEETINGS

The following persons shall be entitled to participate as voting delegates at USATF meetings. All delegates must be at least 18 years of age, current USATF members, and, during the Annual Meeting, must be registered.

- A. **Officers and Board members:** The officers and the members of the USATF Board, including non-voting Board members.
- B. **Nominating and Governance Panel Members.**
- C. **Committee chairs:** The chairs of all committees listed in Article 13.
- D. **Past presidents:** The past presidents of USATF.
- E. **Association delegates:** Twelve (12) delegates from each accredited Association recognized by USATF. Any accredited Association with more than one thousand (1,000) individual members shall be entitled to name one (1) additional delegate for each one thousand (1,000) individual members. Total Association individual members shall be determined based on the twelve (12) month registration period ending on October 31 of the current calendar year. However, an Association whose membership has increased since then may petition the Organizational Services Committee seeking credentials for additional delegates. Each Association's delegation shall meet the following requirements:
  - 1. **Membership:** Each of the Association's delegates shall be a member of the Association;
  - 2. **Athletes:** At least thirty-three and 33/100 percent (33.33%) of the delegates in each delegation shall be Actively Engaged Athletes. (See Exhibits). If available, at least one (1) of the Actively Engaged Athlete delegates shall be a Ten Year Athlete. National Office Management shall provide the following during the month of August each year:
    - a. **Athlete notice:** Notice to all athlete members meeting the definition of Ten Year Athlete of the address and telephone number of their Association;
    - b. **Association notice:** Notice to each Association of those athlete members meeting the definition of Ten Year Athlete who belong to that Association;
    - c. An Association's Ten Year Athletes who are current USATF members shall be considered and/or have a vote (where voting occurs) in selecting athlete delegates. Associations shall offer their athlete delegates no less funding than any other member of the Association's delegation other than the head of delegation;
  - 3. **Coaches:** The number of delegates who shall be coaches is stated in the Exhibits. If available, at least one (1) of the coaches shall be a high school coach;
  - 4. **Dual roles:** For purposes of determining compliance with these requirements, an individual from an Association may be treated as both a Coach and an Athlete if the individual satisfies the qualifications of both. (See Exhibits section of this handbook for further explanation); and
  - 5. **Sport committees:** Each Association shall select among its delegates at least one (1) individual to represent each of its sport committees that holds an Association championship.
- F. **Sports organizations:** Ten (10) delegates named by each sports organization referred to in Article 5-C and recognized by USATF.
- G. **Other constituencies:** One (1) delegate named by each organization referred to in Article 5-D, other than Affiliated organizations, unless USATF votes to grant an organization a greater number of delegates. Affiliated organizations shall have delegates only if the Board authorizes them.
- H. **Athletes' Commission delegates:** The members of the Athletes' Commission and additional athlete delegates selected by the Athletes' Commission so that the number, or weight of such vote shall be at least thirty-three and 33/100 percent (33.33%) of the total number of delegates (at least half of those athlete delegates will be Ten Year Athletes; the remaining will be either Ten Year or Ten Year+ Athlete delegates). The Athletes' Commission members registered as attendees at the Annual Meeting shall select these additional delegates under procedures approved and administered by the Athletes' Commission.
  - 1. **Weight of such vote.** For elections and other votes at which weighted voting for athletes applies the vote shall be computed as follows:
    - a. As of noon, on Friday of the Annual Meeting or at a later date determined by the chair of Organizational Services and the Chair of the Athletes' Commission, or prior to a vote at a Special Meeting in accordance

with Article (8)(b), the total number of registered delegates and the total number of athlete delegates shall be determined. For voting purposes, this number shall be final and regardless of whether a delegate shows up to vote or not, no additional calculations shall be made.

- b. The total votes cast by athlete delegates and non-athlete delegates shall be counted separately.
- c. Notwithstanding any other provision of these bylaws, the minimum number of athlete delegates shall be thirty-three and 33/100 percent (33.33%) (except for the World Athletics vote provided in Article 17, which shall be forty percent (40%)). If the number of athlete delegates is less than the required percentage, each athlete vote shall be multiplied by a factor greater than one, so that the total number of athlete votes equals the required percentage of the total weighted votes.

- I. **Alternates:** Alternates may be named for all delegates except the officers and directors of USATF. An alternate may vote in the place of an absent delegate provided the alternate meets all of the required qualifications of the absent delegate.



**ARTICLE 8**  
**MEETINGS OF USATF**

- A. Annual meeting:** The USATF Annual Meeting shall be held in the last quarter of each year, at a date, time, and place recommended by National Office Management and approved by the Board, and announced by requisite notice. If it is impractical to hold the Annual Meeting in person, the Board may approve that it be a virtual meeting.
- B. Special meetings:** Special meetings of USATF shall be held upon call by the Board. Special meetings may be held in person or virtually.
- C. Quorum:** A quorum shall consist of at least one delegate or alternate from at least fifty percent (50%) of USATF's accredited Associations; at least one (1) delegate or alternate from one Article 5-C member, and at least ten (10) Ten Year Athletes who also may be Association delegates or alternates.
- D. Meeting notices:** National Office Management shall give each certified delegate, and each of the organizations or individuals referred to in Articles 7-A through 7-F, at least three (3) weeks written notice of all USATF national meetings. The notice shall specify the meeting's time and place of the meeting and, for a special meeting, the purpose.
- E. Panel on the Order of Business:** The President shall appoint a Panel on the Order of Business, not exceeding five (5) members. The chair of the panel shall be a qualified parliamentarian and, where possible, serve at all USATF meetings.
- F. Rules of order:** Questions of order shall be decided by the chair under Roberts Rules of Order (Newly Revised), unless otherwise provided in these Bylaws. Decisions by the chair may be appealed to the Panel on the Order of Business chair.

**ARTICLE 9**  
**VOTING**

- A. Membership requirement:** Only USATF members may participate as voting delegates of USATF or vote in USATF committees, subcommittees, or councils.
- B. Voter privileges:** Each delegate shall have one (1) vote. There shall be no voting by proxy. No delegate may vote in more than one (1) capacity in the same election. Unless otherwise provided in these Bylaws or in the amending provisions of a committee's operating procedures, all matters shall be decided by majority vote of those present and voting.
- C. Motions and resolutions:** In the general session, motions and resolutions shall generally be by voice vote at meetings held in person. If the voice vote is inconclusive to the chair or, if the chair's determination is challenged, the chair (after consultation with the Organizational Services Chair) shall call for either a roll call vote (which may be taken with a written ballot) or a show of hands. A roll call vote shall be taken instead of a voice vote upon oral or written petition of at least ten (10) delegates representing more than two (2) different Associations or member organizations. At virtual meetings, contested votes shall be conducted by electronic voting.
- D. Voting issues:** If, in the conduct of an election, there are any issues concerning the validity of one or more votes, or a discrepancy between the number of voters checked-in and the number of votes cast in a particular election, or other matter which potentially affects the fairness of the election, an immediate consultation shall be held between the USATF General Counsel, the Counsel to the Board, the chairs of the Law & Legislation and Organizational Services committees, the appointed Parliamentarian, and the chair and vice chair of the Athletes' Commission. If a majority of this group determines that the discrepancy would not have affected the final outcome, the results of the election shall stand. Failing that agreement, the election must be balloted a second time.

## ARTICLE 10 OFFICERS AND THEIR DUTIES

- A. Positions:** USATF's officers shall be a Chair, President, Vice Chair, Secretary, and Treasurer. No individual may be an officer of USATF who is also an officer of another national governing body.
- B. Duties:** The officers shall perform the following duties as well as any other duties prescribed by these Bylaws, USATF, or the Board:
- 1. Chair:** The Chair shall:
    - a. Preside at all meetings of USATF Board meetings;
    - b. Be an ex-officio non-voting member of all committees;
    - c. Except as noted in 1.g below, select committee chairs and other members that he or she is entitled to appoint, as well as other appointments authorized by these Bylaws and the Operating Regulations after consulting with the President and Vice Chair. The Chair may likewise terminate appointments made by the Chair for good cause upon written notice to the appointees and the other officers;
    - d. Set meetings and meetings agendas for the Board, and preside at all meetings of the Board;
    - e. See that the Board commitments, resolutions, and oversight are carried into effect;
    - f. On behalf of the Board, serve as the immediate supervisor of the CEO;
    - g. Appoint, with final Board approval, the chair and other members of the Ethics Committee as provided in Regulation 16-G. The Board may likewise terminate appointments to this committee for good cause upon written notice to the appointees and their chair;
    - h. Perform other duties as Board Chair that the Board assigns.
  - 2. President:** The President shall:
    - a. Preside at all meetings of USATF's membership;
    - b. Serve as Vice Chair if not elected as Board Chair;
    - c. Be an ex-officio non-voting member of all committees, if not elected as Board Chair;
    - d. If the President does not serve as Board Chair, he or she shall have the authority to add items to the board meeting agendas after consulting with the Board Chair;
    - e. Except as noted in 1.g, select committee chairs and other members that he or she is entitled to appoint, as well as other appointments authorized by these Bylaws and the Operating Regulations after consulting with the Chair or Vice Chair. The President may likewise terminate appointments made by the President for good cause upon written notice to the appointees and the other officers. When a Presidential appointment requires Board approval, the Board shall vote on such approval no later than ninety (90) days after notice of the appointment is made; if no vote is held within ninety (90) days, the appointment will be deemed approved;
    - f. Comply with all responsibilities assigned under World Athletics bylaws, including serving as a delegate at the World Athletics General Assembly.
  - 3. Vice Chair:** If the Chair is temporarily absent from a Board meeting, the Vice Chair shall serve as acting chair.
  - 4. Secretary:** The Secretary shall keep or cause to be kept all records of USATF, and all minutes of meetings of USATF and its Board, and, in general shall perform all duties normally pertaining to the office of Secretary. The Secretary shall keep or cause to be kept an audio recording of the open portions of all Board meetings, which shall be made available to any Board member upon request. The National Office staff shall maintain copies of all records, minutes and recordings. In addition, the Secretary shall serve as liaison to the Administrative Division.
  - 5. Treasurer:** The Treasurer shall:
    - a. Keep or cause to be kept a correct and complete record of account, showing accurately at all times USATF's financial condition;
    - b. Serve on the Budget Committee and the Audit Committee;
    - c. Serve as the Board liaison to National Office Management on financial matters; and
    - d. In general, perform all duties pertaining to the office of Treasurer.
- C. Selection:** The President shall be elected at each Annual Meeting of USATF following the original scheduled date of the Summer Olympic Games for a four (4) year term beginning January 1<sup>st</sup> after the Annual Meeting. At the conclusion of the current elected Board Chair's term, the Board shall elect one of its members to serve as Chair at the Board's first meeting after January 1<sup>st</sup>. The Vice Chair shall serve as acting Chair until the Board elects a Chair. The President shall be the Chair of the Board unless the Board elects another of its members to serve as Chair by two-thirds (2/3) vote of the full membership of the Board. The Chair shall serve for the shorter period of either: (1) the remainder of the four (4) years following the election of the President; or (2) the remainder of their term on the Board. The Board shall also elect a Vice Chair (if the President is the Board Chair), Secretary, and Treasurer who all

*shall serve two (2) year terms. Board Officers may be elected immediately following the conclusion of the Annual Meeting in even-numbered years. The Secretary and Treasurer need not be voting members of the Board.*

- D. Limitation on terms:** *No person shall serve as Chair or President for more than two (2) consecutive terms without a period of at least two years away from that position. However, an individual who fills a vacancy or otherwise serves a term as Chair or President of two years or less may then serve for up to two (2) more consecutive terms.*
- E. Succession and vacancies:** *There shall be no order of succession to any office. If the Board determines that any officer is temporarily unable to serve, it may, in its sole discretion, name another individual to fill the vacancy. If the President resigns or is permanently unable to serve, the Board shall name a successor until the following Annual Meeting, when a special election shall be held for the unexpired portion of the term.*
- F. Removal from office:** *The President may be removed for good cause by a two-thirds vote of those delegates of USATF present and voting at an Annual Meeting or special meeting called for this purpose and provided the requisite notice for the meeting (see Article 8) properly states the removal vote on its agenda. The Board may remove the Chair, Vice Chair, Secretary, or Treasurer for good cause by a two-thirds vote of those Board members present and voting, who are not conflicted under applicable law, at a regular meeting or special meeting called for that purpose.*

## ARTICLE 11 BOARD OF DIRECTORS

USATF shall be governed by a Board whose members are elected or selected without any unlawful consideration of gender, age, race, color, religion, or national origin.

**A. Role:** The Board shall:

1. Establish policies to enable USATF to achieve its purposes and perform its duties;
2. Govern and supervise USATF's long-term affairs and perform those duties specified in these Bylaws and the Operating Regulations;
3. Recommend, approve, and oversee all USATF committee programs;
4. Select a CEO to lead National Office Management and conduct annual performance evaluations, determine compensation, and, if necessary, determine whether to retain or dismiss the CEO. Any such decision will be made by a two-thirds (2/3) vote of a quorum consisting of members of the Board who are not personally conflicted;
5. Provide and oversee the strategic guidance to the USATF organization. In this capacity, the Board approves strategic goals for USATF following review and discussions with the CEO;
6. Protect assets and provide financial oversight of USATF, including the approval of USATF's annual budgets as recommended by the CEO and providing for annual independent audits of USATF and its committees, and review and approval of the financial statements, annual report, and financial control policies of USATF;
7. Ensure adequate financial resources necessary for USATF to fulfill its mission; and
8. Ensure that athlete safety rules, policies, and procedures comply with the requirements of the USOPC and the U.S. Center for SafeSport.

**B. Composition:** The Board shall be composed as follows:

1. The WA Council member from the U.S.A.;
2. The USATF President;
3. An individual with experience and expertise in High Performance, elected by the members of the Executive Committee of the High Performance Division under the election procedures in Regulation 9;
4. An individual with experience and expertise in Long Distance Running, elected by the committees and councils set forth in Regulation 9.D.1. under the election procedures in Regulation 9;
5. An individual with experience and expertise in General Competition, elected by the members of the Masters Track & Field and Associations Committees of the General Competition Division under the election procedures in Regulation 9;
6. An individual with experience and expertise in Youth Athletics, elected by the Youth Athletics Committee under the election procedures in Regulation 9;
7. An individual with experience and expertise in officiating, elected by the Officials Committee under the election procedures in Regulation 9;
8. An individual with experience and expertise in coaching, elected by the Coaches Advisory Committee under the election procedures in Regulation 9;
9. One representative elected at the Annual Meeting following the originally scheduled Summer Olympic Games by the representatives of the sports organizations, which conduct a national program or a regular national competition in Athletics on a level of proficiency appropriate for the selection of athletes to represent the United States in international Athletics competition, as described in Article 5-C. Each of these sports organizations shall have the right and opportunity to have an individual non-voting representative attend all Board meetings. Current members are listed in the administration section of this handbook;
10. Five (5) independent members recommended by the Nominating and Governance Panel and approved by a majority vote of the Board of Directors;
11. The Chair of the Athletes' Commission;
12. The USATF representative to the USOPC Athletes Advisory Council, who shall be a Ten Year Athlete;
13. Two (2) Ten Year or Ten Year+ Athlete Representatives of the Athletes' Commission, including one male and one female, who are either current or past Actively Engaged Athletes, that are elected by the Ten Year Athlete members ; and
14. Three (3) Ten Year Athletes, including at least one male and one female, elected by the Ten Year Athlete members. The Ten Year Athlete delegates shall also elect an alternate Ten Year Athlete member, who may vote if one or more of the Ten Year Athlete Board members, Athletes' Commission Chair, USATF representative to the USOPC Athletes Advisory Council, or Ten Year or Ten Year+ Athlete Representatives to the Athletes' Commission is not present when a vote is conducted. The alternate USATF representative to the USOPC

*Athletes Advisory Council shall be a non-voting ex officio member of the Board of Directors. The alternates to the Athlete members shall otherwise have all the rights and privileges of all other Board members, including but not limited to access to all information provided to other Board members, notice of all meetings, the right to attend all meetings, including meetings held in executive session, and expense reimbursements for attending meetings and performing other duties as a Board member. The Athletes' Commission shall endeavor to ensure parity between males and females when selecting their representatives to the Board of Directors.*

*Notwithstanding the above, at least twenty percent (20%) of the Board must be represented by Ten Year Athlete members. Additionally, at least fifty percent (50%) of the athlete members of the Board must have obtained Ten Year or Ten Year+ Athlete status by competing in the Olympic Games, the Olympic Winter Games, the Paralympic Games, the Paralympic Winter Games, the Pan American Games, or the Parapan Am Games.*

- C. Terms:** *The President, Athletes' Commission Chair, WA Council member, and the USATF representative to the USOPC Athletes Advisory Council shall serve on the Board during their terms of office. All Board members shall serve four (4) year terms that shall commence January 1 and shall end on December 31, except the WA Council member's term shall commence upon ratification of the vote taken at and by the WA Congress:*
- 1. The following members shall serve four (4) year terms commencing on January 1 of the year following the original scheduled date of the Summer Olympic Games:*
    - a. The individuals with experience and expertise in High Performance, Long Distance Running, and Officiating;*
    - b. The individual designated by the sports organizations described in Article 5-C;*
    - c. Three (3) of the five (5) independent members;*
    - d. Two (2) of the three (3) Ten Year Athletes, including one male and one female; and one (1) of the two (2) Ten Year or Ten Year+ Athlete members of the Athletes' Commission; and*
    - e. One (1) of the two (2) Ten Year or Ten Year+ Athlete Representatives of the Athletes' Commission.*
  - 2. The following members shall serve four (4)-year terms commencing on January 1 two (2) years following the original scheduled date of the Summer Olympic Games:*
    - a. The individuals with experience and expertise pertaining to General Competition, Youth Athletics, and Coaching;*
    - b. Two (2) of the five (5) independent members;*
    - c. One (1) of the three (3) Ten Year Athlete members and the alternate Ten Year Athlete member; and*
    - d. One (1) of the two (2) Ten Year or Ten Year+ Athlete members of the Athletes' Commission.*
- D. Term limits:** *No individual may serve on the Board for more than eight (8) consecutive years, except the President and WA Council Member who shall each serve in accordance with their respective terms. However, in the case of an individual who fills a vacancy or otherwise serves a Board term of less than two (2) years, such shortened term shall not count towards the eight year limitation. If the remaining term is between two (2) and four (4) years, then the shortened terms shall count as a four year term towards the eight year limitation.*
- E. Compensation:** *Directors and all Board committee members will not receive compensation for their services as such, although the reasonable expenses of directors and Board committee members may be paid or reimbursed in accordance with the policies of USATF. Directors and Board committee members will not be disqualified to receive reasonable compensation for services rendered to or for the benefit of USATF in any other capacity, provided that the rendering of such services and such compensation are approved by the Ethics Committee or Board policies.*
- F. Core Qualifications:** *All candidates for the USATF Board of Directors as defined in Article 11(B), must be evaluated under, and pass a board certification process which includes, but is not limited to, a USATF approved background check, current US Center for SafeSport training, and conflict of interest review, and thereafter, all members of the Board or any Board committee shall complete this certification on an annual basis. Each individual running for President or elected by the six divisions or committees specified in Article 11(B)(3)-(8), shall be required to have registered for and attended at least one prior Annual Meeting or have served as an Association officer for at least one year prior to being elected as a Board member. Each of the six divisions or committees specified in Article 11(B)(3)-(8) shall develop and publish in its operating procedures additional qualifications particular to the division or committee for prospective Board members. Candidates for the following board seats must have a valid passport and/or be able to obtain and maintain the necessary documents required for international travel: President and High Performance.*



The National Office, in collaboration with the USATF Ethics Committee and the Nominating and Governance Committee, will conduct the review of the eligibility requirements above and publish their eligibility determinations. The candidates, the six divisions or committees specified in Article 11(B)(3)-(8), and Organizational Services Committee will be notified directly of the eligibility findings of the candidates.

The National Office shall initiate the eligibility review within 5 business days of candidate application forms and/or notice in writing that a candidate is running for a position.

**G. Nominating and Governance Panel:** The Nominating and Governance Panel shall consist of eight (8) members:

1. Selection of Nominating and Governance Panel: Members shall be selected by:
  - a. The High Performance Division and the Coaches Advisory Committee (two members of opposite gender);
  - b. The chair of the Athletes' Commission (three Ten Year or Ten Year+ Athlete members (such that at least fifty percent (50%) of the athlete members are Ten Year Athletes), ensuring gender parity whenever possible, subject to approval by the Athletes' Commission);
  - c. The Long Distance Running Division (one member);
  - d. The General Competition Division and Officials Committee (one member); and
  - e. The Youth Athletics Division (one member).
2. Procedures to select Nominating and Governance Panel: The groups that select Nominating and Governance Panel members shall adopt and publish selection procedures. The groups shall submit their nominees to the Diversity and Leadership Development Committee, which shall evaluate the overall diversity of the nominees. The Diversity and Leadership Committee, if it deems necessary, may request the chairs of the respective groups to meet and confer to reconstitute the Nominating and Governance Panel to achieve greater diversity.
3. Nominating and Governance Panel terms: Nominating and Governance Panel members shall serve four (4)-year terms, which shall commence at the conclusion of the Annual Meeting immediately prior to the originally scheduled Summer Olympics and whose selection shall be overseen by the Organizational Services Committee. The groups responsible for selecting members shall fill any vacancies. No individual may serve on the Nominating and Governance Panel for more than two (2) consecutive terms. However, an individual who fills a vacancy or otherwise serves a term of two years or less may then serve for up to two (2) more consecutive terms. The members shall select their chair. No member may serve as a voting or non-voting member of the Board during the term of office.

**H. Nominating process:** Each group responsible for nominating Board members shall establish its nominating process and include the process in its operating procedures. The process shall include, but not limited to, provisions that a prospective Board candidate shall be required to submit a completed Code of Ethics Reporting Statement, clear USATF's annual background screen and comply with the USATF Safe Sport Program prior to being elected by the committee and provisions for submitting replacement nominees if the previous nominees are not seated on the Board.

**I. Selection of Independent Board members:** The following procedures shall apply for selecting independent Board members that the Nominating and Governance Panel is responsible to select:

1. The Nominating and Governance Panel shall solicit applications for the independent Board member positions. Prior to soliciting applications, the Panel should confer with the Board Chair, President, and CEO regarding additional skills and experiences that would be beneficial to add to the Board at that time. All applications for independent Board members shall be submitted to the USATF General Counsel. All applicants shall fully disclose all current and prior business, professional, and personal relationships with USATF Board members, National Office staff, and all other interested persons as defined by USATF's Code of Ethics.
2. If an independent Board member is eligible to serve a subsequent term, the panel may select that individual without soliciting applications for the position.
3. The Panel shall select the independent members who are to be recommended to the Board for approval to ensure competence, relevant skills and experiences, and reasonable ethnic and gender diversity.
4. The Panel shall establish in advance of the Annual Meeting a schedule of in-person meetings and conference calls, and internal policies for selecting independent Board members. The Panel's policies should include a concise statement of the Panel's directives and a method to narrow the list of nominees under consideration while maintaining diversity.
5. The Panel's considerations shall include, but not be limited to the following qualifications of the nominees: diversity, personal histories, personal statements, sports organization involvement, unique abilities, level of interest, continuity (including past service on the Board), experience in finances, interpersonal skills, and knowledge of the sport.

6. The Panel shall maintain confidentiality throughout its deliberations to select Board members. Panel members shall restrict their communications to other Panel members and the USATF General Counsel on matters pertaining to the nominees and the Panel's deliberations.
  7. The Panel shall recommend for approval by the Board independent Board members from the pool of applicants. The Panel should endeavor to approve the independent members by unanimous vote. The Panel shall forward its selection of members to the Chair, President, and CEO.
  8. An "independent Board member" shall not be considered "independent" if, at a time during the two years preceding commencement of or during his or her term or position as a Board member:
    - a. the Board member demonstrates a conflict of interest in accordance with USATF's Code of Ethics; or
    - b. the Board member would not be deemed "independent" pursuant to the USOPC's current guidelines on independent Board members.
- J. Resignation, Removal, and Vacancies:** Any Board member's position on the Board shall be declared vacant upon the Board member's resignation, removal, incapacity, or death.
1. **Resignation.** Any individual on the Board may resign at any time by giving written notice to the USATF Board Chair, USATF Secretary, and USATF CEO. Such resignation shall take effect at the time specified therein, and unless otherwise specified therein, the acceptance of such resignation shall not be necessary to make it effective.
  2. **Removal.** Unless otherwise restricted by law, by the articles of incorporation, or by these Bylaws, any Board member(s), or the entire Board, with or without cause, may be removed as specified by the terms of this provision. The constituent groups responsible for electing Board members with expertise in their particular fields may remove their respective representative(s) by the affirmative vote of two-thirds of that constituency group entitled to vote for that particular Board member in accordance with that constituent group's operating procedures. Any Independent member(s) of the Board, Treasurer, and Secretary elected by the Board, may be removed by the affirmative vote of two-thirds of those Board members present and voting who are not conflicted under applicable law, at a regular or special meeting called for that purpose. Notwithstanding Article 11(L), a quorum for any regular or special meeting where a removal vote of any independent member of the Board, Treasurer, or Secretary is to be held shall consist of ninety percent (90%) of the full membership of the Board. No Board member shall be removed, and no process to remove any Board member shall be initiated, at a Board meeting, or respective constituent group meeting, unless the written notice of such meeting is delivered to all members entitled to vote on such removal or process to remove such Board member. Such notice shall state that the purpose of the meeting is to vote upon the removal of, or the initiating of a process to remove, one or more Board members named in the notice. Only the named Board member(s) may be removed or such process initiated at such meeting.
  3. **Vacancies.** Unless otherwise restricted by law, by the articles of incorporation, or these Bylaws, the groups responsible for nominating Board members shall fill vacancies as follows: The Nominating and Governance Panel shall fill all vacancies for unexpired Board terms for independent members. The constituent groups responsible for electing Board members with expertise in their particular fields shall fill all vacancies for unexpired Board terms for those Board members. The Article 5-C Sports Organizations shall elect a replacement to fill its member vacancy for the remainder of the term. The Athletes' Commission shall fill any Ten Year or Ten Year+ Athlete member vacancy until the next Annual Meeting, when the Ten Year or Ten Year+ Athlete delegates shall elect a replacement to serve the remainder of the term. For the sake of clarity, vacancies also include those that will occur at a specific later date, by reason of a resignation effective at a later date or otherwise. Such vacancies may be filled before the actual occurrence of the vacancy, but the new Board member may not take office until the vacancy occurs.
- K. Board Meetings:** The Board may conduct its affairs at in-person meetings or by conference call. It shall hold meetings at least quarterly, called by the Board Chair. The Board Chair, or five (5) Board members by written request, may call additional meetings. Board members intending to call a meeting must give at least five (5) days' notice to the Board Chair of their intent by facsimile or electronic mail. After the Board members have called for a meeting, the Board Chair shall have twenty-four (24) hours to determine the venue and give appropriate notice to the Board. All Board members shall receive at least fourteen (14) days' notice of any in-person meeting and at least forty-eight (48) hours' notice of any conference call. Further to USATF's Code of Ethics, each Board member shall have an ongoing obligation to affirm his or her previously provided disclosure form at each respective Board meeting and promptly disclose (including in writing) any information required by the disclosure form in which the Board member became aware after he or she submitted the disclosure form. Such disclosures shall be disclosed in the respective Board meeting's minutes. USATF shall cover all travel expenses for those Board members attending Board meetings in person, in accordance with USATF's travel policies and procedures. Written notice shall include



the minutes of the previous meeting. Notice for any meeting may be waived by unanimous consent. Individuals who cannot attend in-person meetings may participate fully by conference call. All committee chairs, past presidents and board chairs, and WA delegates and committee members shall receive both notice and minutes of every meeting and may attend at their own expense. These persons shall receive reimbursement when the agenda requires that they attend. The Board shall give USATF members the opportunity at its meetings to give input or make brief statements, subject to the discretion of the Chair to limit such input or statements when necessary.

- L. Quorum:** A quorum for meetings of the Board shall consist of a majority of the members of the Board.
- M. Voting:** Except as otherwise provided, all matters shall be decided by majority vote of those present and voting. There shall be no voting by proxy.
- N. Mail balloting:** The Board Chair on his or her own initiative or the Board by a majority vote, may authorize a vote by mail, facsimile, or electronic mail. The resolution or motion shall specify the procedure and subject matter.
- O. Board committees:** The Board will have committees including, but not limited to, audit, budget, business development, bylaw (governance), competition, grant, investment, Safe Sport, and personnel and compensation. The Board committees shall consist of Board members and non-members with expertise in the committees' subject areas. All committees shall include an authorized total membership of at least one-third athlete members (such that at least fifty percent (50%) of those athlete members are Ten Year Athletes). Each Board Member shall be offered to serve on at least one (1) committee. The Board Chair shall appoint the committee members, subject to Board approval, after first consulting with the Vice Chair regarding all appointments and obtaining the Athletes' Commission's approval regarding athlete appointments. Committee appointments for the following calendar year shall be made within thirty (30) days of the conclusion of the Annual Meeting. Any Board committee member's position on a Board committee shall be declared vacant upon the Board committee member's resignation, removal, incapacity, or death. Any Board committee member may resign from a Board committee at any time by giving written notice to the USATF Board Chair, USATF Secretary and USATF CEO. Such resignation shall take effect at the time specified therein, and unless otherwise specified therein, the acceptance of such resignation shall not be necessary to make it effective. Unless otherwise restricted by law, by the articles of incorporation, or by these Bylaws, any Board committee member, or the entire Board committee, may be removed, with or without cause, as specified by the terms of this provision. The Board, or the Athletes' Commission in the case of an athlete appointment, may remove a Board committee appointment by the affirmative vote of two-thirds of those Board members or Athletes' Commission members, as applicable, present and voting who are not conflicted under applicable law, at a regular meeting or special meeting called for that purpose. No Board committee member shall be removed, and no process to remove any Board committee member shall be initiated, at a meeting unless the written notice of such meeting is delivered to all Board or Athletes' Commission members entitled to vote on such removal or process to remove such Board committee member. Such notice shall state that a purpose of the meeting is to vote upon the removal of, or the initiating of a process to remove, one or more Board committee members named in the notice. Only the named Board committee member(s) may be removed or such process initiated at such meeting. Vacancies on any Board committee shall be filled by the Board Chair, subject to Board approval, after first consulting with the Vice Chair regarding such appointment and obtaining the Athletes' Commission's approval regarding any such athlete appointment. Each board committee is required to have its own charter, to be published on the USATF website. Each Board committee shall meet in person and/or by phone at least twice during each calendar year and make reports to the USATF Board of Directors at scheduled board meetings. Minutes from each committee meeting shall be made available to members of the Board of Directors. No individual may serve on any Board committee for more than two (2) consecutive terms in the same Board committee.
- P. Attendance:** The Board may reprimand or censure any Board member of Board committee member who fails to participate in two (2) consecutive meetings by a two-thirds (2/3) vote of those members attending. Board committee members are expected to attend their respective Board committee meetings on a regular and punctual basis. Absence from more than two of the regularly scheduled Board committee meetings during a given calendar year will constitute that Board committee member's resignation as a member of that particular Board committee. In case of extenuating circumstances, a Board committee member may request a waiver from the Board Chair to this provision. Waivers may be granted at the discretion of the Board Chair. In the event of said waiver, the Board Chair shall inform the Board of the granting of said waiver.

**Q. Information:** *Except in unusual circumstances, the members of the Board of Directors shall be provided access to all information required for them to execute their fiduciary duties. At least forty-eight (48) hours prior to all Board meetings, the Board of Directors shall be given access to all written materials which will be presented at that Board meeting, including the agenda, all written reports and financial information. In addition, the members of the Board of Directors shall have access, via a secure data site or other secure means, to all past Board committee minutes, Board presentations, and financial information. Board members shall treat all such information confidentially.*

## ARTICLE 12 NATIONAL OFFICE MANAGEMENT

- A. Chief Executive Officer:** USATF's chief paid executive shall be the Chief Executive Officer (CEO), who shall be selected by and shall serve at the Board's direction. The CEO shall conduct USATF programs and enforce USATF policies under these Bylaws and the Operating Regulations. The CEO shall also hold the title of General Secretary. The CEO shall also have the following authority and duties:
1. **Management:** Manage and supervise USATF's day-to-day affairs under specific policies and directives established by the Board;
  2. **Employment and supervision of staff:** Employ and supervise USATF's staff and consultants, including sole discretion over employee hiring and retention;
  3. **Chief Operating Officer:** Appoint a Chief Operating Officer, who shall act in the CEO's stead if the CEO's position becomes vacant or the CEO is unable to act;
  4. **Succession plan:** Present a succession plan to the Board annually;
  5. **International communications:** Supervise correspondence and communications regarding United States' teams and regarding competition by United States' athletes abroad or foreign athletes in the United States, to comply with WA rules;
  6. **Team staffs:** Supervise and oversee United States' team coaches and staffs;
  7. **Legal documents and commitments:** Ensure that all contracts and other legal commitments of USATF are signed by the authorized USATF officers after approval by established procedures. Consistent with Article 18-I Contracts, unless the Board otherwise directs, the CEO or another USATF staff member the CEO designates, and the Chair (where appropriate) shall sign all contracts and commercial agreements;
  8. **Commercial aspects:** The CEO shall be responsible for managing all commercial aspects of USATF;
  9. **Protect USATF interests:** Take actions, under the Board's direction, reasonably necessary to protect USATF from liability to third parties or to protect USATF's and the sport's integrity. The CEO may act under this paragraph without first consulting the Board only under extraordinary, time-sensitive circumstances, and shall consult with the President, Board Chair and other appropriate individuals in connection with the action. Emergency actions with respect to members, committees, or any other individual or entity under USATF's jurisdiction are further governed by Regulation 21-U;
  10. **Ex-officio membership:** Serve as a non-voting member of the Board, and all committees and subcommittees, and have the authority to appoint a staff member as a liaison to each USATF and Board committee;
  11. **Exclusive employment:** Devote his or her full time to the affairs of USATF without engaging in any other profession or employment;
  12. **Budgetary limitation:** Operate within the annual budget;
  13. **Strategic planning:** Create strategic plans for USATF with the Board;
  14. **Yearly report:** At the Annual Meeting, present to USATF a report on the state of the sport, including a review of the progress since the last Annual Meeting and suggested plans for implementing the strategic plans for the following year;
  15. **Disbursements:** Approve and oversee all disbursements by USATF, subject to review only by the Board; and
  16. **Other duties:** Carry out other responsibilities under resolutions adopted by the Board or by the membership at the Annual Meeting.
- B. Restricted activities:** No USATF employee may participate in any of the following activities:
1. **Electioneering:** Campaigning for or against any candidate for any elected office or position at any level (Association, committee, national, or international), except that in the state of the sport address at the first general session, the CEO may comment on the performance to date of any WA incumbent and/or describe the qualifications appropriate for any WA or USOPC position; and
  2. **Voting:** Serving as voting members of USATF or any of its committees.

## ARTICLE 13 COMMITTEES

The following committees of USATF are established with duties, responsibilities, and make-up specified in the regulations.

| <b>HIGH PERFORMANCE DIVISION</b>                                                                                                                                        | <b>LONG DISTANCE RUNNING DIVISION</b>                                                                                                                                                                                                                                                                                                              |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <i>Sport committees:</i><br><i>Men's Track &amp; Field</i><br><i>Women's Track &amp; Field</i><br><i>Race Walking</i><br><br><i>Joint Development Group (see below)</i> | <i>Sport committees or councils:</i><br><i>Men's Long Distance Running</i><br><i>Women's Long Distance Running</i><br><i>Masters Long Distance Running</i><br><i>Cross Country Running (Council)</i><br><i>Mountain-Ultra-Trail Running (Council)</i><br><i>Road Racing Technical (Council)</i><br><i>Joint Development Group (see below)</i>      |
| <b>JOINT DEVELOPMENT GROUP</b>                                                                                                                                          | <b>GENERAL COMPETITION DIVISION</b>                                                                                                                                                                                                                                                                                                                |
| <i>Development committees:</i><br><i>Coaching Education</i><br><i>Men's Development</i><br><i>Sports Medicine &amp; Science</i><br><i>Women's Development</i>           | <i>Operating committee:</i><br><i>Associations</i><br><br><i>Sport committee:</i><br><i>Masters Track &amp; Field</i>                                                                                                                                                                                                                              |
| <b>YOUTH ATHLETICS DIVISION</b>                                                                                                                                         | <b>ADMINISTRATIVE DIVISION</b>                                                                                                                                                                                                                                                                                                                     |
| <i>Sport committee:</i><br><i>Youth Athletics</i><br><br><i>Division council:</i><br><i>Youth Advisory (Council)</i>                                                    | <i>Operating committees:</i><br><i>Athletes' Commission</i><br><i>Athletics for the Disabled</i><br><i>Coaching Advisory</i><br><i>Diversity and Leadership Development</i><br><i>Ethics</i><br><i>Law &amp; Legislation</i><br><i>Organizational Services</i><br><i>Officials</i><br><i>Records</i><br><i>Rules</i><br><i>Volunteer (Council)</i> |

## ARTICLE 14 DISCIPLINARY AUTHORITY AND GRIEVANCES

- A. Disciplinary authority:** USATF shall have the authority to discipline any member, delegate, athlete, coach, manager, official, trainer, member of any committee, and any other person or entity participating in Athletics who, by neglect or by conduct:
1. acts in a manner detrimental to the purposes of USATF or Athletics,
  2. has violated any of the Bylaws, Operating Regulations, USATF Safe Sport Policies, or Rules of Competition of USATF, USOPC bylaws, U.S. Center for SafeSport policies and procedures, WA rules, or the Sports Act,
  3. has violated any provision of the USATF Code of Ethics and their related Codes of Conduct,
  4. has violated a commitment as a national team member, or
  5. has violated the rules of eligibility.
- B. Association recommendations:** Any Association may recommend to the Board that USATF discipline a member, delegate, athlete, coach, manager, official, trainer, member of any committee, or any other person or entity participating in Athletics.
- C. Redress of grievances:** A grievance may be any matter within the cognizance of USATF other than doping offenses.
- D. Opportunity to participate:** Any athlete, coach, trainer, manager, administrator, or official who alleges that he or she has been denied an opportunity to participate in Athletics competition shall be entitled to fair notice and opportunity for a hearing. Hearings for these matters, other than for doping offenses, shall be conducted under Regulation 21. Nothing in this paragraph shall limit or abridge the CEO's authority to impose provisional suspensions as described in Article 12-A-9 and Regulation 21-U.
- E. Hearing Rights of persons or entities charged:** USATF and its Associations shall provide any athlete, coach, trainer, manager, administrator, official, other individual, or entity subject to a Grievance or Disciplinary proceeding with fair notice and an opportunity for a hearing prior to deciding the matter or imposing any penalty. All parties may have representatives, who may be attorneys, and shall have the right to present evidence and witness testimony and to cross-examine adverse witnesses. Hearings for all matters other than doping offenses shall be conducted under Regulation 21.
- F. Disciplinary authority for Safe Sport Matters:** Each person defined as a "Covered Individual" shall be:
1. subject to the jurisdiction of USATF and/or the U.S. Center for SafeSport with respect to the investigation and resolution of any allegations that such Covered Individual may have violated
    - a. the sexual abuse and misconduct policies as referenced in the USATF Safe Sport Handbook and defined by the U.S. Center for SafeSport, or
    - b. allegations of violations of USATF's Safe Sport Policies that are reasonably related to and accompany a report or allegation of sexual abuse or misconduct, and
  2. subject to any action taken by the U.S. Center for SafeSport as a result of such allegations, including without limitation, suspension, permanent suspension, and/or referral to law enforcement authorities, all as set forth in the U.S. Center for SafeSport Policies and Procedures. "Covered Individual" shall mean
    - a. those persons who are registered members of USATF, including but not limited to all registered coaches, youth coaches and volunteers, certified officials, and authorized agents,
    - b. all National Office staff of USATF,
    - c. all persons serving as a member of USATF's Board of Directors,
    - d. all members of any national or international team staff, and
    - e. all contractors engaged on behalf of USATF at an Olympic training center.

**ARTICLE 15  
SANCTIONS**

*Sanctions shall be governed by this Article and Regulation 23.*

- A. International Athletics Competition defined:** *In this article and the corresponding Regulation 23, International Athletics Competition means an Athletics competition between one or more athletes representing the United States, individually or as a team, and one or more athletes representing a foreign country (i.e., competitions between national teams).*
- B. International sanctions:** *USATF, as the national governing body for Athletics, shall grant sanctions to:*
- 1. Sports organizations or persons wishing to hold an International Athletics competition in the United States, or*
  - 2. Sports organizations or persons wishing to sponsor American athletes competing in Athletics competition outside the United States, or*
  - 3. Sports organizations that conduct Athletics competition restricted to specific classes of amateur athletes (high school, college, Armed Forces) wishing to hold an International Athletics competition in the United States or wishing to sponsor its American athletes in Athletics competition outside the United States.*
- C. Domestic sanctions:** *USATF shall have authority to grant sanctions to sports organizations or persons otherwise wishing to host Athletic competitions that are not international in nature, in the United States.*
- D. Sanctioning policy:** *Unless USATF determines by clear and convincing evidence that holding or sponsoring an Athletics competition (international or domestic) would be detrimental to the best interests of the sport, USATF shall promptly grant a sanction requested by a sports organization or person, provided all the requirements of Regulation 23 have been satisfied. The decision whether a proposed competition would be detrimental to the best interests of the sport shall be made in the first instance by either USATF or the president or executive director/CEO of an Association, as appropriate, taking into consideration the requirements of Regulation 23. Approval of sanctions shall not be unreasonably denied or delayed. The decision to deny a sanction may be appealed:*
- 1. In the case of an Association's denial, to USATF, or*
  - 2. In the case of USATF's denial, to the NABR.*
- E. Sanction requirements:** *Sanctions are issued, withheld, or withdrawn under the authority granted to USATF by, and subject to the requirements of, the Sports Act.*



**ARTICLE 16**  
**OPPORTUNITY TO PARTICIPATE IN CERTAIN INTERNATIONAL ATHLETIC COMPETITIONS**

- A. Opportunity to participate:** *USATF, its Associations and sports organizations recognized by USATF may not deny or threaten to deny any athlete, coach, trainer and other medical support staff, manager, administrator, or official the opportunity to participate in the Olympic Games, the Pan American Games, or other protected competitions defined in the USOPC Bylaws, nor may USATF, its Associations, or sports organization members, subsequent to those competitions, censure or otherwise penalize (1) any person who participates in those competitions, or (2) any organization that the person represents. USATF shall, by all lawful means at its disposal, protect the right of a person representing the United States in any of those competitions. Any athlete, coach, trainer, manager, administrator, or official who alleges that he or she has been denied an opportunity to participate in Athletics competition shall be entitled to fair notice and opportunity for a hearing under Article 14 and Regulation 21.*
- B. Investigations:** *Any athlete, coach, trainer, manager, administrator, or official who alleges that he or she has been denied by an Association or sports organization a right established in paragraph A above shall immediately inform the CEO, who shall cause an investigation to be made and steps to be taken to settle the controversy without delay. If the CEO is unable to settle the controversy, he or she shall refer the matter promptly to the CEO of the USOPC for action under Article 9 of the USOPC Constitution. By maintaining membership in USATF, each recognized Association and sports organization agrees to the process in this article.*
- C. Protection of rights:** *Any athlete, coach, trainer, manager, administrator, or official who alleges that he or she has been denied an opportunity to compete in any Athletics competition (whether or not by an Association or sports organization, and other than restricted competition referred to in Article 4-D-3) shall immediately inform the CEO, who shall consult with USATF's General Counsel to determine whether the situation appears to be of sufficient seriousness and relevance to USATF's obligations and responsibilities to warrant action by USATF in support of the claim. If action by USATF appears to be warranted, the matter will be promptly referred to the Board, which will decide the nature and extent of the action to be taken in each case. An expedited hearing shall be conducted when time is of the essence to preserve the individual's right to participate, if the individual prevails.*

**ARTICLE 17**  
**WA AND USOPC REPRESENTATION**

- A. WA delegates and alternates:** USATF shall be represented in the WA Congress by the President, the CEO, and one (1) other delegate who shall be selected quadrennially by the Board at the Annual Meeting of USATF immediately preceding the WA Congress held in conjunction with the World Championships held prior to the originally scheduled Summer Olympic Games. The Board shall name alternates for any of these three members who are unable to attend an WA Congress. If the Board is unable to name an alternate, the remaining delegates shall name the alternate.
- B. WA Council and officers:** The delegates, in accordance with Article 7 (except that the Ten Year Athlete delegates number shall be at least forty percent (40%)), shall elect USATF's candidate for positions on the WA Council, including WA officers, at the Annual Meeting prior to the WA election under the election procedures in Regulation 9. USATF shall forward the name of the candidate to the WA as USATF's nominee. The Athletes' Commission may make a recommendation for one or more candidates prior to the election for the WA Council nominee. If, prior to the WA's deadline for making nominations, the candidate for WA Council or committee elected by the membership ceases to be a candidate, the Board shall elect a substitute candidate for nomination by USATF.
- C. WA Commissions and other groups:** For each commission or other working group created by the WA President and Council other than the WA's Athletes Commission, the USATF Board shall solicit names to present to the WA as candidates where an appropriately qualified individual is a member of USATF. Such nominations will be carried to the WA by the USA member of the Council or, if none, the head of the USA delegation.
- D. WA Athletes' Commission:** The Athletes' Commission shall elect USATF's nominees for officer and member positions on the WA Athletes' Commission. The Board shall schedule elections for USATF's Athletes' Commission nominees during calendar years in which the WA conducts Athletes' Commission elections after consulting with the Athletes' Commission Chair. Elections shall be scheduled to enable the Athletes' Commission to consider the broadest field of candidates possible subject to the WA's deadline for nominees.
- E. NACAC Representation:** The membership shall elect USATF's candidates for positions in NACAC, including President/WA Area Representative, Vice President, Treasurer, Council Members, and Commission Members at the Annual Meeting prior to the NACAC election under the election procedures in Regulation 9. USATF shall forward the name of the candidate(s) to NACAC as USATF's nominee(s). The Athletes' Commission may make a recommendation for one or more candidates prior to the election for NACAC positions. If, prior to the NACAC deadline for making nominations, the candidate for a NACAC position elected by the membership ceases to be a candidate or the membership fails to nominate a candidate, the Board may elect a substitute candidate for nomination by USATF.
- F. Board oversight:** The Board may reject a nominee elected for the WA Council, WA committee, or NACAC position by two thirds vote of its total members who are not personally conflicted if it finds that good cause exists to disqualify the individual from being nominated to the position. The nominee may appeal an adverse decision to arbitration before the Court of Arbitration for Sport under its rules. USATF shall pay the costs of arbitration. The arbitration panel shall hear the matter de novo, and shall uphold the Board's decision if it finds that good cause exists to disqualify the nominee. The arbitral decision shall be final and binding on all parties. All proceedings under this paragraph, with the exception of the final arbitral decision, shall be confidential unless all parties waive confidentiality. If a nominee is disqualified, the Board shall elect a replacement nominee.
- G. WA and NACAC expenses:** USATF shall provide a budget for its reasonable share of expenses for attending meetings of its representatives to the WA Congress, NACAC meetings, and of its nominees selected to serve on the WA Council and committees and in NACAC.
- H. Early WA and NACAC nominations:** Where USATF has no member on a WA Committee or on the Council, or on NACAC, the Board may move the elections process up by one (1) full year, to afford the nominee a greater opportunity to build name awareness prior to the next WA or NACAC election.
- I. USOPC representation:** The CEO and the Board Chair, or their designees, shall represent USATF at the USOPC Assembly. The CEO or the CEO's designee shall represent USATF on the USOPC National Governing Bodies Council (NGBC).



- J. USOPC Athletes Advisory Council:** *The Ten Year Athlete representatives of USATF shall elect one (1) Active Athlete representative and one (1) alternate (of opposite gender from the representative) to the USOPC Athletes Advisory Council. The representative and an alternate shall be elected at each Annual Meeting following the originally scheduled Summer Olympic Games and shall be a Ten Year Athlete. No individual shall serve on the USOPC Athletes Advisory Council for more than two (2) full quadrennial periods.*
- K. Expenses of USOPC representatives:** *USATF shall pay the reasonable expenses for its representatives to attend meetings of the USOPC and Athletes Advisory Council.*

**ARTICLE 18**  
**FISCAL AND LEGAL MATTERS**

- A. Fiscal year:** The fiscal year of USATF is January 1 through December 31.
- B. Depositories:** The Board shall, from time to time as necessary, designate depositories for funds, property, and assets belonging to or under the control of USATF.
- C. Bonding:** USATF shall obtain corporate fidelity bonds in a form and amount approved by the Board, indemnifying USATF against losses resulting from infidelity, defalcation, or misappropriation by officers, employees, or agents of funds, property, or assets owned or controlled by USATF.
- D. Indemnification:** USATF shall indemnify any person who was or is a party or is threatened to be made a party to any threatened, pending, or completed action, suit, or proceeding, whether civil, administrative, or investigative, by reason of the fact that he or she is or was a director, officer, employee, or official representative of USATF against expenses, including attorney's fees, judgments, fines, and amounts actually and reasonably incurred by him or her in connection with the action, suit, or proceeding. To qualify for indemnity, he or she must have acted in good faith and in a manner he or she reasonably believed to be in, or not opposed to, USATF's best interests. In any criminal action or proceedings, the indemnitee must have had no reasonable cause to believe his or her conduct was unlawful. The termination of any action, suit, or proceeding by judgment, order, settlement, conviction, or upon a plea of nolo contendere or its equivalent, shall not, of itself, create a presumption that the person did not act in good faith and in a manner which he or she reasonably believed to be in or not opposed to the best interests of USATF.
- 1. Standards of conduct:** Any indemnification under this article shall be made by USATF after the Board determines that the officer, director, employee, or official representative has met the applicable standard of conduct. The Board shall make its decision by a majority vote of a quorum consisting of members of the Board who are not parties to the action, suit, or proceeding. If such a quorum is not obtainable, the CEO shall make the decision, after consulting with independent legal counsel;
  - 2. Expenses:** Expenses, including attorney's fees, incurred in defending a civil action, suit, or proceeding may be paid by USATF in advance of the final disposition of the action, suit, or proceeding as authorized in the manner provided above upon receipt of an undertaking by or on behalf of the director, officer, employee, or official representative to repay the amount unless it is ultimately determined that he or she is entitled to be indemnified by USATF; and
  - 3. Applicability:** The indemnification provided by this section shall not be deemed exclusive of any other rights to which the director, officer, employee, or official representative may be entitled under bylaw, agreement, vote of the membership, or disinterested directors or otherwise. The indemnification provided by this section shall continue for a person who has ceased to be a director, officer, employee, or official representative and shall inure to the benefit of the heirs, executors, and administrators of such a person.
- E. Liability insurance:** USATF shall secure comprehensive liability insurance coverage, including insurance for athlete/participant injury liability.
- F. Audit schedule:** The Board, effective at the beginning of each fiscal year, shall select a Certified Public Accountant to audit the books and financial records of USATF for the ensuing year. After completing the audit, the auditor shall submit his or her report to the Board, and as soon after as reasonably possible, copies of the audit report shall be available for USATF members before the next Annual Meeting.
- G. Legal counsel:**
- 1. Counsel to the Board:** The Chair may appoint the Counsel to the Board, with the Board's approval. The Counsel to the Board shall render legal advice and assistance, and perform other duties the Chair or the Board may request. The files, records, and documents created by the Counsel to the Board during the course of duties for USATF shall belong to USATF;
  - 2. Expenses:** Except as may be voted by the Board, the Counsel to the Board shall not receive any fee or other compensation for legal services, but necessary expenses shall be reimbursed; and
  - 3. Special Legal Counsel:** If a matter cannot be adequately dealt with in the ordinary course by the USATF General Counsel or Counsel to the Board, and it appears to be in the best interests of USATF, the Board may authorize the Chair, in consultation with the Counsel to the Board, CEO, and USATF General Counsel, to retain Special Legal Counsel. Where prior authorization by the Board is impractical, the Chair, in consultation with the

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*Counsel to the Board, CEO, and USATF General Counsel, may in the best interests of USATF retain Special Legal Counsel. All agreements with Special Legal Counsel about legal services to be rendered and the fees and compensation to be paid shall be in writing and executed under this paragraph. Any such appointment and agreements should be reported to the Board at the next meeting.*

- H. Athlete Advocate:** *An athlete advocate shall be appointed by the chair of the AC with the AC executive committee's approval. The athlete advocate shall advise and counsel the AC on USATF-related legal matters and shall be available to advise and consult with athlete members of USATF by telephone, electronically, or in-person. The athlete advocate's role shall not include representing individual athletes in specific matters. USATF shall pay the athlete advocate's reasonable expenses to attend USATF and AC meetings, and to attend other meetings or hearings necessary to perform his or her duties. The athlete advocate shall receive any fee or other compensation for services, only as budgeted by the Board.*
- I. Contracts:** *Contracts not in USATF's ordinary course of affairs shall be examined and approved for form by the Counsel to the Board or by USATF's Special Legal Counsel prior to execution. The contents of all contracts affecting sport committees shall, during their negotiation phase, be communicated to the appropriate committee(s) and the Athletes' Commission. The CEO, and the Chair (or another officer the Chair designates) shall sign, on behalf of USATF, all contracts of one year or less exceeding \$250,000 in cash value, and all multi-year contracts valued at more than \$100,000, cash value, for any contract year. If required, the Secretary shall attest to those contracts. Unless the Board otherwise directs, the CEO or another USATF staff member the CEO designates shall sign all other contracts.*
- J. Arbitration:** *USATF agrees to submit to binding arbitration conducted under the commercial rules of the arbitration organization currently utilized by the USOPC, in any controversy involving its recognition as a national governing body, as provided in the Sports Act, or in any controversy involving the opportunity of any athlete, coach, trainer, manager, administrator, or official to participate in Athletics competition, as provided for in the constitution and bylaws of the USOPC.*
- K. Conflict of interest:** *In accordance with the USATF Code of Ethics, any individual representing USATF, or who has a financial arrangement with USATF, or who is an employee of USATF or of its Associations, or who is a member of any of its committees or Associations, shall not participate in evaluating or approving any contract with a supplier to furnish goods or provide services to USATF, if that individual directly or indirectly benefits financially, or otherwise receives any form of compensation from, or has any interest in, any supplier under consideration. The Board may require that individuals disclose all financial interests that may influence the performance of their duties for USATF. Each individual referred to in the first sentence of this paragraph shall, upon learning that USATF is proposing to enter into an arrangement in which he or she has financial interest, promptly notify the CEO in writing of the existence of the interest, and the CEO shall, in turn, promptly disclose the interest to those bodies of USATF involved in considering entry into the arrangement. If this provision is violated, USATF shall have the right to recover the benefit or payment and to void the contract or transaction. The Board may waive this requirement in specific instances if it feels that it is in the best interest of USATF by a vote of at least 60%. Members must recuse themselves if the waiver is about them. The waiver shall include language identifying the best interest being served by the waiver. The Board may authorize USATF to enter into a contract with a person described in the first sentence of this paragraph if the Board finds that special circumstances exist under which USATF's interests would best be served by entering into the contract, and the Board adopts a resolution by an affirmative vote by at least 60% of its members identifying those special circumstances. All persons directly or indirectly interested in the proposed contract shall recuse themselves from deliberations related to the contract.*

**ARTICLE 19**  
**DISSOLUTION**

*Upon the dissolution of the corporation, the Board shall, after paying or making provisions for paying all of the corporation's liabilities, dispose of all the corporation's assets exclusively in a manner to carry out the corporation's purposes, or transfer the assets to an organization or organizations, organized and operated exclusively for charitable, educational, religious, or scientific purposes, which at the time qualify as exempt organization or organizations under Section 501(c)(3) of the Internal Revenue Code of 1954 (or the corresponding provision of any future United States Internal Revenue Law), as the Board determines.*

**ARTICLE 20  
SAVING CLAUSE**

*At any meeting, any failure to literally or completely comply with Bylaw provisions regarding dates, times, sending, receipt of notice, or errors in phraseology of notice of proposals shall not invalidate the proceedings, if the failure or error, in the judgment of the members present, has not substantially prejudiced members' rights.*

*In addition to the saving clause, the delegates to the Annual Meeting each year shall be asked to approve the following standard resolutions for the good of the order:*

- 1. **Acts and actions:** The USATF approve the acts and actions of the national officers and the Board of Directors from the previous year;*
- 2. **Banking:** That the standard bank resolutions be approved for opening, closing, and changing signatures on bank accounts and signing notes; and*
- 3. **Minutes:** That these resolutions be made an official part of the minutes.*

## ARTICLE 21 AMENDMENTS

- A. General provisions:** Amendments shall be considered by USATF as follows:
1. **Bylaws and Operating Regulations:** Amendments to the Bylaws and Operating Regulations shall be considered at the Annual Meeting of USATF in every odd-numbered year;
  2. **Rules of Competition:** Amendments to the Rules of Competition shall be considered at the Annual Meeting of USATF in every even-numbered year;
  3. **Bylaws and Operating Regulations:** Amendments to the Bylaws and Operating Regulations shall occur when:
    - a. a two-thirds (2/3) vote of those delegates present and voting;
    - b. a two-thirds (2/3) vote of Board's total membership (except as otherwise noted), as the case may be set forth in this Article;
    - c. Amendments to the Bylaws and Operating Regulations under the following articles or regulations must be amended by delegate vote as described in Paragraph A(3)(a):
      - a. Article 6 (Associations)
      - b. Article 7 (Delegates and their Selection to Meetings)
      - c. Article 8 (Meetings of USATF)
      - d. Article 9 (Voting)
      - e. Article 10 (Officers and their Duties)
      - f. Article 11 (Board of Directors)
      - g. Article 14 (Disciplinary Authority and Grievances), Paragraph D (Opportunity to Participate)
      - h. Article 14 (Disciplinary Authority and Grievances), Paragraph E (Hearing Rights of Persons or Entities Charged)
      - i. Article 16 (Opportunity to Participate in Certain International Athletic Competitions)
      - j. Article 17 (WA and USOPC Representation), Paragraphs A-H only
      - k. Article 21 (Amendments)
      - l. Regulation 4 (Representation)
      - m. Regulation 6 (Clubs)
      - n. Regulation 7 (Association Matters)
      - o. Regulation 11 (Committees)
      - p. Regulation 12 (High Performance Division)
      - q. Regulation 13 (Long Distance Running)
      - r. Regulation 14 (General Competition Division)
      - s. Regulation 15 (Youth Division)
      - t. Regulation 16 (Administrative Division); or
    - d. The Board and the Law & Legislation Committee shall review prior to submission for vote any amendment to the Bylaws and Operating Regulations proposed pursuant to Article 21 to ensure compliance with Articles 3(B)(14) and (15), as well as all applicable laws.
  4. **Competition Rules:** Amendments to the Rules of Competition shall require a majority vote of delegates present and voting;
  5. **Notice:** National Office Management shall give notice to the membership through an email blast, and to the Board, committee chairs, members of the Law & Legislation and Rules Committees, and Association presidents, via individual emails June 1, requesting proposed amendments to the Bylaws, Operating Regulations, and Rules of Competition (whichever is appropriate) noting the date on which the proposed changes are due.
  6. **Posting:** Proposed amendments to the Bylaws, Operating Regulations, and Rules of Competition shall be posted on the USATF website at least 30 days prior to the Annual Meeting. National Office Management shall electronically notify members of the posting of the proposed amendments;
  7. **Board Proposal:** To act upon proposals by the Board of Directors.
- B. Exceptions:** Notwithstanding Paragraph A, above, amendments may be considered at any USATF meeting in any of the following circumstances:
1. **Tabled amendments:** To act on a tabled amendment proposal proposed at the immediately previous USATF Annual Meeting;
  2. **Conformity with the law:** To make the Bylaws, Operating Regulations, or Rules of Competition conform with federal or local law or regulation;
  3. **Conformity with WA/IOC/USOPC:** To make the Bylaws, Operating Regulations, or Rules of Competition conform with WA, IOC, USOPC, or WMA rules or requirements;



4. **Uniformity:** To make the Bylaws, Operating Regulations, and Competition Rules conform with each other;
  5. **Doping controls:** To consider doping control legislation, which may be considered at any Annual Meeting;
  6. **Associations:** To act upon a recommendation concerning an Association under review under Article 6 and Regulation 7. These items need not meet the time requirement of subparagraphs A-3 or A-4 above and E-1 below;
  7. **Board Proposal:** To act upon proposals by the Board of Directors.
- C. **Emergency circumstances:** In emergency circumstances, USATF may adopt changes upon a ninety percent (90%) vote at any meeting of USATF.
- D. **Amendments by the Board:**
1. **Temporary Amendments:** The Board may, at any meeting, amend the Bylaws or Operating Regulations by a two-thirds (2/3) vote of its total membership. The Board shall submit all proposed temporary amendments to the Law & Legislation Committee for comments before voting on adoption. Temporary Amendments passed by the Board shall remain in effect until the next Annual Meeting.
  2. **Proposed Amendments:** The Board may by a simple majority of its total membership, at any meeting, propose amendments to the Bylaws and Operating Regulations to be considered at the next Annual Meeting.
  3. **Adoption by Board:** All Temporary Amendments and Proposed Amendments as described in Subparagraphs D(1) and (2) of this Article 21, with the exception of amendments to the Bylaws and Operating Regulations outlined in Subparagraph A(3)(c) of this Article 21, shall be submitted to the delegates for an advisory vote at the next Annual Meeting. The Law & Legislation Committee shall not make a recommendation to the delegates. If the advisory vote yields majority delegate support of either the Temporary and/or Proposed Amendment, the Temporary and/or Proposed Amendment is final. If the advisory vote does not yield majority support of either the Temporary and/or Proposed Amendment, the Board with a simple majority may vote to immediately make the amendments final or to reconsider the amendments within ninety (90) days of the advisory vote.
  4. **Adoption by Delegates:** For amendments to the Bylaws and Operating Regulations outlined in Subparagraph A(3)(c) of this Article 21. Temporary Amendments and Proposed Amendments from the Board may be submitted to the delegates at the next Annual Meeting to vote on final approval pursuant to Subparagraph A(3)(a) of this Article 21. The Law & Legislation Committee may make a recommendation to the Board on the Temporary Amendments and/or Proposed Amendments.
- E. **Submissions:** The following provisions shall govern submissions of amending legislation from proposers other than the Board:
1. **Deadline to submit:** Amendments shall be submitted at least ninety (90) days prior to the meeting at which they are to be considered, to allow proper review and submission to USATF members. This ninety (90) day requirement may be waived at the Law & Legislation Chair's discretion if proper notice of the item may still be submitted to USATF's members as required by subparagraph A-6 above, or in emergency circumstances, upon a ninety percent (90%) vote at any meeting of USATF.
  2. **Submitters:** Amendments may be submitted only by USATF members.
  3. **Persons receiving submissions:** Amendments to the Bylaws and Operating Regulations shall be submitted to the chair of the Law & Legislation Committee (with a copy submitted to the office of the USATF General Counsel), and amendments to the Rules of Competition shall be submitted to the chair of the Rules Committee.
  4. **Form of submission:** The Law & Legislation Chair may request, but not require, that the amendments be submitted in a particular electronic form. The proposed amendment shall be submitted in the form and format set forth in the Appendices.
    - a. **Action requested:** Each submission shall contain a section titled "Action Requested."
    - b. **Proposed amendment:** Each submission shall include the proposed amendment in a form showing the entire section, subsection, or paragraph, as the case may be, as it will read if adopted, with all proposed additional language underlined or shaded, and all proposed deleted language containing a line striking thorough the deleted language.
    - c. **Rationale:** Each submission shall also contain a section titled "Rationale" in which the submitter shall explain the proposed improvement or identify the problem the proposed amendment would correct, why the problem exists, and how the proposed amendment will correct the problem identified. The submitter shall also provide an analysis of whether the proposed amendment will conflict with any other provisions of the Bylaws or Regulations.
    - d. **Constituencies affected:** Each submission shall also contain a section titled "Constituencies Affected" in which the submitter shall state which constituencies of USATF will be affected by the proposed changes

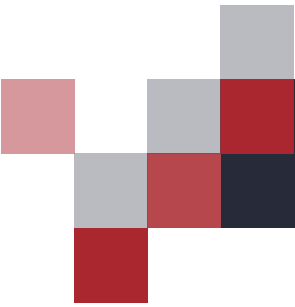
and how they will be affected. Finally, the submitter shall explain how the change advances the mission or operation of USATF.

- e. **Estimated budget impact:** Each submission shall also contain a section titled “Estimated Budget Impact.” If there is a budgetary impact, it shall be estimated with the submission. The submitter shall consult with the Chief Financial Officer who, in conjunction with the Treasurer and/or the chair of the Budget Committee of the Board, shall assist with developing the estimated budget impact. National Office Management shall be provided with the legislative proposals in a timely manner.
5. **Approval of submissions:** All proposed amendments must first be recommended for approval at the time of submission by someone other than the submitter who shall be either a Board member, the chair of any sport, development, or operating committee, any member of the Law & Legislation Committee (for Bylaws and Operating Regulations) or Rules Committee (for Rules of Competition), the president of any Association, or any officer or the executive director of a national member organization authorized by Article 5-C. The approval must be in writing, dated, and placed on the proposal when submitted. These listed approval parties may submit proposed amendments directly without such an approval.
6. **Final Approval:** The Law & Legislation Committee shall submit proposed amendments it considers from general members along with its recommendations to the Board, prior to submission to the delegates. In advance of the Annual Meeting, Law & Legislation will submit its preliminary recommendations on such Proposed Amendments to the Board no later than fourteen (14) business days prior to their required posting. The Board in consultation with the Law & Legislation Committee shall review all Proposed Amendments are in compliance with Article 3(B) regarding the USOPC and World Athletics, as well as all applicable laws. The Board may make its own recommendations on Proposed Amendments to the delegates.
  - a. **Adoption by Board:** Except for the Bylaws and Operating Regulations outlined in Subparagraph A(3)(c) of this Article 21, amendment proposals to the Bylaws and Operating Regulations not submitted by the Board shall be submitted to the delegates for an advisory vote at the Annual Meeting. The Law & Legislation Committee may make recommendations. Following the advisory vote, the Board may vote to approve adoption of such amendments within ninety (90) days after the advisory vote.
  - b. **Adoption by Delegates:** Amendment proposals to the Bylaws and Operating Regulations set forth in Subparagraph A(3)(c) of this Article 21 not submitted by the Board shall be submitted to the delegates at the next Annual Meeting to vote on approval. The Law & Legislation Committee may make recommendations to the delegates. The approval by the delegates shall be the final approval, except for amendments to Article 7 (Delegates and their Selection to Meetings), Article 10 (Officers and their Duties), Regulation 12 (High Performance Division), Regulation 16, Subparagraph (C) (Administrative Division – Athletes’ Commission), and Regulation 16, Subparagraph I (Administrative Division – Officials Committee), which shall go to the Board for a vote of ratification by the Board within ninety (90) days of the approval by the delegates. Amendments to Article 7, Article 10, Regulation 12, Regulation 16(C), and Regulation 16(I) shall take effect if the Board ratifies the amendments or takes no action within the ninety (90) days. Additionally, for Regulation 16(C) athletes and the elected athlete representatives of the USATF AC shall be the primary decision makers about the operations of the NGB AC and shall operate in accordance with Article 3(B)(14) and (15), USATF Bylaws and Operating Regulations, and all applicable laws.
- F. **Effective date:** Unless otherwise specified at the time of adoption, amendments to the Bylaws and Operating Regulations shall be effective immediately, and amendments to the Rules of Competition shall be effective January 1 of the following year.
- G. **Non-substantive corrections:** The Law & Legislation Committee, or its designee(s) may edit and make non-substantive corrections, such as grammar and punctuation, in the Governance Handbook before publication.









2025



***USATF***<sup>™</sup>

***OPERATING  
REGULATIONS***



**REGULATION 1**  
**PURPOSE OF REGULATIONS**

*These Operating Regulations supplement USATF's Bylaws. If a regulation conflicts with a bylaw, the bylaw shall control.*

**REGULATION 2**  
**DEFINITIONS**

*In addition to those defined in Article 2 of the Bylaws, these definitions are used in these Operating Regulations:*

- A. **Armed Forces** means the United States Air Force, the United States Army, the United States Marine Corps, the United States Navy, and the United States Coast Guard.*
- B. **NABR** means the National Athletics Board of Review, as established in Regulation 21.*
- C. **NAIA** means the National Association of Intercollegiate Athletics.*
- D. **NCAA** means the National Collegiate Athletic Association.*
- E. **NFHS** means the National Federation of State High School Associations.*
- F. **NJCAA** means the National Junior College Athletic Association.*
- G. **RRCA** means the Road Runners Club of America.*
- H. **Running USA** means an organization in long distance running that represents road race organizations and directors.*
- I. **USTFCCCA** means the United States Track and Field and Cross Country Coaches Association.*
- J. **WMA** means World Masters Athletics.*

**REGULATION 3**  
**ATHLETE ELIGIBILITY**

*Athlete eligibility shall be governed by WA and IOC rules, except when those rules conflict with United States Law.*

**A. General:**

1. **Domestic championships:** *Athletes who compete in a national, regional or Association championships must be a USATF member and eligible to compete. Associations may require USATF membership to participate in other events they conduct.*
2. **International eligibility:** *Athletes representing the United States in international events must be USATF members and eligible to compete.*

**B. Membership:** *All athletes competing in events conducted by USATF must be USATF members.*

**C. Collegiate and Armed Forces eligibility:** *At open Association Championships, Associations may accept, in lieu of individual member entries, rosters of athletes signed by coaches or designated officials of recognized educational institutions or branches of the armed forces certifying that the athletes are eligible to compete for the institution or branch under USATF and WA rules. The rosters shall only be in effect for the date(s) of the championship, although the Association may at its discretion accept the same certified rosters in other championships. The certified rosters shall subject any certified collegiate or armed forces athlete to all of the anti-doping rules, regulations, and protocols of USATF, the WA, the USOPC, USADA, and/or the IOC.*

**REGULATION 4  
REPRESENTATION**

- A. General:** An athlete shall be considered a member of the Association in which the athlete is a bona fide resident except as otherwise provided in Regulation 4-B:
1. **Athlete Affiliation:** An athlete may compete as a representative of a local club, educational institution, or other organization, and additionally may be listed as competing for the club and/or a sponsor, subject to USOPC regulations. The club and athlete must be USATF members in good standing.
  2. **Unattached athletes:** An unattached competitor is an athlete member who represents no club, educational institution, or other organization. An unattached athlete may compete in the Association in which the athlete is a member.
  3. **Notification of changes:** Only an athlete, or his/her legal guardian, may give notice of a change of representation. An athlete member who wishes to change representation shall notify the Association, in writing or online, prior to the effective date of the change.
  4. **Fees for changes:** All applications for changes of representation must be accompanied by a fee, if any, to be determined by the local membership committee and/or local Sport Committee.
- B. Residency exceptions:**
1. **Residency exceptions:** Except as provided in the USATF Competition Rules governing Youth Athletics, USATF shall permit an athlete to transfer membership to an Association other than the one in which the athlete resides.
  2. **Team scoring:** Sport Committees and Councils may establish athlete eligibility and residency requirements for team scoring at their respective championships. These requirements shall be reflected in the competition rules.
- C. Transfers:**
1. **Between Associations:** In order to transfer membership from one Association to another, an adult athlete age 19 years and older shall send a request in writing or by email to [membership@usاتف.org](mailto:membership@usاتف.org). USATF shall notify the affected associations and the athlete.
  2. **Between clubs/organizations:** To transfer representation from one club/organization to another, an athlete must not have competed for the first club in sanctioned competition for the previous ninety (90) days regardless of residency, unless the athlete falls within one of the exceptions below.
  3. **Exceptions:**
    - a. **Student:** An athlete who is a member of a club or organization who wishes to compete as an undergraduate student for a college or university (two- or four-year institution) shall be automatically released without notice by the club or organization when the college season begins, to compete for that college or university in open competition, if the collegiate team is a member of USATF. The athlete shall similarly be automatically released without notice to the school immediately after the academic eligibility period ends, to represent the club or organization of the athlete's choice. The athlete must verify the college's academic eligibility period start and end dates if requested by either the local committee or Association membership committee involved.
    - b. **Armed forces:** An athlete member on active duty in the United States Armed Forces may, upon receiving permission from the local membership committee, represent in open competition the military organization or the Athletics club to which the athlete belongs, or both. Any points scored by that athlete shall count for the Athletics club, except where a point trophy is advertised to be contested by a military organization.
    - c. **Race walker:** An athlete may compete as a member of a club or organization in race walking and for another club or organization in another Athletics discipline, provided the two clubs or organizations involved do not both participate in race walking. For example, an athlete may race walk for one club which may or may not have a running program, and run for another club that has no race walking program.
    - d. **Waiver:** The local or national membership committee may waive the ninety (90) day unattached period required by paragraph C-2 if it determines that the change in organization was caused by events outside the athlete's control and is in the best interests of Athletics or the athlete.
- D. Resolution of disputes:** The athlete shall have responsibility for giving proper notice of a change of representation. In the event of a dispute among clubs, educational institutions, organizations, and an athlete regarding a transfer of representation, the athlete's written designation of representation shall be determinative.



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## REGULATION 5 CONSTITUENT MEMBERSHIP

Qualifications, application procedures, and fees for membership shall be as follows:

- A. Individual membership:** Individuals may apply for membership in USATF through an Association or the USATF website – [www.usatf.org](http://www.usatf.org). Unless otherwise provided, a member may only belong to a single Association as an athlete at any one time. Otherwise, a member may belong to more than one Association, provided the member is registered as an athlete in no more than one of the Associations. A member belonging to multiple Associations must pay a full membership fee to each of the Associations. Coaches and others who work with youth athletes may be subject to a compulsory disclosure program approved by the Board.
- B. Club/organization membership:** Clubs or organizations may apply for membership by submitting the appropriate application to the Association in their geographic area.
- C. Association membership:** Associations defined by Article 6 shall have no dues or fixed membership term.
- D. National sports organizations membership:** An organization seeking to become a member of USATF as a national sports organization under Article 5-C shall apply in writing to the Organizational Service Committee chair for recognition by USATF. The application shall state the applicant's qualifications for membership. The Organizational Services Committee shall promptly review the application and forward it to the Board, together with its assessment of the applicant's qualifications and the committee's recommendation. The Board shall decide membership applications. The Organizational Services Committee shall review all national sports organization memberships biennially.
- E. Other constituencies' membership:** National Athletics organizations, national coaching organizations, sports for the disabled organizations, and other organizations seeking membership under Article 5-D shall send a letter requesting membership to National Office Management. The application shall state the applicant's qualifications for membership. The application shall be referred to the Organizational Services Committee, which shall promptly review it and make a recommendation for action to the Board. The Board shall decide membership applications. Applications for all other classes of national organization membership shall be made to National Office Management, or, if permitted, to the membership chair in the Association where the applicant resides or has its headquarters. The Organizational Services Committee shall review all memberships under this regulation biennially.
- F. Dues and fees:** The Board shall set dues and fees for all membership categories. National Office Management shall propose dues and fees after soliciting input from USATF's committees and Associations regarding individual members and club organizations, and from the Organizational Services Committee regarding national sports organizations.
- G. Compliance with policies:** All members, whether an individual, club, Association, organization, national sports organization, or other constituency defined in these Bylaws and Regulations, shall abide by any and all USATF policies and procedures and agree to comply with and be bound by the safe sport rules, policies and procedures of USATF and the U.S. Center for SafeSport and to submit, without reservation or condition, to the jurisdiction of USATF and the U.S. Center for SafeSport for the resolution of any alleged violations of those rules, policies and procedures, as may be amended from time to time.
- H. Suspension and expulsion:** USATF may suspend or expel any Association or member sports organization that violates any Bylaw or Operating Regulation, or any Board-approved USATF operating policy, or whose officers are not current members, in good standing, of USATF, or which by definition or practice no longer fulfills the criteria of its membership category, after notice and an opportunity to be heard by a three (3) person panel of the Board, appointed by the Board Chair, including at least one (1) Active Athlete. The Board shall vote on the panel's recommendation at its next meeting. An Association or sports organization may be expelled only upon a two-thirds vote of the Board. If an Association is expelled, its geographic area shall be reorganized or assigned to one or more USATF Association, consistent with the Bylaws and Operating Regulations. This paragraph shall operate in addition to and independently of the accreditation process in Regulation 7.
- I. Delinquency:** Any USATF member listed in Article 5 failing to pay its fees or dues on time shall forfeit the right to representation and to vote, upon thirty (30) days' written notice. The member must successfully reapply for membership to regain its voice or vote in USATF's affairs.

**REGULATION 6**  
**CLUBS**

- A. Definition:** Clubs are organizations of athletes and others who participate in USATF programs as teams or individuals representing clubs. There shall be various types of USATF clubs, based on the types of programs and purposes they serve. Clubs may have more than one purpose. All clubs shall be considered Association clubs and shall become members by joining the Association in which they are located.
- B. Club classifications:** Clubs are classified as follows:
1. **Competitive:** Clubs that primarily prepare athletes for competitive opportunities shall be referred to as competitive clubs.
  2. **Affiliated:** Clubs that primarily stage events or provide competitive opportunities to the public shall be referred to as affiliated clubs.
  3. **Training:** Clubs that exist to provide non-collegiate athletes insurance coverage when training at an educational institution's facilities shall be referred to as training clubs.
  4. **Elite development clubs:** USATF may designate member clubs as Elite Development Clubs. These clubs may provide coaching, training groups, facilities, travel to events, financial assistance, stipends, or other forms of assistance. Elite development clubs shall receive additional benefits and information from USATF to assist them with elite development and may be charged additional dues and fees for the additional benefits.
- C. Club names:** Disputes over club names shall be resolved through USATF's grievance process. USATF or involved parties may institute these proceedings when:
1. **Duplication:** Two (2) clubs choose the same or confusingly similar names (except if both clubs concur);
  2. **National team:** A club uses a name that could reasonably be interpreted to refer to a national team;
  3. **Sponsorship:** A club uses a name that causes public confusion with USATF-related sponsorship or advertising; or
  4. **Trademark:** A club uses a trademark or service mark of USATF or the USOPC.
- D. Conflicts of interest:** No club shall represent a member athlete in any transaction if it is a conflict of interest.

## REGULATION 7 ASSOCIATION MATTERS

- A. Association documents:** Each Association shall submit to National Office Management a copy of its Articles of Incorporation, charter, constitution, bylaws, any other organic documents, and its annual filings with the Internal Revenue Service, or equivalent financial information if the Association does not file with the Internal Revenue Service. These documents shall demonstrate by their contents:
1. **USATF authority:** The Association agreeing to abide by USATF's Bylaws and Operating Regulations;
  2. **Members:** Membership qualifications consistent with USATF's Bylaws and Operating Regulations, and which secure the right of any individual who is an athlete, coach, trainer, manager, administrator, or official active in the sport of Athletics to join the Association;
  3. **Consistency:** Statements of Association purposes, powers, and duties consistent with USATF's Bylaws and Operating Regulations, including how each Association promotes Diversity of representation by completing the Diversity and Leadership scorecard illustrating the makeup of its Board of Directors, officers and committee structure. Associations shall return a completed Diversity scorecard on or before October 1 of each year;
  4. **Open governance:** Provisions for democratically electing the Association's directors and officers, consistent with this regulation;
  5. **Non-profit status:** Proof that the Association is covered under the USATF 501(c)(3) group tax exemption or has its own 501(c)(3) tax exemption from the IRS, by providing a copy of the email submission or a return receipt from the delivery service of its annual tax filing;
  6. **Bylaws:** Association bylaws that comply with this regulation's minimum content requirements; and
  7. **Other:** Other provisions prescribed by the USATF Board. Each Association shall promptly notify National Office Management of any changes in its organic documents by submitting a copy of the revised document. All changes shall be consistent with this paragraph's requirements.

Any Association failing to comply with this paragraph shall not be entitled to participate in USATF's affairs until the failure is remedied. The Accreditation Subcommittee and the USATF Secretary and National Office Management will exchange information and work with Associations relative to any failure to comply.

- B. Association finances:** The chief financial officer of each Association shall maintain custody and control of the bank accounts and other financial assets of the Association, its committees, and its subcommittees. If a grievance alleges impropriety within the Association regarding Association finances and the National Office deems it necessary to conduct a review or audit, the Association shall fully cooperate. USATF shall pay all costs for the review or audit.
1. **Fiscal Year:** Associations fiscal year will coincide with the USATF fiscal year. As defined in Article 18, the USATF fiscal year is January 1 to December 31.
- C. Association boundaries:** An Association shall submit any proposal to change its boundaries to the Accreditation Subcommittee, which shall make a recommendation to the Board after affording the affected Associations an opportunity to be heard.
- D. New Associations:** Any group that wishes to be recognized by USATF as a new Association shall submit its proposal to the Accreditation Subcommittee, which shall make a recommendation to the Board after affording any affected Associations an opportunity to be heard.
- E. Association accreditation:** All Associations shall be accredited annually by the Accreditation Subcommittee. The standards and process shall be:
1. **Standards:** In order to maintain good standing, an Association shall be required to meet the following standards:
    - a. **Individual Memberships:** At least 20 dues-paying individual members per 100,000 population, but in all cases, at least 400 individual members;
    - b. **Club Memberships:** At least 0.5 organizational members per 100,000 population;
    - c. **Sanctions:** At least 1 sanction per 100,000 population;
    - d. **Championships:** At least 15 championships (some of which may be combined) including the following: three in outdoor track and field (youth, open, masters); three in cross country (youth, open, masters); three in race walking (youth, open, masters); two in road running for distances of five kilometers or longer (open, masters); and any four other championships. Championships shall include Association, Regional, or National Championships hosted by the Association. Each championship must be: represented to

membership as a championship, USATF Sanctioned, and offered to both male and female athletes in the category;

- e. **Officials:** At least 30 certified officials for Associations with a population of 3 million or less, Associations with 3-10 million in population will have a minimum of 1 certified official per 100,000 of population, and Associations of 10 million in population, or more, will have at least 100 certified officials;
  - f. **Fiscal Solvency and Responsibility:** Associations shall be fiscally solvent - i.e., they shall have a positive net worth demonstrated by annual review of fiscal year end bank statement; balance sheet; or similar financial instrument. Associations shall file all required Forms 990 to the Internal Revenue Service. Associations required to submit only an electronic postcard Form 990 to the IRS may be required to submit additional Form 990 information to the National Office. USATF may require at its own expense that the Association be subject to a review or audit by an independent CPA or CPA firm for one or more years;
  - g. **Communications:** Associations shall maintain a current and viable web site and shall send at least two emails to the membership in each calendar year. Separately, each Association shall also send by email, not less than 30 days prior to its Annual Meeting, a notice of its Annual Meeting, election and selection of USATF Annual Meeting delegates. In addition to email, an Association may also elect to send out notice of its Annual Meeting, election and selection of USATF Annual Meeting delegates by other electronic means as well. Hard copies of such notices shall also be sent to members via U.S. Postal Service who make a written request for a hard copy of such notices in the past year;
  - h. **Representation:** Associations shall have (i) at least one representative at Association Committee meetings at the USATF Annual Meeting; (ii) at least one representative at the annual USATF Association Workshop; and (iii) shall also have a minimum of three (3) delegates for Associations with populations of 2 million or less, six (6) delegates for Associations with populations between 2 and 3 million and eight (8) delegates for associations with populations greater than 3 million at the USATF Annual Meeting unless there is financial hardship in which case the Accreditation Subcommittee shall have the discretion to reduce the standard;
  - i. **Documents:** Associations shall submit annually (i) copies of the organic documents and filings required pursuant to paragraph A; (ii) a copy of their fiscal year-end bank statement, balance sheet, or similar financial instrument, a copy of the completed 990, 990-EZ, 990-N, or equivalent tax form and proof of the submission of the tax document filing pursuant to the requirements of paragraph E(1)(f); (iii) copies of newsletter and annual meeting notification requirements pursuant to paragraph E(1)(g); (iv) a copy of the Association's bylaws in compliance with paragraph G; (v) a copy of minutes of the Association's annual meeting; and (vi) evidence of current status of good standing within the agency in which the Association is organized or incorporated.
  - j. **Revision to categories:** The Organizational Services Committee or the Associations Committee, with notice to the other committee, may propose adding and removing categories and minimum standards, subject to Board approval.
2. **Timeline:** The accreditation process shall commence in each year, and shall follow the following one-year cycle to the extent practical as set forth below:
- a. **Collection of statistics and other information:** Starting November 1 and continuing through April of the accreditation year, National Office Management shall collect and provide to the Accreditation Subcommittee the previous year's statistical and other information for each Association, necessary for evaluating accreditation standards.
  - b. **Timeliness:** Beginning in January and continuing through March of the accreditation year all Associations shall submit their required Association Documents and submission must be accurate and timely.
  - c. **Analysis:** Starting November 1, the Accreditation Subcommittee shall analyze the statistical and other information provided for each Association by National Office Management current through March and April of the first year.
  - d. **Notification:** During June and July of the year, each Association shall be notified by the Accreditation Subcommittee of the results of its analysis of the Association's statistical and other information. Associations shall also be notified whether they meet requirements for: (i) accreditation, (ii) special recognition, or (iii) if they have any deficiencies.
  - e. **Plans for improvement:** During the months of July through October of the year, Associations that are deficient in any accreditation requirement shall prepare and submit a plan for improvement with assistance from the Accreditation Sub-Committee.
  - f. **Approval of plans:** By the end of December of the year, all Association plans for improvement shall be subject to approval by the Accreditation Subcommittee. If an Association fails to present a plan or is not fiscally solvent, the timeline may be accelerated, and the Accreditation Subcommittee shall take one of the actions outlined in Regulation 7-E-2-h.



- g. **Implementation of improvements:** The Accreditation Sub-Committee with assistance from the Associations Committee shall monitor and assist deficient Associations in implementing improvement plans during the accreditation year.
  - h. **Analysis for compliance:** During the months of September through November of the year, National Office Management shall further update and provide the statistical and other information stated in the requirements for accreditation to the Accreditation Subcommittee as needed.
  - i. **Accreditation:** The Accreditation Subcommittee shall take one of the following actions for each Association by the end of December of the year:
    - i. Full accreditation;
    - ii. Provisional accreditation, subject to further improvement;
    - iii. Suspension or removal of an Association's voting rights;
    - iv. Suspension or removal of an Association's officers and/or its Board as a condition for continued accreditation;
    - v. Decertification of an Association and recognition of a new Association in that territory; or
    - vi. Voluntary merger of an Association with another Association or decertification of the Association and division of that territory into one or more accredited Associations. Each Association shall be notified in writing of the decision as soon as practical. The decision shall take effect as soon as notice has been given and the appeal period has expired or unless it is stayed during an appeal.
  - j. **Accreditation update:** During the accreditation process, the Accreditation Subcommittee may update an Association's established accreditation based on the Association's compliance with, or lack of compliance with, the required accreditation standards.
3. **Appeals:** Adverse recommendations made by the Accreditation Subcommittee may be accepted or may be appealed by the Association as follows:
- a. **Deadline:** All appeals shall be made in writing by an Association no later than January 15 following the end of the second (even) year, or in the case of an accelerated action under Regulation 7-E-2-e, no later than 20 days following the receipt of notice of an adverse action. If an appeal involves a boundary or merger with a neighboring Association, the other Association will also be deemed a party to the appeal, given a copy of the appeal, and permitted to file a cross appeal within thirty days of receiving notice, and otherwise participate in the appeal;
  - b. **Appeal panels:** Appeals shall be referred to an NABR panel composed of arbitrators who are not from the same USATF Association appealing its accreditation status, as provided in Regulation 21-B.
  - c. **Final decision:** The NABR panel's decision shall be final, unless appealed under Regulation 21;
  - d. **Basis of appeal:** Incorrect statistical data or other incorrect information about accreditation requirements shall not form the basis of an appeal unless those objections were previously raised before the Accreditation Subcommittee.
  - e. **Pending appeal:** The Accreditation Subcommittee's decision shall be effective on the following January 1 unless:
    - i. Accreditation Subcommittee, as part of its decision, votes in favor of an automatic stay in case of an appeal, or
    - ii. As part of its appeal, the Association obtains a stay under Regulation 21.
4. **Recognition of outstanding Associations:** The Accreditation Subcommittee, subject to Board approval, shall set standards of excellence for recognition of Associations. The Associations Committee may annually present awards, which shall be published in the Association Committee's minutes from the Annual Meeting on USATF's web site.
- F. **Conflict of interest:** Any individual representing an Association, or who has a financial arrangement with the Association, or who is an employee of the Association, or who is a member of any of the Association's committees, shall not participate in evaluating or approving any contract with a supplier to furnish goods or provide services to the Association, if that individual directly or indirectly benefits financially, or otherwise receives any form of compensation from, or has any interest in, any supplier under consideration.
- G. **Association Bylaws:** All Association Bylaws must contain clear and concise provisions related to the following and in accordance with applicable state law:
- 1. **Removal:** Removing or replacing Association Officers and Committee Chairs both elected and appointed.
    - a. **Elected:** Individuals in elected positions must receive thirty (30) days notice of a hearing before an Association Executive Board. The notice must include a just cause statement and any appeal process.
    - b. **Appointed:** Individuals in appointed positions must receive a statement of just cause for removal and any appeal process.
    - c. **Replacement:** Bylaws must also include a statement regarding method of replacement.

2. **Dispute resolution:** Detailed procedures for filing and resolving Association grievances and disciplinary matters, which at a minimum provide for:
  - a. **Arbitrators:** Selecting an impartial three-person arbitration panel, to include at least one Active Athlete, to hear and decide grievance and disciplinary matters. The arbitrators shall not be members of the Association Board or Executive Committee. In the event the Association does not select a panel within thirty (30) days of the filing of the grievance or if the Association requests, the Association Executive Committee and the Associations Grievance Coordinator may select a panel of individuals to hear the grievance, from within or outside of the Association, select a chair of the panel and empower the panel to hear the grievance. Individuals named in the grievance, grievants and respondents shall not participate in the appointment of the panel members except to identify potential conflicts of interest.
  - b. **Challenge:** The opportunity for a party to a grievance or disciplinary proceeding to object to an arbitrator due to an established or apparent conflict of interest;
  - c. **Filing:** Special procedures for filing and handling grievances against an officer of the Association, which exclude the officer from the grievance administration process;
  - d. **Dates:** Grievance or disciplinary hearing to be held within ninety-five (95) days of filing the proceeding;
  - e. **Delay:** The opportunity for the arbitrators to dismiss or rule against any party who delays the proceedings, is uncooperative, or is unprepared to present evidence or a defense at the grievance or disciplinary hearing, provided that proper advance notice of the hearing has been given to the party; and
  - f. **Appeals:** The decision of the arbitrators to be appealed under USATF Regulation 21-R.
3. **Association elections:** All Association elections for officers and any other elected positions shall follow common guidelines and procedures to ensure fairness and openness. These provisions shall include:
  - a. **Election notice:**
    - i. **Distribution:** Notice must be distributed by email. In addition, notice may be distributed either by mail, newsletter, local Association web site, and/or the USATF web site.
      - a. Notice must be sent by email to the Association's current membership. The Association must also comply with state law requirements for not-for-profit corporations; and
      - b. Notice must be sent by mail to any member making a written request for notice by mail within one year of an election.
  - b. **Prior arrival:** The initial meeting notice must be distributed at least thirty (30) days prior to the beginning of the election or nominations.
  - c. **Changes:** Any notice of a meeting change or a change in the election process, not previously publicized, must be distributed at least fourteen (14) days prior to the meeting.
  - d. **Election process:** Candidates shall not administer the election process.
4. **Nominating process:**
  - a. **Nominating committee option:** Use of a nominating committee is optional. If a nominating committee is utilized, all members of that committee are ineligible to be on the slate created and presented to the membership for voting.
  - b. **In-person meeting nominations:** Nominations must be allowed from the floor at an in-person election meeting.
  - c. **Email nominations:** An opportunity to nominate candidates for all elected positions must be allowed via email prior to finalizing the ballot. The process must be explained to the members. The nominating process must not be unduly rigorous.
  - d. **Mail ballot nomination opportunity:** If a mail ballot is used, an opportunity to nominate candidates must be given to all members prior to the finalizing the ballot. The process must be clearly explained to the members.
  - e. **Membership and age criteria:** A candidate must be a member of the Association who is at least 18 years of age at the start of the term of office, complete a USATF approved background check and possess a current SafeSport training certificate or renewal, before the later of taking office or thirty (30) days of being elected.
  - f. **Diversity criteria:** Associations must promote Diversity of representation in its board of directors, officers, and committees, considering the makeup of the Association's specific membership demographics and the population of its geographic area. To the extent possible, considering demographics, an Association's board of directors, officers, and committees should be a racially and gender diverse group. Additionally, to the extent possible: (i) gender-specific committees must include at least fifty percent (50%) of that gender (i.e. Association's women's track and field committee must be made of at least fifty percent (50%) women); (ii) age-specific committees, except Youth, must include at least fifty percent (50%) that age (i.e. Association's master's long distance running committee must be made of at least fifty percent (50%) masters); (iii) members from one club may not make up more than twenty-five percent (25%) of one

committee in an Association; and (iv) a member may only be an officer and/or committee chair of two (2) committees at any given time.

- g. Nominations and seconds:** A candidate needs one (1) nominator and one (1) seconder who are both members.

**5. Voter criteria:**

- a. One person-one ballot:** One (1) person shall cast only one (1) ballot worth a maximum of one vote, regardless of how many positions in the Association the person occupies.
- b. Proxies:** There shall be no proxy voting.
- c. Minimum age:** Voters must be a minimum of age eighteen (18) on the day of the election or, in the case of a mail ballot, on the day the ballots are due.
- d. Voting membership deadline:** Except for renewals from the previous year, individuals must be members for at least thirty (30) days prior to the date of the election (e.g., if the election is held on September 15 the membership must be paid in full by August 16).
- e. Appointees:** An appointed committee chair or Board member may not vote in elections in that capacity but may otherwise qualify for a vote.
- f. Organizations:** Each organization shall have a minimum of one (1) vote, unless the balanced-meeting ballot in Regulation 7-I-4-c is used. The Association may grant an organization additional votes based on its size. If an organization has more than one (1) vote, a different representative must cast each ballot. Organizations and any person representing an organization in Association voting matters must be USATF members in order to vote.

**6. Voting options:** There are four methods that an Association may choose to use for elections. Association bylaws must clearly state the election procedures to be used. Association bylaws concerning nominations and elections, and the methods for amending them, may be subject to approval by the Accreditation Subcommittee. All voting methods shall include the option of electronic voting:

- a. Mail or electronic (fax or email) ballot:** An open mail or electronic ballot (fax or email) to all members of an Association:
  - i. All ballots must be distributed at the same time;
  - ii. The minimum time allowed for returning the ballot shall be thirty (30) days;
  - iii. The return address or fax number must be indicated on the ballot;
  - iv. The ballots must be held together, must remain unopened--if mail ballots--until the voting panel is assembled, and be counted together by the voting panel; and
  - v. Any mail ballot opened outside the presence of the entire voting panel shall not be counted.
- b. Open meeting ballot:** Open meeting ballot where all members of the Association are eligible to attend and vote, including provisions for members to attend virtually:
  - i. Credential disputes must be resolved before the election process is started (i.e. before taking nominations and/or before the report of the nominating committee);
  - ii. Uncontested elections may be voted by acclamation;
  - iii. A secret ballot must be used for contested elections; and
  - iv. Any ballot opened outside the presence of the entire voting panel shall not be counted.
- c. Balanced meeting ballot:** A balanced meeting ballot where only designated members of the Association are eligible to vote, including provisions for members to attend virtually:
  - i. The Association bylaws must state how a maximum number of available votes will be determined;
  - ii. The bylaws must explain how 100 percent of the available votes are divided among the following five constituencies: Active Athletes, coaches, officials, organizational members, and other members (which may include elected officers of the Association) and explain how each constituency is to be represented in the vote tally when fewer or more members appear to vote than the percentage allowed;
  - iii. The bylaws must guarantee that each constituency above be entitled to a minimum of ten percent (10%) of the votes, except that Actively Engaged Athletes must receive a minimum of one third and these percentages only apply when sufficient numbers of voters from these groups attend the meeting to vote;
  - iv. Individuals who are eligible to cast a ballot in more than one constituency may only vote once and must choose one constituency in which to vote;
  - v. Constituencies with more individuals than votes allowed will be allotted time to caucus before the election to determine the voters or apportionment of votes;
  - vi. In an athlete caucus, youth (18-year old), open (non-international ages 19-39), Actively Engaged Athletes, and masters (40-and-above) athletes must each be represented if member athletes are present and available. In such a case, the number of votes granted to each age division above shall be proportionate to the groups of athletes in attendance;

- vii. *Credential disputes must be resolved before the election process is started (i.e. before taking nominations and/or before the report of the nominating committee);*
- viii. *Uncontested elections may be voted by acclamation;*
- ix. *A secret ballot must be used for contested elections; and*
- x. *Any ballot opened outside the presence of the entire voting panel shall not be counted.*

**7. Counting of ballots:**

- a. **Voting panel:** *A panel of at least three (3) individuals, at least one (1) of whom must be an Active Athlete, shall count the ballots and sign the vote tally. All panel members shall be at least 18 years old. The panel shall not include any individual who is a candidate for an office.*
- b. **Consultation:** *The panel may consult with the Association's president, secretary, or parliamentarian--so long as they are not candidates for offices--on procedural matters.*
- c. **Mail ballots:** *Mail ballots shall only be opened in the entire panel's presence. If circumstances prevent the appointed panel from convening in a timely manner, a new panel meeting the criteria in (a) above may be convened to count the ballots. Any ballots opened outside the entire voting panel's presence shall not be counted.*
- d. **Electronic ballots:** *Electronic ballots must remain unopened/not accessed until reviewed by the voting panel or assigned representative(s).*

**8. Committee and council chairs:**

- a. **Age and terms:** *All committee and council chairs, whether elected or appointed, must be at least 18 years old and members of the Association at the start of the term of office, complete and pass a USATF approved background check and possess a current SafeSport training certificate or renewal, before the later of taking office or thirty (30) days of being elected. Chairs shall be elected or appointed for specific terms that are determined prior to the voting for the position.*
- b. **Election:** *When requested by two (2) or more member organizations of the Association, Sport Committee or council chairs shall be elected. When a sport chair is elected, the election shall take place at a meeting held separately from the general elections, either by time or location. The election shall, at a minimum, be advertised to all member organizations in the Association active in the discipline. The election may also be conducted by mail or electronic ballot using the procedures stated above.*
- c. **Format:** *A convention format may be used for the Association's annual meeting, at which all elections for Sport Committee or council chairs may be held.*
- d. **Division elections:** *Joint election meetings may be held by committees and councils in the same divisions delineated by USATF at the national level: high performance (men's track & field, women's track & field, and race walking), long distance running (men's, women's, masters, cross country, and Mountain/Ultra/Trail), Youth Athletics, and general competition (masters track & field and Associations).*

**9. National delegates:**

- a. **Local option:** *Delegates to the USATF Annual Meeting may be elected or appointed, according to the Association bylaws.*
- b. **Plurality:** *When delegates are elected, a plurality vote (the individual receiving the most votes) may be accepted for election.*

**10. Majority requirement:**

- a. **Officers:** *Regardless of whether a mail ballot is used, the president and secretary of the Association must be elected by a majority of the ballots cast. If a run-off election is necessary, the notification requirement shall be the same as stated in paragraph 7-I-1.*
- b. **Plurality:** *In other mail ballot elections, a plurality vote (the individual receiving the most votes) may be accepted.*
- c. **In-person majority:** *In elections conducted at meetings, a plurality vote (the individual receiving the most votes) may not be accepted in the first round, except for the election of delegates to the USATF Annual Meeting.*
- d. **Run-off candidates:** *In run-off elections, candidates equal to twice the remaining positions shall be on the ballot.*

**11. Election protests:**

- a. **Regulation 21:** *Except as indicated below, Regulation 21 shall apply to election disputes. Protests may only be made after the election process is concluded.*
- b. **Panel composition:** *An NABR panel from a different USATF Association whose election is disputed shall be appointed to conduct the hearing. All hearings shall be by conference call. The procedures in Regulation 21 shall apply.*
- c. **Invalidation:** *The NABR panel shall invalidate an election if it is found that one or more infractions occurred that were likely to have changed the outcome of an election.*
- d. **Further action:** *The NABR panel may recommend changes for future elections in the Association.*



- 12. Employees and elections:** *Current Association employees (working within the past ninety days) shall not participate in any part of the elections process, including nominations or campaigning, but may, at the Association's discretion, be permitted to vote if they are members and otherwise eligible. Current Association employees may, at the Association's discretion, seek election by the Association as a national delegate, or any other representative position at the national level.*
- 13. Amendment:** *Association Bylaws shall provide specific language as to the policies and procedures that will be utilized when amending the bylaws to ensure adherence of democratic principles.*

  - a. Bylaws and amendment proposals must be reviewed by the Association's Executive Committee or the Association's Board of Directors, with recommendations to the membership.*
  - b. Final approval shall be at a meeting of the membership of the Association.*

**REGULATION 8**  
**ANNUAL MEETING & SPECIAL MEETINGS**

- A. Agenda:** Prior to each USATF Annual Meeting and Special Meeting, and after the Board in consultation with the National Office has determined whether the meeting will be in-person, virtual, or hybrid, the Panel on the Order of Business shall consult with the President, the Secretary, and National Office Management on the agenda. The Panel shall prepare an agenda to be presented to the delegates at each general session as one of the first orders of business. The agenda items shall include, but not be limited to:
1. **Attendance:** Considering delegates' eligibility by accepting the registrar's report or by roll call (at all sessions where appropriate);
  2. **Credentials:** Considering credentials and challenges (at all sessions where appropriate);
  3. **Minutes:** Accepting the minutes of the previous meeting;
  4. **Reports:** Reports from the President and CEO, and those committee chairs who have business to come before the delegates;
  5. **Introductions:** Group introduction of officers and committee chairs (without speeches);
  6. **Elections:** Nominations (without speeches except for officer positions) and elections as scheduled, including special elections;
  7. **Site selections:** Report on site selections by each sport committee;
  8. **Amendments:** Action on proposed amendments;
  9. **Financial report:** Treasurer's report;
  10. **Awards:** Appropriate awards presentations; and
  11. **Other business:** New or old business as scheduled.
- B. Resolutions:** The following provisions govern resolutions presented at USATF annual and special meetings by its members:
1. **Written:** All resolutions shall be delivered in writing to the USATF Secretary.
  2. **Submitters and deadlines:** Any USATF member may present a resolution for consideration at any USATF meeting. Officers and the CEO may present or sponsor resolutions at any time up to twenty-four (24) hours prior to their consideration. All other resolutions must be delivered to the USATF Secretary at least thirty (30) days prior to the meeting at which they are to be considered.
  3. **Reasons:** Each resolution should be accompanied by a written statement of the rationale for adoption.
  4. **Evaluation:** The Secretary shall promptly deliver copies of all resolutions to the President, CEO, USATF General Counsel, chair of Law & Legislation, and chair of any other committee directly affected by the resolution.
  5. **Fiscal considerations:** Each resolution to be acted upon by USATF that requests funds or involves, requires, or affects expenditures shall be referred by the Secretary to the Treasurer, the chair of the Budget Committee of the Board, and the CEO for an evaluation of the cost and financial effect.
- C. Credentials:** The following shall govern the credentials of delegates and committee representatives to USATF meetings:
1. **Certification of delegates and committee representatives:** Not later than two (2) months prior to the meeting, each Association, organization, or body responsible for selecting delegates and alternates or committee representatives under Article 7 shall certify in writing to National Office Management the names, addresses (residence and, where available, electronic), and telephone numbers of the delegates, alternates, or committee representatives as well as information as to which delegates and alternates qualify as Coaches, Active Athletes, and/or Ten Year Athletes. The certification shall also designate one (1) delegate as the chair of the delegation and an alternate chair. The chair of each delegation shall report whether there are any changes in the certification when arriving at the meeting and picking up the registration packet. The names of certified delegates, alternates, committee representatives, and committee alternates shall be available for inspection.
  2. **Challenges to delegates and alternates:** Challenges to credentials of any delegation, delegate, or alternate, or petitions to seat uncertified delegations, delegates, or alternates shall be made to the Organizational Services Committee chair prior to the beginning of each general session of the meeting. The Organizational Services Committee shall report its findings and recommendations, if any, at the beginning of each general session of the meeting. At that time, there shall be a vote on all challenges and petitions. Each challenge or petition shall be voted on separately, except that challenges and petitions relating to the same delegation may be combined. A challenged delegate or alternate shall not vote regarding the delegate's own credentials, but until and unless a challenged delegate is voted upon unfavorably, the delegate or alternate may vote on other challenges and petitions. An uncertified delegate shall have no voting power until and unless voted upon favorably by USATF. After each general session, only duly certified and previously unchallenged alternates may replace absent delegates. All substitution of alternates must be reported by the head of the delegation before registration

closes at noon on Friday of the Annual Meeting or at a later time determined in advance by the chair of Organizational Services and the chair of the affected delegation.

3. **Challenges to committee representatives:** Challenges to certified committee representatives and petitions by uncertified committee representatives to be seated shall be heard and voted upon by that committee. A challenged committee representative shall not vote regarding his or her own credentials, but until and unless a challenged committee representative is voted upon unfavorably, he or she may vote on other challenges and petitions. An uncertified committee representative shall have no voting power whatsoever until and unless voted upon favorably by the committee.
  4. **Preservation of athlete delegation or committee voting power:** In any challenge and in any change resulting from the successful challenge, the representation of Athletes within the delegation or committee must be preserved.
- D. **Registration:** Only registered participants may take part in USATF Annual Meetings. Non-registered attendees will not be allowed the right to participate in discussion, voting, lobbying, or other election-related activities. Invited guests may make specific presentations at designated meetings or assemblies.

**REGULATION 9  
ELECTIONS**

- A. Supervision:** The Organizational Services Committee shall oversee all USATF elections and balloting.
- B. Electronic balloting:** Upon majority vote at a duly convened meeting, USATF may authorize a vote through a secure electronic voting system with expressed staff and Organizational Services Committee oversight. The authorizing resolution shall state the procedures and subject matter for the vote. No electronic vote outside the Annual Meeting may be authorized to effect an amendment to these Bylaws, to the Operating Regulations, or to the Competition Rules.
- C. General elections:** Contested elections shall be decided by the delegates at the Annual Meeting of USATF in the following manner:
- 1. Terms of office: Elections for President, Division Chairs, WA Nominees, NACAC positions, and the Board:**
    - a. The President and elected division chairs shall be elected for four-year terms at the Annual Meeting of USATF in each year the Summer Olympic Games are scheduled to be held;
    - b. Any vote by the delegates as set forth in Article 17 regarding the nomination for WA Council or committees, or NACAC positions, shall take place at the Annual Meeting of USATF prior to an WA Congress or NACAC congress (or earlier if advanced by the Board) in accordance with the election procedures in this paragraph;
    - c. Special elections may be held at any Annual Meeting upon Board approval; and
    - d. Elections for Board members under Article 11 shall be conducted in accordance with the election procedures of this paragraph.
  - 2. Method of nominations:**
    - a. **Request:** At least one hundred twenty (120) days prior to the opening general session at any USATF meeting where elections are to be held, the Petitions Subcommittee of the Organizational Services Committee shall send out a request for nominations to all Board members, all members of all USATF committees, councils, and Board committees, all USATF Association presidents and secretaries, and all officers and offices of constituent bodies listed in the exhibits section of this handbook. This electronic mailing shall include a listing of the positions to be elected and a concise summary of any eligibility requirements.
    - b. **Nominators and seconders:** Each candidate shall have a minimum of one (1) and maximum of five (5) nominators, and a minimum of ten (10) and maximum of twenty (20) seconders. The electronically submitted materials must include the nominee's written approval. For positions chairing or representing a particular constituency, at least the minimum numbers (one nominator and ten seconders) must come from within the constituency.
    - c. **Submittal:** Nominations shall be sent, by mail or electronically, to the designated chair of the Petitions Subcommittee, or designee, no later than sixty (60) days prior to the opening general session of the Annual Meeting. The subcommittee shall prepare a nomination report listing all eligible candidates in alphabetical order, without indicating preference, no fewer than thirty (30) days prior to the opening general session of the meeting. This report shall be circulated to all nominees and all nominating constituencies listed in (a) above, and shall be included in the Annual Meeting Document Library online. It shall contain a one-page biographical sketch prepared for and approved by each candidate, including his or her qualifications for the position.
    - d. **Late nominations:** Further nominations may be submitted for President and WA or NACAC Council Member up to fifteen (15) days prior to the opening general session. Such individuals will be added within five (5) days to the Document Library nominations listing. For Division Chair and Board representative positions, the deadline is 5 p.m. PT on the day prior to the Opening Session and must be submitted electronically to the Organizational Services Committee chair, the Petitions Subcommittee chair, and the National Office staff liaison. This requirement includes the one (1) nominator and ten (10) seconders.
  - 3. Campaigning:**
    - a. **Speeches:** Speeches shall only be permitted for the nominations for President and the WA Council or executive committee nominee at the opening general session. The chair of the Petitions Subcommittee shall call upon one (1) or two (2) people to speak for each candidate for a period not to exceed three (3) minutes. If the candidate wishes to speak to his or her nomination, his or her time shall come from that allocation. All speeches for each position shall be called alphabetically.
    - b. **Forums:** Prior to the election, USATF shall, through the Associations Committee, provide adequate forums for all candidates for all USATF-wide contested offices, including those for the WA, to be heard and questioned by delegates. At the request of a Division executive committee, candidates for a contested

chair position may be included in the forum. A notice of a general forum shall be posted twenty-four (24) hours in advance.

- c. **No recommendations:** Committees shall not make recommendations for President or WA or NACAC positions, except as allowed for WA positions in Article 17.

**4. Election procedures:**

- a. **Preparation:** It is the responsibility of each division, committee, and council holding elections to ensure that accurate voter lists are being used. Voting membership of each of these types of constituencies are provided elsewhere in the Regulations. National Office staff must be informed of changes to any voter roll being used in the Elections Room by 5 p.m. the day before such lists need to be used.
  - b. **Secure location:** At Annual Meetings held in-person, the National Office staff shall provide the Organizational Services Committee with a secure location (the Elections Room) large enough to handle the volume of a particular election cycle, and shall support the Committee with data services and any necessary voter rolls and signage. At Annual Meetings held virtually, the National Office staff shall provide the Organizational Services Committee with the means for electronic voting.
  - c. **Time:** Other than the elections which take place in a particular committee or council meeting or in virtual meetings, the Elections Room personnel shall commence first-round balloting on the day prior to the closing general session at 7 a.m. and conclude balloting (including anyone who has gotten in line before the closure) until 11 a.m. Any necessary run-off elections will take place between 2 p.m. and 5 p.m. that afternoon. These times and the location shall be published in the Annual Meeting schedule. In the event of a virtual or hybrid meeting, the time for the first round of balloting shall be between 10 a.m. ET/7 a.m. PT and 2 p.m. ET/11 a.m. PT, and any runoff elections between 5 p.m. ET/2 p.m. PT and 8 p.m. ET/5 p.m. PT.
  - d. **Results and posting:** Barring unforeseen circumstances, at in-person meetings, first-round results shall be scheduled to be posted by 11:30 a.m., and run-off-round results by 5:30 p.m., and shall be posted at a minimum outside the Elections Room and at the Registration Center. For virtual or hybrid meetings, the first-round results shall be posted online by 2:30 p.m. ET/11:30 a.m. PT, and runoff round results shall be posted online by 8:30 p.m. ET/5:30 p.m. PT.
  - e. **Protests:** Protests shall be made within one (1) hour after the results are posted. If a protest is made, it shall be heard immediately by the Protest Panel consisting of the chair of Law & Legislation, the chair of the Panel on the Order of Business, and the chair of AC, or their designees. Protest Panel designees and alternates must be named at least thirty (30) days prior to the elections. All candidates shall be notified of the appointments and may submit challenges to a panelist or alternate in a manner similar to challenges to NABR panelists (see Regulation 21).
5. **Majority requirement:** No candidate shall be declared to have won an election without receiving votes from a majority of the ballots cast. If no candidate receives a majority vote, a run-off election shall include the two candidates receiving the most votes, plus any candidates tying for second most votes.
6. **Record:** All vote totals shall be recorded in the minutes of the meeting. After each round of voting, all paper ballots shall be destroyed immediately after the protest period has expired; and all voting machines shall be cleared if electronic voting is used.
7. **Uncontested elections:** When only one (1) candidate or site is nominated, a voice or hand vote shall be permitted.

**D. USATF divisional chairs and committee chairs' elections:**

- 1. **Long Distance Running Division:** The members of the Long Distance Running Division, which shall include the voting members of the three committees and the three councils, shall elect its nominee for divisional chair for Board approval. This election shall be conducted by balloting at the same time as the general election. An individual shall only be eligible to be a candidate in a division if he or she is a member of one or more of the three committees in the division which shall be listed on the nominating form. Nominators and seconders must be in the division.
- 2. **High Performance Division:** The High Performance Division's three sport committee chairs, the Athletes' Commission chair, and a member of the Athletes' Commission of opposite gender as the chair selected by the Athletes' Commission, shall select a nominee for High Performance Division chair for Board approval. The Organizational Services Committee chair or his or her designee shall convene a meeting or conference call of these individuals to nominate the chair, after the respective committees have selected these individuals.
- 3. **General Competition and Administrative Divisions:** The President shall nominate a General Competition Division chair, for Board approval. The Board Secretary shall serve as Administrative Division chair, and report issues and information back to the Board regularly.
- 4. **Youth Athletics Division:** The Youth Athletics Committee shall elect its nominee for chair, for Board approval.
- 5. **Term limits:** No person shall serve as a chair of a division for more than eight (8) years without a period away from that position.



**E. Committee and Council Elections:** *The following are general rules for committee and council elections:*

- 1. Nominations and speeches:** *In election years, a committee or council may conduct nominations and speeches (if provided for by a committee's or council's operating procedures) during a virtual or hybrid meeting no earlier than thirty (30) days prior to the Annual Meeting. If the committee or council does not have such a virtual or hybrid meeting prior to the Annual Meeting for nominations, except as noted in subparagraph 4 below, each committee and council shall conduct nominations and speeches (if provided for by a committee's or council's operating procedures) during a committee or council meeting on the day after the scheduled Opening Session of the Annual Meeting. Uncontested elections may be voted by acclamation at that time.*
- 2. Nominees and Voter Rolls:** *No later than 5:00 p.m. on the day after the opening session of the Annual Meeting, each committee secretary shall submit to the registration desk a sample ballot for all contested committee elections and any modifications to the voting membership of the committee on the membership list on file with the registration desk.*
- 3. Coaches Advisory:** *The Coaches Advisory Committee may opt to conduct its elections on the day of the first general session in the afternoon.*
- 4. Committee exceptions:** *Five committees – Athletes' Commission, Men's and Women's Track & Field, Officials, and Youth Athletics – may each opt to hold their elections separately on the day following the first general session in an exclusive two-hour time slot. At least ninety days prior to the Annual Meeting, the Organizational Services Committee shall notify the five committees of the available time slots. The Athletes' Commission shall have the first choice of a time slot, and the remaining time slots shall be allotted in order of response. The above committees may conduct nominating (with or without speeches) and also the election of uncontested positions by acclamation prior to the exclusive two-hour time slot but balloting of contested positions shall take place during the exclusive two-hour time slot. Representatives of the Organizational Services Committee shall oversee and conduct the balloting of the above elections.*
- 5. Ballots:** *Written ballots shall be used for all contested elections.*
- 6. Multiple positions:** *Each voter may vote for as many candidates as there are positions to be filled.*
- 7. Majority Requirement:** *A candidate must receive votes from a majority of the votes cast to be elected in the first two rounds of voting. Thereafter, there will continue to be a majority requirement unless the committee's or council's Operating Procedures allow a plurality to be sufficient.*
- 8. Runoffs:** *Run-off elections shall include twice the number of candidates as there are positions remaining to be filled, plus any ties for the last qualifying position. A committee may employ preference balloting, under which voters rank candidates, for run-off elections for multiple positions.*
- 9. Voting eligibility:** *Only bona fide committee members listed in the USATF Operating Regulations, or their properly registered alternates, shall be eligible to vote. The panel from the Organizational Services Committee must credential these members prior to the nominations, and again prior to the actual election if held in a different session. If possible, the Organizational Services panel shall separate the committee's voting members from other attendees during voting.*
- 10. Athlete representatives in sport committees:** *Each Athlete shall serve until an election is conducted at the following year's Annual Meeting. For Athlete representatives' vacancies, see Regulation 11-A-6-a.*

## REGULATION 10 NATIONAL OFFICE STAFF

**A. Staff activities:** *The staff shall, under the direction of the CEO, perform the following duties:*

1. **Association support from USATF:** *National Office Management shall provide benefits and support to Associations and their members. National Office Management and Board shall regularly evaluate the benefits and support;*
2. **Membership:**
  - a. *Establish, subject to Board approval, membership categories, along with application procedures, benefits, and membership fees; and*
  - b. *Assist Associations in providing services to their members;*
3. **National championships:** *In conjunction with the appropriate sport committees, advertise, schedule, manage, and conduct national championships under Regulation 18;*
4. **International competition:** *Manage all aspects of international competition under applicable international rules and procedures, and under procedures adopted after consulting with the sport committees, and approved by the United States Olympic and Paralympic Committee, when required;*
5. **Development:** *Oversee a cohesive, effective development program;*
6. **Public relations/media relations:** *Optimize the quantity and quality of public exposure of USATF, and its sports, events, and athletes;*
7. **Publications:** *Coordinate the timely publication of governance documents and rules, both in print and electronically;*
8. **Marketing and promotions:** *Devote sufficient staff resources to ensure the successful marketing and promotion of Athletics and of USATF;*
9. **Fund raising:** *Assist the USATF Foundation in conducting fund raising programs to benefit Athletics;*
10. **Alumni Relations:** *Assist the USATF Alumni Association in keeping retired elite athletes engaged with USATF and in promoting Athletics;*
11. **Doping controls:** *Under policies approved by the Board, supervise and manage USATF's compliance with the doping control programs established by the IOC, WA and USOPC;*
12. **Scheduling:** *Coordinate major competitions and national championships;*
13. **Coordination of certification and education:** *Provide necessary support for certification and education programs, especially for coaches and officials;*
14. **Annual Meeting:** *Initiate site selections for USATF's Annual Meeting, in conjunction with a subcommittee of Organizational Services appointed by its chair after consulting with the President. Site selection shall follow guidelines approved by the Board;*
15. **Association notification:** *Notify Associations when a USATF activity requiring approval by a national committee or National Office Management, including but not limited to events, programs and clinics, will be conducted or is proposed to be conducted in that Association's territory. National Office Management shall notify the Association involved within ten business days after learning about the activity or proposed activity; and*
16. **Purposes and duties of corporation:** *Perform other tasks necessary to fulfill USATF's purposes and duties.*

**B. Complaints against staff:**

1. **Staff other than CEO:** *A complaint against a part or full-time member of the national staff shall be sent to the USATF Secretary and the CEO. By agreement, either shall forward the complaint to the President and USATF General Counsel within ten (10) days of receipt. The CEO shall be given not less than thirty (30) days to investigate the complaint, and shall have a written report of his or her investigation at the next appropriate Board meeting, including any action (if necessary) to be taken to remedy the situation.*
2. **CEO:** *A complaint against the CEO shall be delivered to the USATF Secretary. The Secretary shall deliver copies within ten (10) days to the Board Chair, USATF General Counsel, and Counsel to the Board. The Board shall resolve complaints against the CEO.*
3. **Response:** *All complaints against staff shall be acknowledged promptly. A written response shall be made within thirty (30) days after the complaint is resolved. Interim reports shall be made to the President every one hundred twenty (120) days, pending resolution. The final report about resolving a complaint against staff shall be given to the Board at a regularly scheduled meeting.*

## REGULATION 11 COMMITTEES

- A. General provisions:** The following provisions apply to all USATF's committees and subcommittees regardless of whether such positions are appointed or elected:
1. **Board Oversight:** In accordance with Article 11(A)(3), the Board shall recommend, approve, and oversee all USATF committee programs.
  2. **USATF membership:** In order to participate as a USATF Committee member, an individual must be a member of USATF.
  3. **Term and term limits of members:** Unless otherwise provided, the term for members of all committees shall be four (4) years and shall (unless otherwise provided) commence at the conclusion of the Annual Meeting in each year in which the Summer Olympic Games are originally scheduled. All committee members are volunteers and shall not receive remuneration for their role on such committees. Unless otherwise provided, no individual shall serve on a committee for more than two (2) consecutive terms. The individual may serve again after at least two (2) years away from the committee position.
    - a. **Shortened Terms:** For an individual who fills a vacancy, or otherwise serves a committee term of less than two (2) years, such shortened term shall not count towards the term limitation; however, if the remaining term is between two (2) and four (4) years, then the shortened terms shall count as a four (4) year term towards the term limitation.
    - b. **Succession:** Any individual serving on a committee may continue to serve on such committee beyond the previously outlined term limit, provided such individual continues to ascend within such committee's executive committee (which shall include elected officers, as defined in Subparagraph A.5.g below) and does not exceed two consecutive terms in any individual position on such committee without taking the prescribed two years away from the committee.
    - c. **Exception to Two-Term Limits:** For the eight sport committees, the Officials Committee, and the Associations Committee, the two-term limit applies to the leadership (or executive committee) of each of those committees as set forth in Subparagraph A.5.g and any individual who participates in national team selection. For the Athletes' Commission, the two term limit applies to each executive committee leadership (or executive committee) position and there shall be no term limit on the committees at-large [AC event leaders] ten-year or ten-year+ athlete members. For the remainder of each of these committees' membership positions, there shall be a five-term limit unless the particular committee sets forth a shorter term limit in its Operating Procedures
    - d. **Effective Date:** Committees not listed below may have until December 31, 2028, to comply with subparagraph 3 of this Paragraph A:  
Designated Committees shall be the Board, Board Committees, Ethics, Law & Legislation, Nominations and Governance, Organizational Services, High Performance Executive Committee, Race Walking, Men's and Women's Track & Field, Men's and Women's LDR, Sports Medicine and Sports Science, Men's Development, Women's Development, Athletes' Commission, and any individual who participates in national team selection.
    - e. **Removal:** Committee members who are absent for two consecutive Annual Meetings may be removed by the person or group who appointed or elected them.
  4. **Non-Sport Committee makeup:** The makeup of each non-sport committee shall be stated in the description for the committee.
  5. **Sport Committee makeup:** Sport committees shall be constituted as follows, and as outlined in the exhibits section of this handbook:
    - a. **Association members:** One (1) member appointed by each accredited Association. If two (2) Associations merge, the two (2) incumbent representatives on the committee may continue to serve. When at least one (1) incumbent no longer serves on the committee, the merged Association's representation shall revert to one committee member;
    - b. **Sports organization members:** One (1) member appointed by each sports organization listed in the exhibits section of this handbook and an additional two (2) members to be named by any sports organizations listed in the exhibits section of this handbook that conduct substantial programs or competitions in the sports discipline of the particular committee;
    - c. **Other constituent members:** One (1) member appointed by each sports organization listed in the exhibits section of this handbook, other than Affiliated organizations, that conducts programs in the sports discipline of the particular committee. Affiliated organizations shall be represented only if the Board approves a recommendation that the Organizational Services Committee makes after consulting with affected sports committees;



- d. **Athletics for the Disabled members:** One (1) member to represent the collective disabled athletes' organization members of USATF listed in the exhibits section of this handbook, selected by the Athletics for the Disabled Committee;
- e. **Officials Committee member:** One (1) member appointed by and from the Officials Committee;
- f. **At-large members:** Five (5) at-large members selected by the members of the committee;
- g. **Elected officers and other positions:** Any person elected by the committee to serve as an officer. The total number may not exceed ten (10) additional members; and
- h. **Actively Engaged Athlete members:**
  - i. **Designated Sports Committees.** The number of Actively Engaged Athlete members will equal at least one-third of the committee's total authorized membership, and at least half of the Athlete members will be Ten Year Athletes and the remaining will be either Ten Year or Ten Year+ Athletes for the Board Committees, Ethics, Law & Legislation, Nominations and Governance, Organization Services, High Performance Executive Committee, Men's and Women's Track and Field, Men's and Women's Long Distance Running, Sports Medicine & Science, and Race Walking committees. The Actively Engaged Athletes (who, if possible, are Actively Engaged Athletes engaged in the committee's particular sport discipline) shall be selected by the AC.
  - ii. **Other Sports Committees,** except as designated above, the number of Actively Engaged Athlete members will equal at least one-third of the committee's total authorized membership for all other sports committees including Youth Athletics. The Actively Engaged Athletes (who, if possible, are Actively Engaged Athletes engaged in the committee's particular sport discipline) shall be selected by the AC, except for Masters Track & Field, Masters Long Distance Running, and Youth Athletics.

6. **Committee membership and notification:**

- a. **Notification and vacancies:** No election, selection, or appointment to a committee shall be effective until the organization or other party entitled to make the choice notifies National Office Management. Vacancies in a committee shall be filled by the committee, individual, organization, or group entitled to appoint the vacant committee membership position. When an athlete vacancy occurs and no alternate is available, the Athletes' Commission may appoint an Active Athlete from the applicable discipline to the vacancy and/or serve as a voting alternate on any committee except Masters Track & Field and Masters Long Distance Running. In the latter two committees, where a vacancy occurs and no alternate is available, the vacancy may be filled by the consent of the athlete representatives present.
- b. **Elections:** Regulation 9-E applies to committee elections. The committee may adopt other rules not conflicting with Regulation 9-E.
- c. **Alternates:** The individual or group electing or selecting members of any committee or subcommittee (other than committee members elected by USATF or its Board) may designate an alternate. Appointment of alternates shall be reported to the National Office Management in a timely manner.
- d. **Membership:** All elected and appointed members of all committees must be members of USATF.
- e. **Termination:** Organizations or groups that appoint committee members under this section may terminate those appointments for good cause upon written notice to the appointees.
- f. **Same Association:** No more than two (2) at-large members of any committees, other than the chair, appointed by the President, may come from the same Association.
- g. **Listings:** Under every committee member's name in the USATF Directory shall be listed (a) their Association or (b) the organization they represent.

7. **Committee meetings:**

- a. **Time and Notice:** Each committee shall hold its annual meeting in conjunction with the USATF Annual Meeting. Notice of the Annual Meeting shall constitute notice of committee meetings at the Annual Meeting. Committees shall hold special meetings if called by the chair, at his or her own initiative, or by twenty percent (20%) of the committee's membership, upon thirty (30) days written notice. If the chair does not set and give notice for a meeting after 20% of the membership calls for one, the Organizational Services Committee shall verify the 20% requirement, set a meeting, and distribute the meeting notice to all committee members. The notice of a special meeting shall be in writing, stating the meeting's date, time, place, and purpose, and shall be mailed to the last known address of each committee member.
- b. **Publication of agenda:** The proposed agenda shall be delivered to all voting members of any committee along with the meeting notice, except at meetings held in conjunction with the USATF Annual Meeting. At Annual Meetings, the agenda must be available at least 24 hours prior to the committee's first scheduled session. Additional items added to the agenda shall not include any item where action of the committee is necessary, unless seventy-five percent (75%) of the members of the group then present agree.
- c. **Open conduct of business:** All meetings of any national committee and its executive committee, board, or task group shall be open to all USATF individual members except as otherwise provided.

- d. **Closed or executive sessions:** No part of any meeting shall be closed unless seventy-five percent (75%) of the members of the group then present agree to close the session.
    - e. **Record of meetings:** All boards, committees, councils, and task groups shall have a recording secretary. Within thirty (30) days of the meeting, the secretary should send draft minutes recording all official actions taken by the committee to all members. All written reports or a summary of the reports shall be distributed with the draft minutes. Upon receipt, the approved minutes shall be placed on the USATF website in a timely manner by staff.
    - f. **Quorum:** A quorum for any committee meeting shall consist of twenty-five percent (25%) of its members;
  8. **Athlete representation:** Unless more strict requirements are stated elsewhere in these bylaws and regulations, all national committees, subcommittees, or other appointed or elected bodies of USATF shall have their authorized membership consist of at least one third of Actively Engaged Athletes. All national athlete elections and appointments must be approved by AC.
  9. **Committee responsibility:** Any committee project or grant that requires applicants to file a written request form must also require a certification that the applicant's Association president and sport chair (if appropriate) have been notified of the application. Any committee awarding funding for projects or events to be held in any Association must notify the Association president in writing of the date and scope of the activity to be held in the Association.
- B. **Committee chairs:** Sports Committees shall elect their chairs under USATF's voting procedures in Regulation 9, subject to Board approval. The Board shall vote on approving Sports Committee chairs within ninety (90) days of election. The chairs shall serve as acting chairs, pending Board approval. Non-sports committees that elect their chairs, and all committees that elect other officers shall conduct their elections under Regulation 9. All elected committee chairs shall serve one-, two-, three-, or four-year terms. The committees shall determine the lengths of the terms prior to voting. Unless otherwise specified, the President shall appoint the chairs of all non-sports committees that do not elect their chairs. Such appointed committee chairs shall also be subject to Board approval. The Board shall vote on approving all President appointed committee chairs within ninety (90) days of appointment. Chairs appointed by the President shall serve for the same term as the President's term. Non-sports committees that elect their chairs may also elect executive committees to act on their behalf between committee meetings.
1. **Duties of chair:** All committee chairs shall:
    - a. Preside at all meetings of the committee;
    - b. Ensure that all the committee's duties and responsibilities are properly and promptly carried out;
    - c. Appoint subcommittees, with the committee's authorization, to fulfill the committee's duties and responsibilities. Subcommittees of administrative and developmental committees shall be appointed only from those committees' membership, except that non-members (not exceeding 50% of the subcommittee) may be appointed with the committee's authorization;
    - d. Communicate with the committee members to keep them fully informed of events concerning the committee to carry out the committee's responsibilities;
    - e. Keep the President and CEO informed on all committee actions and recommendations; and
    - f. Cause to be kept and promptly forwarded to all committee members and the CEO copies of the minutes of all committee meetings.
  2. **Vacancies:** When an elected committee chair is vacant, the position shall be filled by a vote of the committee as a whole by mail or e-mail ballot unless the committee has previously adopted a different procedure. Sports Committees shall elect individuals to fill vacancies, for Board approval, in the same manner. A panel appointed by the Organizational Services Committee chair shall supervise the elections in a manner approved by the Board.
  3. **Removal of elected chairs:** Subsequent to Board approval, elected chairs may be removed for good cause by a two-thirds vote of the committee at an Annual Meeting or at a special meeting called for that purpose. Notice of the proposed action must be given to the committee members at least thirty (30) days prior to the meeting.
- C. **Sport committees' general provisions:** Each sport committee shall:
1. **Executive committee:** Have the right to establish an executive committee to perform its duties between Annual Meetings. The executive committee's membership shall be at the discretion of the committee of the whole. An executive committee shall consist of an authorized membership of at least one-third of Actively Engaged Athletes, as approved by the AC. If the Men's or Women's Track & Field Committee establishes an executive committee, at least one-third of the executive committee's membership shall be coaches;
  2. **Open meeting:** Except upon majority vote of those present, allow the attendance at its meetings of Athletics coaches, officials, or representatives of any group engaged in the sport, and allowing those individuals voice but no vote;

3. **Additional organization members:** Upon Board approval, authorize additional committee members to ensure proper representation of national sports organizations involved in the committee's activities or sport. Organizations shall petition the committee in order to determine the number of additional members. Any organization that considers its representation inadequate may appeal to the Board;
4. **Team staff:** Recommend coaches, managers, and other non-medical and non-media staff personnel for international team competitions under Regulation 17;
5. **Miscellaneous:** Promote and develop activities related to its sport; and
6. **Operating procedures:** Have a set of written operating procedures on file with National Office Management, which shall provide copies to the Board and Law & Legislation Committee. These procedures shall not conflict with the provisions of the USATF Bylaws and Operating Regulations. Any modification of the committee's operating procedures shall be promptly reported to National Office Management, which shall send a copy to the Board and Law & Legislation Committee. These operating procedures shall be included in the Governance Handbook and be made available at Annual Meetings. Any USATF member may request a copy of these procedures from National Office Management.

## REGULATION 12 HIGH PERFORMANCE DIVISION

**A. High Performance Division constituency:** This division includes:

1. Men's Track & Field (sport committee);
2. Women's Track & Field (sport committee);
3. Race Walking (sport committee); and
4. Joint Development Group (development committees, also a part of the Long Distance Running Division).

**B. Divisional responsibilities:** This division shall, in conjunction with National Office Management, develop a High Performance Plan. The Plan shall center on maximizing United States athletes' performances in international Athletics competition in Olympic events. The division shall review and ratify the Plan, as well as any proposed changes, before it is forwarded to the Board for final approval. National Office Management shall implement the Plan, and regularly report its progress in doing so to the division. National Office Management and chair shall jointly report to the Board annually about progress in implementing the Plan. The division shall also be informed of any direct athlete support programs or projects impacting elite athlete performance that are not included in the Plan.

**C. Divisional organization:**

1. **Divisional Chair:** This division shall have a chair; selected under Regulation 9.
2. **Divisional Executive Committee:** The members of the division's executive committee shall consist of the divisional chair, the three (3) divisional Sport Committee chairs, the two Development Chairs or their representatives, the Chair of Sports Medicine & Science or their representative, a Podium Coach selected by the Coaches Advisory Executive Committee, the AC Chair or designee, the representative to the USOPC Athletes Advisory Council, and three (3) additional athlete members. Athlete members will equal at least thirty-three and 33/100 percent (33.33%) of the committee's total authorized membership. At least half of those athlete members will be Ten Year Athletes; the remaining will be either Ten Year or Ten Year+ Athletes. Furthermore, at least one of the athlete members shall be an LDR athlete, who shall be appointed by the LDR Divisional Chair. The divisional chair shall also chair the executive committee and may appoint a non-voting secretary. The divisional executive committee shall recommend policy for creating and maintaining the High Performance Plan, and establishing funding priorities, to National Office Management. The executive committee shall meet periodically in-person or by teleconference. Nothing in this section shall be construed to limit the authority of the three (3) divisional Sport Committees from carrying out their independent responsibilities defined elsewhere in these Bylaws and Operating Regulations.
3. **International Staff Subcommittees:** The International Staff Subcommittees shall maintain pools of qualified applicants for coaching, managerial, and other non-medical and non-media staff for the Olympic Games, WA World Outdoor Championships in Athletics, and Pan American Games under Regulation 17-F.

**D. Sport Committees:**

1. **Duties and responsibilities:** In addition to its other duties, each committee shall:
  - a. **Championships:** Have jurisdiction over the national championships and regional championships – where regional coordinators are appointed – in its discipline, and institute, conduct, and manage these championships under Regulation 18;
  - b. **Calendar:** Coordinate the domestic and international competition calendar in its discipline in conjunction with National Office Management;
  - c. **Records:** Approve records for the events within its discipline; and
  - d. **WA candidates:** Recommend candidates for nomination to serve in the WA under Article 17.
2. **Committee definitions:** The disciplines and age categories under the control of each sport committee in this division are as follows:
  - a. **Age categories:**
    - i. Open athletes are of any age 14 years and over for women and 16 years and over for men; and
    - ii. U20 athletes must be at least age 14 on the day of competition and under age 20 on December 31 in the year of the competition.
  - b. **Jurisdiction:**
    - i. Men's Track & Field: Indoor and outdoor track & field activity for U20 and open men, not including track races of greater than 10,000 meters;
    - ii. Women's Track & Field: Indoor and outdoor track & field activity for U20 and open women, not including track races of greater than 10,000 meters; and
    - iii. Race Walking: All race walking activity for U20 and open men and women.
3. **Makeup:** Each sport committee shall be constituted under Regulation 11-A-4.



**E. Joint Development Group:** There shall be a Joint Development Group serving the High Performance and Long Distance Running Divisions. It shall consist of the four committees below. The group shall report to the High Performance and Long Distance Running divisional chairs and to the chairs of the Coaches Advisory and Athletes' Commission Committees. The two divisional chairs and the Coaches Advisory Committee and Athletes' Commission chairs shall appoint a group coordinator with the approval of the President. The Joint Development Group's total authorized membership shall be comprised of at least thirty-three and 33/100 percent (33.33%) of Actively Engaged Athletes.

**1. Coaching Education:**

**a. Duties and responsibilities:** The committee shall:

- i. Curricula:** Define and develop curricula for training and educating coaches in Athletics, and share the criteria with any educational institution authorized by the Associations Committee and National Office Management for Internet use in an online education program;
- ii. Certification:** Develop and monitor a certification program to augment the educational system;
- iii. Materials:** Create the appropriate materials and manuals to assist the instructors and trainees;
- iv. Education:** Coordinate, develop, and administer the seminars and clinics to train the necessary instructors for the educational system;
- v. Evaluation:** Evaluate methods of the educational system;
- vi. Coordination:** Coordinate the above activities with all interested committees of USATF, including, but not limited to, the Men's and Women's Development committees and the Sports Medicine & Science Committee;
- vii. Administration:** Have the right to create subcommittees and an executive committee to carry out its duties and responsibilities; and
- viii. List:** Maintain a current list of all certified coaches with their levels and distribute upon request an annual report of certified coaches living in each Association to that Association.

**b. Makeup:** The committee shall consist of an authorized membership of at least thirty-three and 33/100 percent (33.33%) of Actively Engaged Athletes and the following components:

- i. National subcommittee:** This subcommittee shall consist of members who, unless otherwise specified, shall be appointed by the High Performance and Long Distance Running divisional chairs and the Athletes' Commission and Coaches Advisory Committee chairs, with the President's approval. The committee members shall be as follows:
  - a. Chair;
  - b. Vice chair;
  - c. Director of Coaching School Operations;
  - d. Director of Instructional Quality;
  - e. Director of Event Specific Curriculum and Instruction, and the following event group chairs: Sprints/Hurdles Curriculum; Jumps Curriculum; Throws Curriculum; Endurance Curriculum; and Combined Events Curriculum;
  - f. Director of Special Projects;
  - g. Directory of Technology;
  - h. Director of Sports Science Curriculum and Instruction, and the following specific specialty chairs: Biomechanics Curriculum; Training Theory Curriculum; Psychology Curriculum; Physiology Curriculum; and Director of Coaching Services;
  - i. One (1) member appointed by each of the following sport committees: Men's Track & Field; Women's Track & Field; Men's Long Distance Running; Women's Long Distance Running; Race Walking; and Youth Athletics;
  - j. The following at-large representatives (or their designees): High Performance Division chair; Long Distance Running Division chair; Cross Country Council chair; Men's Development Committee chair; Women's Development Committee chair; Sports Medicine & Science Committee chair; Coaches Advisory Committee chair; and Associations Committee chair; and
  - k. Sixteen (16) Actively Engaged Athlete members selected by the Actively Engaged Athlete delegates to USATF, at least one (1) of whom shall represent the following: Track; Field; Long Distance Running; Cross country Running; and Race Walking.

**c. Association subcommittee:** This subcommittee shall consist of the chair of coaching education from each Association that has a coaching education committee, plus that number of Active Athlete delegates to USATF equal to at least twenty percent (20%) of the total resulting membership. Associations shall endeavor to structure their coaching education committees to coincide with the national subcommittee's structure, taking into account regional differences. The Association president shall appoint an Association coaching education chair unless otherwise provided in the Association's bylaws.

**2. Men's Development and Women's Development:**

- a. **Duties and responsibilities:** The committees shall:
    - i. **Scope:** Investigate, stimulate, plan, and promulgate programs on a broad basis to provide for the overall development of (a) training and competitive facilities, (b) equipment and skills, (c) coaching methods, and (d) athletic skills; and
    - ii. **Effect:** Perform the above activities in order to develop the maximum number of athletes from the novice to world-class levels.
  - b. **Makeup:** Unless otherwise specified, members shall be appointed by the divisional chairs of High Performance and Long Distance Running and the chair of AC, with the approval of the President. The chair of each sport committee shall be responsible for selecting its development committee representatives and/or event chairs for the discipline(s) under its purview. Actively Engaged Athletes will equal an authorized membership of at least thirty-three and 33/100 percent (33.33%) of the Men's Development and Women's Development committee. The members shall be:
    - i. **A chair;**
    - ii. **Track & field coaches:** One (1) member who is actively engaged in coaching track & field in each of the following specialties: Sprints; Hurdles; Middle Distances; Horizontal jumps; Vertical Jumps; Throws; Decathlon (men's committee); and Heptathlon (women's committee);
    - iii. **Race walking coaching:** One (1) member actively engaged in coaching race walking;
    - iv. **Long distance coaching:** Three (3) members who are actively engaged in coaching long distance running, at least one of whom must be involved in coaching cross country running, and one of whom must be the chair of the distances event group for the appropriate committee, approved by the chair of the applicable sport committee for that position;
    - v. **Sports committees:** One (1) member appointed by each of the following sport committees: Men's Track & Field (men's committee); Women's Track & Field (women's committee); Men's Long Distance Running (men's committee); Women's Long Distance Running (women's committee); Race Walking; and Youth Athletics;
    - vi. **At-large:** The following at-large representatives: High Performance divisional chair (or designee); Long Distance Running divisional chair (or designee); Cross Country Council chair (or designee); Chairs (2) of the Development Committees; Past chairs of the Development committees (Development Committees only); One (1) representative from the Sports Medicine & Science Committee; One (1) representative from the Coaching Education Committee; Nine (9) representatives from the Coaches Advisory Committee; and One (1) representative from the Associations Committee;
    - vii. **Actively Engaged Athletes:** At least nineteen (19) Actively Engaged Athlete members selected by the Actively Engaged Athlete delegates to USATF, at least one (1) of whom shall represent the following: Track; Field; Long distance running; Cross country running; and Race walking; and
    - viii. **Additional members:** The chair of each committee, with the approval of the divisional chairs of High Performance and Long Distance Running in consultation with the President, shall have the authority to appoint additional nonvoting members necessary to carry out the committee's responsibilities.
  - c. **Naming members:** Each sport committee chair, with the approval of the High Performance and Long Distance Running divisional chairs, in consultation with the President, shall have the authority to appoint additional non-voting members necessary to carry out the committee's responsibilities. Any development or event chairs appointed shall be chosen by the committee members representing or participating in the particular discipline, in consultation with the High Performance and Long Distance Running Divisional chairs.
3. **Sports Medicine & Science:**
- a. **General committee:** The committee shall be governed by the following provisions:
    - i. **Overall makeup:** It shall consist of a Sports Medicine & Science chair selected by the High Performance Executive Committee, two (2) or three (3) Sports Medicine & Science assistant chairs selected by the High Performance Executive Committee and each selection shall be approved by the President, and the membership of the three (3) subcommittees established below, and the number of Actively Engaged Athletes required to achieve at least the thirty-three and 33/100 percent (33.33%) of the committee's total authorized membership;
    - ii. **Assistant chairs:** The President may designate the chair of the committee to be one (1) of the three (3) subcommittees, in which case only two (2) chairs of subcommittees shall be selected;
    - iii. **Subcommittee assignments:** In addition to their other duties assigned by the chair of the committee, each subcommittee chair shall be designated by the President to chair one (1) of the three (3) subcommittees;
    - iv. **Executive committee:** This committee shall have an executive committee consisting of seven (7) or eight (8) members: the committee chair, the two (2) or three (3) subcommittee chairs, and four (4) at-large members selected by and from the committee at its annual meeting and at least three (3) Actively

*Engaged Athletes. The executive committee shall meet, either in person or by conference call, from time to time at the call of the committee chair, with at least five (5) days' notice, which may be unanimously waived, to carry out the business of the committee between its regular sessions. All minutes of the executive committee shall be promptly circulated among members of the entire committee; and*

- v. **Assistant chairs:** The committee chair may appoint an assistant chair to the committee and/or to the subcommittees, and designate responsibilities to those assistant chairs.*

**b. Medical Services subcommittee:**

*i. **Duties and responsibilities:** This subcommittee shall:*

- a. Coordinate and provide medical services to national teams at international competitions, both in the United States and abroad;*
- b. Advise athletes, coaches, and the Athletics community on preventing and caring for Athletics injuries;*
- c. Collaborate with the Sports Science Subcommittee in conducting seminars at the Annual Meeting and elsewhere and in all other areas of mutual concern;*
- d. Establish a nationwide pool of medical care providers and other support personnel, experienced in the field of Athletics, who meet criteria developed by the subcommittee, and establish a selection process to utilize these personnel to provide care for national team members at other major competitions;*
- e. Advise national team medical personnel about recommended medications, supplies, equipment, immunizations, and other preventative health requirements;*
- f. Compile medical reports from national team medical personnel and disseminate recommendations concerning health care needs and preventative measures to the Athletics medicine community;*
- g. Evaluate and establish working relationships with sports medicine care providers throughout the United States to develop a nationwide medical care referral network;*
- h. Provide information and advice to athletes, coaches, and USATF concerning proper use of pharmaceuticals and the prevention and care of injuries, illnesses, and environmental stresses;*
- i. Develop educational materials and conduct educational programs concerning drug abuse in sports; and*
- j. Serve as a consultant to USATF and national championships organizing committees concerning establishing medical care systems for the health and safety of athletes and officials.*

- ii. **Makeup:** The subcommittee shall consist of the chair (who, if someone other than the committee chair, shall be an assistant chair of the committee), the chair of the committee, the chair of the Scientific Services Subcommittee, up to eleven (11) at-large members appointed by the President, one (1) representative from each sport committee, one (1) member appointed by the Associations Committee, one (1) member appointed by the Coaches Advisory Committee, and that number of Actively Engaged Athletes equal to at least thirty-three and 33/100 percent (33.33%) of the total authorized membership of the subcommittee to be selected by the Actively Engaged Athlete delegates to USATF. The chair of this subcommittee, with the President's approval, shall have the authority to appoint additional members necessary to carry out the subcommittee's responsibilities. The subcommittee shall organize the following subcommittees, with the chairs appointed by the subcommittee chair:*

- a. Physicians (M.D., D.O.);*
- b. Trainer/therapist;*
- c. Allied health professionals; and*
- d. Pharmacology.*

**c. Scientific Services subcommittee.**

*i. **Duties and responsibilities:** This subcommittee shall:*

- a. Study the correlation between health and sports, and make recommendations about participating in Athletics;*
- b. Conduct sports medicine and sports sciences seminars at each Annual Meeting of USATF and elsewhere as needed;*
- c. Collaborate with the Medical Services Subcommittee in areas of mutual concern, including educational seminars;*
- d. Assist and advise sport committees in areas of physiological testing, biomechanical analysis, and nutrition;*
- e. Inventory and evaluate sports medicine and sports sciences facilities throughout the United States;*
- f. Develop working relationships with qualified consultants in the fields of biomechanics, physiology, nutrition, and other sports-related sciences, and assist in making those consultants available to athletes, coaches, and Sport Committees;*

- g. Develop and distribute periodic newsletters, position statements, and other medical information to the Athletics community through all available channels; and
- h. Provide references to technical knowledge, understanding, and applications of sports-related sciences that relate to improving and developing Athletics.
- ii. **Makeup:** The subcommittee shall consist of the chair (who, if someone other than the committee chair, shall be an assistant chair of the committee), the chair of the committee, the chair of the Medical Services Subcommittee, up to eight (8) at-large members appointed by the President, one (1) representative each appointed from the Coaching Education, Coaches Advisory, Men's Development, Women's Development, Associations, and each sport committee, and that number of Actively Engaged Athletes equal to at least thirty-three and 33/100 percent (33.33%) of the total authorized membership of the subcommittee to be selected by the Actively Engaged Athlete delegates to USATF. The chair of this subcommittee, with the President's approval, shall have the authority to appoint additional members necessary to carry out the subcommittee's responsibilities. The subcommittee shall organize the following subcommittees, with the chairs appointed by the subcommittee chair:
  - a. Physiology;
  - b. Biomechanics;
  - c. Nutrition;
  - d. Education;
  - e. Research; and
  - f. Materials & Equipment.
- d. **Psychological Services subcommittee:**
  - i. **Duties and responsibilities:** This subcommittee shall:
    - a. Coordinate and provide psychological services to national teams at international competitions in the United States and abroad;
    - b. Establish a nationwide pool of qualified mental health providers, experienced in the fields of Athletics, who meet criteria established by the committee;
    - c. Establish a selection process to utilize these personnel to provide care for national team members at international and national competitions;
    - d. Compile reports from national teams' psychology personnel and disseminate recommendations concerning mental health needs and preventative measures for athletes and staff;
    - e. Collaborate with appropriate committee members in conducting sessions at the Annual Meeting, and elsewhere in areas of mutual concern;
    - f. Assist and advise sport committees and the Development committees in the areas of mental health, psychological preparation for competition, and skills acquisition, including providing psychology personnel for camps, clinics, seminars, and workshops;
    - g. Develop and disseminate educational information, position statements, and other mental health guidelines to athletes, coaches, team leaders, and USATF staff through all possible channels of communication; and
    - h. Provide personal individual consultation to members of the Athletics community, if requested, concerning mental-health-related matters.
  - ii. **Makeup:** The subcommittee shall consist of the chair (who, if someone other than the committee chair, shall be an assistant chair of the committee), the chairs of the Medical and Scientific Services subcommittees, up to eight (8) at-large members appointed by the President, one (1) representative each appointed from the Coaching Education, Coaches Advisory Committee, Men's Development, Women's Development, Associations, and each sport committee, and that number of Actively Engaged Athletes equal to at least thirty-three and 33/100 percent (33.33%) of the total authorized membership of the subcommittee to be selected by the Actively Engaged Athlete delegates to USATF. The chair of this subcommittee, with the President's approval, shall have the authority to appoint additional members necessary to carry out the subcommittee's responsibilities. The subcommittee shall organize the following subcommittees, with the chairs appointed by the subcommittee chair:
    - a. Development activities (camps, clinics, seminars, etc.);
    - b. Education;
    - c. Research and Special Projects;
    - d. Youth and Special populations;
    - e. Masters;
    - f. International competition services; and
    - g. Publications.



**e. Anti-Doping Education subcommittee:**

- i. **Duties and responsibilities:** In cooperation with National Office Management, this subcommittee shall develop educational materials and conduct educational programs concerning drug abuse in sports.*
- ii. **Makeup:** The subcommittee shall consist of a chair and members appointed by the Sports Medicine and Science chair with the President's approval and, in consultation with the chairs of the committees within the High Performance Division and the chair of the Long Distance Running Division, one (1) member appointed by the Coaches Advisory Committee and each sport committee, and that number of Actively Engaged Athletes equal to at least thirty-three and 33/100 percent (33.33%) of the total authorized membership of the subcommittee to be selected by the Actively Engaged Athlete delegates to USATF.*

**REGULATION 13**  
**LONG DISTANCE RUNNING DIVISION**

**A. Long Distance Running Division constituency: This division includes:**

1. Men's Long Distance Running Committee;
2. Women's Long Distance Running Committee;
3. Masters Long Distance Running Committee;
4. Cross Country Running Council;
5. Mountain/Ultra/Trail Running Council;
6. Road Racing Technical Council; and
7. Joint Development Group (also a part of the High Performance Division).

**B. Division:**

1. **Divisional Chair:** This division shall have a chair, selected under Regulation 9. The chair shall be a resource for all members of the division, and shall work to resolve issues within the division, between committees and councils of the division, and between the division or one or more of its committees and/or councils and any other entity within the federation.
2. **Divisional Executive Committee:** The executive committee shall be composed of the divisional chair, the six (6) sport committee and council chairs, the approved divisional subcommittee chairs, and that required number of Actively Engaged Athletes chosen from and by the Actively Engaged Athlete representatives to the sport committees so as to equal a minimum of forty percent (40%) of the executive committee's total authorized membership. The divisional chair shall also chair the division's executive committee.
3. **Subcommittees:** Divisional subcommittees shall have the role and authority to coordinate their activities across the division. The subcommittees shall make recommendations on budget needs to the divisional executive committee. Joint subcommittees shall include, but not be limited to: Championships, Development, and Officials.
  - a. **Naming:** The division chair shall appoint the subcommittee chairs with the approval of a majority of the three sport committee chairs.
  - b. **Membership:** The appropriate sport committee chairs shall appoint their subcommittee members for their sport committees. Men's, Women's, and Masters Long Distance Running shall have equal representation on each divisional subcommittee. The subcommittee members need not be members of the sport committee they represent, and shall not be voting members of the sports committees as a result of their appointments. Actively Engaged Athletes shall make up at least forty percent (40%) of each subcommittee's total authorized membership and meet the same criteria, when possible, as in Regulation 11-A-7.

**C. Sport committees:**

1. **Duties and responsibilities:** In addition to its other duties, each committee shall:
  - a. **Championships:** Have jurisdiction over the national championships and regional championships – where regional coordinators are appointed – in its discipline, and institute, conduct, and manage these championships under Regulation 18;
  - b. **Calendar:** Coordinate the domestic and international competition calendar in its discipline in conjunction with National Office Management;
  - c. **Records:** Approve records for the events within its discipline; and
  - d. **WA candidates:** Recommend candidates for nomination to serve in the WA under Article 17.
2. **Committee definitions:** The disciplines and age categories under the control of the three sport committees in this division are as follows:
  - a. **Age categories:**
    - i. Open athletes are of any age 16 years and over for both men and women;
    - ii. Masters athletes must be at least age 40 on the day of competition; and
    - iii. U20 athletes must be at least age 14 on the day of competition and under age 20 on December 31 in the year of the competition.
  - b. **Jurisdiction:**
    - i. **Men's Long Distance Running:** Road running at all distances up to and including the marathon and track running at distances over 10,000 meters up to and including the marathon for open and U20 men;
    - ii. **Women's Long Distance Running:** Road running at all distances up to and including the marathon and track running at distances over 10,000 meters up to and including the marathon for open and U20 women; and

- iii. **Masters Long Distance Running:** All road running up to and including the marathon and track running over 10,000 meters up to and including the marathon for Masters men and women.
- 3. **Makeup:** Each sport committee shall be constituted as stated in Regulation 11-A-5. Active Athlete members on all committees and subcommittees in this division must have competed in a USATF-sanctioned event in the sport of long distance running as defined by subparagraph 2-b above at least once during the previous calendar year. When available, at least twenty-five percent (25%) of the athletes shall have represented the United States in international Athletics competition in one of the disciplines of long distance running defined by subparagraph 2-b above.
- 4. **Committee chair appointments:** The chair shall have the authority to appoint committee representatives to committees where that sport committee has representation.

#### D. Councils:

##### 1. Cross Country Running Council:

- a. **Duties and responsibilities:** The Cross Country Running Council shall:
  - i. **Championships:** Have jurisdiction over the national championships and regional championships – where regional coordinators are appointed – in its discipline, and institute, conduct, and manage these championships under Regulation 18;
  - ii. **Calendar:** Coordinate the domestic and international competition calendar in its discipline in conjunction with National Office Management; and
  - iii. **WA candidates:** Recommend candidates for nomination to serve in the WA under Article 17.
- b. **Council definition:** The disciplines and age categories under the control of the Cross Country Running Council are as follows:
  - i. **Age categories:**
    - a. Open athletes are of any age 14 years and over;
    - b. Masters athletes must be at least age 40 on the day of competition; and
    - c. U20 athletes must be at least age 14 on the day of competition and under age 20 on December 31 in the year of the competition; and
  - ii. **Jurisdiction:** The Council governs cross country running only for U20, open, and masters men and women.
- c. **Makeup:** The Council's makeup, which shall be reflected along with the sport committees in the exhibits section of this handbook, shall be as follows:
  - i. **Association members:** One (1) member to be appointed by each accredited Association. If two Associations merge, the two incumbent representatives on the committee may continue to serve. When at least one incumbent no longer serves on the committee, the merged Association's representation shall revert to one committee member. If there are fewer Associations than the accredited number in attendance at any meeting of the Council, the Council may approve up to five (5) at-large voting members be added to the membership for that meeting;
  - ii. **Sports organization members:** One (1) member to be appointed by each approved sports organization;
  - iii. **Officials Committee member:** One (1) member to be appointed by and from the Officials Committee;
  - iv. **Elected chair:** The person elected by and from the council to serve as chair, who shall appoint other officers and regional representatives from the membership of the Council as needed; and
  - v. **Actively Engaged Athletes:** Actively Engaged Athletes in the discipline of cross country who shall constitute at least one-third of the total authorized membership.
- d. **Executive Committee:** The Council chair shall appoint an executive committee to perform the Council's duties between Annual Meetings. Its membership shall include at least one-third Actively Engaged Athletes in the discipline of cross country.

##### 2. Mountain/Ultra/Trail Running Council:

- a. **Duties and responsibilities:** The Mountain/Ultra/Trail Running Council shall:
  - i. **Discipline:** Specifically, and without sport committee oversight, have authority to conduct programs for all events exceeding the marathon distance regardless of venue, and for all out-of-stadium/off-road events except those which fall under the term "cross country running" at any distance, including those events falling under the broad categories of mountain, ultra, and trail running;
  - ii. **Championships:** Have jurisdiction over the national championships and regional championships—where regional coordinators are appointed—in its discipline, and institute, conduct, and manage these championships under Regulation 18;
  - iii. **Records:** Approve records for the events within its discipline;
  - iv. **Membership:** Represent/promote the interests of MUT runners within USATF;

- v. **WA member organization representatives:** Recommend individuals to serve in the International Association of Ultrarunners (IAU) and World Mountain Running Association (WMRA) under those organizations' constitutions and bylaws;
  - vi. **Awards:** Coordinate the selection of the discipline's Runners of the Year and Contributor of the Year awards; and
  - vii. **Miscellaneous:** Promote and develop activities related to its discipline.
- b. **Makeup:** The Council's makeup, which shall be reflected along with the sport committees in the exhibits section of this handbook, shall be as follows:
- i. **Association members:** One (1) member to be appointed by each accredited Association that has conducted a championship in one of the Council's disciplines in the previous twelve (12) months. Representatives of Associations that have not conducted a championship in one of the Council's disciplines in the previous twelve (12) months may attend Council meetings in a non-voting capacity. If two Associations merge, the two incumbent representatives on the committee may continue to serve. When at least one incumbent no longer serves on the committee, the merged Association's representation shall revert to one committee member;
  - ii. **Elected chair:** The person elected by and from the Council to serve as chair;
  - iii. **Elected vice-chair:** The person elected by and from the Council to serve as vice-chair;
  - iv. **Sport committee members:** Three representatives each from the Women's Long Distance Running, Men's Long Distance Running, and Masters Long Distance Running Committees. Of the three representatives from each committee, one shall represent mountain running, one shall represent ultra running, and one shall represent trail running;
  - v. **At-large members:** Up to four at-large members to be selected by the chair; and
  - vi. **Athletes:** If the number of Actively Engaged Athletes in the discipline of mountain, ultra, or trail running on the Council is less than one-third of the total authorized membership, additional Active Athletes shall be appointed to bring the number on the Council to at least one-third of the total authorized membership. The Actively Engaged Athlete members shall be selected by those registered attendees at the meetings of USATF who are Actively Engaged Athletes engaged in the discipline of mountain, ultra, or trail running.
- c. **Executive Committee:** The Council shall establish an executive committee to perform its duties between Annual Meetings. The membership of the executive committee shall be at the discretion of the Council as a whole. The committee shall include at least one-third Actively Engaged Athletes in the discipline of mountain, ultra, or trail running.
3. **Road Racing Technical Council:**
- a. **Duties and responsibilities:** The council shall:
    - i. Manage a national program of accurate road course measurement and certification;
    - ii. Establish and maintain a national list of certified courses;
    - iii. Select, train, and supervise road course certifiers;
    - iv. Provide technical information and advice to assure that rules relating to course measurement and certification can realistically be enforced;
    - v. Provide a pool of qualified expert measurers for special situations as determined by the council;
    - vi. Assist the Records Committee and LDRRK (Long Distance Running Record Keeper) by providing current information as to race course certification status;
    - vii. Assist the LDRRK by providing validation/verification measurers as necessary for record purposes; and
    - viii. Maintain communications with all interested parties nationally and with technical counterparts in foreign federations.
  - b. **Makeup:** The Council shall consist of a chair and members appointed by the President. At least one-third of the total authorized members shall be Actively Engaged Athletes selected by the Actively Engaged Athlete delegates to USATF.

***E. Development Group: See Regulation 12-E.***

## REGULATION 14 GENERAL COMPETITION DIVISION

- A. General Competition Division constituency:** This division consists of:
1. Associations (operating committee); and
  2. Masters Track & Field (sport committee).
- B. Chair:** The Divisional Chair shall be selected under Regulation 9.
- C. Masters Track & Field Committee:**
1. **Duties:** The committee shall:
    - a. **Championships:** Have jurisdiction over the national championships and regional championships – where regional coordinators are appointed – in its discipline, and institute, conduct, and manage these championships under Regulation 18;
    - b. **Calendar:** Coordinate the domestic and international competition calendar in its discipline in conjunction with National Office Management;
    - c. **Records:** Approve records for the events within its discipline; and
    - d. **WA candidates:** Recommend candidates for nomination to serve on the WA Masters Committee under Article 17.
  2. **Committee jurisdiction:** The Masters Track & Field Committee shall have jurisdiction over Masters Track & Field athletes who are at least age 35 on the day of competition. Masters Track & Field shall include all track, field, and race walking activity for masters men and women, except track running races of greater than 10,000 meters.
  3. **Makeup:** The committee shall be constituted under Regulation 11-A-4.
  4. **Chair:** The Chair of the committee shall be at least 30 years of age.
- D. Associations Committee:**
1. **Duties and responsibilities:** The committee shall:
    - a. **Communication:** Provide a forum for communication among USATF Associations;
    - b. **Program development:** Improve and develop the organization and administration of USATF Association programs and activities;
    - c. **Promotion:** Publicize and promote USATF's programs, activities, and operation at the Association level;
    - d. **Examples:** Collect and provide samples of model Association bylaws, policies, and operations manuals;
    - e. **Regional championships:** Have jurisdiction over regional championships in those disciplines in which the applicable sport committees do not appoint regional coordinators;
    - f. **Clearinghouse:** Assemble and disseminate information to Associations on registration and membership, events, schedules, services to athletes, and Association statistics;
    - g. **Elections:** Stage voter information debates, candidate forums, and candidate question-and-answer sessions prior to contested elections for all USATF-wide elections;
    - h. **Association standards:** Assist Associations found to be deficient in requirements for accreditation in implementing approved plans for improvement;
    - i. **Resource:** Advise and serve as a resource for the Associations, their officers, and their boards, either individually or collectively, about current fund-raising, and marketing and media practices and policies that apply to their circumstances; and
    - j. Establish an Accreditation Subcommittee to review and analyze each Association's compliance with Regulation 7. The Accreditation Subcommittee shall report its analysis to the Organizational Services Committee, the Associations Executive Committee and the Board. The subcommittee shall consist of at least five (5) and no more than nine (9) individuals, one of whom shall be the Organizational Services Committee member appointed by the Associations Committee and at least one-third of whom shall be Actively Engaged Athletes. Two of the members of this subcommittee shall be appointed by the chair of the Organizational Services Committee.
  2. **Makeup:** The committee shall be constituted as follows:
    - a. **Association members:** One (1) member to be appointed by each accredited Association. In the event that two Associations merge, the two incumbent representatives on the committee may continue to serve. When at least one incumbent no longer serves on the committee, the merged Association's representation shall revert to one committee member;
    - b. **Sport committees:** One (1) member appointed by each sport committee;
    - c. **At-large members:** Four (4) at-large members appointed by the President;



- d. **Elected officers and other positions:** Persons elected by the committee to serve in an officer position, not to exceed ten (10) additional members; and
  - e. **Actively Engaged Athlete members:** That number of Actively Engaged Athlete members, which shall be at least one-third of the total authorized membership of the committee, to be selected by those registered Actively Engaged Athlete attendees at the Annual Meetings.
3. **Chair:** The committee shall elect its chair at the Annual Meeting in even-numbered years.
4. **Club Council:** The Associations Committee shall organize a council of club leaders that shall hold a business meeting at the Annual Meeting and may hold information and club-building meetings and exercises at the national club championships.
  - a. **Duties and responsibilities:** The Club Council shall:
    - i. **Championship series:** Have jurisdiction over the national championships and regional championships – where regional coordinators are appointed by the Associations Committee – in its discipline, and institute, conduct, and manage these championships under Regulation 18;
    - ii. **Club policy:** Assist in preparing a policy for elite development club criteria and benefits for Board approval; and
    - iii. **Club evaluations:** Formulate a policy for ranking clubs in terms of assistance and national programs. It shall specify the criteria for clubs to attain each ranking.
  - b. **Oversight:** The Associations executive committee shall oversee the Club Council's operations.
  - c. **Makeup:** The Council shall be composed of the following members:
    - i. **Clubs:** One (1) coach or administrator and one (1) athlete from each currently registered Elite Development Club (EDC) and Team USA Training Center (TUSA);
    - ii. **Representatives:** Ten (10) at-large members, who are either the following persons or their designees: USATF President; Men's Track & Field chair; Women's Track & Field chair; Race Walking chair; Development Group Coordinator; Long Distance Running Division chair; Men's Long Distance Running chair; Women's Long Distance Running chair; Cross Country Council chair; Associations Committee chair; and RRCA President;
    - iii. **At-Large:** Up to three (3) at-large members who are appointed by the chair of the Club Council. The Council shall elect its own chair at even-year meetings;
    - iv. **Actively Engaged Athletes:** The number of Actively Engaged Athletes required to achieve at least one-third of the council's total authorized membership.
  - d. **Officers:** The Council shall elect its own officers at even-year meetings. Nominations shall be solicited in advance. The entire elections process shall be conducted under the guidance of Organizational Services.

## REGULATION 15 YOUTH DIVISION

- A. Youth Athletics Division constituency:** This division consists of:
1. Youth Athletics Committee (sport committee)
  2. Youth Advisory Council (Council)
- B. Chair:** The Chair of the Division, who shall also serve as the Chair of the Youth Athletics Committee, shall be selected under Regulation 9.
- C. Youth Athletics Committee:**
1. **Duties:** The Youth Athletics Committee shall:
    - a. **Championships:** Have jurisdiction over all championships in its discipline, and institute, conduct, and manage its national championships, regional championships, Youth Junior Olympics Association championships, and all other championships under its auspices, including as it relates to awarding process, entry format, qualification systems, entry deadlines, entry fees, officials, and qualifying standards and procedures, under Regulation 18 and Rule 6 of the Rules of Competition, as applicable.
    - b. **Calendar:** Coordinate the domestic and international competition calendar in its discipline in conjunction with National Office Management;
    - c. **Records:** Approve records for the events in its discipline; and
    - d. **Development:** In conjunction with National Office Management, develop a Youth Athletics Development Plan to promote and increase participation in Youth Athletics; expand competitive and participation opportunities; foster physical fitness; and aid Youth Athletes in making the transition to High Performance U20 and elite programs. National Office Management shall implement the Plan. National Office Management and the chair shall jointly report to the Board annually about progress in implementing the Plan.
  2. **Committee jurisdiction:** The Youth Athletics Committee shall have jurisdiction over athletics competitions for Youth athletes who are not age 19 before the final day of the national Junior Olympics track and field competition. These competitions may include divisions for specified age categories. Youth Athletics includes all youth activity not conducted as U20 competition for youth boys and girls, including track and field, road running, cross country running, and race walking.
  3. **Makeup:** The Youth Athletics Committee's members shall be constituted under Regulation 11-A-4.
- D. International Staff Selection Subcommittee:** The Youth International Staff Selection Subcommittee shall screen and recommend to the CEO and Board all coaching, managerial and other non-medical and non-media staff for all Youth international teams, except U20 Teams, under Regulation 17. The International Staff Selection Subcommittee's total authorized membership shall be comprised of at least one-third Actively Engaged Athletes. The Youth Athletics Committee shall adopt and publish the remaining processes for selecting the Subcommittee's membership in its operating procedures.
- E. Youth Executive Committee:** The Youth Athletics Committee executive committee shall also be the executive committee of the division. The division members shall elect the Youth Athletics Committee executive committee members. The Executive Committee shall include the Divisional Chair, the Divisional Vice Chair, the Vice Chair for Operations, the Vice Chair for Administration/Treasurer, the Divisional Secretary, five (5) Zonal Representatives and the Regional Coordinator Representative (elected at the Annual Meeting one year after the Summer Olympic Games are originally scheduled to be held), the immediate past Divisional Chair who shall serve as an ex-officio member, and one ex-officio member appointed by the Associations Committee Chair. The Executive Committee shall also include the committee's representative to the Law and Legislation Committee and the committee's legal advisor (nonvoting), both of whom shall be appointed by the Divisional Chair. The committee will have the required number of Actively Engaged Athlete members to achieve at least one-third of the committee's total authorized membership.
- F. Youth Advisory Council:**
1. **Duties:** The Youth Advisory Council shall assist the Youth Athletics Division in promulgating Youth Athletics programs.
  2. **Membership:** The Youth Advisory Council shall consist of the Chair of the Youth Division; at least four (4) Actively Engaged Athletes appointed by the Athletes' Commission; and one member appointed by each of the following organizations: (a) AAU, (b) National High School Federation, (c) Catholic Youth Organization, (d) Parks and Recreation, (e) Nike Foundation, (f) Hershey Games, and (g) any other organization that operates substantial



*youth programs. The council's total authorized membership shall be comprised of at least one-third of Actively Engaged Athletes.*

- G. Officer Elections:** *The Youth Division shall elect its officers for four-year terms at the Annual Meeting of USATF in each year the Summer Olympic Games are scheduled to be held.*

## REGULATION 16 ADMINISTRATIVE DIVISION

**A. Administrative Division constituency:** *This division consists of the following operating committees:*

- Athletes' Commission
- Coaches Advisory
- Diversity and Leadership Development
- Ethics
- Law & Legislation
- Officials
- Organizational Services
- Para Athletes
- Records
- Rules
- Volunteer (Council)

*In order to participate as a member of a USATF operating committee, an individual must be a USATF member.*

**B. Reporting:** *Administrative Division committee chairs shall report to the Board and send communications to the Secretary.*

**C. Athletes' Commission:**

**1. Duties and responsibilities:** *The committee shall:*

- a. Policy advice:** *Serve as the primary source of reference, opinion, and advice to the officers, CEO, National Office Management, Board, and all national and Association committees about current or contemplated USATF policies and all matters relating to athletes and athletes' rights;*
- b. Athlete representatives:** *Appoint, elect, and oversee the election or appointment of athletes' representatives to USATF committees and subcommittees as authorized by these Bylaws and Operating Regulations;*
- c. Participation in governance:** *Encourage and foster the representation and active participation of athletes at the meetings of USATF, its Board, and its committees, and at all other levels of decision-making within USATF and in Athletics;*
- d. Meetings:** *Conduct meetings of the Active Athlete delegates and other Active Athlete attendees at the Annual Meetings of USATF; and*
- e. Performance:** *Assist athletes in achieving maximum performance in Athletics competition;*
- f. Innovation:** *Develop, evaluate, and consider strategic initiatives to promote the welfare of athletes.*

**2. Elections:** *The committee, except for its at-large athletes, shall be elected at the Annual Meeting in the year in which the Summer Olympic Games are originally scheduled to be held by the Ten Year Athlete representatives to USATF. Its at-large members shall be elected by the other members of the committee. All committee members are required to submit a completed USATF Code of Ethics Conflict Reporting Statement prior to their election.*

**3. Officers:** *The Officers of the AC shall consist of the following: (i) Chair; (ii) Vice Chair; (iii) Secretary; (iv) Treasurer; (v) Athlete Services Representative; (vi) USOPC Athlete Representative; (vii) World Athletics Athletes' Commission Representative. The AC Chair shall be elected by all Ten Year Athlete members during the USATF Annual Meeting. The committee shall elect its Chair, Vice Chair, Secretary, Treasurer, and Athlete Services Representative. The officers shall constitute the executive committee of the AC. The AC chair shall be a Ten Year Athlete or Ten Year+ Athlete. No person shall serve as chair or vice chair for more than eight consecutive years without a period of at least two (2) years away from that position.*

**4. Financial assistance to meetings:** *When funding is available, USATF shall pay for the committee members' transportation and lodging for USATF meetings. USATF shall pay these expenses for the Ten Year Athlete members for Nominating and Governance Panel and USATF meetings, and for the Ten Year Athlete Board members for Board and USATF meetings.*

**5. Makeup:** *The committee shall consist of one (1) male and one (1) female Ten Year Athlete or Ten Year+ Athlete (such that at least fifty percent (50%) of the committee shall consist of Ten Year Athletes) in each of the following categories:*

- a. Sprints;**
- b. Hurdles;**
- c. Combined events;**
- d. Distances of 800 meters through 1500 meters;**

- e. Distances of over 1500 meters to 10,000 meters;
- f. Road racing and cross country;
- g. Mountain/Ultra/Trail;
- h. Throws;
- i. Horizontal jumps;
- j. Vertical jumps;
- k. Race walking; and
- l. At-large (active or inactive) athletes.

NOTE: Only athletes with current USATF athlete memberships may be elected to the AC, hold office, or vote.

6. **Financial Assistance for legal affairs:** USATF may provide for needs-based reasonable legal fees and costs for athletes in connection with disputes between those athletes and USATF arising out of international team selection.

**D. Athletics for the Disabled Committee:**

1. **Duties and responsibilities:** The committee shall:
- a. **Liaison:** Serve as liaison between USATF and (i) the Disabled in Sport Committee of the USOPC and (ii) those sports organizations for athletes with disabilities that conduct regular programs;
  - b. **Competitions:** Coordinate, through the appropriate sport committee, the competition of disabled athletes in events under USATF's jurisdiction, and promote participation by athletes with disabilities in USATF-sanctioned events;
  - c. **Development:** Develop programs to improve athletic performance among athletes with disabilities; and
  - d. **Education:** Facilitate educating and training coaches and officials, and educating the Athletics community in general in working with athletes with disabilities.
2. **Makeup:** The committee shall consist of a chair and four (4) additional members appointed by the President, one (1) member appointed by the Associations Committee, two (2) members appointed by the Coaches Advisory Committee, and two (2) members selected by each national sports organization for the disabled. One (1) of the two (2) members from each national sports organization shall be disabled and have competed in Athletics within ten (10) years. At least twenty percent (20%) of the committee shall be disabled. At least one-third of the committee's total authorized membership shall be comprised of Actively Engaged Athletes.

**E. Coaches Advisory Committee:**

1. **Duties and responsibilities:** The committee shall:
- a. **Policy advice:** Serve as a source of reference, opinion, and advice to the officers, National Office Management, the Board, and all national and Association committees about current or contemplated USATF policies and in all matters relating to coaches; and
  - b. **Coaches' representatives:** Appoint, elect or oversee the election or appointment of coaches' delegates and representatives to USATF, and its committees and subcommittees when authorized by these Bylaws and the Operating Regulations.
2. **Makeup:** The committee shall consist of the following fifty-seven (57) members: one (1) from USTFCCCA, one (1) from NCAA I TCA, one (1) from NCAA II TCA, one (1) from NCAA III TCA, one (1) from NAIA TCA, one (1) from NHSACA, one (1) from NJCAA TCA, one (1) from NWAACC, and one (1) from CCCCTCA, all to be selected by the CAC Chair with approval of the CAC Executive Committee; one (1) appointed by USWTCA; one (1) appointed by RRCA; one (1) appointed by the National Youth Track Coaches Association; one (1) appointed by the Youth Athletics Committee; two (2) appointed by the Club Council; one (1) appointed by the Coaching Education Committee; one (1) appointed by the Sports Medicine & Sciences Committee; one (1) appointed by the Athletics for the Disabled Committee; one (1) appointed by the Men's Development Committee; one (1) appointed by the Women's Development Committee; one (1) appointed by the Men's Track & Field Committee; one (1) appointed by the Women's Track & Field Committee; one (1) appointed by the Race Walking Committee; one (1) appointed by the Long Distance Running Division; one (1) appointed by the Associations Committee; one (1) appointed by the Masters Track & Field Committee; one (1) appointed by the Association of Athletic Managers, one (1) appointed by the USTMDA, and six (6) coaches of podium athletes, all to be selected by the CAC Chair with approval of the CAC Executive Committee; and the four (4) elected officers of the CAC to total thirty-eight (38), plus at least nineteen (19) Actively Engaged Athlete members selected by the Active Athlete delegates to USATF. At least one-third of the committee's total membership shall be comprised of Actively Engaged Athletes. The members shall elect their chair at the Annual Meeting in the post-Summer the originally scheduled Olympic year.

**F. Diversity and Leadership Development Committee:**

1. **Duties and Responsibilities:** The committee shall:

- a. **Policy advice:** Serve as a source of reference, opinion, and advice to the officers, CEO, National Office Management, the Board, and all national and Association committees about current or contemplated USATF policies and all matters relating to diversity, equitable representation and leadership development;
  - b. **Diversity representatives:** Appoint, elect, or oversee the election or appointment of diversity representatives to USATF committees or subcommittees when authorized by these Bylaws and the Operating Regulations;
  - c. **Meetings:** Conduct meetings and workshops; and
  - d. **Leadership Development:** Identify and assist qualified individuals to develop the skills necessary to assume leadership positions in USATF.
2. **Officers:** The President shall appoint the committee's chair. The committee members shall elect the Vice-Chair and Secretary at the Annual Meeting in even-numbered years.
  3. **Executive Committee:** The executive committee shall consist of the three (3) officers, the Immediate Past Chair, two (2) Actively Engaged Athletes appointed by the AC Chair, and four (4) additional members of the committee, appointed by the chair and approved by the committee, and will be charged with carrying out the responsibilities of the committee between Annual Meetings.
  4. **Financial assistance to meetings:** When funding is available, USATF shall pay for the committee members' transportation and lodging for USATF meetings.
  5. **Makeup:** The committee shall consist of one (1) person appointed by each of the Chairs of the following committees, and that number of Actively Engaged Athletes appointed by the Athletes' Commission Chair to equal at least one-third of the total resulting membership: Men's Track & Field, Women's Track & Field, Racewalking, Youth Athletics, Men's LDR, Women's LDR, Masters Track & Field, Masters LDR, Mountain/Ultra/Trail, Officials, Records, Law and Legislation, Rules, Coaches Advisory, Para Athletes, Organizational services, and Associations.

#### G. Ethics Committee:

1. **Duties and Responsibilities:** This committee shall:
  - a. **Review, Recommend, and Maintain USATF Code of Ethics ("Code"):** Establish and maintain a USATF Code of Ethics, develop and implement policies and procedures to enforce the Code, submit proposed amendments to the Code to the Law & Legislation Committee for comment and to the Board for approval, and review and comment upon codes of conduct developed by other USATF constituencies;
  - b. **Education and Training:** Recommend and develop ethics and compliance training and education relating to conflicts of interest, disclosure responsibilities, and annual reporting requirements, and provide other training as to promote compliance with the Code;
  - c. **Investigations:** Investigate complaints relating to conflicts of interest or other violations of the Code;
  - d. **Advisory Opinions:** Issue advisory opinions regarding potential conflicts of interest or the Code;
  - e. **Monitor Compliance with Annual Reporting Requirements:** Collect and review annual disclosure statements submitted by "Responsible Persons" (as defined in the Code), and develop and recommend proposed changes to the annual disclosure statements;
  - f. **Reporting:** Submit an annual report to the Board, report to the Board on annual disclosure reporting compliance, and otherwise report to the Board upon request; and,
  - g. **Other:** Perform other duties the Board requests.
2. **Investigation procedures:** The committee shall develop procedures and policies related to investigations. The committee shall determine whether to conduct an investigation concerning an alleged conflict of interest or Code violation. After completing its investigation, the committee shall report its findings and recommendations to the Board. The Board may accept, reject, or modify the committee's recommendations if the committee has not recommended disciplinary action.
3. **Disciplinary Hearings:** If the committee recommends disciplinary action, it shall refer the matter to the Board, which shall appoint a presenter of the evidence for an NABR hearing under Regulation 21.
4. **Makeup:** The committee shall consist of six (6) members, including at least two athlete members, and one alternate athlete member, appointed by the Board Chair or Athletes' Commission, in the case of athlete members, and approved by the Board. Athlete members will equal at least one-third of the committee's total authorized membership. At least half of the athlete members will be Ten Year Athletes and the other half will be either Ten Year or Ten Year+ Athletes. No member of the Ethics Committee may simultaneously be an employee of USATF, an officer or member of the Board, or a member of any USATF Committee. The Board may remove a member for good cause.
5. **Terms:** Committee members shall serve four - (4) year terms. The six (6) terms shall be staggered. Two (2) of the six (6) terms shall start at each Annual Meeting in an even-numbered year, and one term shall start at each Annual Meeting in an odd-numbered year. If any member does not serve his or her full term, a replacement member shall serve the unexpired term. No member may serve for more than eight (8) consecutive years.

6. **Committee Counsel:** *The USATF General Counsel shall serve as the committee's counsel and shall assist in administering ethics complaints, and in establishing investigation procedures.*

**H. Law & Legislation Committee:**

1. **Duties and responsibilities:** *The committee shall:*
  - a. **Deliberations:** *Consider and present in proper form for action all amendments to the USATF Bylaws and Operating Regulations and make recommendations to the Board;*
  - b. **Amendments by members:** *Have the authority to propose amendments to the USATF Bylaws and Operating Regulations to the membership after receiving Board approval;*
  - c. **Panels:** *have its members serve on protest and election panels required by the USATF Bylaws and Operating Regulations;*
  - d. **Review:** *Review legislative matters requested by the USATF General Counsel, or as directed by the Board or its Chair; and*
  - e. **Other duties:** *perform other duties requested by, or on behalf of, the Board.*
2. **Makeup:** *The committee shall consist of twenty-seven (27) members: three (3) members appointed by the Board Chair after the Board designates the Board Chair, three (3) members appointed by the President, one (1) member appointed by each of the eight (8) sport committees, the Associations Committee, the Coaches Advisory Committee, and the Officials Committee, one (1) emeritus non-voting member selected by the Law and Legislation committee, and nine (9) athlete members selected by the Actively Engaged Athlete delegates to USATF. Athlete members will equal at least one-third of the committee's total authorized membership. At least half of those athlete members will be Ten Year Athletes; the remaining will be either Ten Year or Ten Year+ Athletes. In the event any of those selected athlete members no longer wishes to serve, the Athletes' Commission may select a replacement, to serve until the next selection by the Actively Engaged Athlete delegates. In the event any of those selected athlete members is unable to attend a particular meeting of the Law & Legislation (L&L) Committee, the Athletes' Commission may select a replacement to attend that meeting. The AC Chair shall notify the L&L Chair and the Diversity and Leadership Development Committee in writing of all replacements. The chair of the committee will be determined by an appointment, after the Board designates the Board Chair either (i) by the Board Chair in consultation with the President or (ii) solely by the President when also serving as the Board Chair, as applicable, from any voting member of the committee as defined in this subparagraph.*
3. **Terms:** *Law and Legislation Committee members shall serve four (4) year terms that shall commence January 1 and shall end on December 31. The groups responsible for selecting members shall fill any vacancies. The term limit rule is applicable to the individual not the seat.*
  - a. *The following members shall serve four (4) year terms commencing January 1 following the originally scheduled Summer Olympic Games:*
    - i. *two (2) of the members appointed by the Board Chair (including the chair);*
    - ii. *three (3) of the members appointed by the President;*
    - iii. *the members appointed by the following sport committees: Men's Track & Field, Race Walking, Women's Long Distance Running, and Masters Track & Field;*
    - iv. *the member appointed by the Associations Committee;*
    - v. *the member selected by the Law & Legislation Committee to serve as an emeritus non-voting member; and*
    - vi. *four (4) of the Ten Year or Ten Year+ members selected by the Ten Year or Ten Year+ delegates to USATF.*
  - b. *The following members shall serve four (4) year terms commencing January 1 two years following the originally scheduled Summer Olympic Games:*
    - i. *one (1) of the members appointed by the Board Chair;*
    - ii. *the members appointed by the following sport committees: Women's Track & Field, Men's Long Distance Running, Masters Long Distance Running, and Youth;*
    - iii. *the member appointed by the Coaches Advisory Committee;*
    - iv. *the member appointed by the Officials Committee; and*
    - v. *five (5) of the Ten Year or Ten Year+ members selected by the Ten Year or Ten Year+ delegates to USATF.*
4. **Term Limits:** *Beginning with terms commencing in 2021, no individual may serve on the Law and Legislation Committee for more than eight (8) consecutive years, however after serving eight (8) consecutive years the individual may serve again after at least two (2) years away from the committee. However, an individual who fills a vacancy or otherwise serves a term of two (2) years or less may then serve for up to eight (8) more consecutive years. Further, any time served on the committee as an emeritus non-voting member of the committee shall not be counted as time served on the committee with regard to the above stated term limits.*



## I. **Officials Committee:**

1. **Duties and responsibilities:** The National Officials Committee shall:
  - a. Certify, train, and generally supervise Athletics officials;
  - b. Establish and monitor overall requirements for training and certifying officials;
  - c. Delegate, at its election, duties to Association Officials Committees;
  - d. Develop and encourage standard uniform attire for officiating;
  - e. Request, when appropriate, advice and reports from Associations' officials committees concerning training, certifying, and other committee activities;
  - f. Provide each Association, when appropriate or requested, with forms, examinations, clinic programs, and other material or knowledge to assist the Associations' officials committees in carrying out their duties; and
  - g. Administer, supervise and coordinate competition officials assigned to competitions listed in Regulation 18-J-1 and Regulation 18-J-3.
2. **Makeup:** The committee shall consist of:
  - a. The certification chair from each accredited Association;
  - b. In addition to the certification chair, up to five (5) additional members of each accredited Association, one for each one hundred (100) certified officials in the Association, who are current members of USATF, and registered at the Annual Meeting;
  - c. One (1) member appointed by each of the sport committees;
  - d. All committee chairs and sub-chairs of the National Officials Committee, whether appointed or elected.
  - e. Three (3) at-large members to be elected by the members of the committee;
  - f. Four (4) at-large members appointed by the President; and
  - g. That number of Actively Engaged Athletes equal to at least thirty-three and 33/100 percent (33.33%) of the total authorized membership, if these athletes are available, to be selected by the Actively Engaged Athlete delegates to USATF.
3. **Elections:** The committee shall elect its chair and other officers at the Annual Meeting in the year in which the Summer Olympic Games are originally scheduled to occur, except for the offices of Treasurer, Vice Chair Certification, and Vice Chair Awards who shall be elected at the Annual Meeting occurring at the next even year after the Games. All terms shall be for four (4) years. All officers shall be eligible to serve up to two (2) successive four (4) year terms.
4. **WA Technical Officials Subcommittee:** This subcommittee relates to National Technical Officials (NTOs), Area Technical Officials (ATOs), International Technical Officials (ITOs), International Race Walk Judges (IRWJs), and Area Race Walk Judges (ARWJs).
  - a. **Duties and responsibilities:** The subcommittee shall:
    - i. **Diversity:** Solicit a diverse group of candidates to be technical officials and international-level race walk judges;
    - ii. **Jurisdiction:** Certify NTOs in the United States under the auspices given to USATF by the WA and as a result of the National Officials Committee training and testing program, and those of this subcommittee;
    - iii. **Primary responsibility:** Train and generally supervise the NTOs, ATOs, ITOs, and IRWJs in the United States;
    - iv. **Evaluation instruments:** Develop and monitor qualification criteria, procedures, tests, and performance standards in order to make recommendations for candidates for promotion to the next level to the President;
    - v. **Solicitation:** Request, when appropriate, advice and reports on performance and qualifications from Association Official's Committees for these individuals, or candidates for these positions, and for nominations for candidates for these positions;
    - vi. **Information:** Act as a clearinghouse to ensure all of these officials are kept informed of changes in WA rules or procedures, which impact them or their assignments;
    - vii. **International assignments:** Make recommendations for assignments at the various levels for technical officials or race walk judges when requested or appropriate; and
    - viii. **Domestic assignments:** For domestic competitions, make recommendations for the lead position for this group of officials at a meet.
  - b. **Makeup:** The subcommittee shall consist of a chair appointed by the President and the following members:
    - i. **Technical officials:** All current ITOs; all current ATOs; all current IRWJs; three (3) NTOs elected by and from the current NTOs; and three (3) ARWJs elected by and from the current ARWJs;
    - ii. **Sport committees:** One representative from each Sport Committee that has used the NTO position (Rule 115) in at least one of their championships in the last year (as defined by the Competition Rules), and one representative from the Race Walking Committee;
    - iii. **Rules Committee:** Two (2) at-large members appointed by the Rules Committee;
    - iv. **WA Technical Committee:** Any member of the WA Technical Committee from the USA (if any); and

- v. **Actively Engaged Athletes:** That number of Actively Engaged Athletes equal to at least thirty-three and 33/100 percent (33.33%) of the total authorized membership, to be selected by USATF's Actively Engaged Athlete delegates.

**J. Organizational Services Committee:**

- 1. **Duties and responsibilities:** The committee shall:
  - a. **Organizational memberships:** Review organization memberships annually to ensure that they maintain the minimum membership standards. The Organizational Services Committee may recommend that the Board suspend an organizational member's rights and privileges if it fails to maintain the minimum standards;
  - b. **Credentials:** Hear all disputes regarding the seating of delegates under Regulation 7;
  - c. **Orientation:** Organize an orientation session at each Annual Meeting for new attendees;
  - d. **Association elections:** Oversee Association elections when requested by the Board or the President, or under Regulation 7;
  - e. **Annual Meeting:** Participate in selecting sites for USATF's Annual Meeting, in conjunction with National Office Management; and
  - f. **Elections:** Oversee all elections and balloting of USATF and its divisions and committees under Regulation 9, and provide the results to the Board Secretary or the division or committee secretary for inclusion in the minutes of USATF's meetings.
- 2. **Makeup:** The committee shall consist of thirty (30) members: eight (8) members (including its chair) appointed by the President, one (1) member appointed by each of the eight (8) sport committees, the Associations Committee, and the Officials Committee, two (2) members appointed by the Coaches Advisory Committee (one to be a youth or high school coach and one to be a college or post-college coach), and ten (10) athlete members selected by the Athletes' Commission. At least half of those athlete members will be Ten Year Athletes; the remaining will be either Ten Year or Ten Year+ Athletes. The chair may also submit the names of up to five additional non-voting emeritus members through December 31, 2028 and additional delegates to the President for election panels and floor managers for Annual or special Meetings.

**K. Records:**

- 1. **Duties and responsibilities:** The committee shall:
  - a. **Process:** Investigate every performance submitted for record approval, and recommend approving or rejecting every application to the appropriate sport committee; and
  - b. **Conformity:** Maintain, so far as is practicable, requirements for applying for and approving records that conform to the requirements of the applicable international sports governing body for world records.
- 2. **Makeup:** The committee shall consist of twenty-four (24) members: six (6) members (including its chair) appointed by the President, one (1) member appointed by each of the eight (8) sport committees (excluding cross country), one (1) member appointed by the Coaches Advisory Committee, and nine (9) Actively Engaged Athlete members selected by the Actively Engaged Athlete delegates to USATF.

**L. Rules:**

- 1. **Duties and responsibilities:** The committee shall:
  - a. **Rules enforcement:** Ensure that adequate technical rules and standards for procedures of competition are developed and that the requirements of the appropriate rules are complied with during international and domestic competition; and
  - b. **Rules of competition:** Initiate and consider proposed amendments to the Rules of Competition and to present them along with the committee's recommendations to USATF at the Annual Meeting for approval;
    - i. **Interpretation:** Interpret the Rules of Competition;
    - ii. **Committee input:** Receive from all committees or their rules subcommittees proposed rules of competition affecting their activity and present them along with the committee's recommendations to USATF for approval at the Annual Meeting; and
    - iii. **Rule book:** Cause the Rules of Competition to be published and distributed at least biennially.
- 2. **Makeup:** The committee shall consist of five (5) members (including its chair) appointed by the President, one (1) member appointed by each of the eight (8) sport committees, one (1) member appointed each by the Associations and Officials Committees, two (2) members appointed by the Coaches Advisory Committee, the USATF representative to the WA Technical Committee (if applicable), and nine (9) athlete members (fifty percent (50%) of which shall be Ten Year Athletes and fifty percent (50%) shall be Ten Year or Ten Year+ Athletes), selected by USATF's Ten Year Athlete delegates.



**M. Volunteer Council:**

1. **Duties:** *The Volunteer Council shall serve as a source of reference, opinion and advice to the Board and National Office Management about current or contemplated USATF policies.*
2. **Composition:** *The Volunteer Council shall include:*
  - a. *The President, and the most recent past President who is able to serve;*
  - b. *The Division chairs for each division;*
  - c. *The chairs of all of the committees and councils listed in Article 13;*
  - d. *The WA Council member from the U.S.A.;*
  - e. *A representative from each of the sports organizations, which conduct a national program or a regular national competition in Athletics on a level of proficiency appropriate for the selection of eligible athletes to represent the United States in international Athletics competition, as described in Article 5-C. Current members are listed in the exhibits section of this handbook; and*
  - f. *At least one-third of the total authorized membership must be Actively Engaged Athletes, appointed by the Athletes' Commission. The Actively Engaged Athlete membership shall consist at a minimum of the officers of USATF's AC and the USOPC Athlete's Advisory Council member and alternate member.*
3. **Officers:** *The President shall serve as chair. The Group may designate an individual, who need not be a voting member, as Secretary.*
4. **Meetings of the Council:** *The Council shall generally hold meetings by conference call, but the President may call for a meeting at the Annual Meeting for those in attendance.*
5. **Election or selection of members:** *All members of the Council are elected by their constituencies and shall serve at the discretion of those constituencies, unless otherwise stated in these Bylaws. The 5-C member organizations shall name their representatives as they would name delegates to the Annual Meeting.*
6. **Terms:** *The terms for Council members, which are not otherwise set by their terms of office, shall be the four (4) years starting at the Annual Meeting in the year in which the originally scheduled Summer Olympic Games concludes. The 5-C member organization representatives shall serve until their organization makes a change and notifies USATF's National Office and the Council chair of the new representative.*

**REGULATION 17  
NATIONAL TEAM STAFFS**

- A. Conduct:** The CEO must approve any plan by any committee or council to fill any international team staff position, after considering input from the High Performance Division, before the position is advertised. The plan must require that all applicants be USATF members and that all applicants for coaching positions be members of the USATF Coaches Registry. The approved plan shall be mailed to each Association's Sport Committee chair for the appropriate sport discipline, and be listed in a special section of the USATF web site.
- B. Diversity:** International team staff shall reflect the diversity of the sport, with special emphasis given to including women, and ethnic and racial minorities.
- C. Staff performance:** National Office Management shall maintain records of athlete surveys and other information received about the performances of international team staff members and medical services personnel. Staff members shall be provided anonymous summaries of comments and ratings for past service and be given an opportunity to respond. National Office Management shall include the staff members' responses to their files. The appropriate committees shall review and consider these records, or a summary of their contents prepared by National Office Management, prior to recommending or selecting an individual as a team staff member.
- D. General selection procedures:** Team staff for international competitions other than the Olympic Games, WA World Outdoor Championships in Athletics, and Pan American Games shall be nominated by the executive committees of the relevant Sport Committees or councils having jurisdiction over the sport disciplines and voted upon by the members of the committee for submission to the CEO for screening and to the Board for final approval. If the applicable Sport Committees or councils cannot agree, the Board shall make the selection. If a national team staff person resigns or is unable to serve, prior to the next scheduled meeting of the appropriate Sport Committee or council, the chair of that body shall recommend a replacement to the Board after consulting with his or her executive committee, and giving due regard to the staff performance records on file and the resulting diversity of the staff.
- E. Conflicts of interest:** Any individual selected as a national team staff person must commit his or her full time and attention to the position for the full duration of his or her travel with a USATF national team. Family, personal, or professional conflicts that arise after an individual's selection as a national team staff member shall be disclosed to the President, CEO, and chairperson of the applicable sports or administrative committee, as soon as they arise, but in no event later than forty-eight (48) hours after. Such a conflict may be the basis for removal or replacement of an individual as a national team staff member by the President, CEO, or by the Board. USATF shall not be obligated to exceed the funding budgeted for a national team staff person in order to accommodate the individual's family, personal, or professional issues.
- F. Olympic Games, WA World Outdoor Championships in Athletics, and Pan American Games:** The Men's International Staff Subcommittee and Women's International Staff subcommittees of the High Performance Division shall be constituted at the USATF Annual Meeting in the year in which each Summer Olympic Games are originally scheduled to be held. These Staff Subcommittees shall review pools of qualified candidates for coaching staff for the Olympic Games, WA World Outdoor Championships in Athletics, and Pan American Games. The Staff Subcommittees shall establish application procedures and criteria for individuals to apply and qualify for national team service. The criteria shall be based on expertise, requisite national team experience, past evaluations, and shall be designed to include a broad and diverse pool of qualified candidates. The criteria shall comply with USOPC selection criteria, when applicable. The pools shall include at least five times as many candidates as available positions, if practicable. Any USATF member in good standing may apply to be included in the pools. The Board, National Office Management, and the Athletes' Commission and Coaches Advisory Committees may also recommend individuals to be included in the pools, provided that the individuals recommended complete the application and screening process. The members of the Men's and Women's Staff Subcommittees shall select proposed lists of coaches and alternates for these competitions and forward to the Board for approval and to the USOPC for background checks, when required.
- 1. Men's International Staff Subcommittee:** The Men's International Staff Subcommittee shall consist of the following persons:
- a. The Men's Track and Field Committee chair, or his or her designee, who shall serve as chair of the subcommittee;
  - b. Eleven (11) representatives of the Men's Track and Field Committee chosen either by election or appointed by the Men's Track & Field chair and approved by the Men's Track & Field Executive Committee, after

consulting with the chair of the Coaches' Advisory Committee. At least seven (7) of these representatives shall be active coaches;

- c. One (1) representative appointed by the chair of the Men's Long Distance Running Committee;
- d. One (1) representative appointed by the chair of the Race Walking Committee;
- e. One (1) Athlete Representative (consistent with Regulation 25), appointed by the President after approval from the Athletes' Commission. The Athlete Representative shall have represented at least one (1) athlete who has competed internationally within the last year; and
- f. Eight (8) Ten Year or Ten Year+ Athletes selected by the Athletes' Commission, at least five (5) of whom shall be Ten Year Athletes, and at least one of whom shall be either a long distance runner or a race walker. At least thirty-three and 33/100 percent (33.33%) of the committee's total authorized membership shall be comprised of Ten Year or Ten Year+ Athletes.

**2. Women's International Staff Subcommittee:** The Women's International Staff Subcommittee shall consist of the following persons:

- a. The Women's Track and Field Committee chair, or his or her designee, who shall serve as chair of the subcommittee;
- b. Eight (8) representatives of the Women's Track and Field Committee, chosen either by election or appointed by the Women's Track & Field chair and approved by the Women's Track & Field Executive Committee, after consulting with the chair of the Coaches' Advisory Committee. At least three (3) of these representatives shall be active coaches in the Coaches Registry. The Coaches Advisory Committee may nominate two (2) coaches to be considered by the Women's Track & Field Chair or designee for the Women's International Staff Nomination Subcommittee;
- c. One (1) representative appointed by the chair of the Women's Long Distance Running Division;
- d. One (1) representative appointed by the chair of the Race Walking Committee; and
- e. Six (6) Ten Year or Ten Year+ Athletes selected by the Athletes' Commission, at least four (4) of whom shall be Ten Year Athletes, and at least one (1) of whom shall be either a long distance runner or race walker. At least thirty-three and 33/100 percent (33.33%) of the committee's total authorized membership shall be comprised of Ten Year or Ten Year+ Athletes.

**3. Subcommittee Member Substitution:** In the event that any individual is unable to attend a staff subcommittee meeting, the individual or committee that appointed the individual may appoint a substitute.

**4. Replacements:** In the event that a coach or manager resigns or is unable to serve, the CEO or his or her designee shall submit a replacement from the pools to the Board for approval after consulting with the chairs of the Long Distance Running Division, and the Men's Track & Field, Women's Track & Field, Race Walking, and Athletes' Commission committees, and after giving due regard to previous staff evaluations and the diversity of the newly composed staff.

**5. Conflicts of interest:** Neither the Men's nor the Women's International Staff Selection Subcommittee may recommend any of its members for a coaching or managerial position; and

**6. Diversity:** International team staff shall reflect USATF's diversity. During each Olympiad, at least one (1) individual with a background and expertise in Men's Track & Field, Women's Track & Field, Men's Long Distance Running, Women's Long Distance Running, and Race Walking shall be recommended to the Board for a coaching or managerial position for at least one (1) of the three (3) meets (Olympic Games, WA World Outdoor Championships in Athletics, and Pan American Games).

**G. Medical support staff:** USATF shall post on its web site, in an identifiable location, the list of qualifications and the application and selection processes, including application forms and deadlines, for all medical staff positions for all international competitions. Medical staff shall be selected by the Sports Medicine & Science Committee, which shall provide a list of appointments to the chair of the appropriate Sport Committees or councils, the Athletes' Commission, and National Office Management for approval. If none of the affected chairs objects to any of the appointees within ten (10) business days, the appointments will be considered confirmed, subject to approval by the CEO. If any chair objects to one or more of the proposed appointments, the Sports Medicine & Science Committee may propose an acceptable substitute to the chairs, or the dispute shall be referred to a three-person panel, consisting of the President, the High Performance Division chair, and the chair of the Athletes' Commission, or their designees, for final resolution.

**H. Non-coaching and non-medical support staff:** The High Performance Executive Committee shall select all non-coaching and non-medical support staff. The Director of International Teams and Championships shall serve as an ex-officio member of the High Performance Executive Committee when it selects the staff members. The CEO shall appoint the Team Leader, subject to approval by the Board, and by the USOPC, when required.

**I. Media support staff:** National Office Management shall select media support staff.

**REGULATION 18**  
**CHAMPIONSHIPS\***

*\*As of 9/15/2025, still under review.*

- A. General:** USATF's national championships shall be conducted in open, U20, youth (including Junior Olympics), and masters classes. USATF and its sports committees shall award bids for and conduct national championship competition.  
*NOTE: Rules governing age groups, eligibility, entries, protests, and competition are contained in the Rules of Competition. See especially Rule 6 regarding championships.*
- B. Title:** Proposed titles of all national championships must be submitted to the CEO (or designee) for approval, not to be unreasonably withheld.
- C. Dates:** The CEO (or designee) and National Office Management shall coordinate dates of all national championships with the affected sport committee chairs.
- D. Notice:** At least sixty (60), and preferably ninety (90) days' notice of the time and place of each national championship shall be given to the Association Sport Committee chairs, Association Presidents, and Association Office (if any), who shall collectively forward the information to the members of their Association.
- E. Special criteria:** A bidder for a national championship event must meet the following sport committee specifications:
- 1. Youth Athletics:** All national Youth and Junior Olympic competition national bids are subject to review by a site evaluation team (unless the site has hosted a national championship in the same discipline in the recent past):
    - a. Youth Nationals and Junior Olympic Track & Field: There shall be representatives of the Youth Athletics Committee (including at least one with track expertise, and at least one with field expertise) assigned by the YEC and a team from the National Office chosen by National Office Management.
    - b. Junior Olympic Cross Country: There shall be representatives of the Youth Athletics Committee chosen by the YEC and a National Office team chosen by National Office Management.
    - c. Combined Events: The site evaluation shall take place at the same time as the site evaluation for the track & field championship provided that the site is the same. If not, and if the site has not previously hosted a Youth Athletics championship in the recent past, an alternative site evaluation shall be made by a National Office team approved by management and representative(s) of the Youth Athletics committee approved by the YEC.
    - d. Timing of Bids: Bids beyond the next three (3) calendar years shall not be considered. A national meet site must meet the requirements of the Rules of Competition and Bid Application.
  - 2. Long Distance Running (including MUT) and Race Walking:** All road courses must have prior certification before a bid will be considered. The certification number provided through the Road Racing Technical Council (RRTC) must be on the bid form. There shall be site visits for the Olympic Marathon Trials. The event organizers are responsible for ensuring prior to the competition that all road courses for Open LDR and Open race walking championships are pre-verified and have a RRTC approved World Athletics Certification.
  - 3. Men's and Women's Indoor and Outdoor Track & Field:** In awarding the USA Track & Field Championships, a primary consideration should be given to facilities where all field events may be conducted within the stadium or indoor arena and to facilities that have met the standards for WA certification.
  - 4. U20, Open, and Masters Cross Country Championships:**
    - a. The Masters Long Distance Running Committee shall have the right of approval of masters' championship bids recommended by the Cross Country Running Council.
    - b. A joint Site Selection Subcommittee shall consist of two (2) members selected by the Cross Country Running Council, two (2) selected by the Club Council, two (2) members selected by the Masters Long Distance Running Committees, and a chair appointed by the Cross Country Council Chair. The subcommittee shall select the site for the National Club Cross Country Championships.
    - c. All appropriate National Cross Country Championship events shall be subject to review by the Club Council.
  - 5. Club Council:** The national track & field club championship events shall be subject to review by the Club Council.
- F. Awarding procedure:** USATF national championships may be conducted by the Sport Committees concerned, by USATF, or by a sponsoring organization under these Regulations and a contract between the organization and USATF. USATF championships shall be awarded at Annual Meetings, when feasible.



1. **Distribution of application:** National Office Management shall prepare and post online application forms to prospective bidders and all Associations for championships to be awarded to a sponsoring organization.
  - a. The application form shall include the necessary information to assure National Office Management and the Sport Committees concerned that the championships will be efficiently administered and safe for the competitors.
  - b. The application shall further require information (i) whether the competition will be staffed by competition officials who are USATF-certified at the level of “national” or “master”; (ii) whether the applicant will invite and accept a proportionally representative number of national and/or master level officials from outside the Association, to ensure a national character of the championship; and (iii) what provision will be made for assisting officials with transportation, food and/or lodging.
  - c. The form shall encourage assistance with officials’ expenses. In the case of track & field championships, the part of the form related to officials shall be forwarded to the chair of the National Officials Committee before consideration of the bid.
2. **Notification of championships available:** At least annually, prior to the Annual Meeting, National Office Management shall compile from the Sport Committees a list of all championships previously awarded and those available to be awarded at the next Annual Meeting and circulate the list to appropriate parties, including the media, and include it in appropriate publications. The list shall include the availability status of all Championships for the following three (3) calendar years. The awarding procedure in this Regulation shall apply for international team selection events.
3. **Formulation of bid details:** The individuals, names of committee members, or legal entity submitting the bid shall be clearly identified in the bid application, and the bidder shall submit any additional information requested by USATF to verify his, her or its legal authority to assume responsibility for conducting a USATF championship. The application shall clearly state the local Association’s role.
  - a. If a bidder intends to assign part of its responsibilities for conducting the championships to another entity, the bidder shall provide USATF with a copy of the document assigning these responsibilities. Assigning responsibilities shall not absolve the bidder from its obligations to USATF related to conducting the championships.
  - b. When the bid provides for profit sharing or minimum guarantees, an itemized budget shall be submitted with the application.
  - c. Bids involving one or more championship categories or more than one Sport Committee (joint bids) shall state whether they are contingent upon approval of all parties.
4. **Association sign-off:** The part of the application that states the Association’s role shall be furnished to the Association in which the event is to take place prior to the submission of the bid. An acknowledgment of the Association’s receipt of the part of the application pertaining to the Association’s role shall be submitted with the bid.
  - a. If the event takes place in more than one Association, then all such Associations shall be in receipt of the part of the application. The sport committee(s) and National Office Management presented with the bid shall not consider the bid without such an acknowledgment, unless the bidder furnishes a satisfactory explanation for the absence.
5. **Submission of bid:** Copies of the completed application shall be returned to National Office Management who shall give a copy (with redactions of information deemed confidential) to sport committee representatives making site selection visits. If there is no site selection visit, the bids shall be sent to the Committee Chair, or designee. Youth Athletics bids are due by August 30<sup>th</sup>. Race walking bids are due sixty (60) days prior to the start of the Annual Meeting.
6. **Screening and qualification of bid:** National Office Management shall review completed bid applications in a timely manner, and may require that a bid include additional provisions that it deems in the best interests of USATF. National Office Management may disqualify a bid that it reasonably deems to be detrimental to the best interest of USATF.
7. **Presentation at meetings:** Presentation by or on behalf of each qualified applicant shall be made at a meeting of the Sport Committee or a duly appointed subcommittee. The role of the local Association, any assignment of responsibilities to another entity, and any provisions for profit sharing or minimum guarantees shall be stated as part of the presentation.
8. **Approval of bids:** National Office Management, after consultation with the applicable Sport Committee, and verifying the bidder’s qualifications and legal authority, shall award bids for national championships in accordance with the provisions of this subparagraph. As part of the bid consulting process, the National Office Management and applicable Sport Committee representatives shall collaborate to determine the benefits and drawbacks for competitors, officials, and spectators, including feedback from past competitions sponsored by that bidder. Such consultation shall be determined by the National Office Management and shared in advance with the applicable Sport Committee. Unless otherwise stated herein, Consultation shall include:

- a. *Members of the applicable Sport Committee shall have at least two (2) persons included in site evaluation and visits, if any;*
- b. *At least two (2) Active Athletes shall be included in site evaluation and visits, if any, for open national championships;*
- c. *For Youth Athletics national championships, consideration will be given to a three-year geographical rotation (west, central, east). If not feasible, consideration will be given to at least rotating each championship to a different time zone after two years. The Youth Athletics and Masters Track and Field Divisions shall vote on their respective national championship bids at the Annual Meeting. National Office Management shall give strong consideration to these sites in awarding the bid;*
- d. *When possible, the bid process should begin at least three (3) years in advance;*
- e. *Such consultation, including dates, shall be determined by the National Office Management and shared in advance with the applicable Sport Committee; and*
- f. *Any other consultation deemed appropriate by the National Office Management. The award of a championship shall be to USATF, an Association, to a member in good standing of that Association, or to a competent third party within the Association's geographic area. Awardees shall assume all financial and operating responsibilities required by the bid applications and all applicable agreements.*
9. **Un-awarded championships:** *Championship events that remain un-awarded after the Annual Meeting may be recommended to National Office Management under a process formulated by the particular Sport Committee in consultation with the National Office Management.*
10. **Contract:** *The championship contract shall include the legal and financial obligations and responsibilities of all parties and shall be approved and signed by USATF and the awardee. The contract shall include provisions containing a list of the parties responsible for equipment, facilities, personnel, volunteer recruitment, clerical work, and other matters related to conducting the championship. If the awardee is not an Association, the services to be provided, together with the fees to be paid by the awardee to the Association for providing these services and sanctioning the event shall also be included in the contract. The CEO may require that changes to the championship contract necessary to protect USATF be made before the contract is finalized.*
11. **Withdrawal and/or reassignment:** *Unless the championship contract and operating addendum have been executed at least one hundred twenty (120) days prior to the championships, or as otherwise determined by USATF, the award may be withdrawn upon the request of the appropriate Sport Committees by the USATF Board. The Board may cancel an award of a championship, for good cause, and transfer the award to another party.*

**G. Finances:**

1. **Media rights fees:** *USATF reserves for itself exclusive rights in the receipts from radio, television, motion pictures, the Internet, and all other media involving USATF national championships and international team event. These receipts shall be included, in detail, in the financial report and shall be available upon demand to each member of the Board before its next meeting.*
2. **Other revenues:** *USATF shall receive from its national championships:*
  - a. **Media:** *The receipts stated in subparagraph G-1; and*
  - b. **Other:** *Fixed fees, profit sharing, or other revenues designated in the championship contract.*
3. **Entry fees:** *Any and all entry fees and late entry fees shall be retained by the organization that conducts a championship, or as otherwise agreed between the organization that conducts a championship, or applicable Sport Committee and National Office Management.*
4. **Reports:** *If applicable, the organizations conducting the championship shall furnish to USATF within sixty (60) days following the event a detailed financial report showing all receipts and disbursements. Failure to comply without good cause within the time specified shall bar the contracted sponsor and/or Association involved from being awarded any national championship in that sport for the next five (5) years.*
5. **Prohibited expenses:** *Except for those championships that are either awarded on a fixed-fee basis or whose budgets, including all expenses and purchases, are approved in advance by USATF:*
  - a. **Bidding:** *The expense of any persons traveling to or attending any meeting for the purpose of securing the award of any national championship shall not be charged against the cost of conducting the event; and*
  - b. **Equipment:** *The expense of purchasing equipment for use in a national championship shall not be charged against the cost of conducting the event unless title to the equipment is placed in the USATF's name and it is delivered to USATF immediately after the event.*
  - c. **Defending champion:** *If any athlete expense allowance is to be made in any USATF championship, the defending champion, if fit, shall receive first consideration.*

- H. Championship meet management:** The meet management, at a minimum, shall include the referees and jury of appeals. The size and makeup of the meet management shall be agreed to at the time of the bidding or site selection visits and included in the final bid application that is approved, and the contract.
- For track & field championships, at least thirty (30) days prior to the Annual Meeting, the involved Sports Committee(s) chairs and organizations conducting the event shall provide National Office Management and LOC a pool of individuals qualified to oversee the competition or serve in managerial capacities (including referees, jurors of appeals, and NTOs). After consultation no later than the Annual Meeting, the final list of individuals to serve as meet management shall be selected from the pool no later than the end of January by the Sport Committee(s).
  - For LDR and Race Walk championships, the meet management shall be determined at least sixty (60) and preferably ninety (90) days prior to each championship.
- I. Competition officials staffing at Men's & Women's Track & Field Championships:** Prior to the assignment of competition officials and meet management referees to a Men's & Women's track and field championship event, the chairs of the Officials and Men's and Women's Track and Field Committees shall adopt a plan specifying the titles and numbers of competition officials, referees, jurors of appeal, and others in a managerial capacity. These officials shall be certified at the National or Masters level.
- J. Selection of officials:** Competition officials shall be selected for the events below as follows:
- USA Indoor and Outdoor Track and Field Championships, U20 Track & Field Championships, and Olympic Track & Field Trials:**
    - Applications:** No later than September 15 of each year, provided location and dates of championships have been determined, application forms shall be mailed (or emailed, and posted on the USATF website) to all competition officials certified at the national or master level. If the location and/or dates of championships have not been determined by September 15, the application forms shall be emailed and posted on the USATF website immediately following the determination. The application form shall apply to the USA Open Indoor and Outdoor Track & Field Championships, the USA U20 Outdoor Track & Field Championships, and the Olympic Track and Field Trials. Every official invited to these championships must be certified as an official at a master or national level, and be a USATF member. Applications must be received by an October 15 deadline and sent electronically as specified in the application.
    - Selection:** Competition officials for these championships shall be selected at the USATF Annual Meeting. A list of recommendations for referees and jurors of appeals may be submitted from the chair of the Officials Committee to the Men's and Women's Track & Field or Race Walk committees through National Office Management by November 15. Referees must be USATF members, in good standing, preferably certified as a competition official at the national or master level, who shall be selected by the chairs of the two Track & Field Committees, or their designees. Members of jury of appeals must be USATF members in good standing, preferably certified as a competition official at the national or master level, who shall be selected by the chairs of the Track & Field committees, or their designees. Other competition officials (excluding race walk judges and race walk referees) shall be recommended by a joint subcommittee after a review of the applications and approved by the chairs of each of the two Track & Field Committees, or their designees. The chairs shall not unreasonably withhold their approval. The Sports Committee chairs shall provide National Office Management a final list of individuals selected as competition officials. The officials selected shall be notified as soon as possible.
    - Makeup:** The recommending subcommittee shall consist of the following:
      - From the Officials Committee:
        - The Officials Committee chair or designee; and
        - Two (2) additional members selected by the executive committee.
      - From the championship sites:
        - The certification chair of the Association where the championships take place, or the certification chair's designee; and
        - The event's meet director, or the meet director's designee.
- NOTE:** For subsections ii (a) and (b), all persons shall have voice, but only the appropriate persons from that site under consideration jointly shall have one vote, and if unable to decide, the person designated in (b) shall cast that vote.
- From the two Sport Committees:
    - The chair of each committee or their designees; and
    - One (1) additional member from each committee selected by the chair of the applicable Sport Committee.
  - From Athletes' Commission: Three (3) Actively Engaged Athletes selected by the AC.



- d. **Chair:** The chair of the Selection Committee shall be the National Officials Committee chair, or his or her designee, who shall serve for a term that coincides with the National Officials Committee Chair's term of office.
      2. **LDR and Race Walking Championships:** The selection of competition officials and referees for national championships in long distance running and race walking shall be made by the applicable Sport Committee(s) in consultation with the local event director and comply with the certification requirements of Regulation 18-J-1b.
      3. **Youth Track & Field Championships (including Junior Olympics):** Upon a bid being accepted, the Local Organizing Committee (LOC) shall name an Officials Coordinator who shall be responsible for assembling a list of officials (excluding the officials named in Regulation 18- H) in the following manner.:
        - a. **Invitations:** Invitations to apply shall be made available by Thanksgiving to all National and Masters certified officials. The Officials Coordinator may also send an advance invitation to local officials. The NOC may also extend an invitation when emailing results in December to applicants to officiate at the USA Indoor and Outdoor Track & Field Championships and U20 Track & Field Championships as set forth in Regulation 18-J-1.
        - b. **Applications:** Applications shall be done online and are due by January 2nd. They shall be completed using the same software that the National Office Management provides for the process described in Regulation 18-J-1 unless the LOC has access to software equal to or superior in quality to the national software. In such case, the Officials Coordinator shall provide a record of the applications to the National Office Management.
        - c. **Input:** The Officials Coordinator before choosing the officials in January shall receive input from the following, by electronic meeting, if possible:
          1. A YEC representative with track expertise.
          2. A YEC representative with field expertise.
          3. An NOC representative with access to Officiating evaluations.
          4. The Association Official Certifier (if not the coordinator).
          5. An AAC representative, if available.
        - d. **Selection:** The Officials Coordinator shall select the officials for the meet and complete a list that shall be sent to the YEC for approval by January 24th. If an individual(s) on the list is not approved unanimously, there shall be consultation between the Officials Coordinator and YEC before a final vote of approval is taken. The applicants shall be notified by February 1st
        - e. **Local Officials.** Although the selection should consider the national character of the meet (see Regulation 18-F-1-b), when two applications have equal strength, the Officials Coordinator may give preference to the application of an official from the local Association or a neighboring Association.
        - f. **Officials Level of Certification:** All officials selected shall be certified at the National or Masters level unless there is an insufficient number of applicants at those levels, in which case, the Officials Coordinator may consider Association-certified officials, especially in support roles.
      4. **Junior Olympic Cross Country:** The selection of competition officials, referees, and juries of appeals for National Junior Olympic cross country championships shall be made by the YEC in consultation with the Local Organizing Committee (LOC) and comply with the certification requirements of Regulation 18-J-1b.
      5. **Special selections:** Selection of Officials for an Olympic Games, the WA Outdoor or Indoor World Championship in Athletics or the WA Continental World Cup in Athletics, if hosted in the USA shall occur as follows:
        - a. **Process:** The application and selection process shall follow Regulation 18-J-1, with the following additions:
          - i. There shall be a co-chair of the Committee certified at the Master or National level selected by the President after consulting with the USA member to the WA Council, if any; and
          - ii. The President may also select two additional at-large members to the Committee certified at the Masters or National level, after consulting with the USA WA Council member.
      6. **Diversity:** In nominating officials for selection for national championships or Olympic Trials, the selection body shall give appropriate consideration to recommending a diverse pool of qualified officials, taking into account the age, gender, Association and ethnic background of each nominee recommended for selection.
    - K. **World or area championships:** Any organization in the United States wishing to host a world or area championship in any discipline governed by USATF shall first obtain the approval of National Office Management and the USATF Board. The organization must first notify the host Association and the appropriate USATF sports committees, which shall be provided with the opportunity to evaluate the bid. After being awarded a world or area championship, the host organization shall provide periodic reports at least quarterly on the progress of the event preparations, including funding, to National Office Management.

**REGULATION 19**  
**RECORDS**

**A. Submission:**

1. **Form:** All applications for records shall be submitted on an official record application form and shall contain all pertinent information requested on the form.
2. **Responsibility:** The host Association Sport Committee, or of the member club or affiliate organization sponsoring or conducting the competition shall be responsible for applying for the record on the form, which shall be properly completed and forwarded to National Office Management without delay.
3. **Processing:** Upon receiving a record application form and any accompanying documentation, National Office Management shall forward it to the individual designated by the appropriate Sport Committee. That individual shall review the form, gather any needed additional information, and make a recommendation regarding the application to the Records Committee, which shall, in turn, make its recommendation to the appropriate Sport Committee.
4. **Ratification:** Each Sport Committee shall have the responsibility of ratifying records in its events.
5. **Report to USATF:** At the second general session of the Annual Meeting, the Records Committee shall report the actions of all Sport Committees regarding records.

**B. Certificates:** Every holder of an American record or of an all-comers record, as the case may be, shall receive a certificate to that effect signed by the President and the chair of the Records Committee.

**REGULATION 20  
DOPING CONTROL**

**Individual members:**

*It is the duty of individual members of USATF to comply with all anti-doping rules of WA, the World Anti-Doping Agency (WADA), the IOC, the USOPC including the USOPC National Anti-Doping Policy, and of the U.S. Anti-Doping Agency (USADA), including the USADA Protocol for Olympic and Paralympic Movement Testing (USADA Protocol) and all other policies and rules adopted by WA, WADA, the IOC, the USOPC and USADA. Athlete members agree to submit to drug testing by WA and/or USADA or their designees at any time and understand that the use of methods or substances prohibited by the applicable anti-doping rules make them subject to penalties including, but not limited to, disqualification and suspension. If it is determined that an individual member may have committed a doping violation, the member agrees to submit to the results management authority and processes of USADA, including arbitration under the USADA Protocol, or to the results management authority of WA and/or its designees if applicable or referred by USADA.*

**Organization members:**

*It is the duty of all Athletes, Athlete Support Personnel and other Persons (as those terms are defined in the World-Anti Doping Code), by virtue of their participation in the Olympic, Paralympic, Pan American, Parapan American or Youth Olympic Games, participation in an Event or Competition organized or sanctioned by USATF, participation on a national team, utilization of a USOPC Training Center, receipt of benefits from the USOPC or USATF, inclusion in the Registered Testing Pool, or otherwise subject to the World Anti-Doping Code to comply with all anti-doping rules of WA, WADA, the IOC, the USOPC, and of the U.S. Anti-Doping Agency (USADA), including the USADA Protocol for Olympic and Paralympic Movement Testing (USADA Protocol) and all other policies and rules adopted by WA, WADA, and USADA. If it is determined that an Athlete, Athlete Support Personnel, or other Person may have committed a doping violation, the individual agrees to submit to the results management authority and processes of USADA, including arbitration under the USADA Protocol, or to the results management authority of WA and/or its designees, if applicable or referred by USADA. In addition, Athletes agree to submit to drug testing, and administer the tests, by WA and/or USADA or their designees at any time and understand that the use of methods or substances prohibited by the applicable anti-doping rules make them subject to penalties including, but not limited to, disqualification and suspension.*

*These organizations' anti-doping rules and protocols are posted on the following websites:*

WA: <https://www.worldathletics.org/about-iaaf/documents/anti-doping#rules>

IOC: <https://www.olympics.com/ioc/fight-against-doping>

USOPC: <http://www.teamusa.org/Footer/Legal/Anti-Doping>

WADA: <https://www.wada-ama.org/en/resources/world-anti-doping-program/world-anti-doping-code>

USADA: <http://www.usada.org/resources/publications-and-policies/>

## REGULATION 21

### FORMAL GRIEVANCES AND DISCIPLINARY PROCEEDINGS

- A. Matters Governed by this Regulation:** This regulation governs Grievance and Disciplinary Matter proceedings, and hearings for any athlete, coach, trainer, manager, administrator, or official who alleges that he or she has been denied an opportunity to participate in an Athletics competition. It does not govern doping offense hearings, which are governed by Regulation 20, or Safe Sport matters, which are governed under USATF's Safe Sport Handbook (and do not require a filing fee to initiate a claim). In any controversy involving its recognition as a national governing body, as provided in the Sports Act, or in any controversy involving the opportunity of any athlete, coach, trainer, manager, administrator, or official to participate in Athletics competition, as provided for in the construction and bylaws of the USOPC, USATF agrees to submit to binding arbitration conducted under the commercial rules of the arbitration organization currently utilized by the USOPC.
1. **Grievances:** Grievances include disputes between parties regarding matters governed by USATF.
  2. **Disciplinary Matters:** Disciplinary Matters include disciplinary actions brought by USATF under its disciplinary authority in Article 14-A, and disciplinary actions brought by USATF on behalf of an Association under Article 14-B.
- B. USATF Hearing Panels:** Panels of the National Athletics Board of Review (NABR) shall conduct hearings and appeals heard by USATF.
1. **Panel Members:** The NABR panel shall consist of three (3) disinterested, impartial, and unbiased members: a chair, an at-large member, and an Actively Engaged Athlete member (or a Ten Year Athlete when such complaint involves the Olympic, Paralympic, Pan American, Parapan American, or Youth Olympic Games). There shall also be first and second alternates. Additional alternates may be appointed. If a member is disqualified or declines to serve, an alternate for the member shall substitute for the member. If an insufficient number of NABR members and alternates are available for a hearing, the panel shall be filled with emergency special appointments. The special appointments shall end when the hearing concludes. All panels shall include at least one Active Athlete.
  2. **Appointments and Terms:** Appointments and emergency special appointments shall be made jointly by the Law and Legislation Committee and Athletes' Commission, and approved by the President. Panel members shall serve four (4) - year terms that commence on January 1 of the year following the originally scheduled Summer Olympic Games.
  3. **Removal of an NABR member:** An NABR arbitrator's term may be terminated for good cause by majority vote of the Law and Legislation and Athlete's Commission chairs and the President. Good cause may include, but is not limited to, the following:
    - a. **Dilatory practices:** An NABR arbitrator who causes or permits unjustified delays in the hearing process;
    - b. **Failure to follow procedures:** An NABR arbitrator who disregards the hearing procedures in USATF's Rules, Bylaws, or Regulations; or
    - c. **Failure to apply rules:** An NABR arbitrator who fails to apply USATF and WA Rules.
- C. NABR Proceedings:** The NABR shall conduct all proceedings related to:
1. Disciplinary Complaints filed or prosecuted by USATF;
  2. Persons from more than one Association;
  3. Matters arising out of or resulting from national or international Athletics competitions;
  4. Violations of WA Rules or USOPC bylaws, other than doping violations;
  5. Conduct prohibited by the Sports Act;
  6. Hearings for any athlete, coach, trainer, manager, administrator, or official who alleges that he or she has been denied an opportunity to participate in an Athletics competition;
  7. Other hearings specified in the Bylaws and Operating Regulations; and
  8. All other Grievance and Disciplinary Matters not reserved to individual Associations.
- D. Association Proceedings:** Associations shall conduct disciplinary and formal grievance proceedings for matters not specifically referred to the NABR that arise wholly within the particular Association's boundaries, and for which the disciplinary measures or relief sought shall apply only within the Association's boundaries.
- E. Parties to Proceedings:**
1. **Disciplinary Matters:** USATF may bring Disciplinary proceedings on its own initiative or at an Association's request against any member, delegate, athlete, coach, manager, official, trainer, member of any committee, or any other person or entity participating in Athletics.

2. **Grievances:** *Grievance Complaints may be filed only by and against individuals or entities that were, at the time that the conduct complained of occurred, and at the time the Complaint is filed, members, directors, or officers of USATF or otherwise subject to USATF's jurisdiction. A non-member, former director, or former officer of USATF shall be subject to USATF's jurisdiction to defend against a Grievance Complaint for an incident that occurred while he or she was a member, a director, or officer of USATF or otherwise subject to USATF's jurisdiction. A Grievance Complaint may only be filed by a person or entity affected by the issues raised in the complaint. All individuals subject to a grievance will be provided with fair notice and an opportunity for a hearing prior to deciding the matter or imposing any penalty.*
  3. **USATF representative:** *The CEO may assign a person or persons to represent USATF's interests in any proceeding. The representative may, on USATF's behalf:*
    - a. **Relevant information:** *Gather relevant facts and information;*
    - b. **USATF evidence:** *Present evidence at a hearing; and*
    - c. **Challenge evidence:** *Challenge, by cross-examination and other appropriate means, evidence presented by any party at a hearing.*
- F. **The Complaint:** *All Disciplinary Matters and Grievance Proceedings shall commence when a party files a complaint (which a USATF Grievance Filing Form is available at the USATF.org website).*
1. **Allegations:** *The complaint must state the full name and identifying membership information of the complainant. The complaint must allege the grounds of violations or noncompliance (i.e. that a party has violated USATF's Bylaws or Operating Regulations, USATF policies, USOPC bylaws, or the Sports Act; has violated the WA eligibility rules; or has engaged in conduct detrimental to the best interests of Athletics or USATF). The complaint must allege clearly the nature of the dispute and, where appropriate, the USATF Rule, USOPC bylaw, WA Rule, Sports Act provision, or USATF policy allegedly violated. The complaint shall separately state factual allegations in concise, numbered paragraphs. The complaint must state the relief sought from the respondent. The complainant shall have the ability to attach supporting documentation to support the allegation(s) in the complaint. The complaint must be signed, sworn to, and notarized.*
  2. **Filing:** *Complaints shall be filed with National Office Management and the USATF Secretary. National Office Management shall forward a copy of each complaint to the President and to each party charged in the complaint. The filing fee for all complaints, other than those filed by USATF, shall be \$250, paid by certified check or money order to USA Track & Field, Inc.*
  3. **Improperly Filed Complaints:** *National Office Management shall return complaints failing to properly state allegations, or submitted without the filing fee with instructions explaining the deficiency. A party may file an amended complaint within thirty (30) days after the original complaint is returned. The amended complaint shall be deemed filed on the filing date of the original complaint. If a party does not timely file an amended complaint, the complaint shall be deemed abandoned.*
  4. **Time limit:** *Complaints must be filed within one (1) year from the time the complaining party knew or should have known of the act giving rise to the complaint.*
  5. **Retaliation:** *USATF prohibits any adverse or discriminatory action, or the threat of an adverse or discriminatory action, including removal from a training facility, reduced coaching or training, reduced meals or housing, and removal from competition, carried out against a protected individual, including, but not limited to, the complainant, any witness, or any other protected party, as a result of any communication, including the filing of a formal complaint, by the protected individual or a parent or legal guardian of the protected individual relating to the allegation of physical abuse, sexual harassment, or emotional abuse – with (A) the U.S. Center for SafeSport; (B) a coach, trainer, manager, administrator, or official associated with USATF; (C) the Attorney General; (D) a Federal or State law enforcement authority; (E) the Equal Employment Opportunity Commission; or (F) Congress, pursuant to the Ted Stevens Olympic and Amateur Sports Act Section 220501(b)(11). Further, no employee, contractor, agent, volunteer, or member of USATF shall take or threaten to take any action against any athlete as a reprisal for disclosing information to or seeking assistance from the Office of the Athlete Ombuds as outlined in Section 220509(b)(5).*
- G. **Mediation:** *National Office Management shall, after serving the complaint on all interested parties, within fourteen (14) days of receiving such complaint, appoint a certified mediator to conduct settlement discussions. All parties shall participate in mediation in good faith. All mediation communications shall be confidential and inadmissible in any subsequent proceeding. The mediator shall inform National Office Management of a settlement agreement, or if the parties do not settle.*
- H. **Answer:** *If the parties do not settle in mediation, National Office Management shall send notice of non-settlement to all parties. The persons or entities named in a complaint (respondents) must submit a written answer to the*



complaint to National Office Management within thirty (30) days after the non-settlement notice is sent. National Office Management shall forward a copy of the answer to the party filing the complaint.

- I. **Designation of Hearing Panel:** National Office Management shall designate an unbiased, disinterested, and impartial NABR hearing panel after sending a non-settlement notice.
  1. **Related Matters:** National Office Management, after consulting with the USATF General Counsel, may randomly select a single NABR panel to hear related matters.
  2. **Association Matters:** If an Association is a party, or the matter affects the Association's rights or duties, National Office Management shall select an NABR panel.
  3. **Replacement of Hearing Panel:** National Office Management may replace an NABR panel that fails to conduct a timely hearing, is not disinterested or impartial, or that is unable to perform its duties.
- J. **Delay prevention:** National Office Management shall track hearing matters to prevent undue delay. The NABR panel chair shall inform National Office Management about the proceeding's scheduled dates and deadlines, and any postponements.
- K. **Information to parties and panel:** National Office Management shall promptly distribute the following documents and information to the NABR panel and all interested parties to allow a reasonable time for each time to properly review and prepare its position on the matter:
  1. **Pleadings:** A copy of the complaint, answer, and other documents giving rise to the proceeding;
  2. **Contacts:** The names of the hearing panel members and the panel chair's address and telephone number;
  3. **Regulation 21:** A copy of the text of this and any other relevant USATF rule or regulation; and
  4. **Evidence:** Any materials provided by a party to substantiate such party's claims or defenses; otherwise, the NABR Panel shall set forth an appropriate schedule for the parties to share such information;
  5. **Witnesses:** The identity of any witnesses that will appear at the hearing, if applicable and available; otherwise, the NABR Panel shall set forth an appropriate schedule for the parties to share such information;
  6. **Other relevant documents:** Copies of any specifically identified document related to the matter; and
  7. **Conflict of interest disclosures:** Conflict of interest disclosure forms completed by each of the selected NABR Panel members.

All communications between the parties may be delivered via email or sent to the National Office via mail, in which case the National Office will distribute said materials as necessary.
- L. **Challenge to panel member:** Any party to a hearing or an appeal, a USATF representative appointed by the CEO, or any NABR panel member may, prior to the hearing and within fourteen (14) days after receiving the list of proposed arbitrators, challenge the seating of any panel member, on the ground that the panel member may not be impartial. The unchallenged panel members shall promptly rule on the challenge, prior to the hearing. A party who fails to bring a timely challenge against an NABR arbitrator waives the challenge.
- M. **Hearing procedures:** The following procedures apply to disciplinary, grievance, and other NABR hearings:
  1. **Initial Review:** The hearing panel shall promptly review all information submitted to it by National Office Management. The panel may dismiss a Grievance or Disciplinary Complaint upon its own or any party's motion for the following reasons:
    - a. **Late filing:** The complaint was filed after the limitations period ran;
    - b. **Inadequate content:** The complaint fails to meet the pleading requirements in this regulation;
    - c. **Lack of jurisdiction:** USATF or the NABR does not have jurisdiction over the matter;
    - d. **No remedy:** The complaint states a claim that USATF does not have the authority or ability to remedy; or
    - e. **Lack of standing:** The complaining party does not have standing.
  2. **Scheduling:** The NABR panel chair shall consult with all interested parties and the USATF Representative, if any, during a pre-hearing conference to discuss scheduling and procedural matters. An opportunity for a hearing shall be provided to the parties within ninety (90) days following the last filing with USATF. The chair shall, within five (5) business days after the time to challenge arbitrators expires, set a hearing to start within thirty (30) days of the pre-hearing conference.
  3. **Postponements:** The NABR panel may postpone the hearing date beyond the thirty (30) day period only upon a showing that a substantial injustice would otherwise occur.
  4. **Unjustified Delay:** If an interested party unjustifiably delays a proceeding, the NABR panel may, on its own or any party's motion, dismiss the proceeding or rule against the party causing the delay.



5. **Failure to Answer or Appear:** If a party fails to file an answer or appear at the hearing, the NABR panel may find the absent party in default and rule in favor of the parties present. The party failing to answer or to appear waives all further hearing rights and the right to appeal.
  6. **Venue for USATF proceedings:** Hearings shall be held by telephone conference call unless good cause is shown to the President and CEO that holding an in-person hearing is in the best interests of Athletics. A request for an in-person hearing shall include a statement identifying the material issues of fact or questions of credibility that the hearing panel should resolve in person. The in-person hearing request must be submitted to the President and CEO within five (5) business days after the pre-hearing conference. A party failing to submit a timely in-person hearing request waives the right to request an in-person hearing. In-person hearings shall take place within the boundaries of the Association in which the respondent resides or has its headquarters. The CEO, after consulting the USATF General Counsel, may move the hearing to a venue outside the respondent's Association. If the CEO changes the venue, USATF shall pay the reasonable travel, lodging, and food expenses for the persons or entities inconvenienced by the change.
  7. **Venue for Association proceedings:** All NABR proceedings that relate to an Association shall be held by telephone conference call.
  8. **Hearings in English:** All hearings under this regulation shall be held in English. All documents filed and exchanged by the parties shall be in English. An original document in a foreign language must be submitted along with an English translation. The party submitting the document shall bear the cost of obtaining its translation by a reputable translator or translation service. If a party challenges a translation's accuracy, the panel may direct USATF to order an impartial translation. The panel shall allocate the cost among the parties as it deems just.
  9. **Closed hearing:** Hearings shall be closed to the public. Witnesses shall attend hearings only while testifying.
  10. **Evidentiary rules:** The rules of evidence generally accepted in administrative proceedings shall apply to the hearing. The formal rules of evidence shall not apply.
  11. **Burden of proof:** The burden of proof is upon the complainant to prove by a preponderance of the evidence that conduct complained of occurred.
  12. **Hearing record:** Hearing records shall be made as follows:
    - a. **USATF proceedings:** National Office Management shall arrange for NABR hearings to be transcribed. National Office Management shall retain these transcripts, keep them confidential, and provide copies to appellate panels when needed. The parties may obtain transcript copies at their own expense.
    - b. **Association proceedings:** An official transcript or recording is highly recommended for hearings conducted by an Association. Any party to the proceedings may retain a court reporter or other competent individual to provide a transcript or recording of the hearing at that party's own expense. All parties shall be permitted to obtain a copy of the official record at their own expense.
  13. **Confidentiality.** All proceedings and documents related to proceedings under this Regulation shall be confidential unless all parties waive confidentiality in writing.
- N. Expedited hearing procedures:** If a matter governed by this Regulation affects the rights of any eligible athlete, coach, trainer, manager, administrator, or official who is to take part in a protected competition, as defined in the USOPC Bylaws, the hearing shall take place at a time and in a manner that will enable the individual to participate in the competition, should he or she prevail. If following this Regulation's timeline would preclude a prevailing party from participating in a protected competition, USATF shall, upon request by the party affected, notice and conduct an expedited hearing. In the alternative, any eligible athlete, coach, trainer, manager, administrator, or official may pursue the matter through the USOPC Bylaws. In either event, both such decisions shall be final with no right to appeal. The expedited hearing process shall not be available to parties contesting adverse findings for doping offenses. This Regulation's procedures shall apply to expedited hearings, with the following modifications:
1. **Appointment of NABR panel:** The CEO, or his or her designee, shall select an NABR panel within forty-eight (48) hours of the request for the expedited hearing. The CEO shall appoint the panel chair.
  2. **Hearing Date:** After consulting with all interested parties and the USATF representative, if any, the hearing panel shall schedule a hearing at the earliest convenient date and time for all interested parties, prior to the scheduled competition or the competition entry deadline. The NABR panel shall exercise best efforts to schedule the hearing no later than 48 hours before the scheduled competition.
  3. **Panel Inaction:** If a panel fails to act in timely manner, the CEO may dismiss all or part of the panel and select replacements.
  4. **Venue:** All expedited hearings shall be held by telephone conference call, unless the NABR arbitrators and all parties are scheduled to be in the same location at the time of the hearing.
  5. **NABR decision:** The NABR panel shall render a decision within three (3) hours after the expedited hearing concludes. The panel shall render a written opinion within ten (10) days after the hearing concludes.

**O. NABR decisions and opinions:** NABR panel decisions shall be consistent with USATF and WA Rules and Regulations and the Sports Act. NABR panels shall render decisions and opinions in hearings and appellate proceedings as follows:

1. **Form of decision and opinion:** NABR decisions shall state in one or two brief sentences which party the NABR arbitrators have ruled in favor of. The opinion of the NABR panel shall state the following:
  - a. **Issue:** The questions the NABR panel was asked to decide;
  - b. **Arguments:** A brief summary of the arguments made by each party;
  - c. **Findings of fact:** The findings of fact upon which the panel based its decision;
  - d. **Citations:** A citation to the applicable WA, USATF, Sports Act, or other applicable rule, bylaw, minutes, report, guideline, or other documents upon which the NABR panel based its decision;
  - e. **Action taken:** An order specifying the discipline imposed or other action taken; and
  - f. **Stay provision:** Whether the order shall be stayed if appealed.
2. **Time for decision:** An NABR panel shall issue its decision within fifteen (15) days after the hearing concludes. The panel shall render a written opinion no later than thirty (30) days after the hearing concludes, or after the submission of any post-hearing documentation to the panel. National Office Management shall promptly forward NABR decisions and opinions to all interested parties, which such time shall not exceed fourteen (14) business days for the respondent.
3. **Budgetary Impact:** If implementing any NABR panel decision and opinion would have a significant budgetary impact on USATF, the CEO and the Budget Committee shall review it and report their findings to the Board within thirty (30) days after the opinion is issued. In these circumstances, the decision and opinion shall not become final and binding unless and until approved by the Board. The Board shall determine to what extent any NABR decision and opinion having a significant budgetary impact on USATF may be prudently implemented, and may remand the matter back to the NABR panel for modification based on budgetary directives.
4. **Effective date of decision:** NABR panel decisions shall be effective on the date rendered, unless otherwise stated in the decision or opinion, referred to the Board for budgetary impact, or stayed.

**P. NABR panel actions:** NABR panel actions shall be administered as follows:

1. **Disciplinary measures:** NABR panels may grant relief or order disciplinary measures:
  - a. **Expulsion:** Expulsion from Athletics and/or USATF membership;
  - b. **Suspension:** Suspension for a definite time period from Athletics and/or USATF membership;
  - c. **Restriction on participation:** An order that a person or organization is ineligible to participate in specified USATF activities for a stated period of time;
  - d. **Restitution:** Reimbursement or payment of the prevailing party's documented costs or expenses directly related to the disputed issues. Hearing filing fees may be charged to the losing party. Each party shall bear its own attorney's fees;
  - e. **Censure:** Censure by USATF;
  - f. **Admonishment:** Admonishment by USATF; and/or
  - g. **Specific relief:** An order requiring a party to take specific action or cease taking specific action, as the facts and circumstances dictate.
2. **Notice of orders:** USATF shall give notice of disciplinary measures as follows:
  - a. **Notice of penalty:** National Office Management shall notify the individual or entity of the penalties imposed against him, her, or it by overnight mail to the last address of record contained in USATF's membership database or to an alternate address subsequently provided in writing to USATF by the person or entity being disciplined. The notice of penalties may also be sent by facsimile.
  - b. **Association and Board notice:** National Office Management shall notify the Board and the Associations concerned of the penalty imposed.
  - c. **Association suspensions:** National Office Management shall post current Association suspensions and expulsions on USATF's website.
  - d. **Association disciplinary notice:** Associations shall forward copies of their hearing panels' decisions and opinions to National Office Management. If an Association's disciplinary penalty has been upheld under this Regulation, National Office Management shall, upon the Association's request, notify the Board, all Associations, and the appropriate Association and national committee chairs of the penalty. USATF may satisfy this requirement by notifying the Board and posting the penalty on its website.
3. **Enforcement of orders:** The NABR panel may, upon its own motion or the motion of a party, make a finding that a party to a hearing has failed to obey the panel's interim order or final decision. The panel shall give reasonable written notice and an opportunity for a hearing before the panel before making such a finding. If the panel finds that a party has disobeyed its decision, the panel shall impose a sanction on the offending party of not less than Two Hundred Fifty U.S. Dollars (\$250), nor more than One Thousand U.S. Dollars (\$1,000), payable to the other party, and may impose additional disciplinary measures authorized by this Regulation

against the disobeying party. The panel shall issue a decision and opinion under this Regulation, which shall include its rationale, and the penalties imposed. A finding that a party has disobeyed a panel's order may be appealed under this Regulation. All monetary sanctions shall be paid within thirty (30) days of the decision and opinion, or within thirty (30) days after all appellate remedies are exhausted, if the finding is appealed and affirmed. If a party fails to pay a monetary sanction within 30 days after exhausting all appeals, the NABR panel that imposed the sanction may request that the Board suspend the party from USATF, until the party pays the sanction.

**Q. Stays of enforcement:** A stay of enforcement of an NABR or Association decision may be issued under the following circumstances:

1. **Applicability of stays:** USATF may stay the enforcement of any decision, upon written application and a showing of good cause. A showing of good cause means that there is a strong likelihood that (a) the party appealing a decision will succeed in the appeal, and (b) the party appealing clearly would suffer irreparable harm unless enforcement is stayed pending the appeal.
2. **Procedures for a stay:** All applications for stays of enforcement shall take place as follows:
  - a. **Time frame:** If an NABR panel has not ordered a stay pending appeal as part of its decision, a party may apply for a stay within thirty (30) days after a final Association decision, NABR panel decision, or Committee decision, is rendered.
  - b. **Application:** The application for a stay shall be in writing and submitted to the CEO.
  - c. **Appeal requirement:** A notice of appeal under this Regulation must accompany the stay application. National Office Management shall return any stay application filed without a notice of appeal, with instructions explaining the deficiency. A returned application for a stay of enforcement may be re-filed, with a notice of appeal, within fifteen (15) days of the initial filing. If the stay application is not re-filed on time, it shall be deemed abandoned, the decision of the NABR Association shall have full force and effect, and the stay application may not be refilled.
  - d. **Panel hearing stay request:** The Appeals Panel appointed under this Regulation shall decide whether the stay will be granted. The Appeals Panel's decision granting or denying the stay shall be final.

**R. Appeals:** NABR panel decisions and Association hearing decisions may be appealed as follows:

1. **Parties to Appeals:** Any party adversely affected by an NABR panel or Association hearing decision may appeal it.
2. **USATF appeal of NABR and Association Decisions:** Upon their own initiative, the Board, after consulting with the USATF Counsel to the Board, and the CEO, after consulting with the USATF General Counsel, may initiate stay and appeal proceedings of any NABR or Association decision and opinion that in their opinion clearly contravenes:
  - a. **Federal law:** The Sports Act or any other federal law;
  - b. **USATF Rules and Regulations:** USATF Bylaws, Operating Regulations, and/or Rules;
  - c. **USOPC Bylaws:** USOPC Bylaws;
  - d. **WA Rules and Regulations:** WA Rules and Regulations; or
  - e. **Other laws:** Any other applicable law.
3. **Notice of appeals:** A party shall commence an appeal with a written Notice of Appeal. The appellant (the party filing the appeal) must sign the Notice. The Notice must be postmarked within thirty (30) days of the rendering of the final decision (see exhibits section of this handbook). The notice of appeal from an NABR decision shall be sent to the CEO and the USATF Secretary. The notice of appeal from an Association hearing decision shall be sent to the CEO, the USATF Secretary, the Association President, and the Association Secretary.
4. **Filing fee:** The notice of appeal shall be accompanied by a Two Hundred and Fifty Dollar (\$250) filing fee paid by cashier's check or money order to USA Track & Field, Inc.
5. **Appointment of appeals panel:** USATF shall appoint a panel of unbiased, disinterested, and impartial arbitrators to hear appeals as follows:
  - a. **Appeal of Association decision:** The CEO shall appoint an NABR appeals panel within thirty (30) days of receiving the notice of appeal; or
  - b. **Appeal of NABR decision:** Within thirty (30) days of receiving the notice of appeal from an NABR decision, the Law and Legislation Committee chair shall select three (3) committee members, including at least one (1) Actively Engaged Athlete member (or a Ten Year Athlete when such complaint involves the Olympic, Paralympic, Pan American, Parapan American, or Youth Olympic Games), to hear the appeal.
6. **Panel chairperson:** The appeals panel shall select a chair within five (5) days of appointment to hear the appeal. The CEO shall select the chair if the panel fails to do so.



7. **Appeals panel replacement:** The CEO or Law and Legislation Committee Chair, as appropriate may dismiss and replace one or more members of an appeals panel who cause or permit unjustified delays in the appeals process or who disregards USATF Rules, Bylaws, or Regulations.
8. **Information to parties and panel:** National Office Management shall send a copy of the notice of appeal and any supporting documents to all parties and the appeals panel.
9. **Appellate procedures:** The following procedures shall apply to appeals:
  - a. **Date:** The appeals panel chairperson shall establish a hearing date within ten (10) days of appointment, after consulting with the parties and the other panel members. The hearing shall be scheduled to start within thirty (30) days following the appointment of the panel chair. The appeals panel chairperson may grant a reasonable postponement request, not to exceed thirty (30) days, if she or he determines that neither party will be prejudiced.
  - b. **Venue:** All hearings shall be conducted by telephone conference call.
  - c. **Burden of proof:** The burden of proof is upon the appellant to prove that the decision being appealed was clearly erroneous.
  - d. **Presentation of appeal:** The appeal shall, at the option of the panel chair, be made by written presentation and/or oral presentation before the appeals panel, with each party presenting its reasons why the decision appealed from is correct or incorrect.
  - e. **Failure to prosecute appeal:** If the appellant fails to appear at the hearing, the appeal shall be deemed abandoned and shall be dismissed. If the appellee fails to respond to the notice of appeal or to appear at the hearing, the panel may find the appellee in default, and rule in favor of the appellant.
  - f. **Evidentiary limitations:** No new evidence may be presented to the appeals panel unless circumstances have changed, or new facts have been discovered that were unavailable at the time of hearing. If the panel accepts new evidence, all parties involved in the appeal must be given notice and adequate time to respond to the changed circumstances or previously undiscovered or unavailable facts.
  - g. **Appeals panel decisions:** An NABR appeals panel shall render a decision within fifteen (15) days after the appellate hearing concludes. The NABR appeals panel shall render a written opinion and recommendation no later than thirty (30) days after the hearing concludes, or the submission of any post-hearing documentation to the panel. The opinion and recommendation shall be forwarded to the Board for appropriate action.
  - h. **Costs:** The appeals panel may award the costs of appeal, including filing fees, but not including attorney's fees, to the prevailing party.
- S. **Vexatious proceedings:** An NABR panel may, upon its own motion or the motion of a party, make a finding that a grievance or other proceeding: (1) is devoid of merit; and (2) was brought by an individual or entity solely to harass or cause expense to another individual or entity. The panel shall give reasonable written notice and an opportunity for a hearing before the panel prior to making such a finding. If the panel finds that a party has initiated such a meritless and harassing grievance or proceeding, it shall order the offending party to pay the other party a penalty fee of not less than Two Hundred Fifty U.S. Dollars (US\$250) nor more than One Thousand U.S. Dollars (US\$1,000), plus the affected party's reasonable costs in defending the grievance or proceeding, including reasonable attorney's fees. The panel shall issue a decision and opinion under this Regulation, which shall include its rationale and the penalties imposed. A finding of a vexatious grievance or proceeding may be appealed under this Regulation.
  1. **Payments:** All monetary penalties and costs shall be paid within thirty (30) days following the notice of ruling, or within thirty (30) days after all appellate remedies are exhausted, if the finding is appealed and affirmed.
  2. **Non-payment of penalty fee:** If a party fails to pay a monetary penalty within thirty (30) days after exhausting all appeals, the NABR panel that imposed the penalty may request that the Board suspend the party from USATF, until the party pays the penalty.
- T. **Emergency Actions:** The CEO may order that a member, a committee, or any other individual or entity under USATF's jurisdiction take actions or cease taking actions necessary to ensure public safety, to protect athletes or other members from the risk of harm, or to protect the material commercial interests of USATF. The CEO may act under this paragraph without first consulting the Board only under extraordinary, time-sensitive circumstances, and shall consult with the President, Board Chair, and other appropriate individuals in connection with the action as soon as practicable. If the CEO provisionally suspends a member under this paragraph, the aggrieved member shall be entitled to a hearing before the Board at which the Board shall decide whether the provisional suspension shall be upheld, dissolved, or whether other emergency action instead of a suspension shall be taken. The aggrieved party must request the hearing in writing to the National Office within five (5) days after the provisional suspension is imposed. The hearing shall take place as soon as is practicable, but no later than twenty-one (21) days after it is requested, unless extenuating circumstances prevent the Board from hearing the matter within that time frame, in which case, the Board shall make all reasonable efforts to immediately have the hearing as soon as

*practicable. The hearing shall not be a full hearing on the merits and shall be limited to determining whether there exists reasonable cause to impose a provisional suspension, whether the provisional suspension should be dissolved, or whether other emergency measures in lieu of a provisional suspension are appropriate. The Board shall, within seventy-two (72) hours after the hearing, issue a decision upholding, modifying, or setting aside the provisional suspension. The matter shall then be referred to an NABR panel for a de novo hearing under the timeline and procedures in this regulation. Nothing in this regulation shall be construed to abridge or modify the procedural or substantive rights of any party under the Ted Stevens Olympic and Amateur Sports Act.*

- U. Matters Eligible For Arbitration:** Any matters brought under Regulation 21-C-1, any matters that involve USATF or the USATF Board as a party, or any matters involving a Safe Sport violation shall be eligible, after mediation, to be referred to the arbitration organization currently utilized by the USOPC under its commercial rules for binding arbitration before a single arbitrator instead of an NABR panel.
1. Should USATF elect to refer the matter to arbitration, and the other party agrees, then USATF shall pay the costs of arbitration, and any such arbitration hearing shall not exceed two (2) business days, where the parties shall split the hearing time evenly for all purposes inclusive of presentation of witnesses, cross examination of witnesses, opening statements, and closing arguments. If the parties agree that the hearing shall exceed two (2) days, then the parties shall agree on any additional costs that would arise beyond a two (2) day hearing.
  2. Should a party (other than USATF) elect to refer the matter to arbitration, then the parties shall evenly split the costs of any such arbitration.
  3. The arbitrator in any such matter shall be selected by mutual agreement of the parties, or if the parties cannot agree on a single arbitrator, then the USOPC utilized arbitration organization shall select the arbitrator. This provision shall also govern the selection of any arbitrator appointed to decide any appeal of the original arbitrator's decision. The arbitration proceedings shall comply in all material respects with, and otherwise be governed by, the provisions of this Regulation 21.
  4. If the matter is heard pursuant to this Regulation 21-U, then the dispute, and any appeal that may arise, shall also be governed by this Regulation 21-U.
  5. All parties to these Regulation 21-U proceedings shall bear their own attorneys' fees and costs unless the arbitrator makes a specific finding that a party brought an action solely to harass or cause expense to the other party, in which case reasonable attorneys' fees and costs may be awarded.
  6. Nothing in this Regulation 21-U shall abridge a party's right to pursue any remedies available under Section 9 of the USOPC Bylaws. Accordingly, USATF will submit to binding arbitration in any controversy involving the opportunity of any amateur athlete, coach, trainer, manager, administrator, or official to participate in amateur athletic competition upon the demand of the USOPC or any aggrieved amateur athlete, coach, trainer, manager, administrator, or official using an established major national provider of arbitration and mediation services based in the U.S. and designated by the USOPC with the concurrence of the USOPC AAC and the National Governing Bodies' Council, as required by 220522(4)(B) of the Ted Stevens Olympic and Amateur Sports Act.
- V. Office of the Athlete Ombuds:** Athletes involved in the grievance process may contact the Office of the Athlete Ombuds at [ombuds@usaathlete.org](mailto:ombuds@usaathlete.org) or 719-866-5000 to assist with any questions, disputes, complaints, and concerns.

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**REGULATION 22  
REINSTATEMENT**

- A. Scope:** *This regulation governs reinstatements of any athlete declared ineligible by an NABR panel or Association, or any person or entity otherwise declared ineligible, suspended, or expelled by USATF or the USOPC. It does not govern reinstatements for doping-offense penalties, which are governed by Regulation 20.*
- B. Reinstatement requests:** *A person or organization suspended, expelled, or declared ineligible to participate may, at any time, make a reinstatement request, provided all USATF appeals have been exhausted or waived. If a reinstatement request is denied, a subsequent request may only be made one (1) year or more after the decision.*
- C. Automatic reinstatement:** *Any person or organization declared ineligible to participate in USATF or Athletics for a definite period, or suspended from USATF or Athletics for a definite period, shall be automatically reinstated upon written request after the period of ineligibility or suspension concludes, provided that any conditions or tasks required in the initial disciplinary decision have been fully complied with.*
- D. Procedures:**
- 1. Requests for reinstatements:** *Except for automatic reinstatements a request for reinstatement shall be made by written application filed with the CEO. The reinstatement request shall detail the reasons advanced for reinstatement.*
  - 2. Referral and review of reinstatement request:** *The CEO, after consulting with the General Counsel, shall refer all reinstatement applications to the NABR panel in the applicant's region (see Regulation 21-B) for a hearing. The CEO may assign a USATF representative to take part in the hearing under Regulation 21-E-3. The hearing shall be held by telephone conference call. The panel shall make its findings and recommendations within fifteen (15) days after the hearing.*
- E. Disposition of reinstatement request:** *The panel shall send its findings and recommendations to the CEO, who shall distribute copies to the Board for consideration. The Board shall consider the recommendation at or before its next regularly scheduled meeting, and may accept, deny, or modify the recommendation.*



## REGULATION 23 ATHLETICS SANCTIONS

Sanctions are issued, withheld, or withdrawn under Article 15 of the Bylaws and this Regulation. USATF shall only issue a sanction for event disciplines in Athletics that are under the jurisdiction of the WA and/or USATF. All defined terms in Article 15 shall apply to this Regulation.

- A. International sanctions:** Provided that USATF has not determined that granting a sanction will be detrimental to the sport, USATF shall promptly grant a sanction to an organization or person (i) seeking to hold an international athletics competition in the United States; or (ii) seeking to sponsor American athletes to compete in athletics competitions abroad, if:
1. **Fee:** It has paid USATF a sanctioning fee that is reasonable and nondiscriminatory;
  2. **Previous financial report:** It has submitted to USATF, upon request, an audited or notarized financial report of similar events, if any, conducted by it;
  3. **Eligibility:** It has established that appropriate measures have been taken to protect the eligibility status of athletes who will take part in the competition and to protect their eligibility to compete in international athletics competition;
  4. **Records:** It has established that appropriate provision has been made for validation of any records established during the competition;
  5. **WA rules:** It has established that due regard has been given to any WA requirements specifically applicable to the competition;
  6. **Officiating:** It has established that the competition will be conducted by qualified officials;
  7. **Medical:** It has established that proper medical supervision will be provided for athletes who will participate in the competition; and
  8. **Safety:** It has established that proper safety precautions have been taken to protect the personal welfare of the athletes and spectators at the competition.
- B. Domestic sanctions:** Provided that USATF has not determined that granting a sanction will be detrimental to the sport, USATF shall promptly grant a sanction to an organization or person (i) seeking to hold a domestic athletics competition in the United States if:
1. **Fee:** It has paid USATF a sanctioning fee that is reasonable and nondiscriminatory.
  2. **Records:** It has established that appropriate provision has been made for validation of any records established during the competition.
  3. **Officiating:** It has established that the competition will be conducted by qualified officials.
  4. **Medical:** It has established that proper medical supervision will be provided for athletes who will participate in the competition; and
  5. **Safety:** It has established that proper safety precautions have been taken to protect the personal welfare of the athletes and spectators at the competition.
- C. Sanction application process:** Sanction applications should be submitted thirty (30) days prior to the event. Additional fees and charges may be added for late applications. The application shall:
1. **Online form:** Be completed online at [www.usatf.org](http://www.usatf.org) by the event director;
  2. **Hold harmless clause:** Contain the following clause which shall also appear on all sanction application forms and on all forms upon which official sanctions are granted:  
 “In granting this sanction, it is understood and agreed that USA Track & Field and its Associations shall be held free and harmless by the applicant for any liabilities or claims from damages arising by reason of injuries of any kind to anyone during the conduct of, or otherwise in connection with, the competition/event;”  
**Note:** Consult a local attorney for variations on language necessitated by applicable state law.
  3. **Crank racing wheelchairs:** Contain in the section on “Sanction Instructions” the following language:  
 “The decision to allow persons with disabilities to compete using crank racing wheelchairs is at the sole discretion of the race organization and/or race director.”
  4. **Prizes:** Have printed on every sanction the following sentence:  
 “No future sanction shall be given to any organization which has failed to fulfill its obligation to athletes or to give prizes as stated on its entry forms.”
  5. **Prior sanctions:** Contain the following attestation and disclosure requirement:  
 “Applicant represents and warrants that she, he, or it has fully complied with all sanction application requirements for USATF-sanctioned competitions that she, he, or it has conducted within the preceding four-year period.”

**6. Americans with Disability Act:** Contain the following attestation:

“All USATF sanctioned events shall comply with the Americans with Disability Act and with USATF’s Policy and Procedures for the Evaluation of Requests for Accommodations under the Americans with Disabilities Act. See [www.usatf.org/governance/policies/usatf-policy-procedures-for-evaluation-of-requests](http://www.usatf.org/governance/policies/usatf-policy-procedures-for-evaluation-of-requests). Applicant represents and warrants that he, she, or it will fully comply with the applicable requirements of the Americans with Disabilities Act.”

If applicant cannot make these attestations and representations, he, she, or it shall fully disclose the circumstances surrounding the noncompliance. USATF reserves the right to deny a sanction to any individual or entity based upon prior non-compliance with sanction requirements and obligations.

**D. Sanction approval process:**

1. **International:** International sanctions shall be instituted by a formal application signed by USATF. A copy of each International sanction granted by USATF shall be forwarded, in a timely manner, to the appropriate Association.
2. **Domestic:** Applications for domestic sanctions shall be promptly reviewed (i) by the Association sanctioning agent, or (ii) by USATF. USATF, consistent with the Sports Act, shall grant or deny the sanction. If a single competition takes place in more than one Association (e.g. a road race), the Association sanctioning agent shall notify the neighboring Association. If an Association fails to act on a completed sanction application within ten (10) business days after it is submitted, USATF will make the final determination and process the sanction, unless the appropriate Association sanctioning agent has communicated a legitimate need to postpone timely processing of the sanction.

**E. Sanction award disclosure requirements:** Every organization or person granted a sanction for athletics competition shall ensure that the event entry form:

1. **Statement:** States that the event is sanctioned by USATF;
2. **Filing:** Is filed, at the request of the Association, with its appropriate Sport Committee or its designee prior to the competition;
3. **Awards:** Contains a statement listing all awards and prizes; and
4. **Anti-Doping clause:** For events receiving international sanctions, and for national championships, trials competition for selecting international teams (other than Masters), or when doping controls will be conducted, the form shall contain the following statement, unless it is published instead in related informational materials:

“Athletes who participate in this competition may be subject to formal drug testing under USA Track & Field rules and WA rules, and under USOPC, USADA or WA procedures. Athletes found, after a disciplinary hearing, to be positive for prohibited substances, as defined by the WADA Code and/or WA, or who refuse to be tested, will be disqualified from this event and may lose eligibility for future competitions. Any prize money payable to an athlete who has tested positive shall be withheld until the final disposition of all disciplinary proceedings. BEWARE: Some prescriptions, over-the-counter medications, and nutritional supplements may contain prohibited substances. Information regarding drugs and drug testing may be obtained by calling the USADA Reference Line at 800-233-0393, or at [www.usantidoping.org](http://www.usantidoping.org).”

**F. Sanction fees:**

1. **Association:** An Association fee may accompany all sanction applications. Each Association may establish its own fee structure; however, Association sanction fees may not exceed two-thirds (2/3) of the National Office sanction fee. Fees may vary based upon the number of entrants, services provided to the event by the Association, or other factors. Association fees shall be reviewed and approved by the National Office on an annual basis. If the National Office proposes any changes to an Association’s fee structure, the National Office and the Association will collaborate and discuss the issues and reasonable changes may be made by the National Office.
2. **National:** A national sanction fee shall accompany all sanction applications. Fees may vary based upon the number of entrants, services provided to the event by the National Office, or other factors.

**G. Prohibition of sanction transfer:** Sanctions may not be transferred between organizations and/or persons. Any transferred sanction shall be void for all purposes. Associations and National Office Management may deny further sanctions to any organization violating this provision.

- H. Post-event reporting requirement:** All organizations or persons receiving a sanction shall provide the following information to the Association processing its sanction or to USATF, as appropriate, within fifteen (15) days of the completion of the competition or within ten (10) days after a written request, whichever is later. The request may only be made within one (1) year after the conclusion of the event:
1. **Post Event Report:** The post event report shall be completed by the sanction holder within fifteen (15) days following the conclusion of the sanctioned event and submitted online through the events' access portal;
  2. **Payments:** If funds are paid to athletes, the athletes' names and addresses, and the amounts and explanations of the funds paid to each athlete;
  3. **Incident report:** If an injury has occurred to an athlete, official, volunteer, spectator or passerby, the sanction holder shall issue a detailed incident report to USATF, within five (5) days of the conclusion of the sanctioned event;
  4. **Results:** A file detailing results of the sanctioned competition shall be submitted online through the events' access portal within fifteen (15) days of the conclusion of the sanctioned event; and
  5. **Other:** Other information required by the CEO, President, or Board concerning the sanctioned event.
- I. Prizes:**
1. **Untested competitors:** An event director shall pay prize funds for all places not in dispute within thirty (30) days of the event, when athletes have not been subject to doping controls. This time requirement shall not apply to the payment of funds to athletes who have been subject to drug testing.
  2. **Tested competitors:** To preserve confidentiality, when athletes have been tested, all prize money shall be forwarded by the event director to USATF in a lump sum or in the form of cashier's check or money order. Within ten (10) business days, USATF shall forward all payments to athletes testing negative and shall hold in escrow the proceeds of all payments earned by athletes testing positive, until the final disposition of all disciplinary proceedings.
- J. Use of word "Olympic":** No sanction shall be granted for any event that uses in any manner the word "Olympic," (or any derivative) in connection with the event unless prior written consent is obtained from the USOPC through National Office Management.

## REGULATION 24

### COMMITMENTS AND CONDUCT OF ATHLETES AND STAFF

- A. Written agreement:** Individuals who qualify or are selected or elected to represent the United States in international competition shall enter into a written agreement (see example in Appendices) stating the obligations and expectations of their participation prior to the issuance of a travel authorization. The written agreement shall include the competition's date and place, the text of this Regulation, provisions to protect USATF's rights regarding national sponsors and national team uniforms, provisions about doping controls in effect for the competition, and the part of Regulation 21 explaining the hearing process. The staff member who is taking the individual's commitment is responsible for specifically referring to these Regulations.
- B. Failure to participate:** Any individual who, without reasonable cause, fails to participate in any competition for which he or she has signed an agreement to participate representing the United States shall be in breach of that commitment. This includes athletes in relay pools for appropriate events. Furthermore, should any individual fail for any reason to participate in such a competition, and fail adequately to notify the appropriate coach, manager, team leader, or National Office Management at least seventy-two (72) hours (if traveling with the team or delegation) or seven (7) days (if not so traveling) prior to the scheduled competition of his or her inability to participate, he or she shall be in breach of his or her commitment, unless he or she was precluded from timely communicating by extraordinary circumstances. In addition, should any athlete scheduled to travel with the team to the competition fail to appear for the scheduled departure without having notified the appropriate coach, manager, team leader, or National Office Management at least seventy-two (72) hours prior to departure, he or she shall be in breach of his or her commitment, unless he or she was precluded from timely communicating by extraordinary circumstances.
- C. Misconduct:** Any individual who acts in a manner detrimental to the best interest of Athletics or the USATF national team shall be subject to discipline as provided in this Regulation and/or Regulation 21. Acting in a manner detrimental to the best interests of Athletics or the USATF national team includes, but is not limited to:
1. **Attire:** Failing to wear appropriate national team attire, or use national team sponsor products that the athlete is required to use while a member of a national team;
  2. **Team functions:** Failing to attend events and functions designated as national team functions without a valid reason; or
  3. **Fitness:** Failing to maintain competitive fitness.
- D. Failure to abide by the written agreement:** All members of the team shall be bound by the written agreement for that event. Failure to abide by the agreement may result in the imposition of penalties set forth below.
- E. Penalties:** Hearings regarding alleged breaches of commitments shall be conducted under Regulation 21, including under the provisions for expedited hearings where there is a time constraint. Although the team leaders (including coaches, managers, medical personnel, or national staff) may recommend imposing a more severe penalty for the breaches above stated, the following minimum penalties shall be enforced:
1. **First offense:** The athlete or staff member shall receive a written reprimand and may be held liable for monetary penalties assessed to USATF. Should the athlete be receiving payments under USATF-sponsored financial aid programs, those payments shall be discontinued for a period of not more than twelve (12) months;
  2. **Second offense:** The athlete or staff member shall receive a written reprimand and may be held liable for monetary penalties assessed to USATF. The athlete shall not be eligible for USATF-sponsored financial aid programs for a period of twelve (12) months; and
  3. **Third offense:** The athlete or staff member shall immediately be suspended and rendered ineligible to participate in the national championships, be barred for a period of one (1) year from representing the United States as a member of any sanctioned international competition teams, and may be held liable for monetary penalties assessed to USATF.

**REGULATION 25**  
**AUTHORIZATION OF ATHLETE REPRESENTATIVES**

*USATF shall defer to WA as the entity solely responsible for licensing an Athletes' Representative (as defined in the WA's Athletes' Representatives Rules). Any members wishing to act as an Athletes' Representative shall comply with the Athletes' Representatives Rules set out by WA. The WA Rules and Regulations pertaining to acting as an Athletes' Representative are hereby incorporated by reference. If there is any conflict between the USATF Bylaws and Operating Regulations and the WA Athletes' Representatives Rules, the WA Athletes' Representatives Rules shall govern.*

*The WA's Athletes' Representatives Rules can be found at: <https://worldathletics.org/about-iaaf/documents/book-of-rules>.*



*2025*



***USATF***<sup>™</sup>

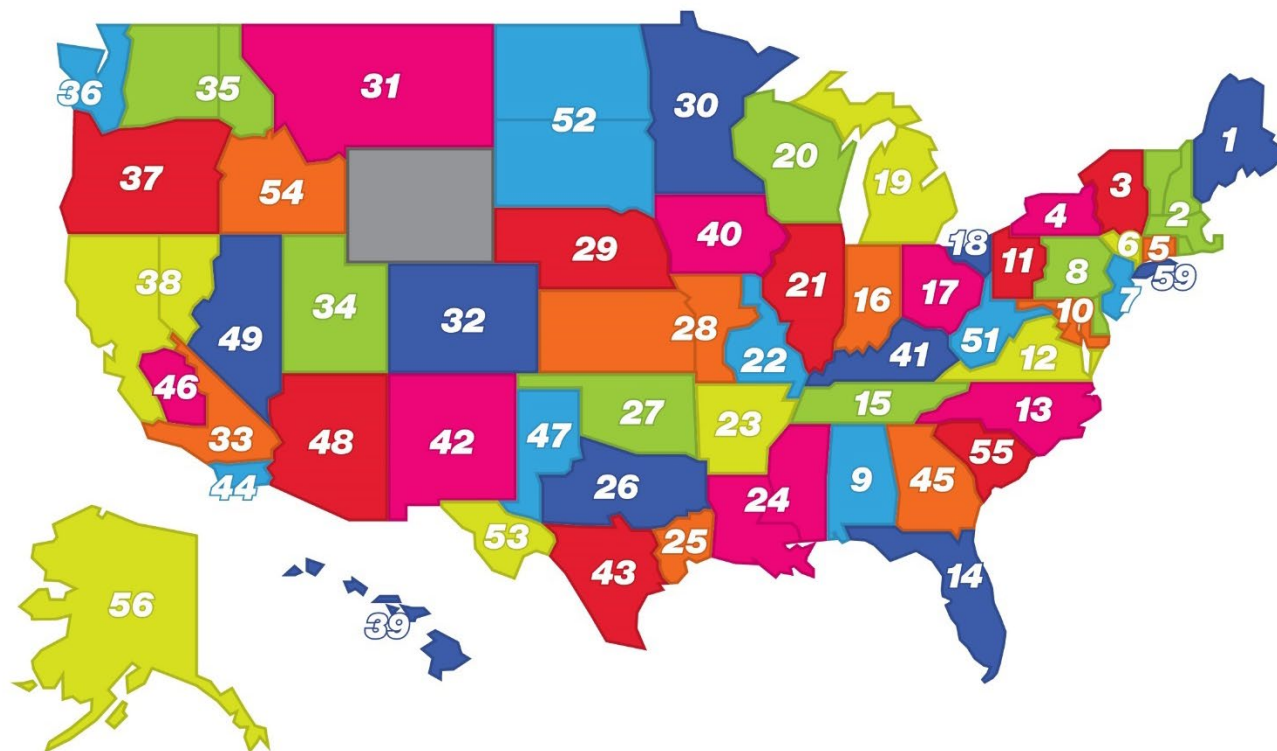
***EXHIBITS***





**EXHIBIT A**  
**ASSOCIATION DESCRIPTIONS**

**USATF Associations Map**



|    |                |    |                 |    |                     |    |                    |
|----|----------------|----|-----------------|----|---------------------|----|--------------------|
| 1  | Maine          | 16 | Indiana         | 31 | Montana             | 46 | Central California |
| 2  | New England    | 17 | Ohio            | 32 | Colorado            | 47 | West Texas         |
| 3  | Adirondack     | 18 | Lake Erie       | 33 | Southern California | 48 | Arizona            |
| 4  | Niagara        | 19 | Michigan        | 34 | Utah                | 49 | Nevada             |
| 5  | Connecticut    | 20 | Wisconsin       | 35 | Inland Northwest    | 51 | West Virginia      |
| 6  | New York       | 21 | Illinois        | 36 | Pacific Northwest   | 52 | Dakotas            |
| 7  | New Jersey     | 22 | Ozark           | 37 | Oregon              | 53 | Border             |
| 8  | Mid-Atlantic   | 23 | Arkansas        | 38 | Pacific             | 54 | Snake River        |
| 9  | Alabama        | 24 | Southern        | 39 | Hawaii              | 55 | South Carolina     |
| 10 | Potomac Valley | 25 | Gulf            | 40 | Iowa                | 56 | Alaska             |
| 11 | Three Rivers   | 26 | Southwestern    | 41 | Kentucky            | 59 | Long Island        |
| 12 | Virginia       | 27 | Oklahoma        | 42 | New Mexico          |    |                    |
| 13 | North Carolina | 28 | Missouri Valley | 43 | Texas Southern      |    |                    |
| 14 | Florida        | 29 | Nebraska        | 44 | San Diego-Imperial  |    |                    |
| 15 | Tennessee      | 30 | Minnesota       | 45 | Georgia             |    |                    |

Please note that some of the information in this exhibit may be out-of-date.

Check the on-line web directory for current information at <https://www.usatf.org/associations>.

**Descriptions of Association territories:**

**Adirondack** – State of New York east and north of Oswego, Onondaga, Cortland, Broome, Sullivan, Orange, and Dutchess counties.

**Border** – Counties of El Paso, Hudspeth, Culberson, Jeff Davis, Presidio, Brewster, Terrell, Pecos, and Reeves in the state of Texas.

**Central California** – Counties of Mariposa, Madera, Fresno, Kings, Tulare, Kern, and Merced in the state of California.

**Gulf** – The state of Texas bounded on the north and including the counties of Robertson, Leon, Houston, Angelina, Nacogdoches, and Shelby; on the east by the state of Louisiana; on the south by the Gulf of Mexico; and on the west by and including the counties of Matagorda, Wharton, Colorado, Austin, Washington, Brazos, and Robertson.

**Hawaii** – State of Hawaii, and U.S. territories Guam, American Samoa, and other Pacific islands.

**Illinois** – State of Illinois, excluding the counties of St. Clair, Calhoun, Greene, Jersey, Monroe, and Madison.

**Inland Northwest** – State of Washington east of and including counties of Okanogan, Chelan, Kittitas, Yakima, and Klickitat; and state of Idaho north of and including Idaho County.

**Lake Erie** – State of Ohio counties of Erie, Huron, Richland, Lorain, Ashland, Geauga, Cuyahoga, Lake, Medina, Summit, Wayne, Holmes, Stark, Tuscarawas, Harrison, Jefferson, Carroll, Columbiana, Mahoning, Portage, Trumbull, and Ashtabula.

**Long Island** – New York counties of Suffolk and Nassau.

**Mid-Atlantic** – State of Pennsylvania east of and including Potter, Clinton, Centre, Huntingdon, and Bedford counties and the state of Delaware.

**Missouri Valley** – State of Kansas; and state of Missouri west of and including the counties of Schuyler, Adair, Macon, Randolph, Audrain, Callaway, Cole, Moniteau, Morgan, Benton, Hickory, Polk, Greene, Christian, and Taney.

**Nevada** – Counties of Elko, Lander, Eureka, White Pine, Nye, Lincoln, Esmeralda, and Clark in the State of Nevada.

**New York** – State of New York south of and including Sullivan, Orange, and Dutchess counties, with the exception of Suffolk and Nassau Counties.

**Niagara** – State of New York west of and including counties of Oswego, Onondaga, Cortland, and Broome.

**Ohio** – State of Ohio excluding the twenty-two (22) counties of the Lake Erie Association.

**Ozark** – State of Missouri east of and including the counties of Scotland, Knox, Shelby, Monroe, Ralls, Pike, Montgomery, Osage, Miller, Camden, Dallas, Webster, Douglas, and Ozark; and the counties of St. Clair, Calhoun, Greene, Jersey, Monroe, and Madison in the state of Illinois.

**Pacific** – Counties of San Benito, Monterey, and San Luis Obispo in the state of California and counties north of and including Alpine, Tuolumne, Stanislaus, Santa Clara, and Santa Cruz in the state of California; and Nevada counties of Humboldt, Washoe, Pershing, Churchill, Storey, Lyon, Mineral, Douglas, and Carson City.

**Pacific Northwest** – State of Washington west of Okanogan, Chelan, Kittitas, Yakima, and Klickitat counties.

**Potomac Valley** – State of Maryland, District of Columbia, and counties of Arlington and Fairfax and cities of Alexandria and Falls Church in the state of Virginia.

**San Diego-Imperial** – San Diego and Imperial counties in the state of California.

**Snake River** – State of Idaho south of Idaho County.

**Southern California** – Counties of Inyo, Mono, Ventura, Santa Barbara, Los Angeles, Orange, San Bernadino, and Riverside in the state of California.

**Southwestern** – That portion of the state of Texas bounded on the south by and including the counties of Irion, Tom Green, Concho, McCulloch, San Saba, Mills, Hamilton, Coryell, Bell, Falls, Limestone, Freestone, Anderson, Cherokee, Rusk, and Panola; on the east by the state of Louisiana and the state of Arkansas; on the north by the state of Oklahoma; and on the west by and including the counties of Hardeman, Foard, Knox, Stonewall, Fisher, Scurry, Borden, Howard, Glasscock, and Reagan.

**Texas Southern** – That portion of the state of Texas bounded on the east by and including the counties of Milam, Burleson, Lee, Fayette, Lavaca, and Jackson; on the south by the Gulf of Mexico and the Republic of Mexico; on the west by and including the counties of Val Verde and Crockett; and on the north by the counties of Crockett, Schleicher, Menard, Mason, Llano, Burnet, Lampasas, and Williamson.

**Three Rivers** – State of Pennsylvania west of Potter, Clinton, Centre, Huntingdon, and Bedford counties; and shared jurisdiction of the counties of Marshall, Brooke, Ohio, and Hancock in the state of West Virginia.

**Virginia** – State of Virginia excluding the counties of Arlington and Fairfax and cities of Alexandria and Falls Church.

**West Texas** – That portion of the state of Texas bounded on the east by and including the counties of Lipscomb, Hemphill, Wheeler, Collingsworth, Childress, Cottle, King, Kent, Garza, Lynn, Dawson, Martin, Midland, and Upton; on the south by and including the counties of Upton, Crane, Ward, and Loving; on the west by the state of New Mexico; and on the north by the state of Oklahoma.

**West Virginia** – State of West Virginia.

**EXHIBIT B  
REGION DESCRIPTIONS**

**EXHIBIT B-1 – ASSOCIATION, CROSS COUNTRY AND MASTERS REGION DESCRIPTIONS**

| <b>Eastern</b> | <b>Southeast</b> | <b>Midwest</b> | <b>Mid-America</b> | <b>Southwest</b> | <b>West</b>  | <b>Northwest</b> |
|----------------|------------------|----------------|--------------------|------------------|--------------|------------------|
| Adirondack     | Alabama          | Illinois       | Colorado           | Arkansas         | Arizona      | Alaska           |
| Connecticut    | Florida          | Indiana        | Dakotas            | Border           | Central Cal  | Inland NW        |
| Long Island    | Georgia          | Kentucky       | Iowa               | Gulf             | Hawaii       | Montana          |
| Maine          | No. Carolina     | Lake Erie      | Minnesota          | Oklahoma         | Nevada       | Oregon           |
| Mid-Atlantic   | So. Carolina     | Michigan       | Missouri Valley    | Southern         | New Mexico   | Pacific NW       |
| New England    | Tennessee        | Ohio           | Nebraska           | Southwestern     | Pacific      | Snake River      |
| New Jersey     | Virginia         | West Virginia  | Ozark              | Texas Southern   | SD-Imperial  | Utah             |
| New York       |                  | Wisconsin      |                    | West Texas       | Southern Cal |                  |
| Niagara        |                  |                |                    |                  |              |                  |
| Potomac Valley |                  |                |                    |                  |              |                  |
| Three Rivers   |                  |                |                    |                  |              |                  |

**EXHIBIT B-2 – YOUTH ATHLETICS REGION DESCRIPTIONS**

**Region Associations**

- 1 Adirondack, Connecticut, Long Island, Maine, New England, New York
- 2 Mid-Atlantic, New Jersey, Niagara, Three Rivers
- 3 North Carolina, Potomac Valley, Virginia
- 4 Florida, Georgia, South Carolina
- 5 Kentucky, Lake Erie, Michigan, Ohio, West Virginia
- 6 Alabama, Southern, Tennessee
- 7 Illinois, Indiana
- 8 Dakotas, Iowa, Minnesota, Nebraska, Wisconsin
- 9 Arkansas, Missouri Valley, Oklahoma, Ozark
- 10 Arizona, Border, Colorado, New Mexico, Utah
- 11 Montana, Snake River
- 12 Gulf, Southwestern, Texas Southern, West Texas
- 13 Alaska, Inland Northwest, Oregon, Pacific Northwest
- 14 Central California, Pacific
- 15 Hawaii, Nevada, San Diego-Imperial, Southern California

## EXHIBIT C CONSTITUENT MEMBERS

### EXHIBIT C-1 — ARTICLE 5-C MEMBERS

| <i>Name of member (acronym)</i>                              | <i>Committees with extra representation</i> | <i>Number of Voting Delegates</i> |
|--------------------------------------------------------------|---------------------------------------------|-----------------------------------|
| National Collegiate Athletic Association (NCAA)              | MTF WTF MLDR WLDR                           | 10                                |
| National Federation of State High School Associations (NFHS) | MTF WTF MLDR WLDR YA                        | 10                                |
| National Association of Intercollegiate Athletics (NAIA)     | MTF WTF MLDR WLDR RW                        | 10                                |
| National Junior College Athletic Association (NJCAA)         | MTF WTF MLDR WLDR                           | 10                                |
| Road Runners Club of America (RRCA)                          | MLDR WLDR YA MaLDR                          | 10                                |
| Running USA (RUSA)                                           | MLDR WLDR MaLDR                             | 10                                |
| National Intercollegiate Running Club Association (NIRCA)    | MTF WTF MLDR WLDR                           | 10                                |

### EXHIBIT C-2 — ARTICLE 5-D-1 MEMBERS (NATIONAL ATHLETICS ORGANIZATIONS)

|                                                       |                              |   |
|-------------------------------------------------------|------------------------------|---|
| All American Trail Running Association (ATRA)         | MLDR, WLDR, MaLDR            | 1 |
| Amateur Athletic Union (AAU)                          | YA                           | 1 |
| American Running and Fitness Association (ARFA)       | None                         | 0 |
| American Ultrarunning Association (AUA)               | MLDR WLDR MaLDR              | 1 |
| Catholic Youth Organization (CYO)                     | YA                           | 1 |
| Maccabi USA (MAC)                                     | YA                           | 1 |
| National Jewish Community Centers Association (NJCCA) | YA                           | 1 |
| National Scholastic Athletics Foundation (NSAF)       | MTF WTF XC RW YA             | 6 |
| National Senior Games Association (NSGA)              | MaTF MaLDR                   | 3 |
| Officials Committee of USATF                          | All                          | 1 |
| U.S. Armed Forces (USAF)                              | MTF WTF MLDR WLDR RW         | 8 |
| U.S. Corporate Athletics Association (USCAA)          | MTF WTF MLDR WLDR MaTF MaLDR | 1 |
| U.S. Meet Directors Association (USMDA)               | MTF WTF RW YA MaTF           | 5 |
| Young Men's Christian Association (YMCA)              | YA                           | 1 |

### EXHIBIT C-3 — ARTICLE 5-D-2 MEMBERS (NATIONAL COACHING ORGANIZATIONS)

|                                                                                       |                         |   |
|---------------------------------------------------------------------------------------|-------------------------|---|
| NCAA Division I Track Coaches Association                                             | MTF WTF MLDR WLDR       | 5 |
| NCAA Division II Track Coaches Association                                            | MTF WTF MLDR WLDR       | 5 |
| NCAA Division III Track Coaches Association                                           | MTF WTF MLDR WLDR       | 5 |
| National High School Athletics Coaches Association (NHSACA)                           | MTF WTF MLDR WLDR YA    | 5 |
| NAIA Track & Field Coaches Association                                                | MTF WTF MLDR WLDR RW    | 5 |
| NJCAA Track Coaches Association                                                       | MTF WTF MLDR WLDR       | 5 |
| U.S. Women's Track Coaches Association (USWTCA)                                       | WTF WLDR                | 2 |
| United States Track Coaches Association (USTCA)                                       | MTF WTF MLDR WLDR RW YA | 9 |
| USATF Club Council Coaches                                                            | MTF WTF MLDR WLDR RW YA | 5 |
| Four (4) delegates, two each designated by:                                           |                         |   |
| 1 Northwest Athletic Association of Community Colleges (NWACC) and                    | MTF WTF MLDR WLD YA     | 2 |
| 2 California Community College Cross Country and Track Coaches Association (CCCCCTCA) | MTF WTF MLDR WLD YA     | 2 |
| Youth Track Coaches Association (YTCA)                                                | YA                      | 1 |

### EXHIBIT C-4 — ARTICLE 5-D-3 MEMBERS (SPORTS ORGANIZATIONS FOR THE DISABLED)

|                                                                                      |       |    |
|--------------------------------------------------------------------------------------|-------|----|
| Organizations accepted under Article 5-D-3 Collectively                              |       | 10 |
| Move United                                                                          | *None |    |
| Special Olympics, Inc.                                                               | *None |    |
| U.S. Association for Blind Athletes                                                  | *None |    |
| USA Deaf Sports Federation                                                           | *None |    |
| Athletes Without Limits                                                              | *None |    |
| *Collectively the 5-D-3 members are entitled to one member on each sports committee. |       |    |

**EXHIBIT D**  
**ASSOCIATION DELEGATION REPRESENTATION**

**EXHIBIT D-1 — DELEGATION REQUIREMENTS**

*This table shall be used to determine the required number of coaches and athletes who shall be part of each Association's delegation at each meeting of USATF. Three (3) or more of the delegates from each Association [or four (4) or more delegates in the case of an Association with more than four thousand (4,000) individual members] shall be coaches (individuals whose vocation includes the administration or coaching of school/college community Athletics or who are USATF-certified coaches). When available, at least one (1) of the coaches shall be a high school coach. The number of coaches for delegations of fewer than nine (9) shall be adjusted. A minimum of thirty three and 33/100 percent (33.33%) of the delegation shall be athletes, and at least one (1) athlete shall be a Ten Year Athlete, where available.*

| <i>Number of voting<br/>Association delegates at<br/>meeting</i> | <i>Minimum number of<br/>Actively Engaged Athletes<br/>required</i> | <i>Minimum number of<br/>coaches required</i> | <i>Number of other delegates<br/>permitted*</i> |
|------------------------------------------------------------------|---------------------------------------------------------------------|-----------------------------------------------|-------------------------------------------------|
| 20                                                               | 7                                                                   | 4                                             | 9-16                                            |
| 19                                                               | 7                                                                   | 4                                             | 8-15                                            |
| 18                                                               | 6                                                                   | 4                                             | 8-14                                            |
| 17                                                               | 6                                                                   | 4                                             | 7-13                                            |
| 16                                                               | 6                                                                   | 4                                             | 6-12                                            |
| 15                                                               | 5                                                                   | 3                                             | 7-12                                            |
| 14                                                               | 5                                                                   | 3                                             | 6-11                                            |
| 13                                                               | 5                                                                   | 3                                             | 5-10                                            |
| 12                                                               | 4                                                                   | 3                                             | 5-9                                             |
| 11                                                               | 4                                                                   | 3                                             | 4-8                                             |
| 10                                                               | 4                                                                   | 3                                             | 3-7                                             |
| 9                                                                | 3                                                                   | 3                                             | 4-6                                             |
| 8                                                                | 3                                                                   | 2                                             | 3-6                                             |
| 7                                                                | 3                                                                   | 2                                             | 2-5                                             |
| 6                                                                | 2                                                                   | 2                                             | 2-4                                             |
| 5                                                                | 2                                                                   | 2                                             | 1-3                                             |
| 4                                                                | 2                                                                   | 1                                             | 1-2                                             |
| 3                                                                | 1*                                                                  | 1*                                            | 1-2**                                           |
| 2                                                                | 1*                                                                  | 1*                                            | 0-1**                                           |
| 1                                                                | 1*                                                                  | 1*                                            | 0**                                             |

\*Because a person may be treated as both a coach and an athlete, the number of delegates neither a coach nor an athlete varies depending on the number of dual-role delegates.

\*\*If there are fewer than four delegates, one person on the delegation must be either a coach or an athlete.

**EXHIBIT D-2 — MAXIMUM NUMBER OF DELEGATES PER 1000**

| <b>Association<br/>Members</b> | <b>Maximum Number<br/>of Delegates</b> |
|--------------------------------|----------------------------------------|
| 0001 to 0999.....              | up to 12 delegates                     |
| 1000 to 1999.....              | 13 delegates                           |
| 2000 to 2999.....              | 14 delegates                           |
| 3000 to 3999.....              | 15 delegates                           |
| 4000 to 4999.....              | 16 delegates                           |
| 5000 to 5999.....              | 17 delegates                           |
| 6000 to 6999.....              | 18 delegates                           |
| 7000 to 7999.....              | 19 delegates                           |
| 8000 to 8999.....              | 20 delegates                           |



## EXHIBIT E

## SPORT COMMITTEE / COUNCIL VOTING MAKE-UP

This table indicates the members entitled to vote within each sport committee and the Cross Country Running Council. Members may be changed at any time by the entity being represented. When a change is made, the president or chair of the particular entity should submit a letter indicating the change.

|                                                                                                  | HIGH PERFORMANCE |                |     | LONG DISTANCE RUNNING |                |                |                  |            | YOUTH        | GEN<br>COMP    |
|--------------------------------------------------------------------------------------------------|------------------|----------------|-----|-----------------------|----------------|----------------|------------------|------------|--------------|----------------|
|                                                                                                  | Men's<br>T&F     | Women's<br>T&F | RW  | Men's<br>LDR          | Women's<br>LDR | Masters<br>LDR | Cross<br>Country | MUT<br>Run | Youth<br>Ath | Masters<br>T&F |
| Associations                                                                                     | 56               | 56             | 56  | 56                    | 56             | 56             | 56               | 56         | 56           | 56             |
| National sports organizations: one member except three if a national program in that discipline. |                  |                |     |                       |                |                |                  |            |              |                |
| NCAA                                                                                             | 3                | 3              | 1   | 3                     | 3              | 1              | 1                | 0          | 1            | 1              |
| NFHS                                                                                             | 3                | 3              | 1   | 3                     | 3              | 1              | 1                | 0          | 3            | 1              |
| NAIA                                                                                             | 3                | 3              | 3   | 3                     | 3              | 1              | 1                | 0          | 1            | 1              |
| NIRCA                                                                                            | 3                | 3              | 1   | 3                     | 3              | 1              | 1                | 0          | 1            | 1              |
| NJCAA                                                                                            | 3                | 3              | 1   | 3                     | 3              | 1              | 1                | 0          | 1            | 1              |
| RRCA                                                                                             | 1                | 1              | 1   | 3                     | 3              | 3              | 1                | 0          | 3            | 1              |
| RUSA                                                                                             | 1                | 1              | 1   | 3                     | 3              | 3              | 1                | 0          | 1            | 1              |
| Other non-coaching organizations: one member only if a national program in that discipline.      |                  |                |     |                       |                |                |                  |            |              |                |
| ATRA                                                                                             | 0                | 0              | 0   | 1                     | 1              | 1              | 0                | 0          | 0            | 0              |
| AAU                                                                                              | 0                | 0              | 0   | 0                     | 0              | 0              | 0                | 0          | 1            | 0              |
| ARFA                                                                                             | 0                | 0              | 0   | 0                     | 0              | 0              | 0                | 0          | 0            | 0              |
| AUA                                                                                              | 0                | 0              | 0   | 1                     | 1              | 1              | 0                | 0          | 0            | 0              |
| CYO                                                                                              | 0                | 0              | 0   | 0                     | 0              | 0              | 0                | 0          | 1            | 0              |
| MAC                                                                                              | 0                | 0              | 0   | 0                     | 0              | 0              | 0                | 0          | 1            | 0              |
| NJCCA                                                                                            | 0                | 0              | 0   | 0                     | 0              | 0              | 0                | 0          | 1            | 0              |
| NSAF                                                                                             | 1                | 1              | 1   | 0                     | 0              | 0              | 1                | 0          | 1            | 0              |
| NSGA                                                                                             | 0                | 0              | 0   | 0                     | 0              | 1              | 0                | 0          | 0            | 1              |
| USAF                                                                                             | 1                | 1              | 1   | 1                     | 1              | 0              | 0                | 0          | 0            | 0              |
| USCAA                                                                                            | 1                | 1              | 0   | 1                     | 1              | 1              | 0                | 0          | 0            | 1              |
| USMDA                                                                                            | 1                | 1              | 1   | 0                     | 0              | 0              | 0                | 0          | 1            | 1              |
| YMCA                                                                                             | 0                | 0              | 0   | 0                     | 0              | 0              | 0                | 0          | 1            | 0              |
| *Coaches Advisory appointments: may assign more than one coach per coaching association.         |                  |                |     |                       |                |                |                  |            |              |                |
| *NCAA                                                                                            |                  |                |     |                       |                |                |                  |            |              |                |
| Div I TCA                                                                                        | *                | *              | 0   | *                     | *              | 0              | 0                | 0          | 0            | 0              |
| Div II TCA                                                                                       | *                | *              | 0   | *                     | *              | 0              | 0                | 0          | 0            | 0              |
| Div III TCA                                                                                      | *                | *              | 0   | *                     | *              | 0              | 0                | 0          | 0            | 0              |
| *NAIA Coaches                                                                                    | *                | *              | *   | *                     | *              | 0              | 0                | 0          | 0            | 0              |
| *NHSACA                                                                                          | *                | *              | 0   | *                     | *              | 0              | 0                | 0          | *            | 0              |
| *NJCAA TCA                                                                                       | *                | *              | 0   | *                     | *              | 0              | 0                | 0          | 0            | 0              |
| *USWTCA                                                                                          | 0                | *              | 0   | 0                     | *              | 0              | 0                | 0          | 0            | 0              |
| *USTCA                                                                                           | *                | *              | *   | *                     | *              | *              | 0                | 0          | *            | *              |
| *NWACC                                                                                           | *                | *              | 0   | *                     | *              | 0              | 0                | 0          | 0            | 0              |
| *CCCCCTCA                                                                                        | *                | *              | 0   | *                     | *              | 0              | 0                | 0          | 0            | 0              |
| YTCA                                                                                             | 0                | 0              | 0   | 0                     | 0              | 0              | 0                | 0          | 1            | 0              |
| Committees:                                                                                      |                  |                |     |                       |                |                |                  |            |              |                |
| Athletics/Disabled                                                                               | 1                | 1              | 1   | 1                     | 1              | 1              | 0                | 0          | 1            | 1              |
| Club Council Coaches                                                                             | 1                | 1              | 1   | 1                     | 1              | 0              | 0                | 0          | 1            | 0              |
| Officials                                                                                        | 1                | 1              | 1   | 1                     | 1              | 1              | 1                | 0          | 1            | 1              |
| Men's LDR                                                                                        | 0                | 0              | 0   | 0                     | 0              | 0              | 0                | 3          | 0            | 0              |
| Women's LDR                                                                                      | 0                | 0              | 0   | 0                     | 0              | 0              | 0                | 3          | 0            | 0              |
| Masters LDR                                                                                      | 0                | 0              | 0   | 0                     | 0              | 0              | 0                | 3          | 0            | 0              |
| Coaches Advisory                                                                                 | 9*               | 10*            | 2*  | 9*                    | 10*            | 1*             | 0                | 0          | 2*           | 1*             |
| At-large members                                                                                 | 5                | 5              | 5   | 5                     | 5              | 5              | 0                | 4          | 5            | 5              |
| Elected officers                                                                                 | 1                | 1              | 4   | 1                     | 1              | 4              | 1                | 2          | 5            | 4              |
| Athletes                                                                                         | 48               | 48             | 41  | 50                    | 50             | 42             | 33               | 36         | 45           | 39             |
| TOTAL                                                                                            | 143              | 144            | 123 | 149                   | 150            | 125            | 99               | 107        | 135          | 117            |

**EXHIBIT F**  
**TED STEVENS OLYMPIC AND AMATEUR SPORTS ACT**  
Public Law – October 1998 – 105th Congress  
(Last revised Jan 2023)

An Act

CHAPTER 2205 UNITED STATES OLYMPIC COMMITTEE

**SUBCHAPTER I. — CORPORATION**

Sec.

- 220501. Short title and definitions.
- 220502. Organization.
- 220503. Purposes.
- 220504. Membership.
- 220505. Powers and duties.
- 220506. Exclusive right to name, seals, emblems, and badges.
- 220507. Restrictions.
- 220508. Headquarters, principal office, and meetings.
- 220509. Resolution of disputes.
- 220510. Service of process.
- 220511. Reports and audits.
- 220512. Complete teams.
- 220513. Annual amateur athlete survey.
- 220514. Annual report on equal treatment of athletes.

**SUBCHAPTER II. — NATIONAL GOVERNING BODIES**

Sec.

- 220521. Certification of national governing bodies.
- 220522. Eligibility requirements.
- 220523. Authority of national governing bodies.
- 220524. General duties of national governing bodies.
- 220525. Granting sanctions for amateur athletic competitions.
- 220526. Restricted amateur athletic competitions.
- 220527. Complaints against national governing bodies.
- 220528. Applications to replace an incumbent national governing body.
- 220529. Arbitration of corporation determinations.
- 220530. Other amateur sports organizations.
- 220530A. Annual report on equal treatment of athletes.

**SUBCHAPTER I. — CORPORATION**

**220501. Title and Definitions**

- (a) **SHORT TITLE.** — This chapter may be cited as the “Ted Stevens Olympic and Amateur Sports Act”.
- (b) **DEFINITIONS.** — For purposes of this chapter —
  - (1) “amateur athlete” means an athlete who meets the eligibility standards established by the national governing body or paralympic sports organization for the sport in which the athlete competes.
  - (2) “amateur athletic competition” means a contest, game, meet, match, tournament, regatta, or other event in which amateur athletes compete.
  - (3) “amateur sports organization” means a not-for-profit corporation, association, or other group organized in the United States that sponsors or arranges an amateur athletic competition.
  - (4) “Athletes' Advisory Council” means the entity established and maintained under section 220504(b)(2)(A) that—
    - (A) is composed of, and elected by, amateur athletes to ensure communication between the corporation and currently active amateur athletes; and
    - (B) serves as a source of amateur-athlete opinion and advice with respect to policies and proposed policies of the corporation.
  - (5) “Center” means the United States Center for SafeSport designated under section 220541.
  - (6) “child abuse” has the meaning given the term in section 212 of the Victims of Child Abuse Act of 1990 (34 U.S.C. 20302).
  - (7) “corporation” means the United States Olympic and Paralympic Committee.
  - (8) “international amateur athletic competition” means an amateur athletic competition between one or more athletes representing the United States, individually or as a team, and one or more athletes representing a foreign country.
  - (9) “national governing body” means an amateur sports organization, a high-performance management organization, or a paralympic sports organization that is certified by the corporation under section 220521.
  - (10) “protected individual” means any amateur athlete, coach, trainer, manager, administrator, or official associated with the corporation or a national governing body.
  - (11) “retaliation” means any adverse or discriminatory action, or the threat of an adverse or discriminatory action, including removal from a training facility, reduced coaching or training, reduced meals or housing, and

removal from competition, carried out against a protected individual as a result of any communication, including the filing of a formal complaint, by the protected individual or a parent or legal guardian of the protected individual relating to the allegation of physical abuse, sexual harassment, or emotional abuse, with—

- (A) the Center;
- (B) a coach, trainer, manager, administrator, or official associated with the corporation;
- (C) the Attorney General;
- (D) a Federal or State law enforcement authority;
- (E) the Equal Employment Opportunity Commission; or
- (F) Congress.

(12) "sanction" means a certificate of approval issued by a national governing body.

#### **220502. Organization**

(a) **FEDERAL CHARTER.** — The corporation is a federally chartered corporation.

(b) **PERPETUAL EXISTENCE.** — Except as otherwise provided, the corporation has perpetual existence.

(c) **REFERENCES TO UNITED STATES OLYMPIC ASSOCIATION AND UNITED STATES OLYMPIC COMMITTEE.** — Any reference to the United States Olympic Association or the United States Olympic Committee is deemed to refer to the United States Olympic and Paralympic Committee.

#### **220503. Purposes**

The purposes of the corporation are—

- (1) to establish national goals for amateur athletic activities and encourage the attainment of those goals;
- (2) to coordinate and develop amateur athletic activity in the United States, directly related to international amateur athletic competition, to foster productive working relationships among sports-related organizations;
- (3) to exercise exclusive jurisdiction, directly or through constituent members of committees, over—
  - (A) all matters pertaining to United States participation in the Olympic Games, the Paralympic Games, the Pan-American Games, and the Parapan American Games, including representation of the United States in the games; and
  - (B) the organization of the Olympic Games, the Paralympic Games, the Pan-American Games, and the Parapan American Games when held in the United States;
- (4) to obtain for the United States, directly or by delegation to the appropriate national governing body, the most competent amateur representation possible in each event of the Olympic Games, the Paralympic Games, the Pan-American Games, and the Parapan American Games;
- (5) to promote and support amateur athletic activities involving the United States and foreign nations;
- (6) to promote and encourage physical fitness and public participation in amateur athletic activities;
- (7) to assist organizations and persons concerned with sports in the development of amateur athletic programs for amateur athletes;
- (8) to provide swift resolution of conflicts and disputes involving amateur athletes, national governing bodies, and amateur sports organizations, and protect the opportunity of any amateur athlete, coach, trainer, manager, administrator, or official to participate in amateur athletic competition;
- (9) to foster the development of and access to amateur athletic facilities for use by amateur athletes and assist in making existing amateur athletic facilities available for use by amateur athletes;
- (10) to provide and coordinate technical information on physical training, equipment design, coaching, and performance analysis;
- (11) to encourage and support research, development, and dissemination of information in the areas of sports medicine and sports safety;
- (12) to encourage and provide assistance to amateur athletic activities for women;
- (13) to encourage and provide assistance to amateur athletic programs and competition for amateur athletes with disabilities, including, where feasible, the expansion of opportunities for meaningful participation by such amateur athletes in programs of athletic competition for able-bodied amateur athletes;
- (14) to encourage and provide assistance to amateur athletes of racial and ethnic minorities for the purpose of eliciting the participation of those minorities in amateur athletic activities in which they are underrepresented;
- (15) to promote a safe environment in sports that is free from abuse, including emotional, physical, and sexual abuse, of any amateur athlete; and
- (16) to effectively oversee the national governing bodies with respect to compliance with and implementation of the policies and procedures of the corporation, including policies and procedures on the establishment of a safe environment in sports as described in paragraph (15).

#### **220504. Membership**

(a) **ELIGIBILITY.** — Eligibility for membership in the corporation is as provided in the constitution and bylaws of the

corporation, and membership shall be available only to national governing bodies.

(b) **REQUIRED PROVISIONS FOR REPRESENTATION.**—In its constitution and bylaws, the corporation shall establish and maintain provisions with respect to its governance and the conduct of its affairs for reasonable representation of—

(1) national governing bodies, including through provisions that establish and maintain a National Governing Bodies' Council that is composed of representatives of the national governing bodies who are selected by their boards of directors or other governing boards to ensure effective communication between the corporation and the national governing bodies;

(2) amateur athletes who are actively engaged in amateur athletic competition or who have represented the United States in international amateur athletic competition, including through provisions that—

(A) establish and maintain an Athletes' Advisory Council;

(B) ensure that the chair of the Athletes' Advisory Council, or the designee of the chair, holds voting power on the board of directors of the corporation and in the committees and entities of the corporation;

(C) require that—

(i) not less than 1/3 of the membership of the board of directors of the corporation shall be composed of, and elected by, such amateur athletes; and

(ii) not less than 20 percent of the membership of the board of directors of the corporation shall be composed of amateur athletes who—

(I) are actively engaged in representing the United States in international amateur athletic competition; or

(II) have represented the United States in international amateur athletic competition during the preceding 10-year period; and

(D) ensure that the membership and voting power held by such amateur athletes is not less than 1/3 of the membership and voting power held in the board of directors of the corporation and in the committees and entities of the corporation, including any panel empowered to resolve grievances;

(3) amateur sports organizations that conduct a national program or regular national amateur athletic competition in 2 or more sports that are included on the program of the Olympic Games, the Paralympic Games, the Pan-American Games, or the Parapan American Games on a level of proficiency appropriate for the selection of amateur athletes to represent the United States in international amateur athletic competition; and

(4) individuals not affiliated or associated with any amateur sports organization who, in the corporation's judgment, represent the interests of the American public in the activities of the corporation.

(c) **CONFLICT OF INTEREST.**—An athlete who represents athletes under subsection (b)(2) shall not be employed by the Center, or serve in a capacity that exercises decision-making authority on behalf of the Center, during the 2-year period beginning on the date on which the athlete ceases such representation.

(d) **CERTIFICATION REQUIREMENTS.**—The bylaws of the corporation shall include a description of all generally applicable certification requirements for membership in the corporation.

## **220505. Powers and duties**

(a) **CONSTITUTION AND BYLAWS.**—The corporation shall adopt a constitution and bylaws. The corporation may amend its constitution only if the corporation—

(1) publishes, in its principal publication, a notice of the proposed amendment, including—

(A) the substantive terms of the amendment;

(B) the time and place of the corporation's regular meeting at which adoption of the amendment is to be decided; and

(C) a provision informing interested persons that they may submit materials as authorized in clause (2) of this subsection; and

(2) gives all interested persons an opportunity to submit written comments and information for at least 60 days after publication of notice of the proposed amendment and before adoption of the amendment.

(b) **GENERAL CORPORATE POWERS.**—The corporation may—

(1) adopt and alter a corporate seal;

(2) establish and maintain offices to conduct the affairs of the corporation;

(3) make contracts;

(4) accept gifts, legacies, and devises in furtherance of its corporate purposes;

(5) acquire, own, lease, encumber, and transfer property as necessary to carry out the purposes of the corporation;

(6) borrow money, issue instruments of indebtedness, and secure its obligations by granting security interests in its property;

(7) publish a magazine, newspaper, and other publications consistent with its corporate purposes;

(8) approve and revoke membership in the corporation;

- (9) sue and be sued, except that any civil action brought in a State court against the corporation and solely relating to the corporation's responsibilities under this chapter shall be removed, at the request of the corporation, to the district court of the United States in the district in which the action was brought, and such district court shall have original jurisdiction over the action without regard to the amount in controversy or citizenship of the parties involved, and except that neither this paragraph nor any other provision of this chapter shall create a private right of action under this chapter; and
- (10) do any other act necessary and proper to carry out the purposes of the corporation.
- (c) **POWERS RELATED TO AMATEUR ATHLETICS AND THE OLYMPIC GAMES.**—The corporation may—
- (1) serve as the coordinating body for amateur athletic activity in the United States directly related to international amateur athletic competition;
  - (2) represent the United States as its national Olympic committee in relations with the International Olympic Committee and the Pan-American Sports Organization and as its national Paralympic committee in relations with the International Paralympic Committee;
  - (3) organize, finance, and control the representation of the United States in the competitions and events of the Olympic Games, the Paralympic Games, the Pan-American Games, and the Parapan American Games, and obtain, directly or by delegation to the appropriate national governing body, amateur representation for those games;
  - (4) certify national governing bodies for any sport that is included on the program of the Olympic Games, the Paralympic Games, the Pan-American Games, or the Parapan American Games;
  - (5) facilitate, through orderly and effective administrative procedures, the resolution of conflicts or disputes that involve any of its members and any amateur athlete, coach, trainer, manager, administrator, official, national governing body, or amateur sports organization and that arise in connection with their eligibility for and participation in the Olympic Games, the Paralympic Games, the Pan-American Games, the Parapan American Games, world championship competition, the Pan-American world championship competition, or other protected competition as defined in the constitution and bylaws of the corporation; and
  - (6) provide financial assistance to any organization or association, except a corporation organized for profit, in furtherance of the purposes of the corporation.
- (d) **DUTIES.**—
- (1) **IN GENERAL.**—The duty of the corporation to amateur athletes includes the adoption, effective implementation, and enforcement of policies and procedures designed—
    - (A) to immediately report to law enforcement and the Center any allegation of child abuse of an amateur athlete who is a minor;
    - (B) to ensure that each national governing body has in place policies and procedures to report immediately any allegation of child abuse of an amateur athlete, consistent with—
      - (i) the policies and procedures developed under subparagraph (C) of section 220541(a)(1); and
      - (ii) the requirement described in paragraph (2)(A) of section 220542(a);
    - (C) to ensure that each national governing body and the corporation enforces temporary measures and sanctions issued pursuant to the authority of the Center; and
    - (D) with respect to a sport for which the corporation conducts separate programs for female and male athletes, to ensure that female and male athletes who represent the United States in international amateur athletic events receive, from funds directly provided by the corporation to the athlete (excluding any prize or award based on the athlete's performance in an international amateur athletic competition), equivalent and nondiscriminatory compensation, wages, benefits, medical care, travel arrangements, and payment or reimbursement for expenses, all insofar as these are implemented in connection with such amateur athletic events, where "equivalent" means "equal" except that it shall be permissible—
      - (i) to consider merit, performance, seniority, or quantity of play in determining contract or other terms of participation; and
      - (ii) to provide more beneficial terms of participation to athletes representing the United States in international events to address disparities in outside income, including in compensation made available by international sports federations and other event organizers, or the need to foster underdeveloped programs or address documented and justifiable personal need on the part of specific athletes or teams.
  - (2) **ADVOCACY.**—The corporation shall take all reasonable steps, in collaboration with affected athletes, to advocate to international sports federations and other event organizers to equalize prizes, compensation, funding, and other support provided to athletes by such federations and organizers.
  - (3) **RULE OF CONSTRUCTION.**—Nothing in this subsection shall be construed to preempt or otherwise abrogate the duty of care of the corporation under State law or the common law.

## **220506. Exclusive right to name, seals, emblems, and badges**

- (a) **EXCLUSIVE RIGHT OF CORPORATION.**—Except as provided in subsection (d) of this section, the corporation has



the exclusive right to use—

- (1) the name "United States Olympic and Paralympic Committee";
- (2) the symbol of the International Olympic Committee, consisting of 5 interlocking rings, the symbol of the International Paralympic Committee, consisting of 3 Agitos, or the symbol of the Pan-American Sports Organization, consisting of a torch surrounded by concentric rings;
- (3) the emblem of the corporation, consisting of an escutcheon having a blue chief and vertically extending red and white bars on the base with 5 interlocking rings displayed on the chief; and
- (4) the words "Olympic", "Olympiad", "Citius Altius Fortius", "Paralympic", "Paralympiad", "Pan-American", "Parapan American", "America Espirito Sport Fraternite", or any combination of those words.

(b) **CONTRIBUTORS AND SUPPLIERS.**—The corporation may authorize contributors and suppliers of goods or services to use the trade name of the corporation or any trademark, symbol, insignia, or emblem of the International Olympic Committee, International Paralympic Committee, the Pan-American Sports Organization, or of the corporation to advertise that the contributions, goods, or services were donated or supplied to, or approved, selected, or used by, the corporation, the United States Olympic team, the Paralympic team, the Pan-American team, the Parapan American team, or team members.

(c) **CIVIL ACTION FOR UNAUTHORIZED USE.**—Except as provided in subsection (d) of this section, the corporation may file a civil action against a person for the remedies provided in the Act of July 5, 1946 (15 U.S.C. 1051 et seq.) (popularly known as the Trademark Act of 1946) if the person, without the consent of the corporation, uses for the purpose of trade, to induce the sale of any goods or services, or to promote any theatrical exhibition, athletic performance, or competition—

- (1) the symbol described in subsection (a)(2) of this section;
- (2) the emblem described in subsection (a)(3) of this section;
- (3) the words described in subsection (a)(4) of this section, or any combination or simulation of those words tending to cause confusion or mistake, to deceive, or to falsely suggest a connection with the corporation or any Olympic, Paralympic, Pan-American, or Parapan American Games activity; or
- (4) any trademark, trade name, sign, symbol, or insignia falsely representing association with, or authorization by, the International Olympic Committee, the International Paralympic Committee, the Pan-American Sports Organization, or the corporation.

(d) **PRE-EXISTING AND GEOGRAPHIC REFERENCE RIGHTS.**—(1) A person who actually used the emblem described in subsection (a)(3) of this section, or the words or any combination of the words described in subsection (a)(4) of this section, for any lawful purpose before September 21, 1950, is not prohibited by this section from continuing the lawful use for the same purpose and for the same goods or services.

(2) A person who actually used, or whose assignor actually used, the words or any combination of the words described in subsection (a)(4) of this section, or a trademark, trade name, sign, symbol, or insignia described in subsection (c)(4) of this section, for any lawful purpose before September 21, 1950, is not prohibited by this section from continuing the lawful use for the same purpose and for the same goods or services.

- (3) Use of the word "Olympic" to identify a business or goods or services is permitted by this section where—
- (A) such use is not combined with any of the intellectual properties referenced in subsection (a) or (c) of this section;
  - (B) it is evident from the circumstances that such use of the word "Olympic" refers to the naturally occurring mountains or geographical region of the same name that were named prior to February 6, 1998, and not to the corporation or any Olympic activity; and
  - (C) such business, goods, or services are operated, sold, and marketed in the State of Washington west of the Cascade Mountain range and operations, sales, and marketing outside of this area are not substantial.

## **220507. Restrictions**

(a) **PROFIT AND STOCK.**—The corporation may not engage in business for profit or issue stock.

(b) **POLITICAL ACTIVITIES.**—The corporation shall be nonpolitical and may not promote the candidacy of an individual seeking public office.

(c) **POLICY WITH RESPECT TO ASSISTING MEMBERS OR FORMER MEMBERS IN OBTAINING JOBS.**—The corporation shall develop 1 or more policies that prohibit any individual who is an employee, contractor, or agent of the corporation from assisting a member or former member in obtaining a new job (except the routine transmission of administrative and personnel files) if the individual knows that such member or former member violated the policies or procedures of the Center related to sexual misconduct or was convicted of a crime involving sexual misconduct with a minor in violation of applicable law.

(d) **POLICY REGARDING TERMS AND CONDITIONS OF EMPLOYMENT.**—The corporation shall establish a policy—



(1) not to disperse bonus or severance pay to any individual named as a subject of an ethics investigation by the ethics committee of the corporation, until such individual is cleared of wrongdoing by such investigation; and

(2) that provides that—

(A) if the ethics committee determines that an individual has violated the policies of the corporation—

(i) the individual is no longer entitled to bonus or severance pay previously withheld; and

(ii) the compensation committee of the corporation may reduce or cancel the withheld bonus or severance pay; and

(B) in the case of an individual who is the subject of a criminal investigation, the ethics committee shall investigate the individual.

#### **220508. Headquarters, principal office, and meetings**

The corporation shall maintain its principal office and national headquarters in a place in the United States decided by the corporation. The corporation may hold its annual and special meetings in the places decided by the corporation.

#### **220509. Resolution of disputes**

(a) **GENERAL.**—The corporation shall establish and maintain provisions in its constitution and bylaws for the swift and equitable resolution of disputes involving any of its members and relating to complaints of retaliation or the opportunity of an amateur athlete, coach, trainer, manager, administrator, or official to participate in the Olympic Games, the Paralympic Games, the Pan-American Games, the Parapan American Games, world championship competition, or other protected competition as defined in the constitution and bylaws of the corporation. In any lawsuit relating to the resolution of a dispute involving the opportunity of an amateur athlete to participate in the Olympic Games, the Paralympic Games, the Pan-American Games, or the Parapan American Games, a court shall not grant injunctive relief against the corporation within 21 days before the beginning of such games if the corporation, after consultation with the chair of the Athletes' Advisory Council, has provided a sworn statement in writing executed by an officer of the corporation to such court that its constitution and bylaws cannot provide for the resolution of such dispute prior to the beginning of such games.

(b) **OFFICE OF THE ATHLETE OMBUDS.**—

(1) **IN GENERAL.**—The corporation shall hire and provide salary, benefits, and administrative expenses for an ombudsman and support staff for athletes.

(2) **DUTIES.**—The Office of the Athlete Ombuds shall—

(A) provide independent advice to athletes at no cost about the applicable provisions of this chapter and the constitution and bylaws of the corporation, national governing bodies, international sports federations, the International Olympic Committee, the International Paralympic Committee, and the Pan-American Sports Organization, and with respect to the resolution of any dispute involving the opportunity of an amateur athlete to participate in the Olympic Games, the Paralympic Games, the Pan-American Games, the Parapan American Games, world championship competition or other protected competition as defined in the constitution and bylaws of the corporation;

(B) assist in the resolution of athlete concerns;

(C) provide independent advice to athletes with respect to—

(i) the role, responsibility, authority, and jurisdiction of the Center; and

(ii) the relative value of engaging legal counsel; and

(D) report to the Athletes' Advisory Council on a regular basis.

(3) **HIRING PROCEDURES; VACANCY; TERMINATION.**—

(A) **HIRING PROCEDURES.**—The procedure for hiring the ombudsman for athletes shall be as follows:

(i) The Athletes' Advisory Council shall provide the corporation's executive director with the name of 1 qualified person to serve as ombudsman for athletes.

(ii) The corporation's executive director shall immediately transmit the name of such person to the corporation's executive committee.

(iii) The corporation's executive committee shall hire or not hire such person after fully considering the advice and counsel of the Athletes' Advisory Council.

(B) **VACANCY.**—If there is a vacancy in the position of the ombudsman for athletes, the nomination and hiring procedure set forth in this paragraph shall be followed in a timely manner.

(C) **TERMINATION.**—The corporation may terminate the employment of an individual serving as ombudsman for athletes only if—

(i) the termination is carried out in accordance with the applicable policies and procedures of the corporation;

(ii) the termination is initially recommended to the corporation's executive committee by either the corporation's executive director or by the Athletes' Advisory Council; and

(iii) the corporation's executive committee fully considers the advice and counsel of the Athletes' Advisory Council prior to deciding whether or not to terminate the employment of such individual.

**(4) CONFIDENTIALITY.—**

(A) **IN GENERAL.**—The Office of the Athlete Ombuds shall maintain as confidential any information communicated or provided to the Office of the Athlete Ombuds in confidence in any matter involving the exercise of the official duties of the Office of the Athlete Ombuds.

(B) **EXCEPTION.**—The Office of the Athlete Ombuds may disclose information described in subparagraph (A) as necessary to resolve or mediate a dispute, with the permission of the parties involved.

**(C) JUDICIAL AND ADMINISTRATIVE PROCEEDINGS.—**

(i) **IN GENERAL.**—The ombudsman and the staff of the Office of the Athlete Ombuds shall not be compelled to testify or produce evidence in any judicial or administrative proceeding with respect to any matter involving the exercise of the duties of the Office of the Athlete Ombuds.

(ii) **WORK PRODUCT.**—Any memorandum, work product, notes, or case file of the Office of the Athlete Ombuds —

(I) shall be confidential; and

(II) shall not be —

(aa) subject to discovery, subpoena, or any other means of legal compulsion;  
or

(bb) admissible as evidence in a judicial or administrative proceeding.

(D) **APPLICABILITY.**—The confidentiality requirements under this paragraph shall not apply to information relating to—

(i) applicable federally mandated reporting requirements;

(ii) a felony personally witnessed by a member of the Office of the Athlete Ombuds;

(iii) a situation, communicated to the Office of the Athlete Ombuds, in which an individual is at imminent risk of serious harm; or

(iv) a congressional subpoena.

**(E) DEVELOPMENT OF POLICY.—**

(i) **IN GENERAL.**—Not later than 180 days after the date of the enactment of the Empowering Olympic, Paralympic, and Amateur Athletes Act of 2020, the Office of the Athlete Ombuds shall develop and publish in the Federal Register a confidentiality and privacy policy consistent with this paragraph.

(ii) **DISTRIBUTION.**—The Office of the Athlete Ombuds shall distribute a copy of the policy developed under clause (i) to—

(I) employees of the national governing bodies; and

(II) employees of the corporation.

(iii) **PUBLICATION BY NATIONAL GOVERNING BODIES.**—Each national governing body shall—

(I) publish the policy developed under clause (i) on the internet website of the national governing body; and

(II) communicate to amateur athletes the availability of the policy.

(5) **PROHIBITION ON RETALIATION.**—No employee, contractor, agent, volunteer, or member of the corporation shall take or threaten to take any action against an athlete as a reprisal for disclosing information to or seeking assistance from the Office of the Athlete Ombuds.

(6) **INDEPENDENCE IN CARRYING OUT DUTIES.**—The board of directors of the corporation or any other member or employee of the corporation shall not prevent or prohibit the Office of the Athlete Ombuds from carrying out any duty or responsibility under this section.

**(c) RETALIATION.—**

(1) **IN GENERAL.**—The corporation, the national governing bodies, or any officer, employee, contractor, subcontractor, or agent of the corporation or a national governing body may not retaliate against any protected individual as a result of any communication, including the filing of a formal complaint, by a protected individual or a parent or legal guardian of the protected individual relating to an allegation of physical abuse, sexual harassment, or emotional abuse.

(2) **DISCIPLINARY ACTION.**—If the corporation finds that an employee of the corporation or a national governing body has retaliated against a protected individual, the corporation or national governing body, as applicable, shall immediately terminate the employment of, or suspend without pay, such employee.

(3) **DAMAGES.**—

(A) *IN GENERAL.*—With respect to a protected individual the corporation finds to have been subject to retaliation, the corporation may award damages, including damages for pain and suffering and reasonable attorney fees.

(B) *REIMBURSEMENT FROM NATIONAL GOVERNING BODY.*—In the case of a national governing body found to have retaliated against a protected individual, the corporation may demand reimbursement from the national governing body for damages paid by the corporation under subparagraph (A).

#### **220510. Service of process**

As a condition to the exercise of any power or privilege granted by this chapter, the corporation shall have a designated agent in the State of Colorado to receive service of process for the corporation. Notice to or service on the agent, or mailed to the business address of the agent, is notice to or service on the corporation.

#### **220511. Report and audits**

##### **(a) REPORT.—**

(1) *SUBMISSION TO PRESIDENT AND CONGRESS.*—Not less frequently than annually, the corporation shall submit simultaneously to the President and to each House of Congress a detailed report on the operations of the corporation for the preceding calendar year.

(2) *MATTERS TO BE INCLUDED.*—Each report required by paragraph (1) shall include the following:

(A) A comprehensive description of the activities and accomplishments of the corporation during such calendar year.

(B) Data concerning the participation of women, disabled individuals, and racial and ethnic minorities in the amateur athletic activities and administration of the corporation and national governing bodies.

(C) A description of the steps taken to encourage the participation of women, disabled individuals, and racial minorities in amateur athletic activities.

(D) A description of any lawsuit or grievance filed against the corporation, including any dispute initiated under this chapter.

(E) The agenda and minutes of any meeting of the board of directors of the corporation that occurred during such calendar year.

(F) A report by the compliance committee of the corporation that, with respect to such calendar year—

(i) identifies—

(I) the areas in which the corporation has met compliance standards; and

(II) the areas in which the corporation has not met compliance standards; and

(ii) assesses the compliance of each member of the corporation and provides a plan for improvement, as necessary.

(G) A detailed description of any complaint of retaliation made during such calendar year, including the entity involved, the number of allegations of retaliation, and the outcome of such allegations.

(3) *PUBLIC AVAILABILITY.*—The corporation shall make each report under this subsection available to the public on an easily accessible internet website of the corporation.

##### **(b) AUDIT.—**

(1) *IN GENERAL.*—Not less frequently than annually, the financial statements of the corporation for the preceding fiscal year shall be audited in accordance with generally accepted auditing standards by—

(A) an independent certified public accountant; or

(B) an independent licensed public accountant who is certified or licensed by the regulatory authority of a State or a political subdivision of a State.

(2) *LOCATION.*—An audit under paragraph (1) shall be conducted at the location at which the financial statements of the corporation normally are kept.

(3) *ACCESS.*—An individual conducting an audit under paragraph (1) shall be given full access to—

(A) all records and property owned or used by the corporation, as necessary to facilitate the audit; and

(B) any facility under audit for the purpose of verifying transactions, including any balance or security held by a depository, fiscal agent, or custodian.

(4) *REPORT.—*

(A) *IN GENERAL.*—Not later than 180 days after the end of the fiscal year for which an audit is carried out, the auditor shall submit a report on the audit to the Committee on Commerce, Science, and Transportation of the Senate, the Committee on the Judiciary of the House of Representatives, and the chair of the Athletes' Advisory Council.

(B) *MATTERS TO BE INCLUDED.*—Each report under subparagraph (A) shall include the following for the applicable fiscal year:

- (i) Any statement necessary to present fairly the assets, liabilities, and surplus or deficit of the corporation.
- (ii) An analysis of the changes in the amounts of such assets, liabilities, and surplus or deficit.
- (iii) A detailed statement of the income and expenses of the corporation, including the results of any trading, manufacturing, publishing, or other commercial endeavor.
- (iv) A detailed statement of the amounts spent on stipends and services for athletes.
- (v) A detailed statement of the amounts spent on compensation and services for executives and administration officials of the corporation, including the 20 employees of the corporation who receive the highest amounts of compensation.
- (vi) A detailed statement of the amounts allocated to the national governing bodies.
- (vii) Such comments and information as the auditor considers necessary to inform Congress of the financial operations and condition of the corporation.
- (viii) Recommendations relating to the financial operations and condition of the corporation.
- (ix) A description of any financial conflict of interest (including a description of any recusal or other mitigating action taken), evaluated in a manner consistent with the policies of the corporation, of—
  - (I) a member of the board of directors of the corporation; or
  - (II) any senior management personnel of the corporation.

**(C) PUBLIC AVAILABILITY.—**

- (i) **IN GENERAL.**—The corporation shall make each report under this paragraph available to the public on an easily accessible internet website of the corporation.
- (ii) **PERSONALLY IDENTIFIABLE INFORMATION.**—A report made available under clause (i) shall not include the personally identifiable information of any individual.

**220512. Complete teams**

*In obtaining representation for the United States in each competition and event of the Olympic Games, Paralympic Games, Pan-American Games, and Parapan American Games, the corporation, either directly or by delegation to the appropriate national governing body, may select, but is not obligated to select (even if not selecting will result in an incomplete team for an event), athletes who have not met the eligibility standard of the national governing body and the corporation when the number of athletes who have met the eligibility standards of such entities is insufficient to fill the roster for an event.*

**220513. Annual amateur athlete survey**

- (a) **IN GENERAL.**—Not less frequently than annually, the corporation shall cause an independent third-party organization, under contract, to conduct an anonymous survey of amateur athletes who are actively engaged in amateur athletic competition with respect to—
  - (1) their satisfaction with the corporation and the applicable national governing body; and
  - (2) the behaviors, attitudes, and feelings within the corporation and the applicable national governing body relating to sexual harassment and abuse.
- (b) **CONSULTATION.**—A contract under subsection (a) shall require the independent third-party organization to develop the survey in consultation with the Center.
- (c) **PROHIBITION ON INTERFERENCE.**—If the corporation or a national governing body makes any effort to undermine the independence of, introduce bias into, or otherwise influence a survey under subsection (a), such activity shall be reported immediately to Congress.
- (d) **PUBLIC AVAILABILITY.**— The corporation shall make the results of each such survey available to the public on an internet website of the corporation.

**220514. Annual report on equal treatment of athletes**

- (a) **IN GENERAL.**— Not less frequently than annually, the corporation shall submit to Congress a report on the compliance of the corporation with paragraphs (1)(D) and (2) of section 220505(d).
- (b) **MATTERS TO BE INCLUDED.**—Each report required by subsection (a) shall include detailed information on the median, minimum, and maximum stipends and bonuses provided to athletes, disaggregated by gender, race, and, as applicable, status of participation on a professional sports team.

**SUBCHAPTER II — NATIONAL GOVERNING BODIES**

**220521. Certification of national governing bodies**

- (a) **IN GENERAL.**—With respect to each sport included on the program of the Olympic Games, the Paralympic Games, the Pan-American Games, or the Parapan American Games, the corporation—



(1) may certify as a national governing body an amateur sports organization, a high-performance management organization, or a paralympic sports organization that files an application and is eligible for such certification under section 220522; and

(2) may not certify more than 1 national governing body.

(b) **PUBLIC HEARING.**—Before certifying an organization as a national governing body, the corporation shall hold at least 2 public hearings on the application. The corporation shall publish notice of the time, place, and nature of the hearings. Publication shall be made in a regular issue of the corporation's principal publication at least 30 days, but not more than 60 days, before the date of the hearings. The corporation shall send written notice, which shall include a copy of the application, at least 30 days prior to the date of any such public hearing to all amateur sports organizations known to the corporation in that sport.

(c) **RECOMMENDATION TO INTERNATIONAL SPORTS FEDERATION.**—Within 61 days after certifying an organization as a national governing body, the corporation shall recommend and support in any appropriate manner the national governing body to the appropriate international sports federation as the representative of the United States for that sport.

(d) **REVIEW OF CERTIFICATION.**—Not later than 8 years after the date of the enactment of the Empowering Olympic, Paralympic, and Amateur Athletes Act of 2020, and not less frequently than once every 4 years thereafter, the corporation—

(1) shall review all matters related to the continued certification of an organization as a national governing body;

(2) may take action the corporation considers appropriate, including placing conditions on the continued certification of an organization as a national governing body;

(3) shall submit to Congress a summary report of each review under paragraph (1); and

(4) shall make each such summary report available to the public.

## **220522. Eligibility requirements**

An amateur sports organization, a high-performance management organization, or a paralympic sports organization is eligible to be certified, or to continue to be certified, as a national governing body only if it—

(1) is incorporated under the laws of a State of the United States or the District of Columbia as a not-for-profit corporation having as its purpose the advancement of amateur athletic competition;

(2) has the managerial and financial capability to plan and execute its obligations, including the ability to provide and enforce required athlete protection policies and procedures;

(3) submits—

(A) an application, in the form required by the corporation, for certification as a national governing body;

(B) a copy of its corporate charter and bylaws; and

(C) any additional information considered necessary or appropriate by the corporation;

(4) agrees to submit to binding arbitration in any controversy involving—

(A) its certification as a national governing body, as provided for in section 220529 of this title, upon demand of the corporation; and

(B) the opportunity of any amateur athlete, coach, trainer, manager, administrator or official to participate in amateur athletic competition, upon demand of the corporation or any aggrieved amateur athlete, coach, trainer, manager, administrator or official, which arbitration under this paragraph shall be conducted in accordance with the standard commercial arbitration rules of an established major national provider of arbitration and mediation services based in the United States and designated by the corporation with the concurrence of the Athletes' Advisory Council and the National Governing Bodies' Council, as modified and provided for in the corporation's constitution and bylaws, except that if the Athletes' Advisory Council and National Governing Bodies' Council do not concur on any modifications to such Rules, and if the corporation's executive committee is not able to facilitate such concurrence, the standard commercial rules of arbitration of such designated provider shall apply unless at least two-thirds of the corporation's board of directors approves modifications to such Rules;

(5) demonstrates that it is autonomous in the governance of its sport, except with respect to the oversight of the organization, in that it—

(A) independently decides and controls all matters central to governance;

(B) does not delegate decision-making and control of matters central to governance; and

(C) is free from outside restraint;

(6) demonstrates that it is a member of no more than one international sports federation that governs a sport included on the program of the Olympic Games, the Paralympic Games, the Pan-American Games, or the Parapan American Games;

- (7) demonstrates that its membership is open to any individual who is an amateur athlete, coach, trainer, manager, administrator, or official active in the sport for which certification is sought, or any amateur sports organization that conducts programs in the sport for which certification is sought, or both;
- (8) provides an equal opportunity to amateur athletes, coaches, trainers, managers, administrators, and officials to participate in amateur athletic competition, without discrimination on the basis of race, color, religion, sex, age, or national origin, and with fair notice and opportunity for a hearing to any amateur athlete, coach, trainer, manager, administrator, or official before declaring the individual ineligible to participate;
- (9) is governed by a board of directors or other governing board whose members are selected without regard to race, color, religion, national origin, or sex, except that, in sports where there are separate male and female programs, it provides for reasonable representation of both males and females on the board of directors or other governing board;
- (10) ensures that the selection criteria for individuals and teams that represent the United States are—
- (A) fair, as determined by the corporation in consultation with the national governing bodies, the Athletes' Advisory Council, and the United States Olympians and Paralympians Association;
  - (B) clearly articulated in writing and properly communicated to athletes in a timely manner; and
  - (C) consistently applied, using objective and subjective criteria appropriate to the applicable sport;
- (11) demonstrates, based on guidelines approved by the corporation, the Athletes' Advisory Council, and the National Governing Bodies' Council, that its board of directors and other such governing boards have established criteria and election procedures for and maintain among their voting members individuals who are actively engaged in amateur athletic competition in the sport for which certification is sought or who have represented the United States in international amateur athletic competition within the preceding 10 years, that any exceptions to such guidelines by such organization have been approved by the corporation, and that the voting power held by such individuals is not less than 20 percent of the voting power held in its board of directors and other such governing boards;
- (12) provides for reasonable direct representation on its board of directors or other governing board for any amateur sports organization, high-performance management organization, or paralympic sports organization that—
- (A) conducts a national program or regular national amateur athletic competition in the applicable sport on a level of proficiency appropriate for the selection of amateur athletes to represent the United States in international amateur athletic competition; and
  - (B) ensures that the representation reflects the nature, scope, quality, and strength of the programs and competitions of the applicable organization in relation to all other programs and competitions in the sport in the United States;
- (13) demonstrates, based on guidelines approved by the corporation, the Athletes' Advisory Council, and the National Governing Bodies' Council, that—
- (A) its board of directors and other such governing boards have established criteria and election procedures for, and maintain among their voting members, individuals who—
    - (i) are elected by amateur athletes; and
    - (ii) are actively engaged in amateur athletic competition, or have represented the United States in international amateur athletic competition, in the sport for which certification is sought;
  - (B) any exception to such guidelines by such organization has been approved by—
    - (i) the corporation; and
    - (ii) the Athletes' Advisory Council; and
  - (C) the voting power held by such individuals is not less than 1/3 of the voting power held by its board of directors and other such governing boards;
- (14) provides procedures for the prompt and equitable resolution of grievances of its members;
- (15) does not have eligibility criteria related to amateur status or to participation in the Olympic Games, the Paralympic Games, the Pan-American Games, or the Parapan American Games that are more restrictive than those of the appropriate international sports federation;
- (16) demonstrates, if the organization is seeking to be certified as a national governing body, that it is prepared to meet the obligations imposed on a national governing body under sections 220524 and 220525 of this title;
- (17) commits to submitting annual reports to the corporation that include, for each calendar year—
- (A) a description of the manner in which the organization—
    - (i) carries out the mission to promote a safe environment in sports that is free from abuse of amateur athletes (including emotional, physical, and sexual abuse); and
    - (ii) addresses any sanctions or temporary measures required by the Center;
  - (B) a description of any cause of action or complaint filed against the organization that was pending or settled during the preceding calendar year; and
  - (C) a detailed statement of—



- (i) the income and expenses of the organization; and
  - (ii) the amounts expended on stipends, bonuses, and services for amateur athletes, organized by the level and gender of the amateur athletes;
- (18) commits to meeting any minimum standard or requirement set forth by the corporation; and
- (19) provides protection from retaliation to protected individuals.

#### **220523. Authority of national governing bodies**

(a) **AUTHORITY.**—For the sport that it governs, a national governing body may—

- (1) represent the United States in the appropriate international sports federation;
- (2) establish national goals and encourage the attainment of those goals;
- (3) serve as the coordinating body for amateur athletic activity in the United States;
- (4) exercise jurisdiction over international amateur athletic activities and sanction international amateur athletic competition held in the United States and sanction the sponsorship of international amateur athletic competition held outside the United States;
- (5) conduct amateur athletic competition, including national championships, and international amateur athletic competition in the United States, and establish procedures for determining eligibility standards for participation in competition, except for amateur athletic competition specified in section 220526 of this title;
- (6) recommend to the corporation individuals and teams to represent the United States in the Olympic Games, the Paralympic Games, the Pan-American Games, and the Parapan American Games; and
- (7) designate individuals and teams to represent the United States in international amateur athletic competition (other than the Olympic Games, the Paralympic Games, the Pan-American Games, and the Parapan American Games) and certify, in accordance with applicable international rules, the amateur eligibility of those individuals and teams.

(b) **REPLACEMENT OF NATIONAL GOVERNING BODY PURSUANT TO ARBITRATION.**—A national governing body may not exercise any authority under subsection (a) of this section for a particular sport after another amateur sports organization has been declared (in accordance with binding arbitration proceedings prescribed by the organic documents of the corporation) entitled to replace that national governing body as the member of the corporation for that sport.

#### **220524. General duties of national governing bodies**

(a) **IN GENERAL.**—For the sport that it governs, a national governing body shall—

- (1) develop interest and participation throughout the United States and be responsible to the persons and organizations it represents;
- (2) minimize, through coordination with other organizations, conflicts in the scheduling of all practices and competitions;
- (3) keep amateur athletes informed of policy matters and reasonably reflect the views of the athletes in its policy decisions;
- (4) disseminate and distribute to amateur athletes, coaches, trainers, managers, administrators, and officials in a timely manner the applicable rules and any changes to such rules of the national governing body, the corporation, the appropriate international sports federation, the International Olympic Committee, the International Paralympic Committee, and the Pan-American Sports Organization;
- (5) allow an amateur athlete to compete in any international amateur athletic competition conducted by any organization or person, unless the national governing body establishes that its denial is based on evidence that the organization or person conducting the competition does not meet the requirements stated in section 220525 of this title;
- (6) provide equitable support and encouragement for participation by women where separate programs for male and female athletes are conducted on a national basis;
- (7) with respect to a sport for which a national governing body conducts separate programs for female and male athletes, ensure that female and male athletes who represent the United States in international amateur athletic events receive, from funds directly provided by the national governing body to the athlete (excluding any prize or award based on the athlete's performance in an international amateur athletic competition), equivalent and nondiscriminatory compensation, wages, benefits, medical care, travel arrangements, and payment or reimbursement for expenses, all insofar as these are implemented in connection with such amateur athletic events, where "equivalent" means "equal" except that it shall be permissible—
  - (A) to consider merit, performance, seniority, or quantity of play in determining contract or other terms of participation; and
  - (B) to provide more beneficial terms of participation to athletes representing the United States in international events to address disparities in outside income, including in compensation made available by international sports federations and other event organizers, or the need to foster

underdeveloped programs or address documented and justifiable personal need on the part of specific athletes or teams;

(8) take all reasonable steps, in collaboration with affected athletes, to advocate to international sports federations and other event organizers to equalize prizes, compensation, funding, and other support provided to athletes by such federations and organizers;

(9) encourage and support amateur athletic sports programs for individuals with disabilities and the participation of individuals with disabilities in amateur athletic activity, including, where feasible, the expansion of opportunities for meaningful participation by individuals with disabilities in programs of athletic competition for able-bodied individuals;

(10) provide and coordinate technical information on physical training, equipment design, coaching, and performance analysis;

(11) encourage and support research, development, and dissemination of information in the areas of sports medicine and sports safety;

(12) develop 1 or more policies that prohibit any individual who is an employee, contractor, or agent of the national governing body from assisting a member or former member in obtaining a new job (except for the routine transmission of administrative and personnel files) if the individual knows that such member or former member violated the policies or procedures of the Center related to sexual misconduct or was convicted of a crime involving sexual misconduct with a minor in violation of applicable law or the policies or procedures of the Center;

(13) promote a safe environment in sports that is free from abuse of any amateur athlete, including emotional, physical, and sexual abuse;

(14) take care to promote a safe environment in sports using information relating to any temporary measure or sanction issued pursuant to the authority of the Center;

(15) immediately report to law enforcement any allegation of child abuse of an amateur athlete who is a minor; and

(16) have in place policies and procedures to report immediately any allegation of child abuse of an amateur athlete, consistent with—

(A) the policies and procedures developed under subparagraph (C) of section 220541(a)(1); and

(B) the requirement described in paragraph (2)(A) of section 220542(a).

(b) **RULE OF CONSTRUCTION.**—Nothing in this section shall be construed to preempt or otherwise abrogate the duty of care of a national governing body under State law or the common law.

## **220525. Granting sanctions for amateur athletic competitions**

(a) **PROMPT REVIEW AND DECISION.**—For the sport that it governs, a national governing body promptly shall—

(1) review a request by an amateur sports organization or person for a sanction to hold an international amateur athletic competition in the United States or to sponsor United States amateur athletes to compete in international amateur athletic competition outside the United States; and

(2) grant the sanction if—

(A) the national governing body does not decide by clear and convincing evidence that holding or sponsoring an international amateur athletic competition would be detrimental to the best interest of the sport; and

(B) the requirements of subsection (b) of this section are met.

(b) **REQUIREMENTS.**—An amateur sports organization or person may be granted a sanction under this section only if the organization or person meets the following requirements:

(1) The organization or person must pay the national governing body any required sanctioning fee, if the fee is reasonable and nondiscriminatory.

(2) For a sanction to hold an international amateur athletic competition in the United States, the organization or person must—

(A) submit to the national governing body an audited or notarized financial report of similar events, if any, conducted by the organization or person; and

(B) demonstrate that the requirements of paragraph (4) of this subsection have been met.

(3) For a sanction to sponsor United States amateur athletes to compete in international amateur athletic competition outside the United States, the organization or person must—

(A) submit a report of the most recent trip to a foreign country, if any, that the organization or person sponsored for the purpose of having United States amateur athletes compete in international amateur athletic competition; and

(B) submit a letter from the appropriate entity that will hold the international amateur athletic competition certifying that the requirements of paragraph (4) of this subsection have been met.

(4) The requirements referred to in paragraphs (2) and (3) of this subsection are that—

- (A) appropriate measures have been taken to protect the amateur status of athletes who will take part in the competition and to protect their eligibility to compete in amateur athletic competition;
- (B) appropriate provision has been made for validation of any records established during the competition;
- (C) due regard has been given to any international amateur athletic requirements specifically applicable to the competition;
- (D) the competition will be conducted by qualified officials;
- (E) proper medical supervision will be provided for athletes who will participate in the competition;
- (F) proper safety precautions have been taken to protect the personal welfare of the athletes and spectators at the competition; and
- (G) the amateur sports organization or person requesting sanction from a national governing body will implement and abide by the policies and procedures to prevent the abuse, including emotional, physical, and child abuse, of amateur athletes participating in amateur athletic activities applicable to such national governing body.

#### **220526. Restricted amateur athletic competitions**

(a) **EXCLUSIVE JURISDICTION.**—An amateur sports organization that conducts amateur athletic competition shall have

exclusive jurisdiction over that competition if participation is restricted to a specific class of amateur athletes, such as high school students, college students, members of the Armed Forces, or similar groups or categories.

(b) **SANCTIONS FOR INTERNATIONAL COMPETITION.**—An amateur sports organization under subsection (a) of this section shall obtain a sanction from the appropriate national governing body if the organization wishes to—

- (1) conduct international amateur athletic competition in the United States; or
- (2) sponsor international amateur athletic competition to be held outside the United States.

#### **220527. Complaints against national governing bodies**

(a) **GENERAL.**—

(1) An amateur sports organization or person that belongs to or is eligible to belong to a national governing body may seek to compel the national governing body to comply with sections 220522, 220524, and 220525 of this title by filing a written complaint with the corporation. A copy of the complaint shall be served on the national governing body.

(2) The corporation shall establish procedures for the filing and disposition of complaints under this section.

(b) **HEARINGS.**—The corporation shall hold a hearing, within 90 days after the complaint is filed, to receive testimony to decide whether the national governing body is complying with sections 220522, 220524, and 220525 of this title.

(c) **DISPOSITION OF COMPLAINT.**—

(1) If the corporation decides, as a result of the hearing, that the national governing body is complying with sections 220522, 220524, and 220525 of this title, it shall so notify the complainant and the national governing body.

(2) If the corporation decides, as a result of the hearing, that the national governing body is not complying with sections 220522, 220524, and 220525 of this title, it shall—

(A) place the national governing body on probation for a specified period of time, not to exceed 180 days, which the corporation considers necessary to enable the national governing body to comply with those sections; or

(B) revoke the recognition of the national governing body.

(3) If the corporation places a national governing body on probation under paragraph (2) of this subsection, it may extend the probationary period if the national governing body has proven by clear and convincing evidence that, through no fault of its own, it needs additional time to comply with sections 220522, 220524, and 220525 of this title. If, at the end of the period allowed by the corporation, the national governing body has not complied with those sections, the corporation shall revoke the recognition of the national governing body.

#### **220528. Applications to replace an incumbent national governing body**

(a) **GENERAL.**—An amateur sports organization may seek to replace an incumbent as the national governing body for a particular sport by filing a written application for certification with the corporation.

(b) **ESTABLISHMENT OF PROCEDURES.**—The corporation shall establish procedures for the filing and disposition of applications under this section. If 2 or more organizations file applications for the same sport, the applications shall be considered in a single proceeding.

(c) **FILING PROCEDURES.**—

(1) An application under this section must be filed within one year after the final day of—

(A) any Olympic Games, for a sport in which competition is held in the Olympic Games or the Paralympic Games, or in each of the Olympic Games, the Paralympic Games, the Pan-American Games, and the Parapan American Games; or

(B) any Pan-American Games or Parapan American Games, for a sport in which competition is held in the Pan-American Games or the Parapan American Games, as applicable, but not in the Olympic Games or the Paralympic Games.

(2) The application shall be filed with the corporation by certified mail, and a copy of the application shall be served on the national governing body and with any other organization that has filed an application. The corporation shall inform the applicant that its application has been received.

(d) **HEARINGS.**—Within 180 days after receipt of an application filed under this section, the corporation shall conduct a formal hearing open to the public to determine the merits of the application. The corporation shall publish notice of the time and place of the hearing in a regular issue of its principal publication at least 30 days, but not more than 60 days, before the date of the hearing. The corporation also shall send written notice, including a copy of the application, at least 30 days prior to the date of the hearing to all amateur sports organizations known to the corporation in that sport. In the hearing, the applicant and the national governing body shall be given a reasonable opportunity to present evidence supporting their positions.

(e) **STANDARDS FOR GRANTING APPLICATIONS.**—In the hearing, the applicant must establish by a preponderance of the evidence that—

- (1) it meets the criteria for certification as a national governing body under section 220522 of this title; and
- (2)(A) the national governing body does not meet the criteria of section 220522, 220524, or 220525 of this title; or (B) the applicant more adequately meets the criteria of section 220522 of this title, is capable of more adequately meeting the criteria of sections 220524 and 220525 of this title, and provides or is capable of providing a more effective national program of competition than the national governing body in the sport for which it seeks certification.

(f) **DISPOSITION OF APPLICATIONS.**—Within 30 days after the close of the hearing required by this section, the corporation shall—

- (1) uphold the right of the national governing body to continue as the national governing body for its sport;
- (2) revoke the certification of the national governing body and declare a vacancy in the national governing body for that sport;
- (3) revoke the certification of the national governing body and certify the applicant as the national governing body; or
- (4) place the national governing body on probation for a period not exceeding 180 days, pending the compliance of the national governing body, if the national governing body would have retained certification except for a minor deficiency in one of the requirements of section 220522, 220524, or 220525 of this title and notify such national governing body of such probation and of the actions needed to comply with such requirements.

(g) **REVOCATION OF CERTIFICATION AFTER PROBATION.**—If the national governing body does not comply with sections 220522, 220524, and 220525 of this title within the probationary period prescribed under subsection (f)(4) of this section, the corporation shall revoke the certification of the national governing body and either—

- (1) certify the applicant as the national governing body; or
- (2) declare a vacancy in the national governing body for that sport.

## **220529. Arbitration of corporation determinations**

(a) **RIGHT TO REVIEW.**—A party aggrieved by a determination of the corporation under section 220527 or 220528 of this title may obtain review by the arbitration and mediation provider designated by the corporation under section 220522(a)(4).

(b) **PROCEDURE.**—

- (1) A demand for arbitration must be submitted within 30 days after the determination of the corporation.
- (2) On receipt of a demand for arbitration, the Association shall serve notice on the parties to the arbitration and on the corporation, and shall immediately proceed with arbitration according to the commercial rules of the Association in effect at the time the demand is filed, except that—
  - (A) the arbitration panel shall consist of at least 3 arbitrators, unless the parties to the proceeding agree to a lesser number;
  - (B) the arbitration hearing shall take place at a site selected by the Association, unless the parties to the proceeding agree to the use of another site; and
  - (C) the arbitration hearing shall be open to the public.
- (3) A decision by the arbitrators shall be by majority vote unless the concurrence of all arbitrators is expressly required by the contesting parties.



(4) Each party may be represented by counsel or by any other authorized representative at the arbitration proceeding.

(5) The parties may offer any evidence they desire and shall produce any additional evidence the arbitrators believe is necessary to an understanding and determination of the dispute. The arbitrators shall be the sole judges of the relevancy and materiality of the evidence offered. Conformity to legal rules of evidence is not necessary.

(c) **SETTLEMENT.**—The arbitrators may settle a dispute arising under this chapter before making a final award, if agreed to by the parties and achieved in a manner not inconsistent with the constitution and bylaws of the corporation.

(d) **BINDING NATURE OF DECISION.**—Final decision of the arbitrators is binding on the parties if the award is not inconsistent with the constitution and bylaws of the corporation.

(e) **REOPENING HEARINGS.**—

(1) At any time before a final decision is made, the hearings may be reopened by the arbitrators on their own motion or on the motion of a party.

(2) If the reopening is based on the motion of a party, and if the reopening would result in the arbitrators' decision being delayed beyond the specific period agreed to at the beginning of the arbitration proceedings, all parties to the decision must agree to reopen the hearings.

### **220530. Other amateur sports organizations**

(a) **IN GENERAL.**—An applicable amateur sports organization shall—

(1) comply with the reporting requirements of section 226 of the Victims of Child Abuse Act of 1990 (34 U.S.C. 20341);

(2) establish reasonable procedures to limit one-on-one interactions, including communications, between an amateur athlete who is a minor and an adult (who is not the minor's legal guardian) at a facility under the jurisdiction of the applicable amateur sports organization without being in an observable and interruptible distance from another adult, except under emergency circumstances;

(3) offer and provide consistent training to all adult members who are in regular contact with amateur athletes who are minors, and subject to parental consent, to members who are minors, regarding prevention and reporting of child abuse to allow a complainant to report easily an incident of child abuse to appropriate persons; and

(4) prohibit retaliation, by the applicable amateur sports organization, against any individual who makes—

(A) a report under paragraph (1); or

(B) any other report relating to abuse of any amateur athlete, including emotional, physical, and sexual abuse.

(b) **DEFINITION OF APPLICABLE AMATEUR SPORTS ORGANIZATION.**—In this section, the term "applicable amateur sports organization" means an amateur sports organization—

(1) that is not otherwise subject to the requirements under subchapter III;

(2) that participates in an interstate or international amateur athletic competition; and

(3) whose membership includes any adult who is in regular contact with an amateur athlete who is a minor.

### **220530A. Annual Report on equal treatment of athletes**

(a) **IN GENERAL.**— Not less frequently than annually, each national governing body shall submit to the corporation and Congress a report on the compliance of the national governing body with paragraphs (7) and (8) of section 220524(a).

(b) **MATTERS TO BE INCLUDED.**—Each report required by subsection (a) shall include detailed information on the median, minimum, and maximum stipends and bonuses provided to athletes, disaggregated by gender, race, and, as applicable, status of participation on a professional sports team.

**EXHIBIT G**  
**USOPC BYLAWS**

*The United States Olympic and Paralympic Committee's current Bylaws, including those provisions affecting the authority, jurisdiction, and operation of national governing bodies, can be found at [www.teamusa.org](http://www.teamusa.org).*



**EXHIBIT H**  
**USOPC NATIONAL ANTI-DOPING POLICY**  
(Effective as of January 1, 2021)



**USOPC Policy Name:** National Anti-Doping Policy

**Date of Issuance:** 1/1/2021

**Owner:** Legal

**Applies to:** USOPC Board and staff, NGBs, USADA, *Athletes*, *Athlete Support Personnel* and other *Persons* as specified in this policy.

**Purpose:** To outline the roles, responsibilities and requirements of the United States Olympic & Paralympic Committee (“USOPC”), National Governing Bodies (“NGBs”)<sup>1</sup>, *Athletes*<sup>2</sup>, *Athlete Support Personnel*, other *Persons*, as specified in this policy, and the United States Anti-Doping Agency (“USADA”) to comply with the *World Anti-Doping Code* (“Code”) and adhere to our commitment against doping in sport.

**Policy Statement:** This National Anti-Doping Policy (“Policy”) is adopted and implemented in accordance with the USOPC’s responsibilities under the *Code* and as part of the USOPC’s commitment to the purposes of the world anti-doping program. The Policy is also an indication of the USOPC’s cooperation and coordination with the *World Anti-Doping Agency* (“WADA”) and USADA to initiate, implement, and enforce the *Doping Control* process and fulfill its obligations under the *Code* and *International Standards*, in furtherance of the USOPC’s continuing efforts to eradicate doping in sport.

Section 1. Conformance with the *World Anti-Doping Code* and *International Standards*.

Section 1.1. This Policy is written to conform to the *Code* and adhere to the *International Standards* adopted by WADA. The Policy adopts and implements all of the provisions and respective commentary of the *Code*, without substantive change, which are required to be adhered to by *National Olympic Committees* and *National Paralympic Committees*, as set forth in Article 23.2.2 of the *Code*.

Section 2. Fundamental Rationale. The USOPC supports anti-doping programs to protect the health of *Athletes* and to provide the opportunity for *Athletes* to pursue sport without the *Use of Prohibited Substances* and *Prohibited Methods*. To maintain the integrity of sport and respect all competitors, fair competition, a level playing field and clean sport, the USOPC adheres to following core values in anti-doping programs:

- Health
- Ethics, fair play and honesty
- *Athletes’* rights as set forth in the *Code*
- Excellence in performance
- Character and *Education*

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<sup>1</sup> An NGB will also refer to a Paralympic Sport Organization (PSO) and will also include the USOPC, through its U.S. Paralympics division, when it governs and manages an internal Paralympic Sport.

<sup>2</sup> Capitalized and italicized terms have the meaning set forth in the Definitions Section (Appendix 1) of the *Code*.

- Fun and joy
- Teamwork
- Dedication and commitment
- Respect for rules and laws
- Respect for self and other *Participants*
- Courage
- Community and solidarity

Section 3. Scope and Application of the Policy and Agreement by *Athletes, Athlete Support Personnel* and other *Persons* to be Bound by the Policy and the USADA Protocol.

Section 3.1. All USOPC and NGB board members, directors and officers will comply with anti-doping rules, including refraining from engaging in any direct and intentional misconduct, and agree to and be bound by the *Code*, this Policy and the USADA Protocol for Olympic and Paralympic Movement Testing and its Annexes (“USADA Protocol”).

Section 3.2. All USOPC and NGB employees<sup>3</sup> who are involved in any aspect of *Doping Control* or serve as *Athlete Support Personnel*, will comply with anti-doping rules, including refraining from engaging in any direct and intentional misconduct, and agree to be bound by the *Code*, this Policy and the USADA Protocol.

Section 3.3. All *Athletes, Athlete Support Personnel* and other *Persons*, by virtue of their membership in an NGB, participation in the Olympic, Paralympic, Pan American, Parapan American or Youth Olympic Games, participation in an *Event* or *Competition* organized or sanctioned by an NGB, an International Federation (“IF”), the International Olympic Committee (“IOC”), the International Paralympic Committee (“IPC”) or other *Major Event Organization*, participation on a national team, utilization of an Olympic and Paralympic Training Center (“OPTC”), receipt of benefits from the USOPC or an NGB, inclusion in the *Registered Testing Pool* (“RTP”) or Clean Athlete Program (“CAP”), or otherwise subject to the *Code* agree to be bound by this Policy and by the USADA Protocol.

Section 3.4. Each NGB will be responsible for requiring *Athletes, Athlete Support Personnel* and other *Persons* participating in its sport to agree to and be bound by anti-doping rules, including the *Code*, IF rules, this Policy and the USADA Protocol and USADA’s or other respective *Anti-Doping Organization’s Results Management* authority as a condition of participation or involvement in sport. Agreement to be bound is implied from participation in sport regardless of membership, employment or policy-making status. This will be provided in at least the bylaws, rules or policies of the NGB, and will include language as provided and approved by the USOPC in consultation with USADA.

Section 3.5. For sports that are either temporarily or permanently operated by the USOPC, it is the duty of individual participants of the sport to comply with the *Code*, anti-doping rules of the applicable IF, this Policy, and of USADA, including the USADA Protocol, and all other policies and rules adopted by WADA, the applicable IF, the USOPC and USADA. *Athlete* participants will be available for *Testing* by the applicable IF, USADA and/or other *Anti-Doping Organizations* with *Testing* authority or their designees at any time and understand that the *Use* of methods or substances prohibited by the applicable anti-doping rules and other anti-doping rule violations make them subject to *Consequences* including, but not limited to, *Disqualification, Ineligibility, and Provisional Suspension*. If it is determined that an *Athlete, Athlete Support Personnel* or other *Person* subject to the USOPC authority may have committed an anti-doping rule violation, the respective *Athlete, Athlete Support Personnel* or

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<sup>3</sup> Applied equally to any *Delegated Third Parties* and their employees.

other *Person* agrees to submit to the *Results Management* authority and processes of USADA, including arbitration under the USADA Protocol, or to the *Results Management* authority of the applicable IF or other *Anti-Doping Organization* (“ADO”), if applicable or referred by USADA.

#### Section 4. Responsibilities of the USOPC.

Section 4.1. The USOPC, as a *Signatory* to the *Code*, pledges to fulfill its obligations and responsibilities under the *Code* and the *International Standards* adopted by WADA, including recognizing and complying with the *Code* and the *International Standards* as applicable and the anti-doping rules adopted by USADA, and reporting on compliance matters as requested.

Section 4.2. The USOPC will support and assist WADA, USADA and any other ADO in their anti-doping efforts. Further, the USOPC pledges to cooperate with WADA and USADA in promoting health, fairness and equality for all *Athletes*. Additionally, the USOPC will respect the autonomy of USADA and laboratories<sup>4</sup>, and avoid any interference with their operational decisions and activities.

Section 4.3. The USOPC will support and assist WADA, USADA and any other ADO with authority to conduct an investigation in their anti-doping efforts and will cooperate with these ADOs in investigations into potential anti-doping rule violations. Additionally, the USOPC will pursue all potential anti-doping rule violations within its authority, including investigations into whether *Athlete Support Personnel* or other *Persons* may have been involved in each case of doping.

Section 4.4. In the USOPC’s support for worldwide harmonization in the fight against doping, along with coordinated and effective anti-doping programs, the USOPC discourages non-compliance with the *Code* from any *Signatory* or any members organizations of a *Signatory*, and will take appropriate action to discourage and prevent non-compliance in accordance with Article 24.1 of the *Code* and the *International Standard for Code Compliance by Signatories*.

Section 4.5. The USOPC will not knowingly employ, contract or appoint a *Person* to any position involving *Doping Control* (other than authorized anti-doping *Education* or rehabilitation programs) or serving as an *Athlete Support Personnel* who is *Provisionally Suspended* or is serving a period of *Ineligibility*.<sup>5</sup>

#### Section 5. Compliance by NGBs.

Section 5.1. As a condition of membership, recognition and certification by the USOPC, all NGBs will comply with this Policy and satisfy all anti-doping requirements for NGB certification in the USOPC Audit Standards, and will adhere, in all respects, to the applicable provisions of the *Code*, the *International Standards*, respective IF’s anti-doping rules (which are in compliance with the *Code*), *Major Event Organizations* anti-doping rules, and the USADA Protocol. NGBs will not have any anti-doping rule, policy or program which is inconsistent with this Policy, the *Code*, the *International Standards* or the USADA Protocol. The USOPC will take appropriate compliance action against any NGB that fails to comply with the *Code* and *International Standards* in accordance with Article 12 of the *Code*.

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<sup>4</sup> As provided for in the *International Standard for Laboratories*.

<sup>5</sup> Will also apply to those *Persons* who otherwise had engaged in conduct that would have constituted an anti-doping rule violation within the previous six years if they had been subject to *Code*-compliant rules.

Section 5.2. NGB compliance with this Policy, the *Code*, *International Standards*, respective IF anti-doping rules, *Major Event Organizations* anti-doping rules and the USADA Protocol will be a condition of USOPC funding.

Section 5.3. NGBs will support and assist the USOPC, WADA, the IOC, IPC, the Pan American Sports Organization (“Panam Sports”), their respective IF and USADA in eradicating doping in sport and discourage any non-compliance from the *Code*. NGBs will recognize the authority of USADA and assist USADA in the national *Testing* program.

Section 5.4. NGBs pledge to cooperate with WADA and USADA in promoting health, fairness and equality for all *Athletes* and will assist its IF in anti-doping operations. Additionally, NGBs will respect the autonomy of USADA, and laboratories<sup>6</sup> and avoid any interference with their operational decisions and activities.

Section 5.5. NGBs will support and assist WADA, USADA and any other *ADO* with authority to conduct an investigation in their anti-doping efforts and cooperate with these *ADOs* in investigations into potential anti-doping rule violations, including by encouraging their *Athletes*, *Athlete Support Personnel*, other *Persons*, representatives and members to cooperate with investigations. Further, NGBs will report information suggesting or relating to an anti-doping rule violation or potential anti-doping rule violation to USADA and their respective IF.

Section 5.6. NGBs will recognize, impose, implement and enforce any applicable decision of an anti-doping rule violation and related sanction communicated to it by USADA and/or any other *ADO*.

Section 5.7. NGBs will assist USADA in ensuring that *Athletes* competing in the NGB’s sport are entered into the *RTP* and/or *CAP*, when appropriate.

Section 5.8. At least six months prior to the commencement of the Olympic, Paralympic, Pan American or Parapan American Games, as appropriate, NGBs will provide USADA with a list of all *Athletes* in their sport they reasonably anticipate may be selected to represent the U.S. in the Olympic, Paralympic, Pan American or Parapan American Games.

Section 5.9. NGBs will encourage *Athletes* competing in their sport and included in the *RTP* or *CAP* to provide to USADA timely and accurate whereabouts information and to make themselves available for *Sample* collection.

Section 5.10. NGBs will designate a dedicated contact person who will act as a liaison between USADA and the NGB.

Section 5.11. NGBs will assist the USOPC, WADA, USADA, and their respective IF in promoting, coordinating and conducting anti-doping *Education* and practices.

Section 5.12. NGBs will make a reasonable effort to provide USADA with a list or calendar of national level *Events* and international level *Events* in which *International-Level* and *National-Level Athletes* anticipate competing at on an annual basis.

Section 5.13. NGBs will assist USADA in requests for information about elite level international *Athletes* who are expected to train or compete in the United States and will thereby be under the *Testing* jurisdiction of USADA.

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<sup>6</sup> As provided for in the *International Standard* for Laboratories.

Section 5.14. NGBs will not knowingly employ, contract or appoint a *Person* to any position involving *Doping Control* (other than authorized anti-doping *Education* or rehabilitation programs) or serving as an *Athlete Support Personnel* who is *Provisionally Suspended* or is serving a period of *Ineligibility*.<sup>7</sup>

Section 6. International Federation and Major Event Organization Rules.

Section 6.1. The requirements and consequences set forth in this Policy will be in addition to those obligations imposed by the various IFs and *Major Event Organizations*, including the IOC and IPC, and will not relieve any *Athlete*, *Athlete Support Personnel*, or any other *Person* of the consequences of failing to comply with the anti-doping rules of his or her IF or *Major Event Organization*.

Section 7. Disqualification, Ineligibility, Provisional Suspension and Loss of USOPC and NGB Opportunities and Benefits.

Section 7.1. As provided in the *Code*, the term *Disqualification* means that the *Athlete's* results in a particular *Competition* or *Event* are invalidated, with all resulting *Consequences* including forfeiture of any medals, points and prizes. *Ineligibility* means that the *Athlete*, *Athlete Support Personnel* or any other *Person* is barred on account of an anti-doping rule violation for a specified period of time from participating in any *Competition* or other activity or from receiving some or all sport-related financial support or other sport-related benefits as provided in Article 10.14 of the *Code*. The term *Provisional Suspension* means that the *Athlete*, *Athlete Support Personnel* or any other *Person* is barred temporarily from participating in any *Competition* or activity prior to the final decision at a hearing conducted under Article 8 of the *Code*.

Section 7.2. The applicable USOPC rule on loss of financial support or other sport-related benefits and services as a result of *Disqualification*, *Ineligibility* or *Provisional Suspension* is set forth in Attachment A and is incorporated herein by reference.

Section 7.3. Under the *Code*, NGBs, as members of a *Code Signatory* (the USOPC), must engage in the same or similar suspensions of benefits and services as the USOPC as outlined in Attachment A. NGBs are to adopt policies similar to those adopted by the USOPC in this Policy. Additionally, if an NGB recovers prize money forfeited as a result of an anti-doping rule violation, the NGB will take reasonable measures to allocate and distribute the prize money to *Athletes* who would have been entitled to it had the forfeiting *Athlete* not competed.

Section 8. Athlete Support Personnel Restrictions.

Section 8.1. *Athlete Support Personnel* found to be *Using Prohibited Substances* or *Prohibited Methods* without valid justification will be prohibited by NGBs and the USOPC from providing support to *Athletes* for a specified period of time, nor receive or be eligible for any USOPC or NGB benefits and services. This includes any employment, contract or volunteer service at the USOPC or NGB.

Section 9. Requirements Pertaining to Athlete Testing.

Section 9.1. USADA, with the assistance of NGBs, and input from IFs, will identify which *Athletes* will be enrolled in the *RTP* and the *CAP* as outlined in USADA's policies.

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<sup>7</sup> Will also apply to those *Persons* who otherwise had engaged in conduct that would have constituted an anti-doping rule violation within the previous six years if they had been subject to *Code*-compliant rules.

Section 9.2. *Athletes* included in the *RTP* and *CAP* are required to provide whereabouts information specific to each testing pool, as outlined in USADA's policies, and make themselves available for *Sample* collection in compliance with the *Code*. Further, *Athletes* who are not regular members of an NGB and who are identified to qualify in the Olympic, Paralympic, Pan American, Parapan American or Youth Olympic Games, will, as a condition of participation in the respective *Event*, provide whereabouts information as required by the *International Standard for Testing and Investigations* as soon as the *Athlete* is identified on the long list or subsequent entry document. Additionally, such *Athletes* will make themselves available for *Sample* collection consistent with the conditions for eligibility established by the IOC, IPC, Panam Sports or their respective IF, as applicable.

Section 9.3. USADA will, prior to the lead-up to an Olympic, Paralympic, Pan American, Parapan American or Youth Olympic Games, review those *Athletes* in the *RTP* and *CAP* and change or increase the number as appropriate as provided for in USADA's policies.

Section 9.4. *Testing of Athletes* will be conducted by USADA as it considers appropriate to fulfill its responsibilities under the *Code* and the *International Standards for Testing and Investigations* and under its agreement with the USOPC to ensure, as far as possible, that *Athletes* are training and competing clean.

#### Section 10. Protection of Personal Information.

Section 10.1. USOPC may collect, store, process or disclose personal information relating to *Athletes*, *Athlete Support Personnel* and other *Persons* where necessary and appropriate to conduct their *Anti-Doping Activities* under the *Code* and *International Standards* (including specifically the *International Standard for the Protection of Privacy and Personal Information*), this Policy, and in compliance with applicable law.

#### Section 11. Retirement and Return to Active Participation in Sport.

Section 11.1. An *International- or National-Level Athlete* in the *RTP* who retires, and then subsequently wishes to return to active participation in any sport, will not compete in *International or National Events* until the *Athlete* has made himself or herself available for *Testing* by giving six months prior written notice to his or her IF and USADA.

Section 11.2. Pursuant to Article 5.6.1 of the *Code*, an *Athlete* seeking an exemption from the six-month written notice rule must apply to USADA. An *Athlete* seeking an exemption must follow all policies, rules, and procedures established by WADA. Exemptions to the six-month requirement will be granted by WADA, in consultation with USADA and the *Athlete's* IF, where the strict application of the rule would be unfair to the *Athlete*.

Any competitive results obtained in violation of Sections 11.1 and 11.2 will be *Disqualified* unless the *Athlete* can establish that he or she could not have reasonably known that this was an *International or a National Event*.

Section 11.3. An *Athlete* who retires and subsequently desires to return to active participation in any sport must comply with any applicable USADA and IF retirement and/or reinstatement rule.



Section 12. Right to a Hearing.

Section 12.1. No *Athlete, Athlete Support Personnel* or any other *Person* will (i) have his or her results disqualified or (ii) be declared ineligible for an anti-doping rule violation without first being afforded an opportunity for a fair hearing within a reasonable time by an impartial and *Operationally Independent* hearing panel pursuant to the USADA Protocol and as set forth in Article 8 of the *Code* and the *International Standard for Results Management*. Additionally, no *Athlete, Athlete Support Personnel* or any other *Person* will have a *Provisional Suspension* imposed unless the *Athlete, Athlete Support Personnel* or any other *Person* is given an opportunity for a *Provisional Hearing* either before or promptly after the imposition of the *Provisional Suspension*, or for an expedited hearing promptly after the imposition of the *Provisional Suspension* pursuant to the USADA Protocol and as set forth in Article 8 of the *Code* and the *International Standard for Results Management*. In addition, the *Athlete, Athlete Support Personnel* or any other *Person* will also be given an opportunity for an expedited appeal against the imposition of a *Provisional Suspension*, pursuant to the USADA Protocol and as set forth in Article 13 of the *Code*.

Section 13. Public Disclosure.

Section 13.1. No later than 20 days after (i) the assertion of an anti-doping rule violation not being timely challenged, (ii) a hearing has been waived, (iii) an appeal has been waived, (iv) it has been determined in an appellate decision, (v) the matter has been resolved under Article 10.8 of the *Code*, or (vi) a new period of *Ineligibility*, or reprimand, has been imposed under Article 10.14.3 of the *Code*, USADA will *Publicly Disclose* the disposition of the anti-doping rule violation in accordance with Article 14.3 of the *Code*. USADA in its sole discretion may determine exceptions to the *Public Disclosure* requirement for a *Minor, Protected Person* or *Recreational Athlete*.

Section 14. Mandatory Education.

Section 14.1. In compliance with the *Code* and the *International Standard for Education*, mandatory participation in specially formulated anti-doping *Educational* and prevention programs facilitates *Athletes, Athlete Support Personnel*, and other *Persons'* understanding of the applicable anti-doping rules and of their rights and responsibilities under those rules. Such *Educational* programs should focus on prevention, include the harm to one's health associated with doping and encourage and foster a clean sport environment. *Education of Athletes, Athlete Support Personnel* and other *Persons* will be conducted by USADA as it considers appropriate to fulfill its responsibilities under the *Code* and the *International Standard for Education* and under its agreement with the USOPC to ensure, as far as possible, that *Athletes* are training and competing clean.

Section 14.2. An *Athlete* designated for inclusion in the USADA *RTP* or CAP or receiving or returning from a sanction as a result of an anti-doping violation is required within the timeframe established by USADA, and for those in the USADA *RTP* or CAP on an annual basis thereafter, to complete a USADA online *Education* program designed specifically for *Athletes* (USADA Athlete Education Module or comparable form of anti-doping *Education* provided by USADA).

Section 14.3. An *Athlete* who is a credentialed member of the Olympic, Paralympic, Pan American, Parapan American, and/or Youth Olympic Games team of the United States is required to complete, prior to participation in those Games, a USADA online *Education* program specifically designed for *Athletes* (USADA Athlete Education Module or comparable form of anti-doping *Education* provided by USADA). An *Athlete* who is a credentialed member of any other *Event* as part of a USOPC delegation is required to complete, prior to participation at this *Event*, an *Education* program designed by USADA.

Section 14.4. A coach who is a credentialed member of the Olympic, Paralympic, Pan American, Parapan American, Youth Olympic Games team of the United States, or other *Event* as part of a USOPC delegation is required to complete, within the one year<sup>8</sup> prior to participation in those Games or *Event*, a USADA online *Education* program designed specifically for coaches (USADA Coach Education Module or comparable form of anti-doping *Education* provided by USADA).

Section 14.5. All medical personnel (including, but not limited to doctors, nurses, medical technicians, paramedical persons, physical therapists, massage therapists and trainers) and science providers (including, but not limited to psychologists, physiologists, and nutritionists) who are credentialed members of the Olympic, Paralympic, Pan

American, Parapan American, Youth Olympic Games team of the United States, or other *Event* as part of a USOPC delegation are required to complete, within the two years<sup>9</sup> prior to participation in those Games or *Event*, a USADA online *Education* program specifically designed for medical personnel (USADA Medical Education Module or comparable form of anti-doping *Education* provided by USADA) or WADA's Sport Physician Toolkit.

Section 14.6. All NGB and USOPC staff (includes employees, independent contractors, Board Members and volunteers) who are credentialed members of the Olympic, Paralympic, Pan American, Parapan American, Youth Olympic Games team of the United States, or other *Event* as part of a USOPC delegation are required to complete, prior to participation in those Games or *Event*, a USADA *Education* program, specifically designed for *Athlete Support Personnel*.

Section 14.7. All USOPC board members, directors, officers, and employees who are involved in any aspect of *Doping Control* or serving as *Athlete Support Personnel* are required to complete a USADA *Education* program designed specifically for *Athlete Support Personnel*.

#### Section 15. Delegated Third Parties.

Section 15.1. Any aspect of *Doping Control* or anti-doping *Education* that is delegated to a *Delegated Third Party*, either from the USOPC or USADA, will perform such aspects in compliance with the *Code*, *International Standards*, and this Policy. The USOPC and USADA will ensure that any delegated aspects are performed in compliance with the Code.

#### Section 16. Non-retaliation.

Section 16.1. No *Athlete* or other *Person* will conduct any act that threatens or seeks to intimidate another *Person* with the intent of discouraging the *Person* from the good-faith reporting<sup>10</sup> of information that relates to an alleged anti-doping rule violation or alleged non-compliance with the *Code* to WADA, an *Anti-Doping Organization*, law enforcement, regulatory or professional disciplinary body, hearing body or *Person* conducting an investigation for WADA or an *Anti-Doping Organization*.

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<sup>8</sup> The USOPC may, in its sole discretion, set a shorter deadline for coaches to complete the USADA online *Education* program prior to participation to capture any changes that USADA incorporates into its training or for other justifiable reason.

<sup>9</sup> The USOPC may, in its sole discretion, set a shorter deadline for medical personnel to complete the USADA or WADA online *Education* program prior to participation to capture any changes that USADA or WADA incorporates into its training or for other justifiable reason.

<sup>10</sup> A report is not made in good-faith when the reporting *Person* knows the report to be false.

Section 16.2. No *Athlete* or other *Person*, will retaliate against a *Person* who, in good faith, has provided evidence or information that related to an alleged anti-doping rule violation or alleged non-compliance with the *Code* to WADA, an *Anti-Doping Organization*, law enforcement, regulatory or professional disciplinary body, hearing body or *Person* conducting an investigation for WADA or an *Anti-Doping Organization*.

Section 16.3. Retaliation includes, but is not limited to, actions that threaten the physical or mental well-being or economic interests of the reporting *Persons*, their families or associates. Retaliation, threatening and intimidation also include any act against such a reporting *Person* that lacks a good faith basis or is a disproportionate response. Retaliation does not include the assertion in good faith of an anti-doping rule violation against the reporting *Person* by an *Anti-Doping Organization*.

Section 16.4. If any *Person* believes that another *Person* has engaged in retaliation contrary to this Policy, or otherwise violated this Policy, they may report the allegations to the USOPC Integrity Line in accordance with the USOPC Speak Up Policy, or to USADA in accordance with the USADA Whistleblowing Policy.

#### Section 17. Athlete Resources.

Section 17.1. In the USOPC's support of an *Athlete's* fundamental right to participate in doping-free sport, the USOPC will take reasonable measures to ensure that *Athletes* will be afforded rights as articulated in the *Athletes' Anti-Doping Rights Act* as approved by WADA.

Section 17.2. The Office of the Athlete Ombuds is available to provide independent and confidential advice to *Athletes* regarding their rights under the *Code*, this Policy, and any other applicable anti-doping rule and to assist in the resolution of *Athlete* concerns and disputes. *Athletes* may contact the Athlete Ombuds at: [ombudsman@usathlete.org](mailto:ombudsman@usathlete.org) or 719-866-5000 or visit their website at [www.usathlete.org](http://www.usathlete.org) for more information and resources.

Section 17.3. The Office of Athlete Ombuds oversees the management and implementation of the *Athlete* legal aid program for eligible *Athletes* lacking adequate resources to effectively participate in dispute resolution processes including anti-doping matters. For information about the *Athlete* legal aid program including eligibility criteria, *Athletes* may visit [www.usathlete.org](http://www.usathlete.org).

Section 17.4. *Athletes* and any other *Person* may report allegations of doping through USADA's Play Clean Tip Center, and pursuant to the USADA Whistleblowing Policy at [www.usada.org](http://www.usada.org).

#### Section 18. USADA Responsibility.

Section 18.1. USADA will be responsible for implementing those provisions of this Policy that apply to it.

#### Section 19. Review.

Section 19.1. The USOPC will review implementation of this Policy on an annual basis.

#### Section 20. Effective Date.

Section 20.1. This Policy, adopted by the USOPC Board of Directors on December 18, 2020 will go into effect on January 1, 2021. This Policy will not apply retroactively to matters pending before January 1, 2021, except as provided in Article 27 of the *Code*. The previous Policy, adopted on December 13, 2019, will remain in effect until December 31, 2020.

## Attachment A

### Loss of Benefits for Anti-Doping Rule Violations

#### **Section 1. Overview**

The USOPC provides various benefits and services to *Athletes*,<sup>11</sup> including financial services, sport performance services, health and well-being benefits, and legal aid. As a condition of receipt of the various USOPC benefits along with participation in sport, *Athletes* agree to abide by relevant anti-doping rules and policies from WADA, IOC, IPC, IFs, USADA, and the USOPC.

The USOPC National Anti-Doping Policy (NADP) Loss of Benefits Grid outlines the various benefits and services and corresponding resulting consequences upon interim actions and/or an anti-doping rule violation. To the extent the USOPC creates a benefit not listed in the grid, the USOPC will endeavor to classify the new benefit in accordance with similar benefits in the grid.

If a *Person* other than an *Athlete* commits an anti-doping rule violation, that *Person* will have proportionate consequences as set forth for an *Athlete*. Additionally, NGBs must engage in the same or similar suspensions of benefits and services as the USOPC.

#### **Section 2. Consequences upon Interim Actions**

Some USOPC benefits will be suspended and accrued upon an interim action in a pending anti-doping matter. Interim actions include: (i) when there is an *Adverse Analytical Finding* on a “B” Sample (or on an “A” Sample, if a “B” Sample analysis is waived), (ii) when USADA or other *Anti-Doping Sports Organization (ADO)* conducting the *Results Management* process files charges against the *Athlete* or other *Person*, or (iii) when a *Provisional Suspension* has been accepted or imposed.

Upon notification of the occurrence of any of the above interim actions, the USOPC will suspend and accrue all payments for Financial Services, Tuition Assistance, and Simon Grants/Needs Based Funding.

Additionally, upon the occurrence of a *Provisional Suspension*, the affected *Person* is not permitted to participate in any Sport Performance Service that relates to an organized activity at an Olympic & Paralympic Training Center (OPTC) or Training Site, pursuant to Article 10.14 of the Code.

If any payment has been accrued and the *Athlete* is subsequently found not to have committed an anti-doping rule violation, the payment accrued will be paid to the *Athlete*. If a Tuition Grant payment has been accrued and the *Athlete* is subsequently found not to have committed an anti-doping rule violation, the Tuition Grant payment will be paid, provided the *Athlete* satisfactorily completed, or completes, the course of education for which the Tuition Grant was based.

For all other USOPC benefits, no consequences will occur until after a sanction for an anti-doping rule violation is imposed, in which case the benefit and consequence will be addressed in accordance with the Loss of Benefits Grid.

#### **Section 3. Consequences upon Sanction Imposed**

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<sup>11</sup> This will apply equally to any other *Person* that may receive benefits and services from the USOPC.

Additional loss of benefits occur when the ADO conducting the *Results Management* process finds that an anti-doping rule violation has occurred and a sanction is imposed through any of the following means: (i) a hearing panel has made a ruling on the matter, (ii) an acceptance of a sanction, or (iii) when the assertion of an anti-doping rule violation has not otherwise been timely challenged and a sanction imposed.

When a sanction is imposed, the loss of benefits will take effect in accordance with the Loss of Benefits Grid, irrespective that the sanction may be subject to appeal as provided for in Article 13 of the *Code*.

When a sanction is imposed, an *Athlete* cannot be considered for or receive any additional USOPC benefit or service<sup>12</sup> during any period of *Ineligibility*.

#### **Section 4. Repayment Obligations**

If the USOPC makes a payment to an *Athlete* after the occurrence of the anti-doping violation, but prior to a sanction imposed, the *Athlete* will have a repayment obligation to the USOPC equal to the amount of the benefit received by the *Athlete* during any period of *Ineligibility*.

An *Athlete* must return and repay in full any Monetary Award that is based off a single competitive result which is *Disqualified* for an anti-doping rule violation. If the USOPC recovers prize money forfeited as a result of an anti-doping rule violation, the USOPC will take reasonable measures to allocate and distribute the prize money to any U.S. *Athlete* who has been entitled to it had the forfeiting *Athlete* not competed.

#### **Section 5. Return to Training Exception**

As provided for in Article 10.14.2 of the *Code*, an *Athlete* may return to train with a team or to use the facilities of a club, including the OPTC and any Training Site during the shorter of: (1) the last two months of the *Athlete's* period of *Ineligibility*, or (2) the last one-quarter of the period of *Ineligibility* imposed. An *Athlete* who qualifies to return to train at the OPTC or any Training Site, may utilize all services provided at those centers associated with training, which may include sport performance services, dining and other privileges during this period. This may also include room and board if the *Athlete* meets the NGB criteria for any on-site programs.

#### **Section 6. Appeal Rights**

If benefits are taken away after a sanction for an anti-doping rule violation is imposed, and the *Athlete* appeals the decision to the Court of Arbitration (CAS), or another entity with standing appeals the decision to CAS, and the *Athlete* prevails with a sanction that would otherwise make the *Athlete* eligible for a benefit, the USOPC will use all reasonable means to compensate the *Athlete* appropriately and proportionately to the loss of benefit during the period of the time the *Athlete* would have received the benefit.

#### **Section 7. Reinstatement of Benefits or Services**

After the conclusion of the period of *Ineligibility*, the *Athlete* will have to re-qualify for any benefit or service that was lost in accordance with the Loss of Benefits Grid.

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<sup>12</sup> Exceptions include for legal aid, the medical disengagement protocol, under the Return to Training exception, and for health-related services in exceptional circumstances.

**Section 8. Medical Disengagement Protocol**

*Athletes* who are eligible for Elite Athlete Health Insurance, the National Medical Network, or USOPC Sports Medicine Clinics will continue to be eligible for these benefits for 3 months from the date of their sanction. After this 3 month transition period, the *Athlete* may pay for additional care through the continuance program, but will not have access to the National Medical Network or USOPC Sports Medicine Clinics.

**Section 9. Timing for Loss of Benefits**

The loss of benefits begins as outlined in the Loss of Benefits Grid. Loss of benefits may be backdated and/or pro-rated to such date and an *Athlete* may be subject to repayment obligations during any overlapping time period.

Due to the different benefit structures that vary by sport, the USOPC may consider the unique circumstances of the case that affect the timing, including the dates of any notifications in conjunction with the dates of benefits received, in calculating the start date for the loss of benefits and/or repayment obligations. In such cases, the USOPC will utilize its reasonable discretion in determining the timing for removing any benefit and/or seeking repayment that may be more flexible, but not more restrictive, than as outlined in the Loss of Benefits Grid. Irrespective of this, for any anti-doping rule violation not involving a reduced sanction, some or all benefits and services will be withheld by the USOPC.



## USOPC National Anti-Doping Policy - Loss of Benefits Grid

|                   | Benefit/Service            |                                                                    | Consequences upon Interim Action                                                                                                                                                                                    | Consequences upon Sanction Imposed                                                                                                                                                                                                                                                                      |
|-------------------|----------------------------|--------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Performance Based | Financial Services         | Athlete Stipends*                                                  | Suspend and accrue                                                                                                                                                                                                  | For all violations resulting in a period of <i>Ineligibility</i> , loss of benefit for period of <i>Ineligibility</i> .                                                                                                                                                                                 |
|                   |                            | Coaching Stipends                                                  |                                                                                                                                                                                                                     |                                                                                                                                                                                                                                                                                                         |
|                   |                            | Other Funding/Stipends                                             |                                                                                                                                                                                                                     |                                                                                                                                                                                                                                                                                                         |
|                   |                            | Monetary Awards (e.g. Operation Gold/Performance Incentives)**     | Suspend and accrue                                                                                                                                                                                                  | If an <i>Athlete's</i> competitive result is <i>Disqualified</i> as a result of an anti-doping rule violation that was the basis for the Monetary Award, the <i>Athlete</i> will lose the Monetary Award.                                                                                               |
|                   | Sport Performance Services | Olympic & Paralympic Training Center (OPTC) /Training Sites Access | No Change to Services Eligibility, except that an individual under a <i>Provisional Suspension</i> may not participate in an organized activity at the OPTC or Training Site pursuant to Article 10.14 of the Code. | For all violations resulting in a period of <i>Ineligibility</i> , loss of benefit for period of <i>Ineligibility</i> except as provided for under the Return to Training exception                                                                                                                     |
|                   |                            | OPTC Residency                                                     |                                                                                                                                                                                                                     | For all violations resulting in a period of <i>Ineligibility</i> greater than 3 months, loss of benefit for period of <i>Ineligibility</i> . During such period, OPTC use is limited to dining and privileges associated with residency, expect as provided for under the Return to Training exception. |
|                   |                            | Nutrition                                                          |                                                                                                                                                                                                                     | For all violations resulting in a period of <i>Ineligibility</i> greater than 3 months, loss of benefit for period of <i>Ineligibility</i>                                                                                                                                                              |
|                   |                            | Physiology                                                         |                                                                                                                                                                                                                     |                                                                                                                                                                                                                                                                                                         |
|                   |                            | Technology                                                         |                                                                                                                                                                                                                     |                                                                                                                                                                                                                                                                                                         |
|                   |                            | Strength & Conditioning                                            |                                                                                                                                                                                                                     | For all violations resulting in a period of <i>Ineligibility</i> greater than 3 months, loss of benefit for period of <i>Ineligibility</i> , subject to the medical disengagement protocol                                                                                                              |
|                   |                            | USOPC Sports Psychologists                                         |                                                                                                                                                                                                                     |                                                                                                                                                                                                                                                                                                         |
|                   |                            | Sports Psychology Registry                                         |                                                                                                                                                                                                                     |                                                                                                                                                                                                                                                                                                         |

| Health & Well-Being | Medical & Health Services   | Elite Athlete Health Insurance (EAHI) | No Change to Services Eligibility | For all violations resulting in a period of <i>Ineligibility</i> greater than 3 months, loss of benefit for period of <i>Ineligibility</i> , subject to the medical disengagement protocol |
|---------------------|-----------------------------|---------------------------------------|-----------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                     |                             | National Medical Network (NMN)        |                                   |                                                                                                                                                                                            |
|                     |                             | Sports Medicine Clinics               |                                   |                                                                                                                                                                                            |
|                     |                             | Mental Health Services                |                                   |                                                                                                                                                                                            |
|                     | Career & Education Services | Tuition Assistance                    | Suspend and accrue                | For all violations resulting in a period of <i>Ineligibility</i> greater than 3 months, loss of benefit for period of <i>Ineligibility</i> .                                               |
|                     |                             | Simon Grants/Need Based Funding       |                                   |                                                                                                                                                                                            |
|                     |                             | Employment Opportunities              |                                   |                                                                                                                                                                                            |
|                     |                             | Other Athlete Career & Education      |                                   |                                                                                                                                                                                            |

|                                 |                                 |                                       |                                          |                                                                                                            |
|---------------------------------|---------------------------------|---------------------------------------|------------------------------------------|------------------------------------------------------------------------------------------------------------|
|                                 |                                 | (ACE) Services                        | No Change to Services Eligibility        | Employer/Sponsor may be notified per contract. Grants awarded based on competition results may be revoked. |
|                                 | Other Services                  | Sponsorship/Group Licensing Agreement |                                          |                                                                                                            |
|                                 |                                 | Speaking Engagements                  |                                          |                                                                                                            |
|                                 |                                 |                                       |                                          |                                                                                                            |
| <b>Rights &amp; Protections</b> | <b>Athlete Legalaid Program</b> |                                       | <b>No change to Services Eligibility</b> |                                                                                                            |

\**Athlete* Stipends are USOPC funds distributed directly to currently competing *Athletes* upon meeting the specific NGB defined performance criteria. *Athlete* Stipends support actively competing *Athletes* in their high-performance training needs. Performance criteria is individualized per sport/discipline and may be based off of past results, including a single past result. Timing and payment structures vary by sport/discipline.

\*\* Monetary Awards are USOPC funds distributed directly to *Athletes* upon meeting a performance standard. This includes Operation Gold payments, along with any other performance incentives, awards or bonuses. These Monetary Awards are strictly based off of results at a single event to reward performance. The award is not tied to status as a currently competing *Athlete* or to support training needs, but rather is intended as prize money.

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**EXHIBIT I**  
**SELECTION OF ATHLETES**

USATF Out-of-Competition Drug Testing Pool  
Approved and revised as of March, 2021

- Part I Definitions
- Part II Authority
- Part III Ranking Lists Used for Section 5.1 Events
- Part IV Selection of Athletes to be Tested
- Part V Tested Events
- Part VI Publication of Results
- Part VII Amendments

**Part I DEFINITIONS**

**1.1 Athlete(s) shall mean:** *an individual who is a United States citizen and who has subjected himself or herself to the jurisdiction of USATF by (a) becoming a member of USATF, (b) competing in an event conducted under the auspices of USATF, (c) executing a competition entry form that notifies the Athlete that his/her participation in the competition subjects the Athlete to drug testing pursuant to the applicable rules of USATF, World Athletics, USADA or the USOPC, or (d) applying for USATF or USOPC athlete support.*

**1.2 WA shall mean:** *World Athletics, the world governing body for track and field, long distance running and race walking (Athletics).*

**1.3 Registered Testing Pool (RTP) may include:**

**A. For Track and Field:** *The top ten (10) U.S. Athletes listed by WA as being among the top fifty (50) individual performers in the world in the Tested Events on the ranking lists set forth in Part V. If five (5) or more, but fewer than ten (10), athletes are so listed by the WA, all of those athletes may be included in the Pool. If fewer than five (5) U.S. Athletes are so listed, the next highest ranking U.S. Athletes in that Event may be added until the Pool is composed of at least five (5) Athletes. To the extent that WA's lists are inadequate for this purpose, USATF may use Track and Field News' performer lists as a source for completing the RTP.*

**B. For Road Racing:** *The top ten (10) individual U.S. Athletes listed by WA as being among the top fifty (50) individual performers in the world in the Tested Events on the ranking lists as set forth in Part V. If fewer than ten (10) Athletes are so listed, the next highest ranking U.S. Athletes in that Event may be added until the Pool is composed of at least five (5) Athletes. To the extent that WA's lists are inadequate for this purpose, USATF may use the Road Running Information Center or Track and Field News as a source for completing the RTP.*

**C. For Cross Country:** *The top ten (10) U.S. finishers in the USATF Cross Country National Championships, as set forth in Part V-5.3. USATF shall notify USADA of the names of those athletes following the conclusion of the Championships. These athletes may be placed in the RTP in the subsequent testing quarter and may be removed from the pool at the end of the fourth consecutive calendar quarter following inclusion in the RTP, unless they are otherwise qualified to remain in the pool.*

**D. For Indoor Only Events:** *The top five (5) U.S. Athlete finishers at the U.S. Senior Indoor National Championships, as set forth in Part V-5.2. USATF shall notify USADA of the names of those athletes following the conclusion of the Championships. These athletes may be placed in the RTP in the subsequent testing quarter and may be removed from the pool at the end of the fourth consecutive calendar quarter following inclusion in the RTP, unless they are otherwise qualified to remain in the pool.*

**E. Others:** *Any athlete finishing in the top three positions in any Senior National Outdoor Championship. USATF shall notify USADA of the names of those athletes following the conclusion of the Championships. These athletes may be placed in the RTP in the subsequent testing quarter and may be removed from the pool at the end of the fourth consecutive calendar quarter following inclusion in the RTP, unless they are otherwise qualified to remain in the pool.*

Any athlete establishing a World or American Record in an event listed in Part V. Such athlete may be added to the RTP (if he or she is not already in the pool) by USATF's notification to USADA.

USADA shall maintain the quarterly list of RTP Athletes, which list shall be made available to the USATF national office for inspection.

**F. USADA:** Pursuant to USADA's Protocol For Olympic Movement Testing, Section 2, any athlete who is a member of USATF may be added to or removed from the RTP by USADA, upon written notice to USATF and said athlete.

**G. USATF Additions:** USATF reserves the right to make suggested additions to the RTP of any Athlete who is receiving athlete support from USATF or the USOPC.

**H. WA Additions:** The WA may add Athletes to its out-of-competition drug testing pool based upon their athletic performances during the year. Any Athlete added to the WA's out-of-competition drug testing pool may be added to the USATF/USADA out-of-competition drug testing pool. USATF and USADA will make every effort to add Athletes added to the WA's out-of-competition drug testing pool to its domestic out-of-competition drug testing pool as specified in this Protocol.

**1.4 Out-of-Competition Drug Testing (OOCT)** shall mean the out-of-competition drug testing program which takes place outside the in-competition period, and which is conducted by the United States Anti-Doping Agency on behalf of the USOPC and all member national governing bodies of the USOPC, as mandated by the Chapter XXIII of the USOPC By-Laws.

**1.5 Tested Event** (or Events) shall mean the events designated in Part V below.

**1.6 USATF** shall mean USA Track & Field, Inc.

**1.7 USADA** shall mean the United States Anti-Doping Agency.

**1.8 USOPC** shall mean the United States Olympic and Paralympic Committee.

## **Part II AUTHORITY**

**2.1** This selection process is adopted pursuant to USATF's obligations pursuant to Chapter XXIII of the USOPC By-Laws. The USATF Athletes' Commission fully supports the principles embodied herein.

**2.2** USATF designates USADA to conduct no-advance-notice drug testing of Athletes (See USATF Regulation 20).

**2.3** In addition to all the other testing authorized herein, the out-of-competition testing of American Athletes may be conducted by the WA pursuant to WA Rules and the WA Procedural Guidelines for Doping Control. Those Athletes failing to submit to drug testing, after having been notified by the appropriate testing authorities, shall be subject to disciplinary procedures established by USADA and imposed by USATF, pursuant to WA Rules (See USATF Regulation 20 and USADA Protocol For Olympic Movement Testing.)

**2.4** USATF recognizes USADA's authority to drug test any USATF athlete, pursuant to its applicable protocols, whether or not said Athlete is a member of USATF's OOCT pool.

## **Part III RANKING LISTS USED FOR SECTION 5.1 EVENTS**

**3.1.** For the first calendar quarter of each year, the ranking list for each event shall be the previous year's outdoor list, as available on November 1 of the previous year.

**3.2.** For the second calendar quarter of each year, the rankings in each event shall be based on a merged list composed of the previous year's outdoor list and the current year's indoor list as available on January 1.

- 3.3 For the third calendar quarter of each year, the rankings in each event shall be based on a merged list composed of the previous year's outdoor list, the current year's outdoor list as available on May 1, and the current year's indoor list.
- 3.4 For the fourth calendar quarter of each year, the rankings in each event shall be based on the current year's outdoor list, as available on August 1.

#### **Part IV SELECTION OF ATHLETES FOR DRUG TESTING**

- 4.1 Athletes shall be selected for drug testing from the RTP by USADA using any method it deems appropriate. Any athlete so selected may be tested by USADA based on that selection, subject to USADA's rules and procedures, for as long as the athlete remains in the RTP.
- 4.2 The names of those Athletes who have been banned for life from the sport of track and field, long distance running, and race walking, shall be removed from the RTP. Also, an Athlete with multiple citizenships who has executed a "Surrender of Citizenship Benefits" form, renouncing all claims or entitlement to the privileges and benefits available to track and field athletes who are United States citizens, shall be removed from the RTP. (See copy of "Surrender of Citizenship Benefits" form attached.) An Athlete may resume his/her eligibility to receive benefits available to American athletes if s/he: 1) makes all drug testing results from his/her foreign Track and Field/Athletics Federation available to USATF, and 2) agrees to comply with all applicable International Olympic Committee, United States Olympic and Paralympic Committee, USADA, USATF and/or WA eligibility rules, before resuming competition for the United States.
- 4.3 USADA shall determine the frequency, number, and timing of drug tests as well as the order in which athletes will be tested.

#### **Part V TESTED EVENTS**

##### **5.1 TRACK EVENTS:**

###### **Women**

100m            100m Hurdles  
200m            400m Hurdles  
400m            3,000m Steeple  
800m  
1,500m/Mile  
5,000m  
10,000m

###### **Men**

100m            110m Hurdles  
200m            400m Hurdles  
800m            400m  
1,500m/Mile  
5,000m  
10,000m  
3,000m Steeplechase

##### **FIELD EVENTS:**

###### **Women**

High Jump       Shot Put  
Pole Vault       Discus Throw  
Long Jump       Hammer Throw  
Triple Jump       Javelin Throw

###### **Men**

High Jump       Shot Put  
Pole Vault       Discus Throw  
Long Jump       Hammer Throw  
Triple Jump       Javelin Throw

##### **MULTIPLE & COMBINED EVENTS:**

###### **Women**

Heptathlon

###### **Men**

Decathlon

##### **RACE WALK:**

###### **Women**

20,000m Race Walk

###### **Men**

20,000m Race Walk  
50,000m Race Walk

**5.2 INDOOR ONLY EVENTS:****Women**

60m

60m Hurdles

3,000m

Pentathlon

**Men**

60m

60m Hurdles

3,000m

Heptathlon

**5.3 CROSS COUNTRY:****Women**

8,000m

**Men**

12,000m

**5.4 ROAD RACING:****Women**

10,000m

Marathon

**Men**

10,000m

Marathon

**Part VI PUBLICATION OF RESULTS**

*A report of those Athletes testing negative and receiving a subsequent sanction shall be published by USATF, upon notification from USADA. The names of Athletes found to have committed a doping violation will be published by USADA.*

**Part VII AMENDMENTS**

- 7.1 The USATF Board of Directors, by two-thirds vote, may amend this RTP selection process. Any such amendment shall not, however, alter USADA's authority to select any USATF Athlete for testing as provided in Part II, 2.4 above, or any USADA protocol.*
- 7.2 Any changes made to the selection process by the Board of Directors shall be effective immediately, unless otherwise specified.*



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**USA TRACK & FIELD ATHLETE SURRENDER OF CITIZENSHIP BENEFITS**

I, \_\_\_\_\_, knowingly and with specific intent do hereby surrender my entitlement to compete in track and field events as a United States citizen, in favor of competing for \_\_\_\_\_, of which I am also a citizen. I understand that by surrendering my eligibility to represent the United States for competition purposes, I will forfeit all benefits to which I would otherwise be entitled as an American athlete member of USA Track & Field, Inc. (USATF), including but not limited to: my ability to compete in USATF national championship competitions, my eligibility to receive American-only prize money awarded at USATF national championships, and my eligibility to receive USATF or United States Olympic and Paralympic Committee grants, insurance and athlete support. In submitting this Surrender of Citizenship Benefits, I understand that I will be removed from USATF's no-advanced notice drug testing program, and that if I wish to resume my status as a United States track and field athlete at a future date, I will be required to: 1) make all my drug testing results from my other Track and Field/Athletics Federation available to USATF, and 2) comply with all applicable International Olympic Committee, United States Olympic and Paralympic Committee, USATF and/or World Athletics eligibility rules, before resuming competition for the United States. I further understand and agree that this Surrender of Citizenship Benefits is not intended to avoid, nor will it have the effect of avoiding, any disciplinary proceedings that have or will be brought against me pursuant to USATF Regulation 20 for drug testing conducted prior to my surrender of citizenship benefits.

\_\_\_\_\_  
Date

\_\_\_\_\_  
ATHLETE

\_\_\_\_\_  
Athlete Signature

STATE OF                    }  
                                     }  
COUNTY OF               }

I certify that this document was signed in my presence, by the individual named above, on the date indicated.

\_\_\_\_\_  
Commission Expires

\_\_\_\_\_  
Notary Public

**EXHIBIT J**  
**WA ANTI-DOPING REGULATIONS**

<https://www.worldathletics.org/about-iaaf/documents/book-of-rules>

**EXHIBIT K**  
**WORLD ANTI-DOPING CODE PROHIBITED LIST**

*To view the current World Anti-Doping Code Prohibited List please see:*

<https://www.wada-ama.org/en/resources/science-medicine/prohibited-list-documents>

**EXHIBIT L**  
**USOPC BYLAWS – SECTION 9**  
*Effective April 1, 2023*

**ATHLETES' RIGHTS TO PARTICIPATE IN PROTECTED COMPETITION**

Section 9.1 Opportunity to Participate. No member of the corporation may deny or threaten to deny any Amateur Athlete the opportunity to participate in an upcoming Protected Competition nor may any member, subsequent to such competition, censure, or otherwise penalize, (i) any such athlete who participates in such competition, or (ii) any organization that the athlete represents. The corporation will, by all reasonable means, protect the opportunity of an Amateur Athlete to participate if selected (or to attempt to be selected to participate) in a Protected Competition. In determining reasonable means to protect an athlete's opportunity to participate, the corporation will consider its responsibilities to the individual athlete(s) involved or affected, to its mission, and to its membership.

Any reference to athlete in this Section 9 will also equally apply to any coach, trainer, manager, administrator or other official.

Section 9.2 Denial of Opportunity to Participate. Any athlete who alleges that they have been denied, or threatened denial, by a corporation member an opportunity to participate as established by Section 9.1 of these Bylaws, may seek to protect their opportunity to participate by filing a complaint with the corporation, and may make a subsequent demand for arbitration, all as set out in the USOPC Dispute Resolution Policy. An athlete competing in a team sport, where the team as a whole is affected, may bring a claim on behalf of the team.

Section 9.3 Administration. Complaints filed under this Section 9 will be administered by the corporation's dispute resolution team as set out in the Dispute Resolution Policy. When a complaint is properly filed, the dispute resolution team will promptly notify the Athlete Ombuds, the chair of the AAC and any necessary internal corporation staff of the complaint and confirm that the complaint has been served on the NGB.

Section 9.4 Failure to Properly File. A complaint that is not filed in accordance with the Dispute Resolution Policy will render the filing ineffective and the complaint will not be considered to have been properly filed.

Section 9.5 Action by the Corporation and the Office of Athlete Ombuds. Upon the filing of a complaint, the corporation's Dispute Resolution team and the Athlete Ombuds will review the complaint, seek information as to the merits of the complaint, and determine whether the complaint can be informally resolved to the satisfaction of the parties. The parties will cooperate with the Dispute Resolution team in providing information regarding the complaint and in exploring resolution of the complaint. If the complaint is not resolved or otherwise pursued through arbitration within 60 days, the Dispute Resolution team will close the complaint.

Section 9.6 Arbitration. If the complaint is not settled to the athlete's satisfaction the athlete may file a claim with the arbitral organization designated by the corporation Board against the respondent for final and binding arbitration. If an impending competition requires immediate resolution of the complaint, an athlete may file a claim with the arbitral organization simultaneously with the filing of the complaint with the corporation.

The corporation has the right to participate in the arbitration proceeding in any capacity, but it cannot be involuntarily joined by a party or by an arbitrator appointed by the arbitral organization.

The arbitrator will render a reasoned award in writing. All such awards will be made public and published on the corporation's website.

Section 9.7 Affected Parties. In any arbitration brought pursuant to this Section 9, the athlete filing the claim will submit with the claim a list of all individuals the athlete believes may be adversely affected by the arbitration. The NGB will also promptly submit to the arbitrator a list of individuals it believes may be adversely affected by the arbitration, along with the relevant contact information for the individuals identified by the NGB and by the athlete. If requested by the arbitrator, the USOPC may also include a list of parties it believes to be affected. The arbitrator has the ultimate authority to determine which individuals will be included in the pool of affected athletes. The arbitrator will then promptly provide those individuals with notice of the arbitration. The arbitrator will also approve the notice to be given. Any individual identified as an affected party and so notified of the claim, will have the option to participate in the arbitration as a party. If an individual is notified of the claim, then that individual will be bound by the decision of the arbitrator even though the individual chose not to participate.

Section 9.8 Expedited Procedures. Upon the request of a party, claims may be heard on an expedited basis if filed for

arbitration at least 48 hours in advance of the upcoming Protected Competition (or participation deadline) and provided that it is necessary to expedite the proceeding in order to resolve a matter relating to a Protected Competition that is so scheduled that compliance with regular procedures would not be likely to produce a sufficiently early decision to do justice to the affected parties. The arbitrator will hear and decide the claim within 48 hours of the filing of the claim. In such case, the arbitrator is authorized to hear and decide the claim under such procedures as are necessary, but fair to the parties involved. Additionally, the USOPC may take necessary measures to ensure that all parties, including the affected athletes, have timely notice of the claim.

Section 9.9 Time Bar. A claim against a respondent will be prohibited unless filed with the arbitrator no later than 180 days after the alleged date of denial and the competition that is the subject of the dispute is still upcoming.

Section 9.10 Anti-Doping Violations. A pending case or decision concerning an anti-doping rule violation under the jurisdiction of, or adjudicated by, an anti-doping organization is not reviewable through, or the subject of, these Bylaws.

Section 9.11 SafeSport Violation. An allegation or decision concerning a SafeSport rule violation that is either accepted under the jurisdiction of the USCSS or adjudicated by the USCSS (or was previously adjudicated by an NGB prior to the opening of the USCSS) is not reviewable through, or the subject of, these Bylaws.

Section 9.12 Field of Play Decisions. The final decision of a referee during a competition regarding a field of play decision (a matter set forth in the rules of the competition to be within the discretion of the referee) is not reviewable through or the subject of these Bylaws unless the decision is (i) outside the authority of the referee to make or (ii) the product of fraud, corruption, partiality or other misconduct of the referee. For purposes of this Section, the term “referee” includes any individual with discretion to make field of play decisions.

Section 9.13 Complaints Regarding Compliance. No action taken by an athlete under this Section 9 precludes, or acts as a bar, to the filing of a complaint by the athlete under Section 10 of these Bylaws.

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**EXHIBIT M-1**  
**SAMPLE ASSOCIATION NATIONAL SUSPENSION REQUEST FORM**

The [NAME OF ASSOCIATION] Association held a hearing on [DATE] regarding the matter of [PLANTIFF] vs. [DEFENDANT]. The issue(s) presented was/ (were) [PROVIDE SUMMARY].

The Association hearing panel decided that [DECISION OF PANEL] and imposed a period of suspension on/(expelled) [NAME OF SUSPENDED INDIVIDUAL] from membership in the Association for [DATES OR LIFETIME]. The [NAME OF ASSOCIATION] Association hereby requests that USA Track & Field endorse the action taken by the Association in the above-described matter:

Attached you will find:

- The decision and/or opinion of Association's hearing panel.
- Statement of Association in support of USATF's extension of action taken by the Association to the national level.

Submitted by

\_\_\_\_\_  
Signature of President

\_\_\_\_\_  
Signature of Secretary

\_\_\_\_\_  
Printed Name of President

\_\_\_\_\_  
Printed Name of Secretary

\_\_\_\_\_  
Date

\_\_\_\_\_  
Date



**EXHIBIT M-2**  
**SAMPLE NOTARIZATION OF COMPLAINT**  
(Attach to Complaint)

STATEMENT UNDER OATH

I, \_\_\_\_\_, do hereby affirm and swear that the statements in the attached memorandum/letter dated [DATE] 202X, are true and do not misstate a material fact or omit a material fact.

BY THE SIGNATOR

\_\_\_\_\_  
Date

\_\_\_\_\_  
Signature

NOTARIZATION

STATE OF                               }  
                                             }  
COUNTY OF                       }

Before me, a Notary Public, in and for said County and State, personally appeared the individual named above who acknowledged execution of the foregoing memorandum/letter.

WITNESS my hand and Notarial Seal this \_\_\_\_ day of \_\_\_\_\_, 20\_\_\_\_.

\_\_\_\_\_  
Commission Expiration Date

\_\_\_\_\_  
Notary Public Signature

\_\_\_\_\_  
County of Residence

\_\_\_\_\_  
Notary Printed Name

---

**EXHIBIT M-3**  
**SAMPLE NOTICE OF APPEAL**  
(Attach to Appeal)

NOTICE OF APPEAL

In the case of [APPELLANT] versus [APPELLEE], I, [NAME], hereby appeal the decision of [ASSOCIATION OR OTHER] rendered on [DATE], a copy of which is attached, on the basis that [STATE GROUNDS FOR APPEAL].

BY THE SIGNATOR

\_\_\_\_\_  
Date

\_\_\_\_\_  
Signature

**NOTARIZATION**

STATE OF \_\_\_\_\_ }

}

COUNTY OF \_\_\_\_\_ }

}

Before me, a Notary Public, in and for said County and State, personally appeared the individual named above who acknowledged execution of the foregoing memorandum/letter.

WITNESS my hand and Notarial Seal this \_\_\_\_\_ day of \_\_\_\_\_, 20\_\_\_\_\_.

\_\_\_\_\_  
*Commission Expiration Date*

\_\_\_\_\_  
*Notary Public Signature*

\_\_\_\_\_  
*County of Residence*

\_\_\_\_\_  
*Notary Printed Name*

**EXHIBIT M-4**  
**SAMPLE NOTICE OF PENALTY**

NOTICE OF PENALTY

COMPLAINANT/APPELLEE

Vs.

RESPONDENT/APPELLANT

You are hereby notified of the penalty of \_\_\_\_\_ which is being imposed against you in accordance with the decision and opinion of the NABR dated \_\_\_\_\_.

[DESCRIBE PENALTIES]

\_\_\_\_\_  
*President*



*2025*



***USATF™***

# ***APPENDICES***



**APPENDIX ONE  
APPLICATIONS FOR RECORD**

|                                                                                   |                                                                                    |
|-----------------------------------------------------------------------------------|------------------------------------------------------------------------------------|
|  | <h2 style="margin: 0;">Application for an<br/>American Record<br/>TRACK EVENT</h2> |
|-----------------------------------------------------------------------------------|------------------------------------------------------------------------------------|

|                                                                                                                                                                                                          |                                                                                                                   |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------|
| This form must be completed and dispatched within<br>30 days of the record performance to:                                                                                                               | <b>USA TRACK &amp; FIELD</b><br>130 East Washington St., Suite 800, Indianapolis, IN 46204<br>ed.gorman@usatf.org |
| APPLICATION IS HEREBY MADE FOR THE RATIFICATION OF THE FOLLOWING RECORD, IN SUPPORT OF WHICH THE BELOW<br>INFORMATION IS SUBMITTED: <i>(Please type or use block capitals, check where appropriate.)</i> |                                                                                                                   |

- ☐ American Record    ☐ American U20 Record  
☐ American Indoor Record    ☐ American U20 Indoor Record

| <b>APPLICATION DATA</b>                                                                                      |  |  |                               |  |                              |   |                                |   |   |
|--------------------------------------------------------------------------------------------------------------|--|--|-------------------------------|--|------------------------------|---|--------------------------------|---|---|
| <b>Event (e.g. 100m, 3000m SC):</b>                                                                          |  |  |                               |  | <input type="checkbox"/> Men |   | <input type="checkbox"/> Women |   |   |
| <b>Record Time Claimed (e.g. 9.58, 7:53.63):</b>                                                             |  |  |                               |  |                              |   |                                |   |   |
| <b>Full Name of Athlete:</b>                                                                                 |  |  |                               |  |                              |   |                                |   |   |
| <b>Country of Athlete:</b>                                                                                   |  |  | <b>Date of Birth for U20:</b> |  |                              | D |                                | M | Y |
| For Relay Events, the full names of<br>all team members, in the order of<br>running (including DOB for U20): |  |  |                               |  |                              |   |                                |   |   |
| <b>Athlete's shoe brand and<br/>model:</b>                                                                   |  |  |                               |  |                              |   |                                |   |   |
| <b>Name of Competition:</b>                                                                                  |  |  |                               |  |                              |   |                                |   |   |
| <b>USATF Sanction #:</b>                                                                                     |  |  |                               |  |                              |   |                                |   |   |
| <b>Date of Event:</b>                                                                                        |  |  | <b>Time of Event:</b>         |  |                              |   |                                |   |   |
| <b>City:</b>                                                                                                 |  |  |                               |  |                              |   |                                |   |   |
| <b>Athlete Affiliation:</b>                                                                                  |  |  |                               |  |                              |   |                                |   |   |
| <b>Name of Stadium:</b>                                                                                      |  |  |                               |  |                              |   |                                |   |   |

| <b>RESULTS OF COMPETITION</b> |      |         |        |
|-------------------------------|------|---------|--------|
|                               | Name | Country | Result |
| <b>1st:</b>                   |      |         |        |
| <b>2nd:</b>                   |      |         |        |
| <b>3rd:</b>                   |      |         |        |



**STARTER**

I certify that the start of the race was in accordance with USATF Rules.

**Make of False Start Control Device (if applicable):****Reaction Time (if applicable):****Starter:****Signature:****FULLY AUTOMATIC TIMING****Make of Timing Device:****Official Time Recorded:****Chief Photo Finish Judge:****Signature:****HAND TIMING (if applicable)**

I, the undersigned official timekeeper of the event mentioned on this form, do hereby certify that the time set opposite my signature was the exact time recorded by my watch and that the watch used by me has been certified and approved by USA Track &amp; Field.

**Time:****Name:****Signature:****Time:****Name:****Signature:****Time:****Name:****Signature:**

I confirm that the above Timekeepers exhibited their watches to me and that the times were as stated.

**Chief Timekeeper or Referee:****Signature:****WIND MEASUREMENT (if applicable)****Type and Make of Wind Gauge:****Wind Speed in the Direction of Running:****Wind Gauge Operator:****Signature:****DOPING CONTROL**

I, a member of the Doping Committee for the Competition, certify that a sample for a doping test was obtained in accordance with USATF Rules from the above-mentioned athlete(s) in my presence and dispatched to the following accredited laboratory:

NOTE: For relays, samples must be obtained from ALL members of the team.

**Date and Time of Doping Sample Collection:****Testing Laboratory:****Doping Control Officer:****Signature:**

| <b>ATHLETICS FACILITY</b>                                                                                                                                                                                           |  |                                  |                                  |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|----------------------------------|----------------------------------|
| The Facility holds a current valid World Athletics Facility Certificate:                                                                                                                                            |  | <input type="checkbox"/> Class 1 | <input type="checkbox"/> Class 2 |
|                                                                                                                                                                                                                     |  | <input type="checkbox"/> Indoor  |                                  |
| Or                                                                                                                                                                                                                  |  |                                  |                                  |
| The competition site complied with the conditions set out in the USATF/World Athletics Certification System. There is a survey on file and a raised curb was in place.                                              |  |                                  | <input type="checkbox"/>         |
| Technical Manager:                                                                                                                                                                                                  |  |                                  |                                  |
| Signature:                                                                                                                                                                                                          |  |                                  |                                  |
| <b>GUARANTEE BY REFEREE</b>                                                                                                                                                                                         |  |                                  |                                  |
| I hereby certify that all the information recorded on this form is accurate, that the officials conducting the Competition were duly qualified and that the appropriate USATF Competition Rules were complied with. |  |                                  |                                  |
| Referee:                                                                                                                                                                                                            |  |                                  |                                  |
| Signature:                                                                                                                                                                                                          |  |                                  |                                  |

| <b>THE FOLLOWING MUST BE ENCLOSED WITH THIS APPLICATION</b>                                                                                                                                                                                                                                                                                                                                            |                                                                      |                                                    |                                         |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------|----------------------------------------------------|-----------------------------------------|
| The <b>printed programme</b> of the Competition, the <b>complete results of the event</b> including the <b>reaction times</b> (if applicable), the <b>Photo Finish</b> and <b>Zero Test</b> image in the case of a track record where Fully Automatic Timekeeping was in operation, <b>Judges' Score Sheet</b> , <b>Official Results</b> , <b>Doping Control Form</b> , <b>Passport copy for U20</b> . |                                                                      |                                                    |                                         |
| <b>Additional Information for Historical Purposes</b>                                                                                                                                                                                                                                                                                                                                                  |                                                                      |                                                    |                                         |
| Weather Conditions:                                                                                                                                                                                                                                                                                                                                                                                    |                                                                      |                                                    |                                         |
| Intermediate Times (if applicable):                                                                                                                                                                                                                                                                                                                                                                    |                                                                      |                                                    |                                         |
| If available:                                                                                                                                                                                                                                                                                                                                                                                          | <input type="checkbox"/> Video of the record for World Athletics use | <input type="checkbox"/> Photograph of the athlete | <input type="checkbox"/> Press cuttings |

| <b>RECOMMENDATION BY USATF COMMITTEE</b>                                                                                                            |  |
|-----------------------------------------------------------------------------------------------------------------------------------------------------|--|
| The undersigned Sport Committee Chair hereby certifies that it is satisfied with the accuracy of this application and recommends it for acceptance: |  |
| Committee:                                                                                                                                          |  |
| Committee Chair: (Name)                                                                                                                             |  |
| Signature:                                                                                                                                          |  |

| <b>USA TRACK &amp; FIELD APPROVAL</b> |      |     |
|---------------------------------------|------|-----|
|                                       |      |     |
| USATF Technical Representative        | Date | CEO |

APPLICATION IS HEREBY MADE FOR THE RATIFICATION OF THE FOLLOWING RECORD, IN SUPPORT OF WHICH THE BELOW INFORMATION IS SUBMITTED: *(Please type or use block capitals, check where appropriate.)*

☐ American Record ☐ American U20 Record☐ American Indoor Record    ☐ American U20 Indoor Record

| APPLICATION DATA                                   |  |  |                        |  |                              |   |                                |   |   |
|----------------------------------------------------|--|--|------------------------|--|------------------------------|---|--------------------------------|---|---|
| Event (e.g. High Jump, Shot Put):                  |  |  |                        |  | <input type="checkbox"/> Men |   | <input type="checkbox"/> Women |   |   |
| Record Height/Distance Claimed (e.g. 2.09, 22.63): |  |  |                        |  |                              |   |                                |   |   |
| Full Name of Athlete:                              |  |  |                        |  |                              |   |                                |   |   |
| Athlete Affiliation:                               |  |  | Date of Birth for U20: |  |                              | D |                                | M | Y |
| Athlete's shoe brand and model                     |  |  |                        |  |                              |   |                                |   |   |
| Name of Competition:                               |  |  |                        |  |                              |   |                                |   |   |
| USATF Sanction #:                                  |  |  |                        |  |                              |   |                                |   |   |
| Date of Event:                                     |  |  | Time of Event:         |  |                              |   |                                |   |   |
| City:                                              |  |  |                        |  |                              |   |                                |   |   |
| Country:                                           |  |  |                        |  |                              |   |                                |   |   |
| Name of Stadium:                                   |  |  |                        |  |                              |   |                                |   |   |

| RESULTS OF COMPETITION |      |         |        |
|------------------------|------|---------|--------|
|                        | Name | Country | Result |
| 1st:                   |      |         |        |
| 2nd:                   |      |         |        |
| 3rd:                   |      |         |        |

**IMPLEMENTS CONTROL JUDGE (if applicable)**

I hereby certify that the implement used in the record claimed has been examined by me after the performance and conforms exactly with the relevant USATF Rule. I further certify that the following implement used is freely available worldwide.

|                                  |  |                         |  |
|----------------------------------|--|-------------------------|--|
| <b>Manufacturer:</b>             |  |                         |  |
| <b>Model:</b>                    |  | <b>Measured Weight:</b> |  |
| <b>Certification No.:</b>        |  |                         |  |
| <b>Implements Control Judge:</b> |  |                         |  |
| <b>Signature:</b>                |  |                         |  |

**SCIENTIFIC MEASUREMENT DEVICE (if applicable)**

|                                 |  |
|---------------------------------|--|
| <b>Type and Make of Device:</b> |  |
| <b>Measurement Judge:</b>       |  |
| <b>Signature:</b>               |  |

**FIELD JUDGES**

We hereby certify that the measurement stated opposite our respective signatures is exact as measured in accordance with World Athletics Rules.

|                            |  |              |  |                   |  |
|----------------------------|--|--------------|--|-------------------|--|
| <b>Distance or height:</b> |  | <b>Name:</b> |  | <b>Signature:</b> |  |
| <b>Distance or height:</b> |  | <b>Name:</b> |  | <b>Signature:</b> |  |
| <b>Distance or height:</b> |  | <b>Name:</b> |  | <b>Signature:</b> |  |

**WIND MEASUREMENT (if applicable)**

|                                                |  |
|------------------------------------------------|--|
| <b>Type and Make of Wind Gauge:</b>            |  |
| <b>Wind Speed in the Direction of Jumping:</b> |  |
| <b>Wind Gauge Operator:</b>                    |  |
| <b>Signature:</b>                              |  |

**DOPING CONTROL**

I, a member of the Doping Committee for the Competition, certify that a sample for a doping test was obtained in accordance with USATF Rules from the above-mentioned athlete in my presence and dispatched to the following accredited laboratory:

|                                                   |  |
|---------------------------------------------------|--|
| <b>Date and Time of Doping Sample Collection:</b> |  |
| <b>Testing Laboratory:</b>                        |  |
| <b>Doping Control Officer:</b>                    |  |
| <b>Signature:</b>                                 |  |

| <b>ATHLETICS FACILITY</b>                                                                                                                                                                    |  |                                         |                                         |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|-----------------------------------------|-----------------------------------------|
| The Facility holds a current valid World Athletics Facility Certificate:                                                                                                                     |  | <input type="checkbox"/> <b>Class 1</b> | <input type="checkbox"/> <b>Class 2</b> |
|                                                                                                                                                                                              |  | <input type="checkbox"/> <b>Indoor</b>  |                                         |
| Or                                                                                                                                                                                           |  |                                         |                                         |
| The competition site complied with the conditions set out in the World Athletics Certification System. The respective parts of the Measurement Report Form are attached to this application. |  |                                         | <input type="checkbox"/>                |
| Technical Manager:                                                                                                                                                                           |  |                                         |                                         |
| Signature:                                                                                                                                                                                   |  |                                         |                                         |

| <b>GUARANTEE BY REFEREE</b>                                                                                                                                                                                         |  |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|
| I hereby certify that all the information recorded on this form is accurate, that the officials conducting the Competition were duly qualified and that the appropriate USATF Competition Rules were complied with. |  |
| Referee:                                                                                                                                                                                                            |  |
| Signature:                                                                                                                                                                                                          |  |

| <b>THE FOLLOWING MUST BE ENCLOSED WITH THIS APPLICATION</b>                                                                                                                 |                                                            |                                                    |                                         |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------|----------------------------------------------------|-----------------------------------------|
| The printed programme of the Competition, the complete results of the event, copy of the Judges' Score Sheet, Official Results, Doping Control Form, Passport copy for U20. |                                                            |                                                    |                                         |
| <i>Additional Information for Historical Purposes</i>                                                                                                                       |                                                            |                                                    |                                         |
| Weather Conditions:                                                                                                                                                         |                                                            |                                                    |                                         |
| If Available:                                                                                                                                                               | <input type="checkbox"/> Video of the record for USATF use | <input type="checkbox"/> Photograph of the athlete | <input type="checkbox"/> Press cuttings |

| <b>RECOMMENDATION BY USATF COMMITTEE</b>                                                                                                            |  |
|-----------------------------------------------------------------------------------------------------------------------------------------------------|--|
| The undersigned Sport Committee Chair hereby certifies that it is satisfied with the accuracy of this application and recommends it for acceptance: |  |
| Committee:                                                                                                                                          |  |
| Committee Chair: (Name)                                                                                                                             |  |
| Signature:                                                                                                                                          |  |

| <b>USA TRACK &amp; FIELD APPROVAL</b> |      |     |
|---------------------------------------|------|-----|
|                                       |      |     |
| USATF Technical Representative        | Date | CEO |



# Application for an American Record COMBINED EVENT

This form must be completed and dispatched within 30 days of the record performance to:

**USA TRACK & FIELD**

130 East Washington St., Suite 800, Indianapolis, IN 46204  
ed.gorman@usatf.org

APPLICATION IS HEREBY MADE FOR THE RATIFICATION OF THE FOLLOWING RECORD, IN SUPPORT OF WHICH THE BELOW INFORMATION IS SUBMITTED: *(Please type or use block capitals, check where appropriate.)*

☐ American Record ☐ American U20 Record

☐ American Indoor Record ☐ American U20 Indoor Record

## APPLICATION DATA

|                                         |  |                              |                                |
|-----------------------------------------|--|------------------------------|--------------------------------|
| Event (e.g. Decathlon):                 |  | <input type="checkbox"/> Men | <input type="checkbox"/> Women |
| Record Point Total Claimed (e.g. 8865): |  |                              |                                |
| Full Name of Athlete:                   |  |                              |                                |
| Athlete Affiliation:                    |  | Date of Birth for U20:       |                                |
|                                         |  | D                            | M                              |
| Athlete's shoe brand(s) and model(s):   |  |                              |                                |
| Name of Competition:                    |  |                              |                                |
| USATF Sanction #:                       |  |                              |                                |
| Date(s) of Competition:                 |  |                              |                                |
| City:                                   |  |                              |                                |
| Name of Stadium:                        |  |                              |                                |

## RESULTS OF COMPETITION

|      | Name | Country | Result |
|------|------|---------|--------|
| 1st: |      |         |        |
| 2nd: |      |         |        |
| 3rd: |      |         |        |

## DOPING CONTROL

|                                                                                                                                                                                                                                                        |  |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|
| I, a member of the Doping Committee for the Competition, certify that a sample for a doping test was obtained in accordance with USATF Rules from the above-mentioned athlete(s) in my presence and dispatched to the following accredited laboratory: |  |
| Date and Time of Doping Sample Collection:                                                                                                                                                                                                             |  |
| Testing Laboratory:                                                                                                                                                                                                                                    |  |
| Doping Control Officer:                                                                                                                                                                                                                                |  |
| Signature:                                                                                                                                                                                                                                             |  |



| <b>ATHLETICS FACILITY</b>                                                                                                                                                                                           |  |                                  |                                                                  |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|----------------------------------|------------------------------------------------------------------|
| The Facility holds a current valid World Athletics Facility Certificate:                                                                                                                                            |  | <input type="checkbox"/> Class 1 | <input type="checkbox"/> Class 2 <input type="checkbox"/> Indoor |
| Or                                                                                                                                                                                                                  |  |                                  |                                                                  |
| The competition site complied with the conditions set out in the USATF/World Athletics Certification System. There is a survey on file and a raised curb was in place.                                              |  |                                  | <input type="checkbox"/>                                         |
| Technical Manager:                                                                                                                                                                                                  |  |                                  |                                                                  |
| Signature:                                                                                                                                                                                                          |  |                                  |                                                                  |
| <b>GUARANTEE BY REFEREE</b>                                                                                                                                                                                         |  |                                  |                                                                  |
| I hereby certify that all the information recorded on this form is accurate, that the officials conducting the Competition were duly qualified and that the appropriate USATF Competition Rules were complied with. |  |                                  |                                                                  |
| Referee:                                                                                                                                                                                                            |  |                                  |                                                                  |
| Signature:                                                                                                                                                                                                          |  |                                  |                                                                  |

| <b>THE FOLLOWING MUST BE ENCLOSED WITH THIS APPLICATION</b>                                                                                                                                                                                                                                                                                                                                            |                                                            |                                                    |                                         |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------|----------------------------------------------------|-----------------------------------------|
| The <b>printed programme</b> of the Competition, the <b>complete results of the event</b> including the <b>reaction times</b> (if applicable), the <b>Photo Finish</b> and <b>Zero Test</b> image in the case of a track record where Fully Automatic Timekeeping was in operation, <b>Judges' Score Sheet</b> , <b>Official Results</b> , <b>Doping Control Form</b> , <b>Passport copy for U20</b> . |                                                            |                                                    |                                         |
| <b>***Use a separate form for each Track and Field individual event***</b>                                                                                                                                                                                                                                                                                                                             |                                                            |                                                    |                                         |
| <b>Additional Information for Historical Purposes</b>                                                                                                                                                                                                                                                                                                                                                  |                                                            |                                                    |                                         |
| Weather Conditions:                                                                                                                                                                                                                                                                                                                                                                                    |                                                            |                                                    |                                         |
| If available:                                                                                                                                                                                                                                                                                                                                                                                          | <input type="checkbox"/> Video of the record for USATF use | <input type="checkbox"/> Photograph of the athlete | <input type="checkbox"/> Press cuttings |

| <b>RECOMMENDATION BY USATF COMMITTEE</b>                                                                                                            |  |
|-----------------------------------------------------------------------------------------------------------------------------------------------------|--|
| The undersigned Sport Committee Chair hereby certifies that it is satisfied with the accuracy of this application and recommends it for acceptance: |  |
| Committee:                                                                                                                                          |  |
| Committee Chair: (Name)                                                                                                                             |  |
| Signature:                                                                                                                                          |  |

| <b>USA TRACK &amp; FIELD APPROVAL</b> |      |     |
|---------------------------------------|------|-----|
|                                       |      |     |
| USATF Technical Representative        | Date | CEO |

**APPENDIX TWO**  
**ROAD RACE PERFORMANCE RECOGNITION APPLICATION FORM (1 of 2)**

## Road Race Performance Recognition Application Form

Questions? Phone Andy Carr at (678) 596-0662 or email [acarr@atlantatrackclub.org](mailto:acarr@atlantatrackclub.org)



### PART I: GENERAL INFORMATION

RACE: Name.....  
 Distance ..... km / miles    Date \_\_\_\_ / \_\_\_\_ / 20\_\_\_\_  
 Location: City ..... St .....  
 Last Year's Race Name ..... 1st Year \_\_\_\_ / \_\_\_\_ / \_\_\_\_  
 PERSONNEL: Your Name .....  
 Email (or Tel) .....  
 Director's Name .....  
 Race Office Telephone .....  
 Email .....  
 Web Site .....  
 Address .....  
 City ..... St ..... ZIP .....

NUMBERS: Male Entrants ..... Female Entrants .....

RACE DAY CONDITIONS: Please describe any environmental factors (humidity, wind, temperature, rainfall, man-made obstructions, etc.), which might have affected performance.  
 .....  
 .....

### PART II: THE COURSE (circle 'Yes' or 'No' as answers to questions 1 and 2)

1. Is the start to finish elevation drop 1 meter or less per km?    **Yes / No**  
 2. Is the start to finish separation 50% or less of the race distance?    **Yes / No**

I, the undersigned, hereby attest that the race identified in Part I above was run on the course as described on the USATF Course Measurement Certificate # .....

In the event that a record is to be validated, the following evidence is available:

..... photograph of start    ..... photograph of finish  
 ..... photograph of turnaround    ..... video tape of .....  
 ..... recording of race numbers at appropriate points  
 ..... photograph or other data indicating wind direction

Signed ..... Race Director

### PART III: TIMING AND SCORING

#### 1. TIMING SYSTEM

Type/make of primary timing system: .....  
 [Note that Chip NET times are not official but Chip GUN times are acceptable.]  
 [Enter the time below as they are read from the watches/timing devices including tenths and hundredths of seconds.]

| 2. WINNING TIMES                | HR:MN:SC.99               | signature of timers |
|---------------------------------|---------------------------|---------------------|
| Time of overall winner, primary | ____ : ____ : ____ . ____ | .....               |
| Time of overall winner, watch 1 | ____ : ____ : ____ . ____ | .....               |
| Time of overall winner, watch 2 | ____ : ____ : ____ . ____ | .....               |
| Time of overall winner, watch 3 | ____ : ____ : ____ . ____ | .....               |

The times recorded above are accurate. The timing was done in accordance with USATF Rule 165. [Except times above include decimals rather than rounding up.]

Signed ..... Chief Timer

### 3. NON-WINNING TIMES

If non-winning stopped times were recorded for other individuals, especially if record or notable performance is suspected, enter below:

| Name of Athlete | (Age)   | Date of Birth      | HR:MN:SC.99               |
|-----------------|---------|--------------------|---------------------------|
| .....           | (.....) | ____ / ____ / ____ | ____ : ____ : ____ . ____ |
| .....           | (.....) | ____ / ____ / ____ | ____ : ____ : ____ . ____ |
| .....           | (.....) | ____ / ____ / ____ | ____ : ____ : ____ . ____ |

### 4. MULTIPLE STARTS

Was there more than one start time?    **Yes / No**

If yes, give times and participant categories of each: .....

Was there more than one start location?    **Yes / No**

If yes, explain procedure used to ensure time accuracy: .....

### 5. MULTIPLE LOOPS

Did the course consist of multiple loops on the road or track?    **Yes / No**

If yes, indicate the length of a single loop: ..... km / miles.  
 Copies of lap sheets must be submitted for individuals suspected of record or notable performances.

### 6. SELECT TIMING AND SCORING

Was select timing used to ensure that times and runners were properly matched?    **Yes / No**

If select times sheets are not attached are they available for the entire period that runners were timed?    **Yes / No**

Do you time all finishers with one primary timing device?    **Yes / No**

If no, into how many sections or timing gates is your finish line divided? (One printer timer for men and another for women would be classified as two timing gates.) Number of finish line gates or divisions = .....

Number of primary timers used = .....  
 If more than one, describe how the primary timers are synchronized and how the times and places captured from one gate are reconciled with the other(s): .....

### PART IV: BONA FIDE COMPETITION

I, the undersigned, being the duly appointed referee for the above described race hereby attest that I am conversant with the rules, standards and requirements of USA Track & Field with respect to the conduct of a road race. I am satisfied that:

- the start was 'fair' and in accordance with USATF Rule 242.
- the course was monitored to prevent course cutting and to the best of my knowledge all official finishers ran the course as certified and in accordance with USATF Rules 243 and 244.
- the standards of bona fide competition were in effect and that all award winners competed fairly and within the intent of USATF Rules 144 (Assistance to Athlete) and 245 (Finish Line Recording and Timing.)
- the event was sanctioned by USATF in accordance with USATF Rule 262. USATF Sanction Control #: .....

Note: All rule numbers are as of January 1, 2023. Race personnel should become familiar with current USA Track & Field Rules of Competition which can found on the USATF web site at:

[www.usatf.org/governance/rule-books](http://www.usatf.org/governance/rule-books)

Signed ..... Referee or Race Director

### PART V: RESULTS

The complete results with ages and hometowns have been emailed to the USATF LDR Record Keeper at:

[acarr@atlantatrackclub.org](mailto:acarr@atlantatrackclub.org)

Please mail this form to address on reverse

AC/mw 12/2022

**APPENDIX TWO**  
**ROAD RACE PERFORMANCE RECOGNITION APPLICATION FORM (2 of 2)**

RACE \_\_\_\_\_

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## STATE RECORD KEEPER

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Mail completed form: If your race is in one of the following states, write the appropriate address in the 'STATE RECORD KEEPER' address block above and fold the form so that the address is on the outside. If your state is not listed below, fold the form so that the mailing address, below, is on the outside. Also, please email complete results to the state record keeper (as well as USA Track & Field--see Part V on page 1).

AL Buck Jones, 2920 Eastern Shore Dr SE, Hampton Cove, AL 35763-9339; buckjonesvols@comcast.net  
 AR Randy Taylor, 14101 Longtree, Little Rock, AR 72212; Wrandy@aol.com  
 AZ Steve Finkelstein, 3131 W Cochise, #261, Phoenix, AZ 85051; sfink2@mindspring.com  
 DC George Banker, 7507 Overlook Ct, Oxon Hill, MD 20745; monkbank@comcast.net  
 GA Joyce Hodges-Hite, PO Box 717 Millen, GA 30442; hodgeshitej@gmail.com  
 IA Cal Murdock, 1631 38th St, Des Moines, IA 50310; calmurdock@earthlink.net  
 IL USATF-IL, PO Box 7019, Villa Park, IL 60181; USATFvan@aol.com  
 KY Buck Jones, 2920 Eastern Shore Dr SE, Hampton Cove, AL 35763-9339; buckjonesvols@comcast.net  
 LA Eric Stuart, 143 Metairie Heights Ave., Metairie, LA 70001; eric.stuart@ccc10k.com  
 MN Barb Leininger, 5115 Park Ave S, Minneapolis, MN 55417; tombarb@mn.rr.com  
 MO Mike Lundgren, 5814 Fontana Dr, Fairway, KS 66205; jtlrun96@aol.com [hard copy of results preferred]  
 MS Buck Jones, 2920 Eastern Shore Dr SE, Hampton Cove, AL 35763-9339; buckjonesvols@comcast.net  
 NC Neville Wood, 5309 Chamisal Place, Raleigh, NC 27613; nfwood@gmail.com  
 NH Bill Spencer, 9 Cranberry Lane, Litchfield, NH 03052; bspence70@comcast.net [hard copy of results preferred]  
 NM Tom Rojas, Box 25671, Albuquerque, NM 87125; tcr@tgrande.com  
 OK Joe McDaniel, 1416 S Marion, Tulsa, OK 74112; okrunjoe@cox.net  
 SC Bill Marable, 5 Windchime Court, Simpsonville, SC 29680; bmarable@greenvillecounty.org  
 TN Buck Jones, 2920 Eastern Shore Dr SE, Hampton Cove, AL 35763-9339; buckjonesvols@comcast.net  
 TX Lance Phegley, 240 Gray Falls Drive, Suite 110, Houston, TX 77077; lance@runningmags.com

RACE \_\_\_\_\_

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ANDY CARR  
 15270 HIGHGROVE ROAD  
 MILTON, GA 30004-3190

**APPENDIX THREE**  
**USATF COURSE MEASUREMENT CERTIFICATE**



*Road Running Technical Council*  
*USA Track & Field*  
**Measurement Certificate**



Name of the course \_\_\_\_\_ Distance \_\_\_\_\_

Location (state) \_\_\_\_\_ (city) \_\_\_\_\_

Type of course: road race ☒ calibration ☐ track ☐ Configuration: \_\_\_\_\_

Type of surface: paved \_\_\_\_\_ % dirt \_\_\_\_\_ % gravel \_\_\_\_\_ % grass \_\_\_\_\_ % track \_\_\_\_\_ %

Elevation (meters above sea level) Start \_\_\_\_\_ Finish \_\_\_\_\_ Highest \_\_\_\_\_ Lowest \_\_\_\_\_

Straight line distance between start & finish \_\_\_\_\_ Drop \_\_\_\_\_ m/km Separation \_\_\_\_\_ %

Measured by (name, address, phone & e-mail) \_\_\_\_\_

Race contact (name, address & phone) \_\_\_\_\_

Measuring Methods: bicycle ☐ steel tape ☐ electronic distance meter ☐

Number of measurements of entire course: \_\_\_\_\_ Date(s) when course measured: \_\_\_\_\_

Race date: \_\_\_\_\_ Course certification effective date: \_\_\_\_\_

Replaces: \_\_\_\_\_ (if applicable) Certification code: \_\_\_\_\_

Notice to Race Director  
 Use this Certification Code in **all** public  
 announcements relating to your race.

***Be It Officially Noted That***

Based on examination of data provided by the above named measurer, the course described above and in the map attached is hereby certified as reasonably accurate in measurement according to the standards adopted by the Road Running Technical Council. If **any** changes are made to the course, this certification becomes void, and the course must then be recertified.

**Validation of Course** — In the event a National Open Record is set on this course, or at the discretion of USA Track & Field, a validation remeasurement may be required to be performed by a member of the Road Running Technical Council. If such a remeasurement shows the course to be short, then all pending records will be rejected and the course certification will be cancelled.

*This certification expires on December 31 in the year*

**AS NATIONALLY CERTIFIED BY:**

\_\_\_\_\_  
 Name – USATF/RRTC National Certifier Date: \_\_\_\_\_

Address Phone E-mail

**APPENDIX FOUR  
USA TRACK & FIELD ATHLETE NOTICE OF RETIREMENT FORM**

I, \_\_\_\_\_, hereby submit my **NOTICE OF RETIREMENT** as an athlete member of USA Track & Field, Inc. (USATF). In submitting this paperwork, and retiring as an athlete, I understand that: (1) I will be removed from USATF's Out-Of-Competition drug testing program; and (2) I am no longer eligible for benefits through USATF.

I understand that if I wish to return to the sport and regain my eligibility to compete, I must (1) notify USATF by completing a **RETURN FROM RETIREMENT** form; (2) enroll in the USADA Out-of-Competition Drug Testing Protocol for twelve (12) months in advance of the date upon which I wish to compete; (3) be available for testing for the entire specified period; and (4) successfully complete all drug tests administered during said period preceding my re-eligibility date.

I further understand and agree that this **NOTICE OF RETIREMENT** will have no impact on any disciplinary proceedings that have or will be brought against me by any relevant organization (See USATF Regulation 20), for doping-related offense prior to my **NOTICE OF RETIREMENT**.

\_\_\_\_\_  
Athlete Print Name

\_\_\_\_\_  
Athlete Signature

\_\_\_\_\_  
Date

NOTARIZATION

STATE OF \_\_\_\_\_ }

}

COUNTY OF \_\_\_\_\_ }

}

I certify that this document was signed in my presence by the individual named above, on the date indicated above.

\_\_\_\_\_  
Commission Expiration Date

\_\_\_\_\_  
Notary Public Signature

\_\_\_\_\_  
County of Residence

\_\_\_\_\_  
Notary Printed Name





## APPENDIX FIVE STATEMENT OF CONDITIONS

Team: \_\_\_\_\_

### USATF National Team

Athlete Statement of Conditions

(To be read and signed by all National Team Athletes)

Name: \_\_\_\_\_

Competition Dates: \_\_\_\_\_

All Athletes are required to read, agree to, and sign this Statement of Conditions in order to be a member of USA Track & Field National Team (The "Team"). By signing this Statement of Conditions, I represent and agree with USA Track & Field ("USATF") that:

A. I will conduct myself at all times as a goodwill ambassador for the Team and the United States of America, and that I will refrain from any act(s) that may reflect unfavorably upon myself, my teammates, the sport of track and field, USATF or the United States of America.

B. I will not intentionally or voluntarily undertake any action that desecrates or disrespects the American Flag.

C. I will dress appropriately and respectfully for all "official" Team functions, wearing the designated Team uniforms provided by USATF. I understand that USATF's sponsor contract for uniforms depends upon athletes wearing the uniform and using the uniform items at competitions, award ceremonies, "official" Team press conferences, and other "official" Team functions, and that I shall not participate in any of these activities with a logo of any competitor of USATF's Team sponsor affixed to me in any manner whatsoever. Uniform items shall include underlayer apparel (unless not otherwise provided by USATF's Team sponsor, in which case Athlete shall make reasonable efforts to ensure said underlayer is not otherwise visible during the Team competition(s), activities and/or functions specified herein), bandanas, headbands, hats, sweatbands, wristbands, socks, sports bras, travel bags, etc., but shall specifically exclude sunglasses, watches and shoes. I understand that I am forbidden from (i) altering, distorting, removing, or covering up the sponsor logo on any Team uniform items (ii) altering, removing, or covering up the sponsor logo on any Team uniform items in any photographs, videos, or other images of me, and (iii) assisting or permitting anyone else to alter, distort, remove, or cover up the sponsor logo on any Team uniform items in photographs, videos, or images of me. I will not myself exploit, nor grant any third party the right to exploit any photograph, video, or image of me in which a USATF Team sponsor logo has been altered, removed, or covered. I will, upon reasonable request by USATF, request that a third party cease exploiting such a photograph, video, or image. Further, I am aware that USATF faces financial penalties, assessed by USATF's sponsors, each time an athlete fails to abide by the conditions stated in this document. At the Olympic Games, Pan American Games, and World University Games, I understand that the "official" presentation uniforms provided by the United States Olympic & Paralympic Committee ("USOPC") must be worn during opening and closing ceremonies, awards ceremonies, and "official" USOPC, Local Organizing Committee ("LOC"), or World Athletics ("WA") press conferences.

D. I will attend all "official" Team practices, Team meetings, and other required Team activities.

E. I will honor my commitment to train and report fit to compete. I understand that breaking a commitment hurts the competitive effort of the Team and prevents other athletes from having an opportunity to be a Team member. If I am unable to compete due to injury, illness, or for any other reasons (an "Emergency"), I will notify the Team coaches of my inability to participate in the Team competition, at least seventy-two (72) hours prior to my scheduled departure with the Team, or within seven (7) days (if not so traveling) prior to the scheduled competition, unless I am prevented from doing so by extraordinary circumstances. In the event of an Emergency, I understand that I may be required to prove my lack of ability to compete.

F. I will read and abide by the attached USATF Regulations (See, Copy of Regulations Attached):

Regulation 20/Doping Control; Regulation 21/Disciplinary Proceedings; Regulation 24/Commitments and Conduct of Athletes and Staff. I will also abide by all applicable United States Anti-Doping Agency ("USADA"), World Anti-Doping Agency ("WADA"), and WA doping control regulations. I understand that my breach of my commitment to serve on the Team as stated herein may result in discipline against me, pursuant to USATF Regulations 24 and 21, for misconduct and actions that are detrimental to the best interests of Athletics and/or the Team. Such alleged misconduct may include, but not be limited to: (1) failing to wear or use the Team uniform or uniform items supplied by USATF; (2) failing to attend "official" Team practices, Team meetings, and other required Team activities; (3) failing to maintain competitive fitness; (4) failing to provide timely notice of an Emergency which prevents me from competing, unless I am prevented from doing so by extraordinary circumstances; and/or (5) engaging in any conduct that is detrimental to the United States of America, USATF or Athletics. In the event the alleged misconduct occurs during the competition dates set forth above, USATF must notify you of such alleged misconduct within ninety (90) days of USATF becoming aware of said misconduct.

G. I understand that non-drug-related disciplinary proceedings (including expedited hearings) shall be conducted, and penalties imposed, pursuant to USATF Regulation 21, except that the USOPC Code of Conduct shall govern disciplinary hearings conducted while an athlete is a member of a USOPC delegation and team. I understand that USATF may conduct expedited disciplinary proceedings on site at qualifying events pursuant to USATF Regulation 21. I also understand, dependent upon the outcome of such disciplinary proceedings, USATF reserves the right to impose the following minimum penalties:

1. **First offense:** A written reprimand and liability for any reasonable monetary penalties assessed against USATF, and discontinuance of any payments I am may be receiving pursuant to USATF-sponsored financial aid programs, for a period of not more than twelve (12) months;

2. **Second offense:** A written reprimand and liability for any monetary penalties assessed against USATF, and ineligibility for USATF-sponsored financial aid programs for a period of twelve (12) months; or

3. **Third offense:** Suspension and ineligibility to participate on the Team, prohibition from representing the United States as a member of any sanctioned international competition teams for a period of one (1) year, and liability for any monetary penalties assessed against USATF.

H. I understand that if USATF reasonably believes I have breached this agreement, it may, prior to instituting disciplinary proceedings or conducting a hearing, issue a written demand that I take all reasonable steps necessary to cure the breach.

The terms of this statement of Conditions shall be coterminous with the terms of the agreement between USATF and its Team sponsor. The undersigned has read and understands this Statement of Conditions and confirms that the she or he will keep all Team Commitments stated above and in the attached USATF Regulations.

Date: \_\_\_\_\_

Signature: \_\_\_\_\_





**USATF™**

**USATF.ORG**